The Corporation of the Town of Ajax

COUNCIL

Monday, September 18, 2023, 6:45 p.m.
Open Meeting at 7:00 p.m.
Hybrid Meeting
Council Chambers, Town Hall
65 Harwood Avenue South

AGENDA

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Hybrid Meeting: This meeting occurs in person and will be live streamed for viewing at www.ajax.ca/live. Electronic participation is permitted pursuant to Council's Procedure By-law and may be arranged by e-mailing clerks@ajax.ca.

1. Call to Order & Acknowledgement of Traditional Treaty Lands

2. Disclosure of Pecuniary Interest

Closed Session

3. Authority to Hold a Closed Meeting and Related In-Camera Session

3.1 **Appointments to the Ajax Public Library Board**

- *To discuss personal matters about identifiable individuals, including municipal or local board employees [Sec. 239 (2)(b), Municipal Act, 2001, as amended]*

Open Session ~ 7:00 p.m.

4. Adoption of Minutes

4.1.	Regular Meeting	**June 19, 2023**	4
4.2.	Special Meeting	**June 27, 2023**	15
4.3.	Closed Meeting	June 27, 2023	circulated separately
4.4.	Special Meeting	**September 5, 2023**	19

5. Question Period

6. Delegations, Presentations, and Public Meetings

6.1. Delegation **Winners of 2023 World Robotics Olympiad Competition National Final**
~Rice Rao, Director, Explorer Robotics Club

6.2. Presentation **Durham Regional Police Service Strategic Plan 2024 – Consultation**
~Shaun Collier, Chair, Durham Regional Police Service Board
~Peter Moreira, Chief of Police, Durham Regional Police Service
~Dr. Vidal Chavannes, Director – Strategy, Research & Organizational Performance, Durham Regional Police Service
~Dr. Amanda Couture-Carron – Senior Strategic Planner, Durham Regional Police Service

6.3. Presentation **Update on Shared E-Scooter / E-Bike Pilot Project**
~Armi De Francia, Active Transportation Coordinator

7. Correspondence 21

8. Reports

8.1. Community Affairs & Planning Committee

None

8.2. General Government Committee

8.2.1. **General Government Committee, September 12, 2023** 77

8.3. **Summary of Advisory Committee Activities, September, 2023** 82

8.4. Departmental Reports

8.4.1. **CAO-2023-15: Social Media Policy 055 Update**
S. Baker, Chief Administrative Officer / D. Jarvis, Supervisor of Communications & Engagement 85

8.4.2. **AFES-2023-06: Contract Award – Replacement Aerial Fire Apparatus Unit #A42 (2006)**
A. Burridge, Fire Chief 133

8.4.3. **FIN-2023-21: Utilizing Debentures for Capital Projects**
(Referred from June 27, 2023 Special Council)
D. Valentim, Director of Finance/Treasurer / C. Chowdhry, Senior Financial Analyst / J. Mepham, Manager of Budgets & Accounting 138

8.4.4. **OES-2023-20: Snow Removal Program for Seniors and Qualified Residents**
D. Meredith, Director of Operations & Environmental Services / R. Gamble, Supervisor Special Events & Senior Snow 146

9. Regional Councillors' Reports

9.1. **Regional Councillor's Report – M. Crawford – September 18, 2023** 173

10. Business Arising From Notice of Motion

10.1. **Utilizing Crime Prevention through Environmental Design at the Harwood Plaza**
Councillor Bower / Regional Councillor Dies 176

10.2. **Provincial Sharing of HST**
Regional Councillor Lee / Councillor Bower 177

11. By-Laws

47-2023 **Fire Route Application: 575 Harwood Avenue N.** 178
48-2023 **Building Fee By-law** 180
49-2023 **Porte Road Closure** 200
50-2023 **Procedure By-law Updates** 201
51-2023 **Deputy Mayor By-law** 228
52-2023 **Administrative Monetary Penalties By-law** 229
53-2023 **Traffic By-law Amendment – Administrative Monetary Penalties System** 241

12. Notice of Motion

13. New Business/Announcements

14. Confirming By-Law

54-2023 243

15. Adjournment

DRAFT MINUTES – SUBJECT TO APPROVAL

Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, June 19, 2023

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Mayor Collier called the meeting to order at 7:01 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

Motion to Suspend the Rules of Procedure

Moved by: M. Crawford
Seconded by: S. Lee

That the Rules of Procedure be waived to add a Delegation to the Agenda – Douglas Glass – Municipal Taxation.

CARRIED
on 2/3rds

3. Adoption of the Minutes

Moved by: S. Lee
Seconded by: L. Bower

That the minutes of the Special Meeting of Council held on May 10, 2023 be adopted.

CARRIED

Moved by: S. Lee
Seconded by: L. Bower

That the minutes of the Closed Meeting of Council held on May 10, 2023 be adopted.

CARRIED

Moved by: S. Lee
Seconded by: L. Bower

That the minutes of the Regular Meeting of Council held on May 15, 2023 be adopted.

CARRIED

4. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that members of the public wished to address Members of Council.

DRAFT

Heather Middleton, Ajax Resident, asked questions regarding process and public consultation opportunities related to safe injection sites. Mayor Collier responded to questions from H. Middleton.

A gallery participant asked Members of Council to endorse item 6.17 ("Seniors for Social Action Ontario – Need to Redirect Funding to In-Home and Community Care") of the Correspondence Report.

A gallery participant asked questions regarding the proposed location of the safe injection site. Mayor Collier responded to the question.

5. Delegations, Presentations, and Public Meetings

5.1 Delegation: Ontario Shores: Psychiatric Emergency Service

Karim Mamdani, President and CEO, Ontario Shores Centre for Mental Health Sciences, delivered a presentation regarding the proposed Emergency Psychiatric Assessment Treatment and Healing Units (EmPATH) model. K. Mamdani discussed background, objectives, Ontario Shores services and accomplishments, capacity, demand for mental health services, and EmPATH model space and benefits to patient care and the economy. K. Mamdani expressed thanks to Council for their support.

Council Members asked questions regarding symptoms of a psychotic episodes, diversion processes, process for violent individuals, construction timelines, alternatives to the EmPATH model, bed availability and demand for services, funding and costs, endorsements received by police and emergency services, and provincial funding allocated to the EmPATH model. K. Mamdani responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked K. Mamdani for his delegation.

With the consent of Members present, item 9.1 was advanced in the order business.

9. Business Arising from Notice of Motion

9.1 Support for the EmPATH Program

Regional Councillor Crawford and Regional Councillor Lee introduced the motion and reviewed its contents.

Moved by: M. Crawford
Seconded by: S. Lee

WHEREAS Ontario Shores Centre for Mental Health Sciences is seeking funding to pursue planning and associated construction of the Emergency Psychiatric Assessment Treatment and Healing Unit (EmPATH) model;

AND WHEREAS in EmPATH units, unlike a traditional Emergency Department, patients are provided with immediate psychological assessment followed by immediate psychiatric and pharmacological treatment within a safe and non-threatening environment;

AND WHEREAS mental health, addictions and homelessness are increasing issues in Durham Region, as noted in Durham Region Social Services Committee Report #2023-SS-10, which highlights that each year Lakeridge Health is seeing more than 100,000 mental health visits for adults, more than 12,000 visits for children and youth, and more than 14,000 visits to its emergency departments related to mental health and substance use;

AND WHEREAS the benefits of the EmPATH model include reduced pressure and costs for Emergency Departments, police, and EMS, and better patient and family experience due to the specialized environment, mental health care expertise, and accelerated assessment, according to the Ontario Shores Centre for Mental Health Sciences Master Plan;

AND WHEREAS on March 1, 2023, Durham Regional Council endorsed the request to the Province of Ontario from Ontario Shores Centre for Mental Health Sciences, for approval to provide Psychiatric Emergency Services and construct an Emergency Psychiatric Assessment Treatment and Healing Unit.

THEREFORE BE IT RESOLVED THAT:

DRAFT

Ajax Council direct Mayor Shaun Collier to send a formal letter to Ontario Shores Centre for Mental Health Sciences, copying the Hon. Minister of Health Sylvia Jones, The Honourable Ajax MP Mark Holland, Ajax MPP Patrice Barnes, Whitby MPP Lorne Coe, Regional Chair John Henry, all Durham area municipalities, DRPS, MPP Todd McCarthy, and MPP Peter Bethlenfalvy to advise them of Council and the Town's Support for the EmPATH model.

CARRIED

Recorded Vote

In Favour: Regional Councillor Lee, Councillor Bower, Mayor Collier, Regional Councillor Crawford, Regional Councillor Dies, Councillor Henry, Councillor Tyler Morin

Opposed: None

5.2 **Delegation: More Ways to Get Around: E-Scooters and E-Bikes**

Isaac Ransom, Head of Corporate Affairs, Neuron Mobility, delivered a presentation regarding More Ways to Get Around: E-Scooters and E-Bikes. I. Ransom discussed Neuron's mission, safety innovation and technology, QR code reporting, augmented reality parking assistance, high accuracy location technology, rapid geofence detection, statistics, and opportunities to accelerate the local economy.

Council Members asked questions regarding abandoned e-scooters, e-scooter program options, helmet lock technology features, risk mitigation strategies, and geofencing technology features namely tracking, applications and implementation. I. Ransom responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked I. Ransom for his delegation.

5.3 **Delegation: The Dangers of Rodenticides**

Janice Freund and Dr. Brian Freund, Rodenticide Free Ontario, delivered a presentation on the dangers of rodenticides. J. Freund defined rodenticides and discussed risks to companion animals, wildlife, humans and the environment, primary and secondary poisonings, signs of toxicity, human health effects, preventative measures, and alternative options.

Council Members asked questions regarding consultation with pest control experts and pest management options. J. Freund and Dr. B. Freund responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked J. Freund and Dr. B. Freund for their delegation.

5.4 **Delegation: Multi-Purpose Tennis/Pickle Ball Courts**

David Riegert, Pickle Ball Players of Ajax, delivered a presentation regarding multi-purpose tennis/pickle ball courts. D. Riegert reviewed the Pickle Ball Canada January 2022 survey results and discussed pickle ball popularity, statistics, current situation in Ajax namely demand, dedicated pickle ball facilities in area municipalities, advantages and disadvantages of shared tennis and pickle ball vs dedicated courts, space and play comparisons, low-cost solutions, and recommendations.

Council Members asked questions regarding progress to date with the Town, opportunities for collaboration with the Tennis Club, and pickle ball playing opportunities. D. Riegert responded to questions from Council Members.

On behalf of Council, Mayor Collier thanked D. Riegert for his delegation.

Delegation: Property Taxes

Douglas Glass, Ajax Resident, expressed concerns regarding property tax increases, percentage increases, declining service levels, and fiscal management. D. Glass asked Council Members to address the needs of Ajax residents.

Mayor Collier identified pressures from the pandemic, inflation, labour shortages, supply chain issues, and staff resources. Mayor Collier reviewed plans and initiatives which contributed to increased property taxes namely the Fire Master Plan, Stormwater

DRAFT

Management Plan and Asset Management Plan, and noted that a number of purchased assets were funded through grants. Mayor Collier encouraged residents to participate in the Town's budget process and reviewed public consultation opportunities.

On behalf of Council, Mayor Collier thanked D. Glass for his delegation.

5.5 **Presentation: 2022 Financial Statements and Audit Report**

Lilian Cheung, Associate Partner, Deloitte, presented the results of the 2022 audit and the audited annual consolidated financial statements, noting that the audit of the financial statements was completed in accordance with Canadian generally accepted auditing standards. L. Cheung reported a clean audit opinion with no uncorrected statements and no material weaknesses in internal controls.

Council Members asked questions regarding opportunities to expedite the financial statement closing process. L. Cheung responded to the question from Council Members.

There was no motion regarding this item.

On behalf of Council, Mayor Collier thanked L. Cheung for her presentation.

With the consent of Members present, item 5.7 was advanced in the order business.

5.7 **Presentation: Economic Development Update**

Samuel Twumasi, Manager of Economic Development & Tourism, provided an updated regarding Economic Development in the Town of Ajax. S. Twumasi reviewed 2021-2025 Economic Development Action Plan (EDAP) including goals and action plans, 2022-2026 Strategic Plan Action 26, economic development and tourism accomplishments to date, Community Tourism Plan objectives, ongoing projects, and future projects.

Council Members asked questions regarding the Business Retention and Expansion (BR&E) Program including business assessments conducted to date, anecdotal feedback, vision for the program, business unit vacancy, business mentor roster recruitment, number of celebrated grand openings, and recognition opportunities for local business on Town social media channels. S. Twumasi responded to questions from Council Members.

5.6 **Presentation: Grants and Partnerships Update**

Kassandra Cruciano, Senior Advisor, Grants, Partnerships & Strategic Affairs, provided an update regarding Grants and Partnerships. K. Cruciano reviewed background and provided an overview of grants, project details and funding associated with successful applications, pending and upcoming applications and unsuccessful applications, supporting grants with other organizations, 2023 Ajax Partnership Fund, in-kind support, partnerships with Metrolinx, and next steps.

Council Members asked questions regarding grant funding and alternative funding sources, Next Gen 9-1-1 Grant details, Ontario CCTV Community Grant details, cumulative grant totals over the previous 5 years, and the funding source for the Ajax Partnership Fund. K. Cruciano and Aaron Burridge, Interim Fire Chief, responded to questions from Council Members.

5.8 **Presentation: 2023 Capital Projects Update**

Ranil Fernando, Manager of Infrastructure & Asset Management, provided an updated regarding 2022 Capital Projects. R. Fernando highlighted capital projects dedicated to trails and parks, design, construction, building maintenance, condition assessments, and Regional Municipality of Durham 2023 capital construction projects in the Town of Ajax.

Council Members asked questions regarding consultation with cricket community groups regarding cricket pitch design, funding sources for acoustic walls, opportunities to add playground woodchips at Millers Creek Park, Forest Ridge Park/Eagle Ridge Trail funding, project scope for St. Catherine of Siena Park, location of Bridge 112, project scope and public consultation for Exeter Park, Lord Elgin sanitary trunk sewer, opportunities to utilize recycled materials for road rehabilitation projects, timelines associated with detailed design for the fairgrounds, and grant funds allocated to the Cricket Club. R. Fernando, Dave Meredith, Director of Operations & Environmental Services, and Dianne Valentim, Director of Finance/Treasurer, responded to questions from Council Members.

DRAFT

Council recessed at 9:48 p.m.

Council resumed at 9:55 p.m.

5.9 **Public Meeting: PDS-2023-26: Official Plan Amendment Application OPA20-A2**
Zoning By-law Amendment Application Z3/20
Petrina Developments Corporation
21 & 23 Harwood Avenue South
Western Portion of 100, 101 & 102 Heron Street

Eric Simpson, Senior Planner, reviewed the contents of the written report and recommendations contained therein. E. Simpson discussed the subject lands, submitted planning applications, proposed development, official plan designations, current zoning of the subject lands, planning framework and analysis, land use compatibility, public consultation, and staff recommendations.

Council Members asked questions regarding construction timelines associated with developments in the Midtown corridor, location of the private lane connection, and project timelines. E. Simpson, responded to questions from Council Members.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

Angie Pappas, 20 Matheson Crescent, Ajax, asked questions related to proposed site plan. Mayor Collier responded to the question from the delegate.

Colleen O'Hara, Ajax Resident, expressed concerns regarding sun/shadow impacts.

There being no further questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Council Members asked questions regarding sun/shadow impacts and functional details of the proposed development (apartment/condominium solely for seniors versus retirement home or nursing/long-term care home). Brad Rogers, President, Groundswell Urban Planners, spoke on behalf of the applicant and responded to questions from Council Members.

Moved by: J. Dies
Seconded by: N. Henry

1. That Official Plan Amendment Application OPA20-A2 be approved and that implementing Official Plan Amendment (No. 73), as provided in Attachment 1 to this report, be considered for approval by Council at its meeting of June 19, 2023;

2. That Zoning By-law Amendment Application Z3/20 be approved and that the implementing Zoning By-law, as provided in Attachment 2 to this report, be considered for approval by Council at its meeting of June 19, 2023; and

3. That the Director of Planning and Development Services or their designate be authorized to grant draft approval of any future Draft Plan of Condominium Application(s) that may be required to facilitate the future development of the subject lands.

CARRIED

5.10 **Public Meeting: PDS-2023-28: Zoning By-law Amendment Z1/23** (**Temporary Use)**
2838033 Ontario Inc.
527 Kingston Road West

Kanchan Ghadge, Development Planner, reviewed the contents of the written report and recommendations contained therein. K. Ghadge discussed background information, the subject lands, official plan designations, current zoning of the subject lands, submitted development application, reports and studies, temporary-use permissions, planning policies, public consultation, and staff recommendations.

Council Members asked questions regarding impacts to the by-law if property ownership changes, temporary use provisions, extension processes, opportunities to approve the application without an extension period, rationale for the application, zoning provisions,

DRAFT

heritage designation, and historical use and ownership. Bruno Scopacasa, Supervisor of Development Approvals, responded to questions from Council Members.

Mayor Collier declared the meeting to be a public meeting and invited comments and questions from the public.

Julia Seaton, 9 Tudor Avenue, Ajax, asked about tenant residency beyond the three-year temporary use. B. Scopacasa, responded to the question from the delegate.

There being no further questions or comments from the public, Mayor Collier closed the public meeting and invited comments from the applicant.

Council Members asked questions regarding rationale for the proposed application, impacts to a reduced extension period, and opportunities to proceed with development prior to the expiration of a three-year extension. Muhammad Khan, Applicant and B. Scopacasa, responded to questions from Council Members.

Moved by: J. Dies
Seconded by: L. Bower

1. That Zoning By-law Amendment Application Z1/23 (Temporary Use) be approved and that the implementing Zoning By-law, as provided in Attachment 1 to this report, be considered for approval by Council at its meeting of June 19, 2023.

CARRIED

With the consent of Members present, items 9.2, 9.3 and 9.4 were advanced in the order business.

9. Business Arising from Notice of Motion

9.2 Supporting Bill 41, Protection from Coerced Debts Incurred in Relation to Human Trafficking Act, 2023

Regional Councillor Crawford and Councillor Bower introduced the motion and reviewed its contents.

Moved by: M. Crawford
Seconded by: L. Bower

WHEREAS Private Members' Bill 41, Protection from Coerced Debts Incurred in relation to Human Trafficking Act, 2023, was received for first reading on November 16, 2022;

AND WHEREAS Bill 41 seeks to protect the victims of human trafficking from coerced debts by compelling financial institutions and collection agencies to forgive coerced debts accrued by victims;

AND WHEREAS in the case of a dispute between a creditor and a debtor as to whether a debt is a coerced debt, Bill 41 would allow either party the opportunity to apply to a Tribunal for a determination;

AND WHEREAS Second Reading of Bill 41 carried on February 23, 2023, and it was ordered referred to the Standing Committee on Justice Policy;

AND WHEREAS Bill 41 is well aligned with priorities identified under Ajax Council's 2022-2026 Strategic Plan to provide services and resources to vulnerable and underrepresented communities and increase a sense of safety and security for the community;

THEREFORE BE IT RESOLVED THAT:

- Ajax Council endorse Bill 41, Protection from Coerced Debts Incurred in relation to Human Trafficking Act, 2023; and

- A copy of this non-partisan motion be shared with the co-sponsors of Bill 41, Haliburton-Kawartha Lakes-Brock MPP Laurie Scott, Guelph MPP Mike Schreiner, Spadina-Fort York MPP Chris Glover, and Ottawa-Vanier MPP Lucille Collard, and with Ajax MPP Patrice Barnes, DRPS, and all Durham area municipalities.

CARRIED

DRAFT

9.3 **Consumption and Treatment Sites**

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents.

Main Motion

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS on June 7, 2023, the Ajax Public Library Board sent a letter to the Region of Durham, Re: Support for Consumption and Treatment Sites (CTS) in the Town of Ajax;

AND WHEREAS Regional Municipality of Durham Information Report #2023-INFO-47, dated June 2, 2023, indicates municipal council support is a requirement of the CTS application process.

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council does not support the presence of Consumption and Treatment Sites in the Town of Ajax; and

2. This motion be shared with Durham Regional Chair John Henry, the Regional Clerk Alexander Harras, and MPP Patrice Barnes.

Motion to Refer

Moved by: S. Lee
Seconded by: J. Dies

That Council refer consideration of the Notice of Motion respecting Consumption and Treatment Sites (CTS) in the Town of Ajax to a future meeting until after Public and Strategic Affairs coordinates consultation, education and input from the Ajax community and key stakeholders to better understand the plan to address the substance use crisis in Durham Region and the role a CTS may play in such plans.

MOTION LOST

Recorded Vote

In Favour: Regional Councillor Lee, Regional Councillor Dies, Councillor Henry

Opposed: Councillor Bower, Mayor Collier, Regional Councillor Crawford, Councillor Tyler Morin

Main Motion

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS on June 7, 2023, the Ajax Public Library Board sent a letter to the Region of Durham, Re: Support for Consumption and Treatment Sites (CTS) in the Town of Ajax;

AND WHEREAS Regional Municipality of Durham Information Report #2023-INFO-47, dated June 2, 2023, indicates municipal council support is a requirement of the CTS application process.

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council does not support the presence of Consumption and Treatment Sites in the Town of Ajax; and

2. This motion be shared with Durham Regional Chair John Henry, the Regional Clerk Alexander Harras, and MPP Patrice Barnes.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Councillor Henry, Councillor Tyler Morin

DRAFT

Opposed: Regional Councillor Dies, Regional Councillor Lee

9.4 **Request for Community Infrastructure and Housing Accelerator (CIHA) Orders for Four Priority Housing Developments in Ajax**

Mayor Collier and Regional Councillor Crawford introduced the motion and reviewed its contents. Council Members asked questions regarding available provisions and protections, opportunities for the Ministry to override conditions, and affordable housing defined. Geoff Romanowski, Director of Planning & Development Services, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS the Ontario government has recognized that there is a housing crisis and has established a goal to have 1.5 million homes built in the next ten (10) years, and has additionally set a specific target of 17,000 new homes for the Town of Ajax by 2031;

AND WHEREAS on January 23, 2023, Ajax Council adopted a motion entitled "Accelerating Development of Thousands of New Housing Units" requesting the Province to advance up to 4,100 urgently needed housing units through five proposed developments in Ajax:

a) CNR-07 - 8.8 hectares - located at the southeast corner of Salem Road North and Kerrison Drive East,
b) CNR-15 - 2.99 hectares - located at 1401 Harwood Avenue North,
c) CNR-19 - 3.8 hectares - located at 250 Rossland Road East,
d) CNR-20 - 0.69 hectares - located at 650 Beck Crescent, and
e) CNR-33 - 1.11 hectares - located at 1541 Harwood Avenue North;

AND WHEREAS the five properties have been subject to review and consideration by Ajax Council, extensive public consultation through the Region of Durham's Municipal Comprehensive Review process, and have been designated "community area" within the adopted Regional Official Plan, submitted to the province in May 2023 for approval;

AND WHEREAS the five properties are located within the existing Ajax urban area boundary and are not located within the Greenbelt Plan Area;

AND WHEREAS CNR-15 (1401 Harwood Avenue North), to permit a residential development with approximately 134 townhouse dwelling units with a minimum height of three (3) stories, is currently being assessed through the Municipal Zoning Order process as a land donation is in process to an adjacent property to help accommodate the new Grandview Children's Centre headquarters;

AND WHEREAS Bill 109, More Homes for Everyone Act, 2022 provides for a new municipal tool, the Community Infrastructure and Housing Accelerator ("CIHA"), which offers an accelerated consultation, review and approval process to help deliver priority developments, including developments with new affordable housing units.

NOW THEREFORE BE IT RESOLVED THAT:

1. That Ajax Council supports the use of the Community Infrastructure and Housing Accelerator (CIHA) tool to accelerate the following four priority developments, per the conditions set forth:

   <u>CNR-07 – SE Corner Salem Rd S and Kerrison Dr E</u>

   - This request is to permit a mixed-use development with approximately 2,873 apartment dwelling units and a minimum of 40,000 m^2 of non-residential gross floor area within multiple buildings up to a maximum height of 25 storeys;
   - The applicant be required to provide a minimum of 150 affordable purpose-built rental units (~5% of units) for a period of 25 years;

   <u>CNR-19 – 250 Rossland Rd E</u>

   - This request is to permit a mixed-use development with approximately 800 apartment dwelling units and a minimum of 9,300 m^2 of non-residential gross floor area within buildings up to a maximum height of 25 storeys;
   - The applicant be required to provide a minimum 5% (~40 units) of units for affordable housing for a period of 25 years;

DRAFT

CNR-20 – 650 Beck Cres

- This request is to permit a mixed-use development with approximately 200 apartment dwelling units and a minimum of 5,400 m^2 of non-residential gross floor area within one building with a maximum height of 25 storeys;
- The applicant be required to provide a minimum 5% (~10 units) of units for affordable housing for a period of 25 years;

CNR-33 – 1541 Harwood Ave N

- This request is to permit an apartment building with 198 dwelling units within a building with a maximum height of 10 storeys;
- The applicant be required to provide a minimum 5% (~10 units) of units for affordable housing for a period of 25 years; and

2. Corporate Communications post this resolution on the Town's engagement platform (IMO) for a period of 15 days and Clerks circulate this resolution to the Mississauga's of Scugog Island First Nation; and

3. Planning staff prepare and submit a package containing all materials required by Section 34.1 (7) of the Planning Act to the Minister of Municipal Affairs and Housing within 15 days of Council's resolution; and

4. Planning staff prepare, submit, and work with Ministry staff on Community Infrastructure and Housing Accelerator tools for each development proposal identified above to establish site specific development standards incorporating Town of Ajax Official Plan policies related to good urban design and other technical elements to ensure land use compatibility, and appropriate project phasing; and

5. The lands for each development proposal above continue to be subject to Site Plan Control and that all technical matters and submission requirements that would normally be required to support a Site Plan Application continue to apply.

CARRIED

Recorded Vote

In Favour: Mayor Collier, Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Henry, Councillor Tyler Morin, Regional Councillor Lee

Opposed: None

6. Correspondence

Members separated correspondence items 6.9 and 6.17 for discussion.

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the balance of the report (Items 6.1, 6.2, 6.3, 6.4, 6.5, 6.6, 6.7, 6.8, 6.10, 6.11, 6.12, 6.13, 6.14, 6.15, 6.16, 6.18, 6.19 and 6.20) dated June 19, 2023 containing Items of Correspondence be received for information.

CARRIED

Item 6.9

Moved by: M. Crawford
Seconded by: S. Lee

That Item 6.9 ("City of Cambridge – Highway Traffic Act Amendments") of the Correspondence Report be endorsed.

CARRIED

Item 6.17

Moved by: L. Bower
Seconded by: N. Henry

DRAFT

That Item 6.4 (“Seniors for Social Action Ontario – Need to Redirect Funding to In-Home and Community Care”) of the Correspondence Report be endorsed.

CARRIED

7. Reports

7.1. Community Affairs & Planning Committee Report

7.1.1 Community Affairs & Planning Committee, June 5, 2023

Moved by: S. Lee
Seconded by: L. Bower

That the Community Affairs & Planning Committee Report dated June 5, 2023 be adopted.

CARRIED

7.2. General Government Committee Report

7.2.1 General Government Committee, June 12, 2023

Moved by: N. Henry
Seconded by: M. Crawford

That the General Government Committee Report dated June 12, 2023 be adopted.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: L. Bower
Seconded by: S. Lee

That the Summary of Advisory Committee Activities Report dated June 19, 2023, as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

With the consent of Members present, item 7.4.3 was advanced in the order business.

7.4.3. APL-2023-01: Library Services 2023 Spring Update

Moved by: S. Lee
Seconded by: J. Dies

1. That the Library Services 2023 Spring Update be received for information.

CARRIED

7.4.1. FIN-2023-17: Utilizing Debentures for Vehicles and Equipment

Motion to Refer

Moved by: R. Tyler Morin
Seconded by: S. Lee

That Item 7.4.1 be referred to the June 27, 2023 Special Council meeting.

CARRIED

7.4.2. PDS-2023-27: Economic Development Update

Moved by: M. Crawford
Seconded by: L. Bower

That Council receive this Economic Development Update for information.

CARRIED

DRAFT

8. Regional Councillors' Report

Regional Council Members provided updates regarding approval of a Curbside Swap Day Pilot in local area municipalities in Durham Region in September and approval of the new Regional development charge by-law.

Moved by: S. Lee
Seconded by: M. Crawford

That the Regional Councillors' Reports of June 19, 2023 be received for information.

CARRIED

10. By-laws

Members of Council asked questions regarding Update to Traffic By-law 45-2020, Schedule 18 – Pedestrian Crossover. G. Romanowski responded to the question from Council Members.

Moved by: R. Tyler Morin
Seconded by: N. Henry

That By-law numbers 30-2023 to 40-2023 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

None

12. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including a community Ward 1 meeting on June 26, 2023, a community Ward 3 meeting on June 21, 2023, the Mayor and Council Community Barbecue on June 24 at Pickering Village Arena, and Trailfest 2023 on June 26, 2023 at Audley Recreation Center.

13. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: J. Dies

That By-law number 41-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on June 19, 2023, be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That the June 19, 2023 meeting of the Council of the Town of Ajax be adjourned (11:59 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

Draft Minutes of the Special Meeting of Council of the Corporation of the Town of Ajax Held in the Council Chambers, Town Hall and Electronically on Wednesday, July 27, 2023 at 1:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 1:02 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Delegations, Presentations, and Public Meetings

4. Reports

4.1 CAO-2023-14: 2023 Family Physician Recruitment Program

Moved by: M. Crawford
Seconded by: S. Lee

1. That Council receive the report titled 2023 Family Physician Recruitment Program for information; and

2. That Council approve an allocation of $20,000 from the Strategic Initiatives Reserve to support the Regional 2023 Family Physician Recruitment Program.

CARRIED

4.2 FIN-2023-17: Utilizing Debentures for Vehicles and Equipment

Council Members asked questions regarding approximate number of capital projects (with a useful life of 10 years or greater) not currently considered for debenture, debenture financing for capital projects, opportunities to form a debenture committee, and debenture features. Dianne Valentim, Director of Finance/Treasurer and Mayor Collier, responded to questions from Council Members.

Main Motion

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the report on Utilizing Debentures for Vehicles and Equipment be received for information.

Mayor Collier vacated the Chair. Regional Councillor Crawford assumed the Chair.

Motion to Refer

Moved by: S. Collier

DRAFT

Seconded by: R. Tyler Morin

That Report FIN-2023-17 be referred back to staff to consider any capital projects with a useful life of 10 years or greater not currently considered for debenture. The report is to include actual returns based on the Ajax Investment Policy and return to Council at its meeting in September.

CARRIED

Mayor Collier assumed the Chair.

4.3 OES-2023-18: Contract Award – Town Hall Parking Lot Improvements

Council Members asked questions regarding accessible parking, opportunities to supplement accessible spaces with temporary parking spaces during construction, construction timelines, project costs, safety risks, accessibility requirements, traffic flow, historical complaints related to cut through traffic from the Kings Crescent/Archilles Road connection, and alternative design options. Rassle Solaiman, Capital Projects Coordinator, Dave Meredith, Director of Operations & Environmental Services, Sarah Moore, Legislative Specialist, and Geoff Romanowski, Director of Planning & Development Services, responded to questions from Council Members.

Main Motion

Moved by: S. Lee
Seconded by: R. Tyler-Morin

1. That Council award the contract for Town Hall Parking Lot Improvements, to C. Valley Paving Ltd. in the amount of $1,180,865.88 (inclusive of all taxes).

2. That Council award the contract for Contract Administration ~ Town Hall Parking Lot Improvements, to CIMA Canada Inc. in the amount of $161, 911.55 (inclusive of all taxes).

3. That Council approve the following funding, to be allocated to Capital Account No. 23010101:

Building Maintenance Reserve	$56,609.28
General Infrastructure Maintenance Reserve	$85,155.60
Total	$141,764.88

Amendment

Moved by: S. Lee
Seconded by: N. Henry

That Council adopt the original recommendation and plan contained in Report OES-2023-18.

CARRIED

Main Motion as Amended

Moved by: S. Lee
Seconded by: L. Bower

That Council award the contract for Town Hall Parking Lot Improvements, to C. Valley Paving Ltd. in the amount of $1,180,865.88 (inclusive of all taxes).

CARRIED

Closed Session (1:37 p.m.)

5. Authority to Hold a Closed Session

Moved by: M. Crawford
Seconded by: L. Bower

That Council convene to a Closed Session pursuant to Sections 239 (2) (b) and (d) of the Municipal Act, 2001, as amended, to discuss personal matters about an identifiable individual, including municipal or local board employees and labour relations or employee negotiations.

DRAFT

CARRIED

Open Meeting (2:42 p.m.)

5.1. **Confidential Personnel Matter**

Moved by: M. Crawford
Seconded by: N. Henry

That a by-law be brought forth at the Special Council meeting of June 27, 2023 to appoint Aaron Burridge as Fire Chief for the Town of Ajax.

CARRIED

Recorded Vote

In Favour: Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier

Opposed: None

Motion to Suspend the Rules of Procedure

Moved by: N. Henry
Seconded by: J. Dies

That the Rules of Procedure be suspended in order to introduce By-law number 42-2023.

CARRIED

5.2 **CAO-2023-13: Non-Union Compensation Review**

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That Council approve the Exempt and Non-union Part-time salary grids and recommendations of the compensation review process.

CARRIED

Recorded Vote

In Favour: Councillor Bower, Regional Councillor Crawford, Regional Councillor Dies, Councillor Henry, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier

Opposed: None

By-laws

Moved by: L. Bower
Seconded by: R. Tyler Morin

That By-law number 42-2023 be read a first, second and third time and passed.

CARRIED

6. Confirming By-law

Moved by: L. Bower
Seconded by: N. Henry

That By-law number 43-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its Special meeting held on June 27, 2023 be read a first, second and third time and passed.

CARRIED

7. Adjournment

Moved by: M. Crawford

DRAFT

Seconded by: S. Lee

That the June 27, 2023 Special meeting of the Council of the Town of Ajax be adjourned. (2:45 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

Draft Minutes of the Special Meeting of Council of the Corporation of the Town of Ajax Held in the Council Chambers, Town Hall and Electronically on Tuesday, September 5, 2023 immediately following the Community Affairs & Planning Committee Meeting

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 9:58 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. By-laws

Committee Members asked questions regarding site plan approval authority. Mayor Collier noted that Bill 109, *More Homes for Everyone Act, 2022* requires that site plan approval be delegated to staff.

Moved by: S. Collier
Seconded by: M. Crawford

That By-law numbers 44-2023 to 45-2023 be read a first, second and third time and passed.

CARRIED
on 1/3rd

Recorded Vote

In Favour: Regional Councillor Crawford, Regional Councillor Lee, Councillor Tyler Morin, Mayor Collier

Opposed: Councillor Henry, Councillor Bower, Regional Councillor Dies

4. Confirming By-law

Moved by: R. Tyler Morin
Seconded by: M. Crawford

That By-law number 46-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its Special meeting held on September 5, 2023 be read a first, second and third time and passed.

CARRIED

5. Adjournment

Moved by: L. Bower
Seconded by: R. Tyler Morin

DRAFT

That the September 5, 2023 Special meeting of the Council of the Town of Ajax be adjourned. (10:26 p.m.)

CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

TOWN OF AJAX
REPORT TO COUNCIL

TO: Mayor and Members of Council

FROM: N. Cooper, Clerk

DATE: September 18, 2023

SUBJECT: Items of Correspondence

The following items of correspondence are attached for Council's information:

Durham Region Municipalities

1. **Town of Ajax:** Proclamations issued by the Mayor's Office 23

2. **The Regional Municipality of Durham** – Durham Region's Response to Provincial Consultation on Bill 97 – The Helping Homeowners, Protecting Tenants Act, 2023, the Proposed Provincial Planning Statement, and Related ERO Postings #019-6821, #019-6822, #019-6813 24
   - **Background Material:** Report #2023-P-19

3. **The Regional Municipality of Durham** – Durham Agricultural Advisory Committee Resolution re: City of Pickering – Backyard Chickens in Pickering 28

4. **The Regional Municipality of Durham** – Durham Environment and Climate Advisory Committee 2023 Workplan and Terms of Reference 29
   - **Background Material:** Report #2023-P-17

5. **The Regional Municipality of Durham** – Durham Active Transportation Committee (DATC) 2023 Workplan 31
   - **Background Material:** Report #2023-P-18

6. **The Regional Municipality of Durham** – Durham Agricultural Advisory Committee Terms of Reference and 2023 Workplan 33
   - **Background Material:** Report #2023-P-16

7. **The Regional Municipality of Durham** – Automated Speed Enforcement and Red-Light Camera Program Update.....35
   - **Background Material:** Report #2023-COW-25

8. **Municipality of Clarington** – Regional Physician Recruitment Request.....38

9. **Municipality of Clarington** – Joint Regional Statement 40

10. **Municipality of Clarington** – Proposed Provincial Planning Statement and Bill 97 (Helping Homebuyers, Protecting Tenants Act, 2023) 43

11. **City of Oshawa** – Federation of Canadian Municipalities (FCM) Resolution concerning Municipal Growth Framework 45

Other Municipalities, Organizations and Individuals

12. **Town of Bradford West Gwillimbury** – Right-to-Repair Movement.....47

13. **The Women of Ontario Say NO** – Legislative Amendments to Improve Municipal Codes of Conduct and Enforcement.....50

14. **Municipality of North Perth** – Vacant Building Official Positions 53

15. **Selwyn Township** – Notice of Motion – Short-Term Rentals 55

16. **Town of Petrolia** – Recommendation for Amendment to the Current Regulations for Licensed Home-Based Childcare Operators to Increase Allowable Spaces.....57

17. **Town of Caledon** – Illegal Land Use Enforcement Update 59

- **Background Material:** Report #2023-0327; Schedule A to Report #2023-0327

18. **Community Heritage Ontario** – Ontario Heritage Act and Bill 23.....63

19. **Municipality of Wawa** – OHIP Coverage for Chronic Pain Treatments 64

20. **The Federation of Northern Ontario Municipalities** – Support for Housing Resolution.....66

21. **Village of Merrickville-Wolford** – Notice of Motion – Proposed Provincial Planning Statement 69

22. **Town of Georgina** – Updated Lake Simcoe Phosphorus Reduction Strategy.....71

23. **Township of Severn** – Climate Emergency Just Transition Transfer.....72

24. **Ontario's Big City Mayors** – Municipal/Regional Funding to Support Newcomers including Refugees and Asylum Seekers.....75

N. Cooper
Clerk

MEMO

TO: Mayor and Members of Council

FROM: Linsey Joseph

DEPARTMENT: Legislative and Information Services - Legislative Services

SUBJECT: PROCLAMATIONS ISSUED BY THE MAYOR'S OFFICE

DATE: September 18, 2023

The following Proclamations have been approved during the month of July, August & September 2023.

Name of Person/Group(s)	Title of Proclamation	Date(s) Proclaimed
Alzheimer Society of Durham	*World Alzheimer's Day	21-Sep-23
Coaches Association of Ontario	National Coaches Week	Sept 16-24, 2023
CN Rail	Rail Safety Week	Sept 18-24, 2023
ACFO-DP	*Franco-Ontario Day	Sept 25, 2023
Muslim Women of Durham Region	Islamic History Month	October 2023
Canadian Cancer Society	Pink Shirt Day	Oct 1, 2023
International Wrongful Conviction Committee	Wrongful Conviction Day	Oct 2, 2023

Linsey Joseph
Legislative & Information Services
/CC* flag

June 28, 2023

The Honourable Steve Clark
Minister of Municipal Affairs and Housing
777 Bay Street, 17th Floor
Toronto, ON M5G 2E5

Dear Minister Clark:

RE: Durham Region's Response to Provincial Consultation on Bill 97 – The Helping Homeowners, Protecting Tenants Act, 2023, the Proposed Provincial Planning Statement, and Related ERO Postings #019-6821, #019-6822, #019-6813 (2023-P-19), Our File: L00

Council of the Region of Durham, at its meeting held on June 28, 2023, adopted the following recommendations of the Planning & Economic Development Committee:

"A) That the letter dated May 5, 2023 (Attachment #1 to Report #2023-P-19 of the Commissioner of Planning and Economic Development) from the Commissioner of Planning and Economic Development to the Minister of Municipal Affairs and Housing, be endorsed as Durham Region's comments on Bill 97;

B) That the following recommendations form the Region's comments on the proposed Provincial Planning Statement, namely that the province:

i) make stable and predictable funding available to Indigenous communities to facilitate their fulsome participation in the planning process;

ii) require municipalities to develop population and employment forecasts to a common 25 to 30-year time horizon based on a standard methodology provided by the province;

iii) continue to require that settlement area boundary expansions be permitted only through municipal comprehensive reviews, informed by a standardized methodology. Within a regional context, the implications of infrastructure and servicing on settlement area boundary

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

expansions collectively should continue to rest with upper-tier municipalities as the jurisdiction responsible for the infrastructure and servicing, regardless of planning approval responsibility;

iv) continue to consult on the implementation framework so that municipalities within the Greenbelt Plan area can understand how they will be affected by the proposed policy changes;

v) permit municipalities to designate Strategic Growth Areas (SGAs) in their official plans and clarify if the Highway-2 BRT in Durham would be captured as a higher order transit corridor following repeal of the Growth Plan;

vi) continue to support intensification targets and approaches to calculation within municipal official plans;

vii) continue to consult with upper-tier municipalities that may no longer have planning approval authority under Bill 23 on how the proposed new PPS can be implemented through their role as a Housing Service Manager to facilitate the coordinated delivery of affordable housing;

viii) provide definitions (e.g. affordable and attainable) and establish clear policy that enables the delivery of affordable housing and include targets, definitions and policies in the proposed new PPS;

ix) uphold agricultural systems planning and strengthen language in the proposed new PPS to require municipalities to use an agricultural systems approach;

x) allow the ability for limited lot creation on rural lands, but only if it is locally appropriate while discouraging residential lot creation in prime agricultural areas, aside from those created through surplus farm dwellings;

xi) not permit light industrial, manufacturing and small-scale warehousing within SGAs as it would undermine the ability for sensitive uses, particularly residential uses, to locate within SGAs;

xii) include policy language that will strengthen a municipalities' ability to require mixed use developments in SGAs, and not solely residential developments, which could undermine the province's objectives related to complete communities;

xiii) clarify the general intent of the proposed policy that requires municipalities to "leverage the capacity of development proponents" in planning for infrastructure and public service facilities as it may be interpreted to mean that municipalities will be compelled to enter into agreements with proponents for the provision of infrastructure and public service facilities;

xiv) release proposed natural heritage policies and definitions as soon as possible and in turn allow stakeholders time to comment on the proposed new PPS holistically;

xv) develop policy approaches to intensification and settlement area boundary expansions within the context of a changing climate;

xvi) include a policy framework for natural hazards within the final proposed new PPS to support municipalities in their efforts to ensure public health and safety, protect property, and avoid the creation of new or aggravate existing natural hazards;

xvii) retain policy direction for on-site and local reuse of excess soil, and provide planning authorities with guidance on how to accommodate expected increases in excess soil generated as residential development accelerates; and

C) That a copy of Report #2023-P-19 be forwarded to Durham's area municipalities, conservation authorities, and neighbouring municipalities for information.

Please find enclosed a copy of Report #2023-P-19 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

Enclosed

c: N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
C. Darling, Central Lake Ontario Conservation Authority
L. Laliberte, Ganaraska Region Conservation Authority
M. Majchrowski, Kawartha Conservation
R. Baldwin, Lake Simcoe Region Conservation Authority
J. MacKenzie, Toronto and Region Conservation Authority

J. Elvidge, Clerk, City of Toronto
C. Raynor, Clerk, York Region
M. Mather, County Clerk, County of Northumberland
C. Ritchie, City Clerk, City of Kawartha Lakes
J. Daly, County Clerk, Simcoe County
K. Stevenson, Clerk, Peterborough County
M. Pettit, City Clerk, City of Markham
G. Angus-Traill, Town Clerk, Town of Whitchurch-Stouffville
J. Espinosa, Town Clerk, Town of Georgina
T. Lajevardi, Municipal Clerk, Town of East Gwillimbury
B. Gilmer, Clerk, Municipality of Port Hope
C. Page, Clerk, Township of Cavan-Monaghan
B. Bridgeman, Commissioner of Planning and Economic Development

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

June 28, 2023

Mr. Zac Cohoon, Chair
Durham Agricultural Advisory Committee
c/o Region of Durham Planning Division
605 Rossland Road East, Level 4
Whitby, ON L1N 6A3

Dear Mr. Cohoon:

RE: Durham Agricultural Advisory Committee Resolution re: City of Pickering – Backyard Chickens in Pickering, Our File: C00

Council of the Region of Durham, at its meeting held on June 28, 2023, adopted the following recommendations of the Planning & Economic Development Committee.

> "That the Durham Agricultural Advisory Committee is in support of the City of Pickering's resolution to not proceed with a backyard chicken pilot program, and that a copy of this resolution be forwarded to the area municipalities."

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

c: N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
B. Bridgeman, Commissioner of Planning & Economic Development

If you require this information in an accessible format, please contact 1-800-372-1102 ext. 2097.

June 28, 2023

Mr. Geoff Carpentier, Chair
Durham Environment and Climate Advisory Committee
c/o Region of Durham Planning Division
605 Rossland Road East, Level 4
Whitby, ON L1N 6A3

Dear Mr. Carpentier:

RE: Durham Environment and Climate Advisory Committee 2023 Workplan and Terms of Reference (2023-P-17), Our File: C00

Council of the Region of Durham, at its meeting held on June 28, 2023, adopted the following recommendations of the Planning & Economic Development Committee.

"A) That the Durham Environment and Climate Advisory Committee's 2023 Workplan be approved, as outlined in Attachment #2 to Report #2023-P-17 of the Commissioner of Planning and Economic Development; and

B) That a copy of Report #2023-P-17 be forwarded to the Durham Environment and Climate Advisory Committee, Conservation Authorities, and the area municipalities."

Please find enclosed a copy of Report #2023-P-17 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

c: Please see attached list

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

If you require this information in an accessible format, please contact 1-800-372-1102 extension 2097.

c: C. Darling, Central Lake Ontario Conservation Authority
L. Laliberte, Ganaraska Region Conservation Authority
M. Majchrowski, Kawartha Conservation
R. Baldwin, Lake Simcoe Region Conservation Authority
J. MacKenzie, Toronto and Region Conservation Authority
N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
B. Bridgeman, Commissioner of Planning and Economic Development

June 28, 2023

Mr. Ron Lalonde, Chair
Durham Active Transportation Committee
c/o Region of Durham Planning Division
605 Rossland Road East, Level 4
Whitby, ON L1N 6A3

Dear Mr. Lalonde:

RE: Durham Active Transportation Committee (DATC) 2023 Workplan (2023-P-18), Our File: C00

Council of the Region of Durham, at its meeting held on June 28, 2023, adopted the following recommendations of the Planning & Economic Development Committee:

"A) That the Durham Active Transportation Committee's 2023 Workplan be approved, as outlined in Attachment #1 to Report #2023-P-18 of the Commissioner of Planning and Economic Development; and

B) That a copy of Report #2023-P-18 be forwarded to the Durham Active Transportation Advisory Committee, Conservation Authorities, and Durham's area municipalities."

Please find enclosed a copy of Report #2023-P-18 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

c: Please see attached list

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

If you require this information in an accessible format, please contact 1-800-372-1102 extension 2097.

c: C. Darling, Central Lake Ontario Conservation Authority
L. Laliberte, Ganaraska Region Conservation Authority
M. Majchrowski, Kawartha Conservation
R. Baldwin, Lake Simcoe Region Conservation Authority
J. MacKenzie, Toronto and Region Conservation Authority
N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
B. Bridgeman, Commissioner of Planning and Economic Development

June 28, 2023

Mr. Zac Cohoon, Chair
Durham Agricultural Advisory Committee
c/o Region of Durham Planning Division
605 Rossland Road East, Level 4
Whitby, ON L1N 6A3

Dear Mr. Cohoon:

RE: Durham Agricultural Advisory Committee Terms of Reference and 2023 Workplan (2023-P-16), Our File: C00

Council of the Region of Durham, at its meeting held on June 28, 2023, adopted the following recommendations of the Planning & Economic Development Committee.

"A) That the Durham Agricultural Advisory Committee's 2023 Terms of Reference be approved, as outlined in Attachment #1 to Report #2023-P-16 of the Commissioner of Planning and Economic Development;

B) That the Durham Agricultural Advisory Committee's 2023 Workplan be approved, as outlined in Attachment #2 to Report #2023-P-16; and

C) That a copy of Report #2023-P-16 be forwarded to the Durham Agricultural Advisory Committee, the Durham Federation of Agriculture, the Golden Horseshoe Food and Farming Alliance and the area municipalities."

Please find enclosed a copy of Report #2023-P-16 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

c: Please see attached list

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

If you require this information in an accessible format, please contact 1-800-372-1102 extension 2097.

c: K. Yellowlees, Secretary-Treasurer, Durham Federation of Agriculture
J. Horner, Executive Director, Golden Horseshoe Food and Farming Alliance
N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
B. Bridgeman, Commissioner of Planning and Economic Development

Sent Via Email

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

June 28, 2023

Minister Caroline Mulroney
Minister of Transportation
777 Bay Street, 5th floor
Toronto, Ontario M7A 1Z8

Dear Minister Mulroney:

RE: Automated Speed Enforcement and Red-Light Camera Program Update (2023-COW-25), Our File: T02

Council of the Region of Durham, at its meeting held on June 28, 2023, adopted the following recommendations of the Committee of the Whole:

"A) That the application of net Provincial Offences Act (POA) revenue sharing be adjusted to apply the third party Regional costs of Red Light Cameras (RLC), Automated Speed Enforcement (ASE), overall increased costs of POA administration and prosecution as a result of RLC and ASE, and third party costs for those local area municipalities with ASE or RLC against gross fine revenue received prior to allocation of net proceeds to local municipalities;

i) That the Legal and Finance departments consult with local area municipalities to bring forward an updated agreement for execution of all parties, if deemed necessary;

ii) That staff review and report back on the implications of the new Administrative Monetary Penalties (AMP) program, particular to the current POA, RLC, and ASE processes; and

B) That the Chair and Clerk be authorized to execute such net POA revenue sharing agreement to the satisfaction of the Regional Solicitor subject to consideration of the implications of the AMP program.

C) And further,

Whereas the Province of Ontario introduced Bill 65 – Safer School Zones Act, 2016 (Bill 65) on November 15, 2016,

If you require this information in an accessible format, please call 1-800-372-1102 ext. 2097.

which amended the Highway Traffic Act to permit Ontario Municipalities to implement Automated Speed Enforcement Cameras on municipal roads designated by municipal bylaw as Community Safety Zones or School Zones within their jurisdiction;

And whereas the Regional Municipality of Durham has deployed both mobile and fixed location Automated Speed Enforcement Cameras in locations as permitted by the Highway Traffic Act with much success at reducing the speed of motor vehicle drivers in Community Safety Zones and School Zones helping us to achieve the Region's Vision Zero goals;

And whereas the Regional Municipality of Durham has road sections where speeding drivers continue to be of significant concern outside of School Zones and Community Safety Zones where Automated Speed Enforcement is not currently permitted by legislation;

And whereas the Ontario Ministry of Transportation requires that all municipalities install signage to provide a 90-day warning period for each deployment and redeployment of Automated Speed Cameras;

Now therefore be it resolved that the Ontario Ministry of Transportation be requested to further amend the Highway Traffic Act to expand the applicable uses of Automated Speed Enforcement Cameras to road segments outside of School Zones and Community Safety Zones, including Provincial roadways that pass through our Communities; and

That the Ontario Ministry of Transportation be requested to amend existing agreements with Municipalities that operate Automated Speed Enforcement to reduce the 90-day advanced warning requirement to not more than 10 days for initial deployments and eliminate the need for advanced warning signs for subsequent re-deployment of Automated Speed Enforcement Cameras on the same road corridor; and

That this resolution be provided to all municipalities currently participating in the Automated Speed Enforcement program including the City of Toronto, City of Ottawa, City of Brampton, City of Hamilton, City of Mississauga, City of London, City of Pickering, Town of Ajax, Regional Municipality of York, Regional Municipality of Peel, Regional Municipality of Niagara, and Regional Municipality of Waterloo, as well as the Township of Brock, Municipality of Clarington, City of Oshawa, Township of Scugog, Township

of Uxbridge, and the Town of Whitby with a request that they further endorse this resolution to expand the permitted uses of Automated Speed Enforcement in Ontario."

Please find enclosed a copy of Report #2023-COW-25 for your information and further endorsement of this resolution to expand the permitted uses of Automated Speed Enforcement in Ontario.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/sc

Enclosed

c: R. Jagannathan, Acting Commissioner of Works
J. Hunt, Regional Solicitor & Director of Legal Services
N. Taylor, Commissioner of Finance
N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
J. Elvidge, City Clerk, City of Toronto
R. O'Connor, City Clerk, City of Ottawa
P. Fay, City Clerk, City of Brampton
A. Holland, City Clerk, City of Hamilton
D. Rusnov, City Clerk & Director of Legislative Services, City of Mississauga
M. Schulthess, City Clerk, City of London
C. Raynor, Regional Clerk, Regional Municipality of York
K. Lockyer, Regional Clerk, Regional Municipality of Peel
A. Norio, Regional Clerk, Regional Municipality of Niagara
W. Short, Regional Clerk, Regional Municipality of Waterloo

If this information is required in an alternate format, please contact the Accessibility Co-ordinator at 905-623-3379 ext. 2131

June 27, 2023

Simon Gill, Director, Economic Development and Tourism
Region of Durham
Via Email: simon.gill@durham.ca

To Simon Gill:

Re: Regional Physician Recruitment Request

File Number: PG.25.06

At a meeting held on June 26, 2023, the Council of the Municipality of Clarington approved the following Resolution #JC-072-23:

> That Report FSD-028-23 and any related delegations or communication items, be received;
>
> That Council approves the use of $20,000 from the Economic Development Reserve Fund, as budgeted in the 2023 budget, to be sent to the Region of Durham for physician recruitment; and
>
> That all interested parties listed in Report FSD-028-23, and any delegations be advised of Council's decision.

Yours truly,

John Paul Newman
Deputy Clerk

JPN/rk

c: See Attached List of Interested Parties

Interested Parties List

Alexander Harras, Regional Clerk, Region of Durham

Nicole Cooper, Director of Legislative and Information Services, Town of Ajax

Fernando Lamanna, Clerk/Deputy CAO, Township of Brock

Mary Medeiros, Clerk, City of Oshawa

Susan Cassel, Clerk, City of Pickering

Becky Jamieson, Clerk, Township of Scugog

Sheila Hall, Executive Director, Clarington Board of Trade

Dr. Anthony Stone

A. Poray, Economic Development Manager

C. Salazar, Direction of Planning and Infrastructure

T. Pinn, Deputy CAO/Treasurer

Clarington

If this information is required in an alternate format, please contact the Accessibility Co-ordinator at 905-623-3379 ext. 2131

July 3, 2023

To All Interested Parties:

Re: Joint Regional Statement

File Number: PG.25.06

At a meeting held on June 26, 2023, the Council of the Municipality of Clarington approved the following Resolution #JC-086-23:

> Whereas the Provincial Government recently announced changes to the structure of the Region of Peel;
>
> And whereas the Provincial Government is expected to appoint a facilitator to review the efficiency of each of the upper-tier regional governments, an exercise that is likely to include the Regional Municipality of Durham;
>
> Therefore, be it resolved that Clarington Council endorses the following joint statement to be issued on behalf of the Durham Regional Chair and the Mayors from all eight local area municipalities of Pickering, Ajax, Whitby, Oshawa, Clarington, Brock, Scugog and Uxbridge:
>
> “Being a community leader means working to make positive impacts on people’s lives; overseeing high-quality programs and services that impact our cities and towns every single day. It’s about driving economic opportunities that enhance the quality of life we all enjoy here in Durham Region.
>
> Here, there is no desire to separate. We are proud of our partnership; our close to 50 years of mutual respect. We focus on delivering a two-tier government model that is fiscally responsible. A model that delivers vital services across municipal borders, such as clean water, policing, paramedics and more. We have a Regional Triple A credit rating that benefits us all, regardless of municipal boundary.

We have the largest geographic area in the Greater Toronto Area (2,500 square kilometres). However, with a region-wide population of about 743,000 residents, the current two-tier model is the best choice; providing fiscally responsible savings for our programs and services through economies of scale.

Just like all families, we've leaned on, learned from, and supported one another during some very difficult times. Locally, we have dealt with a global pandemic and significant damage from catastrophic weather events. We got through it together.

Similar to our position in 2019, when the Regional Government Review was announced, we welcome opportunities to find efficiencies and look forward to learning about innovative approaches and how we can work better together. We understand that creating affordable housing units is essential. Growth must be managed effectively. Our core reason to stand together? Our residents. We work together to keep our communities safe, healthy, and growing."

Yours truly,



John Paul Newman
Deputy Clerk
JPN/rk

c: See Attached List of Interested Parties.

Interested Parties List

Mary Medeiros, Clerk, City of Oshawa

Nicole Cooper, Director of Legislative & Information Services, Town of Ajax

Fernando Lamanna, Clerk/Deputy CAO, Township of Brock

Susan Cassel, Clerk, City of Pickering

Becky Jamieson, Clerk, Township of Scugog

Debbie Leroux, Clerk, Township of Uxbridge

Christopher Harris, Clerk, Town of Whitby

J. O'Meara, Policy, and Communications Advisor

Clarington

If this information is required in an alternate format, please contact the Accessibility Co-ordinator at 905-623-3379 ext. 2131

July 5, 2023

The Honourable Steve Clark, M.P.P., Minister of Municipal Affairs and Housing
Via Email:minister.mah@ontario.ca

Dear Minister Clark:

Re: Proposed Provincial Planning Statement and Bill 97 (Helping Homebuyers, Protecting Tenants Act, 2023)

File Number: PG.25.06

At a meeting held on June 27, 2023, the Council of the Municipality of Clarington approved the following Resolution #C-116-23:

That Report PDS-037-23, and any related delegations or communication items, be received for information.

That Report PSD-037-23 be adopted as the Municipality of Clarington's comments to the Province on the proposed Provincial Planning Statement, 2023;

That a copy of Report PSD-037-23 and Council's decision be sent to the Ministry of Municipal Affairs and Housing, the Region of Durham, conservation authority partners, and the other Durham Region area municipalities; and

That all interested parties listed in Report PSD-054-22 and any delegations be advised of Council's decision.

Yours truly,

John Paul Newman
Deputy Clerk

JPN/lp

c: See Attached List of Interested Parties

Interested Parties List

GRCA
CLOCA
KRCA
Linda Gasser
Susan Cassel, City Clerk, City of Pickering
Nicole Cooper, Director of Legislative & Information Services, Town of Ajax
Alexander Harras, Regional Clerk, The Regional Municipality of Durham
Christopher Harris, Town Clerk, Town of Whitby
Becky Jamieson, Director of Corporate Services/Municipal Clerk, Township of Scugog
Fernando Lamanna, Clerk/Deputy CAO, Township of Brock
Debbie Leroux, Director of Legislative Services/Clerk, Township of Uxbridge
Mary Medeiros, City Clerk, City of Oshawa
S. Allin, Principal Planner
L. Backus, Manager of Community Planning
C. Salazar, Director of Planning and Infrastructure Services

File: 03-05

June 28, 2023

DELIVERED BY E-MAIL
(clerks@durham.ca)

Region of Durham

Re: Federation of Canadian Municipalities (FCM) Resolution concerning Municipal Growth Framework

Oshawa City Council adopted the following resolution at its meeting of June 26, 2023:

"Whereas the Province of Ontario has indicated that it will be assigning provincial representatives to review the operations and future of the Regional Municipality of Durham, and

Whereas this review may lead to the dissolution of the Region of Durham or the amalgamation of the current member municipalities into a new City of Durham, and that either option could have detrimental impacts of services to the residents of Oshawa and Durham, and

Whereas similar plans imposed by the Province in communities such as the City of Toronto, have led to increased costs and taxation levels, and

Whereas these actions have not been requested by the Region of Durham, the City of Oshawa, and our fellow member municipalities in Durham.

Be it resolved:

That the City of Oshawa does not support any actions that would impact the boundaries or status of the City of Oshawa without the consent of the Council of the City of Oshawa following a public consultation with the residents of the City of Oshawa including a formal referendum voted on by the residents of Oshawa prior to any decision; and,

…/2

That copies of this resolution be forwarded to the Region of Durham, all members municipalities and school boards located in Durham Region, to all MPs and MPPs based in the Region of Durham, to the Premier and Opposition Leaders of the Province of Ontario, to the Minister of Municipal Affairs and Housing to the Association of Municipalities of Ontario and to any other bodies deemed by Oshawa staff."

If you need further assistance concerning the above matter, please contact me at the address listed below or by telephone at 905-436-3311.



Mary Medeiros
Director, Legislative Services/City Clerk

/jl

c: Office of the C.A.O.
Regional Municipality of Durham
All Durham Regional Municipalities
All School Boards within Durham Region
Durham MPs
Durham MPPs
Minister of Municipal Affairs and Housing
Association of Municipalities of Ontario

Bradford West Gwillimbury
A Growing Tradition

Town of Bradford West Gwillimbury
100 Dissette St., Unit 4
P.O. Box 100, Bradford, Ontario, L3Z 2A7
Telephone: 905-775-5366
Fax: 905-775-0153
www.townofbwg.com

Office of the Mayor

9 June 2023 VIA EMAIL

Hon. François-Philippe Champagne PC MP
Minister of Innovation, Science and Economic Development
Via email: ministerofisi-ministredeisi@ised-isde.gc.ca

Hon. Marie-Claude Bibeau PC MP
Minister of Agriculture
Via email: Marie-Claude.Bibeau@parl.gc.ca

Dear Ministers:

On behalf of the Council of the Town of Bradford West Gwillimbury, we are writing to you pursuant to the enclosed motion to endorse the right-to-repair movement and to call on your government to expedite the promised consultations to enshrine this principle in consumer-protection law, with specific consultations and measures related to supporting the agricultural sector undertaken.

Right to Repair is a simple environmental and consumer protection measure: it ensures consumers are able to reasonably access repairs to electronic and other devices at a fair price, rather than creating a monopoly through technology companies only being able to repair their own products. This measure will also help reduce waste by combatting planned obsolescence, where companies make products that are only intended to last for a period of some years, and are not really reparable.

Further, farmers and growers are intimately familiar with the particular nuances of this issue when it comes to increasingly high-tech agricultural equipment. As the "soup and salad bowl of Canada", Bradford West Gwillimbury is home to many farmers and growers, so we know firsthand how important an issue these consultations will be.

Our Council has shown in recent years that we are at the forefront of advocating for important environmental protections, including the Freshwater Action Fund, and we are grateful to our new Green Initiatives Committee for recommending this current piece of advocacy to protect the environment and consumers.

A copy of the motion is enclosed. We would be happy to meet with you or your representatives to discuss this further.

Sincerely yours,

James Leduc
Mayor

CC: John Barlow, MP Foothills
Rick Perkins, MP South Shore—St. Margarets
Alistair MacGregor, MP Cowichan—Malahat—Langford
Rachel Blaney, MP North Island—Powell River
Scot Davidson, MP York—Simcoe
Federation of Canadian Municipalities
Association of Municipalities of Ontario
Ontario's Municipal Councils
Ontario's Conservation Authorities

At its Regular meeting of Council held on Tuesday, June 6, 2023, the Town of Bradford West Gwillimbury Council approved the following resolution:

Resolution: 2023-199
Moved: Councillor Verkaik
Seconded: Councillor Harper

Whereas the "right-to-repair" movement seeks to ensure consumers of electronic products, including mobile phones and computers, as well as agricultural equipment, are able to make routine fixes to damaged products without having to rely on the manufacturer and to affordably make such repairs; and

Whereas this movement and efforts against "planned obsolescence" seeks to ensure affordability for consumers and to protect our environment by reducing electronic waste; and

Whereas the agricultural sector has unique needs related to specialized electronic farm equipment and the ability to make repairs in a timely and affordable manner, especially during the growing season; and

Further to a commitment in the 2023 federal budget that "the government will work to implement a right to repair, with the aim of introducing a targeted framework for home appliances and electronics in 2024. The government will launch consultations this summer, including on the right to repair and the interoperability of farming equipment, and work closely with provinces and territories to advance the implementation of a right to repair" (p. 38); and

Be it therefore resolved that the committee recommend Council endorse the right-to-repair movement through a letter from the Mayor and Green Initiatives Committee Chair to call on the federal government to expedite the promised consultations to enshrine this principle in consumer-protection law, with specific consultations and measures related to supporting the agricultural sector undertaken; and

That a copy of this resolution and letter be shared with the Minister of Innovation, Science and Economic Development; the Minister of Agriculture and their critics; and the Member of Parliament for York—Simcoe; and to the Federation of Canadian Municipalities (FCM), the Association of Municipalities of Ontario (AMO) and Ontario's Municipal Councils, with a request for their endorsement of same.

Result: CARRIED.

From: [redacted]
To: Clerks; Shaun Collier; Marilyn Crawford; Rob Tyler Morin; Sterling Lee; Nancy Henry; Lisa Bower; Joanne Dies
Subject: Request for Support - Legislative Amendments to Improve Municipal Codes of Conduct and Enforcement:
Date: Monday, June 19, 2023 10:57:24 PM
Attachments: AMO Sample Text Resolution.docx
Importance: High

CAUTION: This email originated from outside of the organization. Do NOT reply, click links (embedded links) or open attachment(s) unless you recognize the sender and know the content is safe.

Hello Municipal Clerk – Town of Ajax:
Please add this email and attachment as ACTION CORRESPONDENCE to your next council meeting agenda as a matter of urgency. Please email the outcome to thewomenofontariosayno.team@gmail.com ***Thank you!***

Dear Mayor Collier, Councillor Crawford, Councillor Tyler-Morin, Councillor Lee, Councillor Henry, Councillor Bower, and Councillor Dies:

Legislative Amendments to Improve Municipal Codes of Conduct and Enforcement:
This request is from The Women of Ontario Say NO. A grassroots advocacy effort comprised of individuals, organizations, and community groups. We are committed to ensuring that locally elected officials are held accountable for violence and harassment in municipal workplaces. This advocacy stems from a number of egregious cases throughout the province including Ottawa, Barrie, and Mississauga. You can learn more on our website: https://www.thewomenofontariosayno.com/

Thank you for previously passing a resolution in support of Bill 5 Stopping Harassment and Abuse by Local Leaders Act. Many councillors will know that on May 31st, 2023, the government voted down Bill 5 – The Stopping Harassment and Abuse by Local Leaders Act. At that time 160 municipalities had endorsed their support for Bill 5. In 2021, the Association of Municipalities Ontario recommended changes to strengthen municipal codes of conduct for elected officials. Again in 2023, after meetings with our group, the AMO issued a statement again calling on government to implement legislation change on this matter. AMO also provided sample resolution text for councils that wish to lend their support to this call: Codes of Conduct, Changes to Visible Fees, and Fees Charged to Beverage Producers | AMO These recommendations have still not been implemented.

As Bill 5 died on the floor, we now have a further request to ask of you. We are calling on your municipality to continue to be an active and engaged voice in your own workplace safety and that of the municipal staff in holding municipally elected representatives accountable for violence and harassment.

- **We are therefore now asking council to pass the attached motion of March 27, 2023, issued by AMO, calling for government legislation on this issue.**

- **We are requesting the motion include the communication that this legislation be**

prioritized for the fall of 2023 given the urgency of this issue.

- **We are asking that a letter expressing support for the motion be sent to: The Premier, Local MPPs, Minister of Municipal Affairs, Associate Minister of Women's Social and Economic Opportunity, AMO and local municipalities.**

We are counting on you as leaders to ensure your municipal workplace is safe and that there is basic human rights protection for all persons. This cannot wait any longer. This legislation needs to move ahead without any further delay.

Thank you in advance for continuing to being open to advocating for legislative change that will help ensure workplaces and community spaces are safe for everyone!

If you have any questions, please reach out to me.

Sincerely,

Diane Noble
On Behalf of
The Women of Ontario Say NO

Sent from Mail for Windows

AMO Sample Resolution Text

Legislative Amendments to Improve Municipal Codes of Conduct and Enforcement

Whereas, all Ontarians deserve and expect a safe and respectful workplace;

Whereas, municipal governments, as the democratic institutions most directly engaged with Ontarians need respectful discourse;

Whereas, several incidents in recent years of disrespectful behaviour and workplace harassment have occurred amongst members of municipal councils;

Whereas, these incidents seriously and negatively affect the people involved and lower public perceptions of local governments;

Whereas, municipal Codes of Conduct are helpful tools to set expectations of council member behaviour;

Whereas, municipal governments do not have the necessary tools to adequately enforce compliance with municipal Codes of Conduct;

Now, therefore be it resolved that (MUNICIPLITY NAME) supports the call of the Association of Municipalities of Ontario for the Government of Ontario to introduce legislation to strengthen municipal Codes of Conduct and compliance with them in consultation with municipal governments;

Also be it resolved that the legislation encompass the Association of Municipalities of Ontario's recommendations for:

• Updating municipal Codes of Conduct to account for workplace safety and harassment

• Creating a flexible administrative penalty regime, adapted to the local economic and financial circumstances of municipalities across Ontario

• Increasing training of municipal Integrity Commissioners to enhance consistency of investigations and recommendations across the province

• Allowing municipalities to apply to a member of the judiciary to remove a sitting member if recommended through the report of a municipal Integrity Commissioner

• Prohibit a member so removed from sitting for election in the term of removal and the subsequent term of office

MUNICIPALITY OF
North Perth
www.northperth.ca
A Community of Character
330 Wallace Ave. N., Listowel, ON N4W 1L3 Phone: 519-291-2950 Toll Free: 888-714-1993

June 26, 2023

The Honourable Doug Ford
Premier of Ontario
Legislative Building, Queen's Park
Toronto, ON M7A 1A1
Via Email: premier@ontario.ca

RE: Vacant Building Official Positions

Pleased be advised that the Council of the Municipality of North Perth passed the following resolution at their regular meeting held June 5, 2023 regarding vacant building official positions:

Moved by Councillor Rothwell **Seconded by** Councillor Duncan

WHEREAS building officials in Ontario examine building plans and inspect building construction to ensure compliance with the Ontario Building Code to ensure public safety;

AND WHEREAS in October 2022, Premier Doug Ford and the Ontario government announced their intent to build 1.5 million homes in the next ten years in an effort to generate enough supply to meet a high demand for now and in the future;

AND WHEREAS according to the Ontario Building Officials Association over 50 per cent of existing building officials are eligible to retire;

AND WHEREAS according to the Ontario Building Officials Association building officials are in high demand;

AND WHEREAS many municipalities across Ontario have job postings for building officials that remain unfilled;

NOW THEREFORE BE IT RESOLVED THAT the Council of the Municipality of North Perth urges the Provincial Government to provide support to municipalities to fill vacant building official positions;

AND FURTHER THAT this resolution be circulated to Premier Doug Ford, Steve Clark, Minister of Municipal Affairs and Housing, Provincial opposition parties, Matthew Rea MPP, all municipalities in Ontario and AMO.

CARRIED

If you have any questions regarding the above resolution, please do not hesitate to contact me at lcline@northperth.ca.

Sincerely,



Lindsay Cline,
Clerk/Legislative Services Supervisor
Municipality of North Perth

cc.
Hon. Steve Clark, Minister of Municipal Affairs and Housing
Provincial Opposition Parties
Perth-Wellington MPP Matthew Rea
Association of Municipalities of Ontario (AMO)
All Ontario Municipalities

Township of Selwyn
Naturally Great.

www.selwyntownship.ca

June 29, 2023

Hon. Doug Ford
Premier of Ontario
Room 4620
99 Wellesley St. W.,
Toronto, Ontario M7A 1A1

Via Email: premier@ontario.ca

Please be advised that at its meeting held on the 27th day of June 2023, the Council of the Township of Selwyn passed the following resolution:

Resolution No. 2023 – 143 – Notice of Motion – Short-Term Rentals
Councillor Brian Henry – Councillor John Boyko –
Whereas the demand for alternative accommodations has resulted in an increased prominence of residential properties being advertised for short term accommodations through third party companies such as Airbnb and VRBO; a shift from the 'traditional' cottage rental historically managed by a property owner; and

Whereas over the past decade a flood of properties have been removed from the ownership and long-term rental market (*Canada Research Chair in Urban Governance at McGill University*) contributing to housing shortages, increased housing demands and increased housing costs resulting in housing affordability issues, including affordable rentals; and

Whereas short term rentals (STR) can be beneficial, when operated appropriately, by providing solutions for the accommodation industry that supports local tourism and small businesses as well as providing an opportunity for property owners to generate income from their residence (permanent or seasonal) using a convenient third-party system; and

Whereas STR's can create nuisances including noise, parking, high volumes of visitors attending a property, septic capacity and fire safety, for adjacent residential property owners who wish to experience quiet enjoyment of their property; and

Whereas research indicates that demand for STR's is increasing, in part due to vacationers choosing domestic travel options as well as the financial benefits to property owners, demonstrating that STR's are here to stay; and

Mailing Address
PO Box 270
Bridgenorth
Ontario K0L 1H0

Tel: 705 292 9507
Fax: 705 292 8964

Whereas there are no Provincial regulations in place governing third party STR companies resulting in a variety of regulations/guidelines being implemented at the local municipal level which creates inconsistencies, confusion and frustrations for both consumers and residents across the Province;

That the Township of Selwyn request that the Province move forward as soon as possible to legislate that all third party Short Term Rental brokerage companies, for example Airbnb and VRBO, appropriately manage and be responsible for their listings and to compel compliance that the Province establish the requirement for STR companies to require each rental listing to be registered and to pay an appropriate annual fee and that STR company provide this registry along with the collected fees to the municipality in which the STR properties are located which allows the municipality to be aware of all registered STR properties and to have access to funds for municipal expenses to enforce/respond to issues at a STR property; and further

That the Province require the STR company to de-list/remove the property from the company's listings so that the property cannot be rented where a municipality has identified and verified life, health and/or nuisance infractions including noise, fire safety, septic, etc…

That a copy of this resolution be sent to all Ontario municipalities for support as well as to Minister of Municipal Affairs and Housing Steve Clark, local M.P.P. Dave Smith and M.P. Michelle Ferreri.

Carried.

If you have any questions, please do not hesitate to contact us.

Sincerely,

Megin Hunter

Megin Hunter
Office Assistant/Receptionist
mhunter@selwyntownship.ca

cc: steve.clark@pc.ola.org
michelle.ferreri@parl.gc.ca
dave.smithco@pc.ola.org
All Ontario Municipalities

June 29, 2023

Hon. Stephen Lecce
Minister of Education
Stephen.Lecceco@pc.ola.org

Via email

RE: recommendation for amendment to the current regulations for licensed home-based childcare operators to increase allowable spaces.

Dear Minister Lecce,

During the June 26, 2023 regular meeting of council, council in response to recent publicly raised concern heard a report from staff in relation to the above, with the following resolution passed:

Moved: Liz Welsh Seconded: Chad Hyatt

WHEREAS in response the Petrolia Childcare Advocacy Group's recent delegation to Council where they identified a shortage of child care spaces in the Town of Petrolia; and

WHEREAS through additional research undertaken by the Town Staff, and in consultation with the County of Lambton Social Services, it has been further identified that there is an extreme shortage of child care spaces not only across the County but the Province as a whole; and

WHEREAS in response to the identified need the County hosted a community information night to educate members of the public who may be able to offer a licensed home-based child care service;

NOW THEREFORE ***the Council of the Town of Petrolia recommends to the Hon. Stephen Lecce, Minister of Education, that in time for the 2023 school year amendment to the current regulations be made to allow licensed home-based child care operators the ability to provide two (2) before and after school care spaces to school aged children, in addition the permitted six (6) full time child care spaces***; ***and***

THAT in an effort to attract and retain qualified early childhood educators, the Minister of Education, review the current wage bracket for early childhood educators with implementation of an increase to wages to align with the services provided; and

THAT the province provides more capital based funding sources for the construction of new centre-based facilities; and

THAT the province considers increasing the current goal of thirty-three percent (33%) access ratio, to align better with the current provincial situation and anticipated population growth over the next ten (10) years; and

THAT these items be considered sooner rather than later, to assist in remedying the critical child care shortage experienced in Petrolia, Lambton, and across the province; and

THAT this recommendation be forwarded to Hon. Doug Ford, Premier of Ontario | Hon. Michael Parsa, Minister of Children, Community & Social Services | Mr. Bob Bailey, MPP of Sarnia-Lambton | Hon. Monte McNaughton, MPP of Lambton-Kent-Middlesex | Mr. Kevin Marriott, Warden of Lambton County | Municipalities of Ontario;

Carried

Kind regards,

Original Signed
Mandi Pearson
Clerk/Operations Clerk

cc:

Hon. Doug Ford, Premier of Ontario premier@ontario.ca | Hon. Michael Parsa, Minister of Children, Community & Social Services Michael.Parsaco@pc.ola.org | Mr. Bob Bailey, MPP of Sarnia-Lambton bob.bailey@pc.ola.org | Hon. Monte McNaughton, MPP of Lambton-Kent-Middlesex Monte.McNaughtonco@pc.ola.org | Mr. Kevin Marriott, Warden of Lambton County Monte.McNaughtonco@pc.ola.org | Municipalities of Ontario

TOWN OF CALEDON

Annette Groves
Mayor

June 29, 2023 Sent via E-Mail: doug.fordco@pc.ola.org

The Honourable Doug Ford
Premier of Ontario
Premier's Office, Room 281
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

RE: STAFF REPORT 2023-0327: ILLEGAL LAND USE ENFORCEMENT UPDATE

Dear Premier Ford,

I am writing to advise that at the Town Council meeting held on June 20, 2023, Council adopted a resolution regarding Staff Report 2023-0327: Illegal Land Use Enforcement Update.

The resolution reads as follows:

> *That the Illegal Land Use Enforcement Taskforce's mandate be expanded to include other types of illegal land uses and not solely on illegal trucking land uses; and*
>
> *That the Province be requested to strengthen municipal enforcement powers by:*
>
> - *Amending the Municipal Act to enable municipalities to physically bar entry to properties where illegal land uses that have significant detrimental impacts on adjacent residential properties, the environment or create unsafe situations;*
> - *Increasing the maximum penalty amounts in the Planning Act to $50,000 for an individual upon conviction and on a subsequent conviction, not more than $25,000 for each day in which the contravention has continued after the day in which the person was initially convicted; and*
> - *Including provisions to ensure a corporation is liable to fines of not more $100,000 upon first conviction and not more than $50,000 for each day in which the contravention has continued after the day in which the corporation was initially convicted.*

THE CORPORATION OF THE TOWN OF CALEDON

6311 Old Church Road, Caledon East, Caledon, ON, Canada L7C 1J6
T. 905.584.2272 | 1.888.225.3366 | F. 905.584.1444 | www.caledon.ca | annette.groves@caledon.ca

That a copy of this report be provided to the Honourable Doug Ford, Premier of Ontario, the Honourable Steve Clark, Minister of Municipal Affairs and Housing, the Honourable Sylvia Jones, MPP, Dufferin-Caledon; the Honourable Doug Downey, Attorney General of Ontario; and

That a copy of this report be provided to the municipalities within the Greater Golden Horseshoe area seeking support in the request for strengthened enforcement powers to combat significant illegal land uses negatively impacting communities across Ontario and to the Association of Municipalities of Ontario (AMO) and Rural Ontario Municipal Association (ROMA).

A copy of Staff Report 2023-0327 has been enclosed for your reference. For more information regarding this matter, please contact my Chief of Staff, Nathan Grundy, directly by email at nathan.grundy@caledon.ca or by phone at 905.584.2272 ext. 4430.

Thank you for your attention to this matter.

Sincerely,

Annette Groves
Mayor

Cc: The Honourable Steve Clark, Minister of Municipal Affairs and Housing, minister.mah@ontario.ca
The Honourable Sylvia Jones, Deputy Premier, Minister of Health and MPP Dufferin-Caledon, sylvia.jones@pc.ola.org
The Honourable Doug Downey, Attorney General of Ontario, doug.downey@pc.ola.org
Association of Municipalities of Ontario, amo@amo.on.ca
Rural Ontario Municipal Association, roma@roma.on.ca
City of Toronto, clerk@toronto.ca
York Region, regional.clerk@york.ca
City of Vaughan, clerks@vaughan.ca
Town of Richmond Hill, clerks@richmondhill.ca
Town of Markham, customerservice@markham.ca
Town of Aurora, info@aurora.ca
Town of Whitchurch-Stouffville, clerks@townofws.ca
King Township, clerks@king.ca
Town of Newmarket, clerks@newmarket.ca
Township of East Gwillimbury, clerks@eastgwillimbury.ca
Town of Georgina, info@georgina.ca
Region of Durham, clerks@durham.ca
Town of Ajax, clerks@ajax.ca
Township of Brock, Clerks@brock.ca
Municipality of Clarington, clerks@clarington.net
City of Oshawa, clerks@oshawa.ca
City of Pickering, clerks@pickering.ca

THE CORPORATION OF THE TOWN OF CALEDON

6311 Old Church Road, Caledon East, Caledon, ON, Canada L7C 1J6
T. 905.584.2272 | 1.888.225.3366 | F. 905.584.1444 | www.caledon.ca | annette.groves@caledon.ca

Township of Scugog, mail@scugog.ca
Township of Uxbridge, info@uxbridge.ca
Town of Whitby, clerks@whitby.ca
Brant County, info@brant.ca
City of Brantford, clerks@brantford.ca
Region of Peel, regional.clerk@peelregion.ca
City of Brampton, cityclerksoffice@brampton.ca
City of Mississauga, city.clerk@mississauga.ca
Dufferin County, info@dufferincounty.ca
Township of Amaranth, info@amaranth.ca
Township of East Garafraxa, clerks@eastgarafraxa.ca
Town of Grand Valley, mail@townofgrandvalley.ca
Township of Melancthon, info@melancthontownship.ca
Town of Mono, ClerksOffice@townofmono.com
Township of Mulmur, info@mulmur.ca
Town of Orangeville, clerksdept@orangeville.ca
Town of Shelburne, clerk@shelburne.ca
Haldimand County, info@haldimandcounty.on.ca
Halton Region, accesshalton@halton.ca
City of Burlington, cityclerks@burlington.ca
City of Hamilton, clerk@hamilton.ca
Town of Halton Hills, clerks@haltonhills.ca
Town of Milton, townclerk@milton.ca
Northumberland County, matherm@northumberland.ca
Township of Alnwick/Haldimand, info@ahtwp.ca
Municipality of Brighton, general@brighton.ca
Town of Cobourg, clerk@cobourg.ca
Township of Cramahe, clerk@cramahe.ca
Township of Hamilton, clerks@hamiltontownship.ca
Municipality of Port Hope, admin@porthope.ca
Municipality of Trent Hills, info@trenthills.ca
Peterborough County, info@ptbocounty.ca
Township of Asphodel-Norwood, info@antownship.ca
Township of Cavan Monaghan, services@cavanmonaghan.net
Township of Douro-Dummer, info@dourodummer.on.ca
Township of Havelock-Belmont-Methuen, havbelmet@hbmtwp.ca
Township of North Kawartha, reception@northkawartha.on.ca
Township of Otonabee-South Monaghan, info@osmtownship.ca
Township of Selwyn, clerkadmin@stjosephtownship.com
Municipality of Trent Lakes, info@trentlakes.ca
City of Peterborough, clerk@peterborough.ca
Wellington County, kimc@wellington.ca
Town of Erin, clerks@erin.ca
Town of Minto, info@town.minto.on.ca
Township of Centre Wellington, clerks@centrewellington.ca
City of Guelph, clerks@guelph.ca
Township of Mapleton, clerk@mapleton.ca
Township of Puslinch, admin@puslinch.ca
Township of Wellington North, township@wellington-north.com
Simcoe County, info@simcoe.ca
City of Barrie, cityinfo@barrie.ca

Town of Innisfil, inquiry@innisfil.ca
Town of Bradford West Gwillimbury, clerk@townofbwg.com
Town of New Tecumseth, info@newtecumseth.ca
City of Orillia, clerks@orillia.ca
Town of Collingwood, townhall@collingwood.ca
Township of Essa, llehr@essatownship.on.ca
Township of Oro-Medonte, info@oro-medonte.ca
Town of Wasaga Beach, clerk@wasagabeach.com
Town of Midland, clerks@midland.ca
Town of Clearview, info@clearview.ca
Township of Severn, info@townshipofsevern.com
Township of Tiny, jreid@tiny.ca
Township of Adjala-Tosorontio, clerk@adjtos.ca
Township of Tay, deputyclerk@tayvalleytwp.ca
Township of Ramara, ramara@ramara.ca
Town of Penetanguishene, scooper@penetanguishene.ca
City of Kawartha Lakes, clerks@kawarthalakes.ca
Regional Niagara, clerk@niagararegion.ca
Town of Fort Erie, clerk@forterie.on.ca
Town of Grimsby, Administration-Office-General@grimsby.ca
Town of Linclon, clerks@lincoln.ca
City of Niagara Falls, clerk@niagarafalls.ca
Town of Niagara-on-the-Lake, clerks@notl.com
Town of Pelham, clerks@pelham.ca
City of Port Colborne, CustomerService@portcolborne.ca
City of St. Catharines, clerks@stcatharines.ca
City of Thorold, clerk@thorold.com
Township of Wainfleet, mkirkham@wainfleet.ca
City of Welland, clerk@welland.ca
Township of West Lincoln, clerk2@westlincoln.ca
Regional Waterloo, regionalclerk@regionofwaterloo.ca
City of Kitchener, clerks@kitchener.ca
City of Waterloo, olga.smith@waterloo.ca
City of Cambridge, servicecambridge@cambridge.ca
Township of Wilmot, info@wilmot.ca
Township of Wellesley, gkosch@wellesley.ca
Township of Woolwich, mail.woolwich@woolwich.ca
Township of North Dumfries, mail@northdumfries.ca

CHO - PCO
Community Heritage Ontario
Patrimoine communautaire de l'Ontario

24 chemin Conlins Road
Scarborough, Ontario M1C 1C3

Tel./Tél. : (416) 282-2710 Fax/Téléc. : (416) 282-9482
Internet : www.communityheritageontario.ca

June 24, 2023

Michael Ford
Minister of Citizenship and Multiculturalism

Dear Mr. Minister

Re: Ontario Heritage Act and Bill 23

On July 16, 2023, attendees at the Ontario Heritage Conference, which included representatives from across the province, voted overwhelmingly in favour of the following resolution:

"**Whereas** the Listing of properties by a municipal councils in their Registers of Heritage Properties as provided under section 27 of the *Ontario Heritage Act* has no discernable impact on the production of affordable housing in Ontario; and

Whereas the recent amenments to the *Ontario Heritage Act* limiting Listing of a property by a municipal council to two years with a further prohibition on re-Listing that property for five years, places an unreasonable bunden on municipal councils and their municipal heritage committees to deal with the numerous exisitng listings;

Now therefore be it resolved that the provincial government amend the *Ontario Heritage Act* deleting Section 27 subsections (15), (16) and (17) which deal with limiting of listing a proerty in a municipal heritage register to two years; and deleting Section 27 subsection (18) of the *Act* which deals with the prohibition on re-Listing a property for five years;

And this resolutaion be sent to the Minister of Citizenship and Multiculturalism with copes to other political parties in the Ontario legislature and to Ontario municipalities"

Community Heritage Ontario, the assocation of Ontario municipal heritage committees, respectfully requests that you give consideration to this resolution. Should you feel it necessary, we would be pleased to meet with you and/or your staff to discuss this important matter further.

Respectfully submitted

Wayne Morgan

Wayne Morgan
President, Community Heritage Ontario
(waynemorgan@communityheritageontario)

The Corporation of the Municipality of Wawa

REGULAR COUNCIL MEETING

RESOLUTION

Tuesday, June 20, 2023

Resolution # RC23163	**Meeting Order: 6**
Moved by: Cathy Cannon	**Seconded by:**

WHEREAS the Ontario College of Physicians and Surgeons has made a decision that will lead more people who suffer from chronic pain to turn to opioids to alleviate their pain and;

WHEREAS the College is targeting community pain clinics by requiring the use of ultrasound technology in the administration of nerve block injections by licensed physicians. This requirement will increase the time it takes to administer the nerve block and, therefore, reduce the number of patients a physician can see in a day and;

WHEREAS the Ontario Health Insurance Plan (OHIP) is proposing to reduce coverage for several vital healthcare services, including a drastic reduction in the number and frequency of nerve block injections a patient can receive and;

WHEREAS these changes have been proposed without any consultation with pain management medical professionals or with their patients and;

WHEREAS this cut will force chronic pain clinics to shut down, putting a greater strain on family physicians and emergency rooms and;

WHEREAS with the reduction in the number of nerve bocks being administered, many patients, looking for pain relief, will turn to overcrowded emergency rooms, opioid prescriptions from doctors or opioid street drugs;

NOW THEREFORE BE IT RESOVLED THAT the Council of the Corporation of the Municipality of Wawa is requesting that the Government of Ontario maintain OHIP coverage for chronic pain treatments and continue to provide much-needed care for the people of Ontario;

p.2....

The Corporation of the Municipality of Wawa

REGULAR COUNCIL MEETING

RESOLUTION

AND FURTHERMORE THAT a copy of the resolution be forwarded to all Municipalities of Ontario, local MPs and MPPs, Premier Doug Ford, the Minister of Health, Associate Minister of Mental Health and Addictions and the Association of Municipalities of Ontario.

RESOLUTION RESULT		RECORDED VOTE		
☑	CARRIED	MAYOR AND COUNCIL	YES	NO
☐	DEFEATED	Mitch Hatfield		
☐	TABLED	Cathy Cannon		
☐	RECORDED VOTE (SEE RIGHT)	Melanie Pilon		
☐	PECUNIARY INTEREST DECLARED	Jim Hoffmann		
☐	WITHDRAWN	Joseph Opato		

Disclosure of Pecuniary Interest and the general nature thereof.

☐ Disclosed the pecuniary interest and general name thereof and abstained from the discussion, vote and influence.

Clerk:_____

MAYOR – MELANIE PILON	CLERK – MAURY O'NEILL

This document is available in alternate formats.

WHEREAS the Federal and Provincial Governments need to support their most vulnerable households, the ones who are or are at risk of becoming homeless. Overall, housing and services for low-income, vulnerable, or marginalized people should be a primary consideration moving forward so we help those who need it the most.

WHEREAS the _____Community _____ understands every community across Ontario is impacted by a need for affordable housing and support for people at risk of homelessness. Municipal governments are working in collaboration with all orders of government to invest in permanent solutions to the housing and homelessness crisis in Ontario.

WHEREAS the _____Community _____ understands that the Federal **National Housing Strategy** allocation formula to provinces and territories for jointly funded housing initiatives, roughly follows their share of the national population. This approach leaves Ontario underfunded because, as per the 2021 Census figures, the number of Ontario households in **Community Housing Network** as a share of the national total is 44.1 percent, which is well above the provincial share of the national population at 38.5 percent. This is also by far the highest share of national **Community Housing Network** relative to every other province and territories.

WHEREAS receiving a by-population allocation from the federal government hampers Ontario's ability to reach more of those households in need that require assistance with housing.

WHEREAS the lack of ongoing federal operating funding for **National Housing Strategy** initiatives leads to significant underfunding for subsidized housing projects and can undermine the physical and financial viability of the community housing stock.

WHEREAS a similar situation occurs with federal homelessness funding to Ontario through **Reaching Home**, where the share allocated to Ontario is also below the provincial share of **Community Housing Network** nationally.

WHEREAS there is an inequitable distribution of **Reaching Home** funding in Ontario as only 25 of 47 Service Managers have designated communities receiving funding under the program, despite the prevalence of need across the entire Province.

WHEREAS _____Community _____ understand the federal government takes the position that its role is to provide capital funding while Provinces and Territories are to fund operating expenses, but this approach does not create an equitable sharing of the burden of funding long-term operating costs, which continue for the life of a project.

WHEREAS taken altogether, the underfunding to Ontario for housing and homelessness relative to its share of national **Canadian Housing Network** amounts to approximately $480 million over the term of the Federal **National Housing Strategy**.

WHERAS the federal government previously provided leadership in ensuring the long-term financial and physical viability of the social housing stock under the **Social Housing Agreement** for several decades through federal social housing operating agreements that provided funding for both mortgages and operating costs.

WHEREAS without some flexibility on the part of the federal government, Ontario and its municipalities will be poorly positioned to take advantage of this funding, and this will turn into a significant missed opportunity, leading to a further deterioration in the long-term physical and financial sustainability of the community housing stock.

THEREFORE, BE IT RESOLVED, _____Community _____ also supports the provincial ask for federal operating funding for **National Housing Strategy** initiatives.

THEREFORE, BE IT RESOLVED would appreciate the federal effort to repurpose this funding quickly from the main **National Housing Co-Investment Fund** program line, Service Managers across the province have indicated their challenges with meeting the terms of the federal proposal, particularly as they relate to cost matching and meeting the requirements for greenhouse gas emissions, energy efficiency and accessibility.

THEREFORE, BE IT RESOLVED that _____Community _____ would like need-driven indicators incorporated into the funding allocation formulas for all federal programs.

THEREFORE, BE IT RESOLVED that FONOM appreciates the federal government's commitment to end chronic homelessness and wishes this to be inclusive across all areas of our province by expanding Reaching Home funding to all Service Managers.

THEREFORE, BE IT RESOLVED, FONOM also supports the provincial position in relation to the provinces and territories **Repair Fund** under the **National Housing Co-Investment Fund**

THEREFORE, BE IT RESOLVED, FONOM supports the Province of Ontario position on the application-based $4 billion federal **Housing Accelerator Fund.** We wish to emphasize the importance of providing municipalities with maximum support in preparing applications to the HAF, understanding that some rural and northern municipalities may face capacity challenges in applying to this program on the anticipated tight timelines.

THEREFORE, BE IT RESOLVED, _____Community _____ wish to request that **Canadian Mortgage and Housing Corporation** consider actions taken by municipalities under the province's **Housing Supply Action Plans** into account when assessing municipal applications, recognizing that these initiatives have the potential to significantly increase the supply of housing in our communities.

THEREFORE, BE IT RESOLVED, _____Community _____ believes the lack of ongoing federal operating funding for **National Housing Strategy** initiatives leads to significant underfunding for subsidized housing projects and can undermine the physical and financial viability of the community housing stock.

THEREFORE, BE IT RESOLVED, _____Community _____ believe the federal government should heed the precedent of the **Social Housing Agreement** and recommit itself to funding operating costs that often stretch out over decades for the lifetime of a housing project. As an example, the **Rapid Housing Initiative's** 20-year affordability requirement and lack of federal operating dollars will very likely result in housing providers asking Service Managers and the provincial government to fund operating expenses to ensure the long-term affordability of units given housing providers' limited revenue-raising capacity.

THEREFORE, BE IT RESOLVED This lack of ongoing federal operating funding for **National Housing Strategy** initiatives leads to significant underfunding for subsidized housing projects and can undermine the physical and financial viability of the community housing stock.

THEREFORE, BE IT RESOLVED, _____Community _____ urges the Federal Government provide additional funding for Ontario so that we can deal with our shortages of safe and affordable housing and at the same time build safer and healthier communities for all our residents.

FURTHER IT BE RESOLVED THAT a Copy of the Resolution be forward to the individuals listed below for consideration and support, Prime Minister Trudeau, Minister Ahmed Hussen, ____Your Federal Member ____, Premier Ford, Minister Clark, __your _____ Member of Provincial Legislation, Leaders of the Federal and Provincial Opposition Parties, the Association of Municipalities of Ontario (AMO), and the Federation of Northern Ontario Municipalities.

Established 1793
Incorporated
Wolford 1850
Merrickville 1860
Amalgamated 1998

Telephone (613) 269-4791
Facsimile (613) 269-3095

VILLAGE OF MERRICKVILLE-WOLFORD

For Clerk's use only, if required.		
Recorded Vote Requested By:		
Barr	Y	N
Cameron	Y	N
Gural	Y	N
Ireland	Y	N
Maitland	Y	N

Resolution Number: R -236 - 23

Date: July 10, 2023

Moved by: Barr (Gural) Ireland Maitland

Seconded by: Barr Gural Ireland (Maitland)

Notice of Motion: Proposed Provincial Planning Statement

Be it hereby resolved that:

WHEREAS the goal of increasing housing supply and reducing barriers in planning processes as set out in the recent legislative, regulatory, and policy changes, including new provisions from Bill 23, More Homes Built Faster Act is welcomed; and

WHEREAS the proposed Provincial Planning Statement (sections 2.6 and 4.3) would dramatically remove municipal power and render aspects of the Village of Merrickville-Wolford Official Plan and other official plans throughout Ontario inoperative, terminate some local planning autonomy, and directly interfere with municipalities' ability to meet local variation and unique community needs; and

WHEREAS the proposed PPS changes that would allow proliferation of lots with protection restricted to specialty crop areas only diminishes the purpose, use and integrity of rural and agricultural lands, thereby removing protection and restricting future uses of those lands; and

WHEREAS the proposed PPS changes encourage sprawl and rural roadway strip development, rather than more fiscally and environmentally sustainable practices like intensification in established settlement areas; and

WHEREAS the Rideau Valley Conservation Authority has played a crucial role in providing planning input and reviewing services to assist our municipality and has provided its own comments outlining its concerns and recommendations;

317 Brock Street West, P.O. Box 340, Merrickville, Ontario K0G 1N0
www.merrickville-wolford.ca reception@merrickville-wolford.ca

Established 1793
Incorporated
Wolford 1850
Merrickville 1860
Amalgamated 1998

Telephone (613) 269-4791
Facsimile (613) 269-3095

VILLAGE OF MERRICKVILLE-WOLFORD

NOW THEREFORE BE IT RESOLVED THAT the Council of the Corporation of the Village of Merrickville-Wolford urges the province to:

- Pause proposed changes to the PPS, particularly regarding natural heritage (section 4.1) and agricultural lands (sections 2.6 and 4.3)
- Reinvest trust in the local planning authority of all 444 municipalities, recognizing that each one has unique landscapes, housing needs and visions for local planning matters
- Follow the recommendations provided by the Rideau Valley Conservation Authority

AND THAT our fellow municipalities be urged to voice their concerns regarding the proposed undermining of local planning authority;

AND FURTHER THAT a copy of this resolution be sent to all 444 municipalities, The Hon. Doug Ford, Premier of Ontario, The Hon. Steve Clark, Minister of Municipal Affairs and Housing and MPP for Leeds-Grenville-Thousand Islands and Rideau Lakes, The Hon. Lisa Thompson, Minister of Agriculture, Food and Rural Affairs, The Hon. David Piccini, Minister of Environment, Conservation and Parks, the Association of Municipalities of Ontario, the Rural Ontario Municipal Association and the Federation of Canadian Municipalities.

Carried X Defeated

Michael Cameron, Mayor

317 Brock Street West, P.O. Box 340, Merrickville, Ontario K0G 1N0
www.merrickville-wolford.ca reception@merrickville-wolford.ca

FW: Updated Lake Simcoe Phosphorus Reduction Strategy resolution Honourable

Minister Piccini;

Mr. Baldwin, Lake Simcoe Watershed MPP's and Municipalities;

Please be advised that Georgina Town Council considered and unanimously adopted the following motion during its August 2nd meeting requesting the Province of Ontario to revise the Phosphorus Reduction Strategy to achieve the 55% phosphorus pollution reduction to no more than 44 tonnes per year by 2030. Respectfully, said resolution has been provided below for your consideration;

> **RESOLUTION NO. C-2023-0265**
> Moved By Councillor Neeson
> Seconded By Councillor Dale
>
> WHEREAS on February 24th, 2021, the Council of the Town of Georgina passed Resolution No. C-2021-0051 in conjunction with staff report DS-2021-0022;
>
> WHEREAS the above referenced Resolution No. C-2021-0051 in conjunction with staff report DS-2021-0022 was passed by the members of council unanimously;
>
> WHEREAS as a part of staff report DS-2021-022, recommendation number 5 contained the following in regards to the current and on-going review of the Lake Simcoe Protection Plan (Act):
>
> "5. That the Council for the Town of Georgina requests that the Province of Ontario revise the Phosphorus Reduction Strategy to create a time bound plan and the associated budgets to achieve the 55% phosphorus pollution reduction to no more than 44 tonnes per year as soon as possible"
>
> AND WHEREAS the Lake Simcoe Protection Plan (Act) received unanimous all-party support in the Ontario Legislature in 2008;
>
> NOW THEREFORE BE IT RESOLVED THAT the Town of Georgina re-affirms its resolution as stated of February 24th, 2021 with the following amendments:
>
> 1. That the Council for the Town of Georgina requests that the Province of Ontario revise the Phosphorus Reduction Strategy to create a time bound plan and the associated budgets to achieve the 55% phosphorus pollution reduction to no more than 44 tonnes per year with a target date of 2030.
>
> 2. That a copy of this resolution be sent to the Honourable David Piccini, Minister of the Environment, Conservation and Parks; all Lake Simcoe watershed MPPs; The Lake Simcoe Region Conservation Authority (LSRCA) and all Lake Simcoe watershed municipalities.

Thank you for your time and consideration of this request.
Sincerely,

GEORGINA

Carolyn Lance
Council Services Coordinator
Clerk's Division | Town of Georgina
26557 Civic Centre Road, Keswick, ON | L4P 3G1
905-476-4301 Ext. 2219 | georgina.ca
Follow us on Twitter and Instagram, like us on Facebook

Township of SEVERN

Administration Office 1024 Hurlwood Lane, Severn
Mailing address PO Box 159, Orillia, Ontario L3V 6J3
Email info@severn.ca
Phone 705-325-2315

August 11, 2023

Climate Emergency Unit
c/o The David Suzuki Institute
201 Pringle Farm Rd
Saltspring Island, BC
V8K 2Y2

Dear Erin Blondeau, Director of Communications

Re: Climate Emergency Just Transition Transfer (JTT)

Please be advised that the Council for the Township of Severn received correspondence respecting the Just Transition Transfer (JTT) at their recent August 9th, 2023 Council meeting.

Following discussion Motion C2023-042 was passed:

Moved by Councillor - Ward 3 Phil Brennan
Seconded by Deputy Mayor Judith Cox

WHEREAS Canada's greenhouse gas (GHG) emissions are slowly starting to trend downward, but the reduction trajectory remains incongruent with what science and justice demands;

WHEREAS Canada must spend what it takes to confront the climate emergency, and there is an urgent need for Canada to spend more on climate infrastructure that would drive down GHGs and hasten the transition off fossil fuels;

WHEREAS Canada needs to make an audacious and hopeful offer to those workers and communities whose employment and economic security is currently tied to the fossil fuel industry (and to a lesser extent the auto, steel, concrete, and agriculture industries, etc., all of which face substantial transition challenges), and to Indigenous communities on the frontlines of fossil fuel extraction;

WHEREAS the federal government has introduced a *Sustainable Jobs Act*, but this Act needs to be paired with and backed-up by a substantial investment in the jobs of the future;

WHEREAS much of the climate infrastructure needed will come under provincial, municipal and Indigenous jurisdiction (renewable energy, grid upgrades, public transit, zero-emission housing, etc.), and training comes under provincial jurisdiction, but it is the federal government that has the greatest capacity to pay;

WHEREAS a new federal Climate Emergency Just Transition Transfer (JTT) specifically linked to funding climate infrastructure projects that would create hundreds of thousands of jobs, along with training and apprenticeships programs for workers and those leaving the oil and gas industry –– would be a transformative program that signals that Canada is indeed entering emergency mode;

WHEREAS the JTT would be an annual transfer of approximately $25 billion from the federal government to provincial/territorial, municipal and Indigenous governments, purpose-built to meet the climate emergency imperative to decarbonize our society, ensuring communities can fund the infrastructure and training needed to transition off fossil fuels, while creating thousands of sustainable jobs in a way that is specific to their needs and locale;

WHEREAS the JTT's distribution would be based on a formula linked to recent GHG emissions in each province (but fixed from that point onward, so as not to perversely incentivize continued high GHGs), recognizing that some jurisdictions face a more challenging task to transition their local economies;

WHEREAS the JTT would transfer federal funds to newly established just transition agencies in each province and territory –– jointly governed by the federal government, provincial/territorial governments, municipal governments, and local Indigenous nations –– and in some case directly to Indigenous nations, ensuring the transfer money is not simply absorbed into provincial or municipal budgets or used to displace other infrastructure or

training funds, but rather, ensuring the money is used for its intended purpose, and that fund are allocated in a manner sensitive to local climate action plans, the unique GHG profiles of each region, and to local labour market/training needs;

WHEREAS a JTT could provide significant, stable, multi-year funding for the climate infrastructure and training/employment needs of municipalities, Indigenous communities, energy utilities, public transit authorities and public housing authorities;

WHEREAS the federal government is welcome to title such a new transfer as they see fit (e.g. a Sustainable Jobs Transfer or a Climate Infrastructure Transfer);

NOW THEREFORE BE IT RESOLVED, that the Township of Severn formally endorses the call for a new Just Transition Transfer; and

THAT the Township of Severn urges the federal government to establish a new Just Transition Transfer, starting with a major financial commitment in the next federal budget; and will write to the federal ministers concerned expressing this support;

AND THAT this resolution be circulated to all municipalities.

Carried

Should you have any questions or concerns, please feel free to contact me at (705) 325-2315 x 232 or by email at agray@severn.ca

Regards,

Alison Gray

Alison Gray, BAH, CMO, AOMC
Clerk

Cc Ontario Municipalities

Motion on Municipal/Regional Funding to Support Newcomers Including Refugees and Asylum Seekers

August 20, 2023

WHEREAS the Canadian government is failing to fully fund the municipal/regional front line that Canada relies on to welcome and settle newcomers, including those needing urgent support such as refugees and asylum-seekers fleeing conflict in their home countries and;

WHEREAS historically, by working together with other orders of government, local agencies, and community partners to co-ordinate their settlement, municipalities and regions have been able to expand services when there has been an influx through emergency shelter systems and other wraparound supports and;

WHEREAS municipal and regional leaders are operating with a nineteenth century revenue system to respond to twenty-first century responsibilities that include a housing and homelessness crisis, public health and safety issues such as the mental health and addictions crisis, ageing infrastructure, and other traditional responsibilities and;

WHEREAS this most recent influx of refugees has dramatically increased pressure on a system that is already over capacity, and despite best efforts, municipalities and regions can no longer keep up with the demand and;

WHEREAS while we are on the front line of welcoming newcomers to Canada, the federal government has not consulted nor planned with municipalities and regions to ensure these newcomers receive the housing and other supports they need, including for those who have come to Canada to learn. And when these needs cannot be met, it is often vulnerable and marginalized communities that are impacted the most and;

WHEREAS the federal government's commitment in July to increase interim housing supports is a good start, but it does not solve the systemic capacity issues municipalities across Ontario are facing, nor does it address the current refugee crisis in communities throughout the GTA and beyond.

Therefore, be it resolved that Ontario's Big City Mayors (OBCM) and the Mayors and Regional Chairs of Ontario (MARCO) is calling for an urgent meeting of all orders of government to discuss immediate action on the capacity issues faced by our municipalities and regions, and to put in place a funding model that addresses the on-going need for emergency housing and other supports as this refugee crisis continues and;

THAT OBCM and MARCO are also calling on the federal government to consult with municipalities, regions, provinces and territories on the process of the setting of immigration targets, including for international students, and on the funding and supports required to ensure people receive the housing and other services they need when they arrive and;

THAT OBCM and MARCO requests that these numbers be announced with enough time to be included in provincial, regional and municipal growth planning.

TOWN OF AJAX
REPORT OF THE GENERAL GOVERNMENT COMMITTEE

For consideration by the Council of the Town of Ajax on September 18, 2023

The General Government Committee met at 1:00 p.m. on September 11, 2023

Present:	Councillor R. Tyler Morin, Chair Regional Councillor M. Crawford Regional Councillor J. Dies Councillor L. Bower Councillor N. Henry
Regrets:	Regional Councillor S. Lee Mayor S. Collier

The General Government Committee recommends as follows:

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: M. Crawford

That the Minutes of the regular meeting of the General Government Committee held on June 12, 2023 be adopted.

CARRIED

3.2 Closed Session

Moved by: J. Dies

That the Minutes of the Closed Session of the General Government Committee held on June 12, 2023 be adopted.

CARRIED

4. Consent Agenda

Members separated items 4.1, 4.4, 4.5, 4.8, 4.9 and 4.12 for discussion.

4.1 **AFES-2023-04: Updates to Emergency Response Automatic Aid Agreement with Pickering Fire Services**

Moved by: M. Crawford

1. That a By-law to authorize the execution of an updated Automatic Aid Agreement with the City of Pickering (ATT-1) be presented to Council for approval.

CARRIED

4.2 **AFES-2023-05: Contract Award – Supply & Delivery – Radio Equipment**

Moved by: M. Crawford

That Council award the contract for Radio Equipment, to Williams Communication Services in the amount of $517,908.95 (inclusive of all taxes).

CARRIED

4.3 **FIN-2023-18: Tax Section Status Report**

Moved by: M. Crawford

That the Tax Section Status Report be received for information.

CARRIED

4.4 **FIN-2023-20: Insurance Renewal – July 1, 2023 to June 30, 2024**

Moved by: N. Henry

1. That the report on the Insurance Renewal – July 1, 2023 to June 30, 2024 be received for information;

2. That the 2023 dividend of $120,567 be transferred to the insurance reserve.

CARRIED

4.5 **FIN-2023-22: 2024 User Fees and Charges**

Moved by: M. Crawford

1. That the recommended fees schedule (ATT-1) be approved, effective January 1, 2024; and

2. That the appropriate General Fees By-law be presented to Council for approval.

CARRIED

4.6 **FIN-2023-23: Development Charge Interest Policy Amendment**

Moved by: M. Crawford

1. That the updated Development Charge Interest Policy 148 (ATT-1) be approved.

CARRIED

4.7 **PDS-2023-29: Building By-law Update**

Moved by: M. Crawford

1. That the attached revised Building By-law, being a by-law respecting the establishment of a fee schedule and other building matters, be endorsed, and

2. That staff be authorized to prepare and forward the implementing Building By-law to Council for consideration at the September 18, 2023, meeting.

CARRIED

4.8 **PDS-2023-30: Textile Diversion Program – Implementation Update**

Moved by: L. Bower

1. That the report to General Government Committee, dated September 11, 2023, entitled “Textile Diversion Program – Implementation Update” be received for information.

CARRIED

4.9 **PDS-2023-31: Porte Road Closure**

Moved by: J. Dies

1. That staff be authorized to proceed with the stop-up and closure of Porte Road.

CARRIED

4.10 **RC-2023-02: Lease Agreement – YMCA of Greater Toronto**

Moved by: M. Crawford

That the Mayor and Clerk be authorized to renew the Lease Agreement for rental space at the Ajax Community Centre with the YMCA of Greater Toronto, in an estimated rental amount of $199,385.94 inclusive of all taxes, for a term of 39 months, commencing on October 1, 2023, and ending on December 31, 2026.

That staff be authorized to renew the lease agreement for an additional term of sixty (60) months on substantially the same terms subject to minor renegotiations, pending a satisfactory performance review at the conclusion of the 2023-2026 term.

CARRIED

4.11 **LIS-2023-14: 2024 Meeting Schedule and Committee Chair and Vice-Chair Appointments**

Moved by: M. Crawford

That the 2024 Meeting Schedule and Committee Chair and Vice-Chair appointments included as ATT-1 to this report be approved.

CARRIED

4.12 **LIS-2023-13: Procedure By-law Amendments**

Moved by: J. Dies

1. That the revised Procedure By-law, included as ATT-1 to this report, be forwarded to a future Council meeting for approval; and

2. That the proposed Deputy Mayor By-law, included as ATT-2 to this report, be forwarded to a future Council meeting for approval.

CARRIED

5. Discussion

5.1 **LIS-2023-12: Proposed Administrative Monetary Penalties**

Moved by: M. Crawford

1. That staff be directed to establish an Administrative Monetary Penalties System (AMPS) for parking enforcement with an implementation date of January 15, 2024.

2. That staff be directed to bring forward the required by-laws, including an AMPS By-law and amendments to the Town's Traffic By-law and Fees & Charges By-law to facilitate recommendation #1.

3. That staff be directed and authorized to establish or modify existing policies to comply with the AMPS requirements within The Municipal Act., including, but not limited to,

   • AMPS Conflict of Interest Policy
   • AMPS Public Complaints Policy
   • AMPS Prevention of Political Interference Policy
   • AMPS Financial Management & Reporting Policy

4. That Council provide pre-budget approval and direct staff to include the AMPS in the proposed 2024 operating budget, as described in the Financial Implications section.

5. That Council approve funding of $50,000.00 to be allocated to Unbudgeted Capital Account AMPS parking management software upgrade and a mail folder/inserter machine from the Capital Contingency Reserve.

CARRIED

6. Presentations

6.1 **RC-2023-04: 2023-2033 Ajax Arts & Culture Plan**

Moved by: N. Henry

1. That the 2023 - 2033 Ajax Arts and Culture Plan be endorsed by Council; and

2. That any projects identified therein for future years be brought forward to Council for consideration as part of the annual budget process.

CARRIED

7. Closed Session

None

8. Adjournment (2:37 p.m.)

Moved by: N. Henry

That the September 11, 2023 meeting of the General Government Committee be adjourned.

CARRIED

R. Tyler Morin, Chair

Town of Ajax
Summary of Advisory Committee Activities

Report To: Council

Prepared By: Sarah Moore, Legislative Specialist

Date of Meeting: September 18, 2023

Heritage Advisory Committee – June 7, 2023

Meeting Highlights

- M. Sawchuck provided **general updates** on several items from the previous meeting:
  - Confirmation that previous heritage designations are registered on title
  - Patrick Sheehan Awards presentations
  - DIL video status
  - National Historic Sites and Monuments Board of Canada application
  - Provincial Adaptive Reuse Database

- The Committee discussed a 2023 **Janes Walk** event and participant survey results. Members discussed opportunities for improvement in relation to audio, digitizing images so participants could follow along on their own mobile devices, and smaller group tour ratios. Opportunities to consider future walks along the waterfront and non-downtown D.I.L. sites were noted.

- Members discussed recommended locations to prioritize for installation of a **Historic Plaque** and encouraged locations be selected in consideration of where it would be visible by pedestrian foot traffic. The Committee discussed suggestions the D.I.L. hospital, D.I.L. supervisor's house, Bertrand House, D.I.L. Assembly Line No. 2 Building, Old Post Inn plaque update, and the potential to add QR code decals to plaques to link to an online map of all plaques and additional information.

- M. Sawchuck informed the Committee that the Town's annual budget includes a standing allocation for one **historical research report** to support *Ontario Heritage Act* designation. The Committee was encouraged to establish priorities for the full term (4 years) to help ensure it completes one designation each year and reviewed several locations for consideration. A priority list will be formalized at a forthcoming meeting.

- M. Sawchuck provided context of the origin of the **Provincial Policy Statement** as the foundational document outlining the planning goals and objectives across the province with which all municipal Official Plans must be in conformity noting that the new Provincial Planning Statement proposes many amendments in subsection 4.6 (formerly 2.6) relating to Cultural Heritage and Archaeology. M. Sawchuck reviewed the comments in the Planning

Section's staff report relating to the heritage sections of the policy. Councillor Tyler Morin summarized Council's comments from the June 5, 2023 Community Affairs and Planning Committee. Members inquired why Council did not support staff's comments regarding the heritage impacts of the proposed policy changes.

Recommendation(s)

4.5 Provincial Policy Statement Review

Moved By: H. Bellerose
Seconded By: T. Matthews

That staff issue comments to the province, as originally included in report PDS-2023-21, to represent the Heritage Advisory Committee's response to the proposed Provincial Planning Statement.

CARRIED

Accessibility Advisory Committee – June 21, 2023

Meeting Highlights

- Tim Field, Manager of Environmental Services and Robert Gamble, Temporary Weekend Supervisor of Special Events and Senior Snow delivered a presentation regarding **proposed changes to the Town's Snow Removal Program for Seniors and Qualified Residents**. Members asked questions relating to insurance, contracted services, frequency of payment, cost, eligibility qualifications, slips and falls and waivers. Members expressed concerns for the potential cost increase and suggested a financial subsidy for the service or for individuals to contract their own service. Concerns were identified that some essential personal support/meal delivery/medical support services may not be authorized to access the property if the driveway was not fully cleared.

- S. Moore discussed the Town's comprehensive **review of the Multi-Year Accessibility Plan** due this year. She delivered a presentation regarding consultation elements of the review and the Town's participation in Leading Equitable Accessible Design program with the Abilities Centre. She reviewed the opportunity and time requirements for 1-2 Committee Members to participate in the staff assessment team. Members discussed feedback on the draft accessibility survey.

- S. Moore presented a **summary of the 2023 National AccessABILITY Week recognition events** which included a flag raising, #RedShirtDay, the Power Up, Ajax! Mobility device charging station launch, film screening and colouring contest. She shared the Ajax Public Library's support for the week through social media and branch displays. Members acknowledged the success of the week.

- Chair Deonarine summarized the annual exercise of the Committee's role in submitting a nomination for the **Regional Accessibility Award**s. She sought suggestions from the Committee on potential nominees. S. Moore noted that coordination of a nomination would

need to occur over email, in time to bring forward a nomination for the committee to approve at the September Meeting.

- R. Smith provided a brief update on recent business of the **Age-Friendly Steering Committee**, noting that the Committee had received the Snow Removal Program presentation and feedback discussion. He also noted the positive feedback received for hosting the Seniors BBQ at the Audley Recreation Centre Banquet Hall. The Committee will be recruiting new membership in the fall and R. Smith suggested that L. Rae be invited to a future meeting to discuss the Committee's recruitment.

- S. Moore reminded Members about the application period to participate in the **Driver Awareness Campaign for Pedestrians with Disabilities**.

- S. Moore sought Member participation for the information station at the June 25 **Trailfest** event. K. Kwong volunteered to stop by.

- S. Moore noted that Council had recently appointed Rosanne Purnwasie and Heather Azzarello as **New Members to the Committee**. They will be participating in orientation during the coming weeks and will attend their first meeting in September.

- S. Moore shared a proposed design from a recent development application for a large retail plaza seeking to paint horizontal lines across the **accessible parking spaces**. Members and staff discussed concerns with the proposed design which will cause confusion for pedestrians and drivers. The Committee strongly encouraged staff to not support the proposed design.

- R. Smith shared a summary of the recent visit from the **CNIB Mobile Hub** to the Ajax Public Library. He noted that the Mobile Hub will be visiting again in the fall. It was suggested that the Ajax Public Library attend a future meeting to present and discuss accessibility initiatives.

Recommendation(s)

4. Presentation/Discussion

None.

Town of Ajax Report

Report To:	Council
Prepared By:	Devon Jarvis
Report #:	CAO-2023-15
Subject:	Social Media Policy 055 Update
Ward(s):	All
Date of Meeting:	September 18, 2023
Reference:	General Government Committee Meeting May 8, 2023

Recommendation:

That the proposed update to Social Media Policy 055 (ATT-1) of the addition of section 3.3. *Management and Administration – Council Member Accounts* be approved.

Background:

Presently the Town does not have a Council-approved policy to govern expectations of public behaviour online on social media and how Council Members are to respond in these situations. Following a discussion at the December 20, 2019 General Government Committee (GGC) Meeting, on the approval of the Town's Public Conduct Policy, Council asked staff to report back with options on how to address behaviour specifically on social media. The Social Media Policy Update report (ATT-2) brought forward at the May 8, 2023 GGC meeting proposed amendments to the Town's current Social Media Policy to include an addition of new section, 3.3. Management and Administration - Council Member Accounts, which establishes general guidelines for the management of Council Member constituent-facing social media accounts and expectations regarding public access to Members' accounts. This section also outlines expected public behaviour and a response framework to be followed when unacceptable behaviour occurs, including the ability to moderate access to constituent-facing social media accounts for specific users, and in severe cases the ability to block specific users.

After a discussion at the May 8, 2023 GGC meeting Council requested that the proposed amendments to the Social Media Policy be referred to the Integrity Commissioner (IC) for their review and input respecting the application of Council's Code of Conduct and that staff report back to Council in September 2023.

Discussion:

Following the May 8, GGC meeting, the Town's Integrity Commissioner (IC), Principles Integrity, had the opportunity to review the Report, the proposed policy changes and the recording of the Committee's deliberations. The IC's full comments are included with the submission of this report (ATT-3).

Overall, the IC's comments were in support of the policy updates and included response themes to address Council Members concerns.

Highlights of the IC's comments include:

- In adopting the policy, Council Members will not become more exposed to frivolous complaints.
- The policy will help minimize circumstances which could result in complaints of all types, including substantive complaints. Further, by following policy guidance, the primary concern that a Member might be arbitrarily blocking a constituent is removed.
- The policy provides excellent guidance for Members to have separate personal and constituent-facing social media accounts/pages/profiles/etc., and to be diligent not to use personal accounts to conduct Town business. It was noted that this separation is not *mandatory*, however in advising against mixed use social media sites, the policy intends to reduce the potential for perception that a Member's behaviour on social media is official when it was intended not to be.
- A recommendation that Members include on the sites/pages/profiles/etc. they administer a statement which broadly identifies the kinds of posts which will be removed without notice.

The following new section is proposed to be added to Social Media Policy 055:

3.3. **Management and Administration - Council Member Accounts**

3.3.1. Regional and local councillors are responsible for the setup and day-to-day management and monitoring of constituent-facing social media accounts. Please refer to policy *Council Communications Tools & Support* for additional details.

3.3.2. Communications & Engagement staff members in collaboration with Public and Strategic Affairs staff are responsible for the day-to-day management and administration of the Mayor's constituent-facing social media accounts, subject to the permission and discretion of the Mayor.

3.3.3. It is recommended for Council Members to have separate personal and constituent-facing social media accounts/pages/profiles. Additionally, it is recommended to *not* use a personal account to post about Town matters, to distribute Town information or to comment on Town issues. If a personal account is used to convey public information, all members of the public should be capable of viewing that content. Please refer to section 3.5 of this policy for posting guidelines on personal accounts.

3.3.4. Council Member constituent-facing accounts must be visible/available to the public and this account should be used when commenting on Town matters/issues.

3.3.5. Council Members are permitted to represent areas of responsibility and comment/quote on social media messages released through the Town, however, the Town will not be held liable for any repercussions that the content may generate, and communications must adhere to the *Town of Ajax Code of Conduct for Members of Council.*

3.3.6. Council Members may tag the Town corporate accounts when "live" posting from third-party events and conferences where they are representing the Town for resharing purposes. Reshares from the corporate accounts is not guaranteed, and in cases where many members of Council are sharing from the same event,

Council Member posts may be repurposed for a singular post from the corporate accounts.

3.3.7. All communications on social media conducted by Council Members must adhere to the *Town of Ajax Code of Conduct for Members of Council*.

3.3.8. **Online Trolls and Disrespectful Behaviour – Council Member Accounts**

3.3.8.1. Refer to 2.1 for definition of online troll.

3.3.8.2. Bullying, threatening, abusive or discriminatory language to Ajax Council members, Town of Ajax staff members or to other members of the public on Council members' constituent-facing social media pages is not permitted and comments, replies, or direct messages that are inflammatory in nature, discriminatory, disrespectful or use inappropriate language will not be responded to and may be deleted and/or hidden without notice.

3.3.8.3. **Moderating:** Council Members are entitled to moderate access to their constituent social media pages in response to abusive behaviour. However, members are strongly encouraged to explore the use of less restrictive moderation tools (such as muting, hiding, etc.) to curtail such behaviour while preserving the public's access to the information shared on constituent accounts.

3.3.8.4. **Blocking:** Council Members may be justified in blocking users where necessary to protect the member or other users from harassment or abuse, or to preserve the utility of the Council Member's social media page by preventing it from being overrun by spam or from disseminating abusive, hateful and inciteful communication. Members of Council are strongly advised to exercise restraint, and to seek Integrity Commissioner (IC) guidance on a case-by-case basis as may be necessary, prior to blocking users. Should a member of Council offer a public explanation for their decision to block a certain user, they must take care to communicate that information in a way that is not discourteous or disparaging to the user in question.

3.3.8.5. The decision to curtail a user's engagement with a Council Member's constituent-facing social media page must be motivated by a desire to protect the interests of residents and the Town, in addition to concern for the member's own well-being.

3.3.8.6. It is recommended that Council Members include on profiles/pages/accounts/etc. they administer a statement which broadly identifies the kinds of posts that may be moderated, up to and including removal, without notice, as well as how often the profile/page/account/etc. will be reviewed for inappropriate content. An example of a statement is included below:

This site (account/page/etc.) will be reviewed a minimum of twice per week. Bullying, threatening, abusive or discriminatory language on this site is not permitted and posts, comments, replies, or direct messages that are inflammatory in nature, discriminatory, disrespectful or use inappropriate language, or which constitute off-topic messages, commercial solicitations, or spam, will not be responded to and may be deleted an/or hidden without notice.

3.3.8.7. Section 3.3. of this policy shall not be amended without approval from Council.

Financial Implications:

There are no financial implications arising from the recommendations contained in this report.

Communication Issues:

If approved, the policy will be communicated to Members of Council and will be included in future training for new Members in future Council terms.

Relationship to the Strategic Plan:

This report aligns with the Pillar *Connecting Our Community*, priority four: Foster a safe and welcoming community.

Conclusion:

Implementing this update will help ensure that all Town online spaces remain safe, respectful, and harassment-free environments for all users to enjoy.

Attachments:

ATT-1:	Social Media Policy 055
ATT-2:	Social Media Policy Update – May 8, 2023 General Government Committee Report
ATT-3:	Principles Integrity Social Media Comments
ATT-4:	Town of Ajax Code of Conduct for Members of Council

Prepared by:

Devon Jarvis – Supervisor of Communications & Engagement

Submitted by:

Christie McLardie – Manager of Public & Strategic Affairs

Approved by:

Shane Baker – Chief Administrative Officer

Policy #:	Issued Date:	Revised Date:	Author / Responsible Department:	Revision #:	Page:
055	11/11/30	23/09/18	Stephanie Saroff, Communications & Engagement	3	1 of 9

1. Policy Objective

1.1. To govern the use of social media platforms by the Town of Ajax.

1.2. To provide guidelines for the establishment and administration of official corporate and Council Member social media accounts, including outlining the process for managing inappropriate online behaviour.

1.3. To establish procedures for authorized corporate social media content providers to ensure all communications through the Town's social media accounts are accurate, consistent and professional.

1.4. To set guidelines for staff and Council Members as it relates to personal social media accounts.

2. Scope

2.1. The following definitions and abbreviations apply within the meaning of this policy:

Term	Definition
CAO	Means the Chief Administrative Officer of the Corporation of the Town of Ajax.
Council	Means the elected Council of the Town of Ajax.
Department	Means any functional department within the organizational structure of the Corporation of the Town of Ajax.
Inappropriate Online Behaviour	Means behaviour that will not be tolerated, including but not limited to behaviour that can be damaging physically or mentally, is illegal, or would not be welcomed in a standard place of business.
Member	Means an individual presently elected to the Council of the Town of Ajax.
Online Trolls	Trolls deliberately try to disrupt, attack, offend or generally cause trouble. This includes, but is not limited to, insults, offensive language, persistent debates, off topic comments, spam and bullying.
Personal Information	Means Personal information as defined in the *Municipal Freedom of Information and Protection of Privacy Act* (MFIPPA).
Social Listening	Social listening is the process of monitoring social media channels for mentions of your brand, competitors, product and more.

Term	Definition
Social Media	Means any third-party hosted technologies that allow the creation and exchange of user-generated content to share opinions, information and documents, and includes but is not limited to blogs, discussion boards and forums, microblogs, photo-sharing sites, social networks and video sharing services.
Social Media Management Platform	A social media management platform is a secure, scalable tool that allows businesses to manage multiple social media accounts and devices including but not limited to, monitoring, posting, tracking customer service and lead generation.
Town	Means the Corporation of the Town of Ajax.
Town Services	Means any and all services provided by the Corporation of the Town of Ajax, its employees, or representatives of the Town.
Town Staff	Means any officer or employee of the Corporation of the Town of Ajax.

2.1. This policy applies to all official Town social media platforms.

2.2. This policy applies to all Town employees and Council Members (full-time, part-time, seasonal, temporary and students).

2.3. Section 3.3. applies to Members of Council and shall be followed in conjunction with the *Town of Ajax Code of Conduct for Members of Council*.

2.4. Members of Town Advisory Committees, consultants, volunteers are encouraged to follow guidelines established for personal social media accounts.

2.5. Communications through social media and the use of associated technology must comply with all other relevant Town policies, procedures and guidelines.

3. Procedure

3.1. **Governing Guidelines**

3.1.1. The Town's website www.ajax.ca and the In My Opinion (IMO) Hub remain the primary online sources for information. Corporate social media accounts should be primarily used to complement information on the Town's website. Council Members should endeavour to use their social media accounts as a secondary information source once matters have been officially released by the Town's social media channels.

3.1.2. The goals of the Town's social media accounts are to:

- Increase awareness of municipal services, programs, initiatives, events and projects.
- Broaden the reach of corporate messages.
- Increase engagement and collaboration with the public and stakeholders.
- Disseminate time-sensitive or emergency information and/or correct erroneous information. This may occur prior to posting information to the Town's website and subject to the approval of the Supervisor of Communications & Engagement or designate.

3.1.3. The following is a list of the Town's current corporate social media accounts:

- Twitter - @townofajax
- Twitter - @youthofAJAX (sub account)
- Twitter - @AjaxAdvantage (sub account)
- Twitter - @ajax_fire (sub account)
- Facebook - @myajax
- YouTube - @townofajax
- Instagram - @townofajax
- Instagram - @AjaxAdvantage (sub account)
- LinkedIn – The Corporation of the Town of Ajax
- LinkedIn – Ajax Economic Development (sub account)
- TikTok @townofajax (dormant)

3.1.4. Corporate social media accounts will clearly indicate that they are maintained by the Town and contain appropriate contact information and hours of operation.

3.1.5. Each corporate social media account will adopt a unique strategy based off of industry best practices for that particular platform. As new platform features and trends emerge, Communications & Engagement will be responsible for identifying opportunities for implementation and content strategy updates. Our social media channels strive to foster a sense of community and organic conversation between constituents and the Town. Each social platform has one main corporate page maintained by Communications & Engagement that acts as the official voice of the Town. This centralized social media management maximizes efforts, creates a superior customer experience and ensures regular and consistent communications. The use of sub accounts requires approval by Communications & Engagement. Sub accounts may be requested to target communications towards a specific demographic or campaign. Staff that are approved to manage a sub account must undergo training by Communications & Engagement.

3.1.6. Communications & Engagement uses social listening and reporting to identify emerging trends, discover potential leads/opportunities for messaging intervention and to build future social media campaigns.

3.1.7. Communications & Engagement will conduct a review of the Town's social media accounts and new platforms available on an annual basis to ensure the Town is maximizing social media efforts. The addition or deletion of a social media platform or account is subject to the Supervisor of Communications & Engagement, in consultation with the impacted department(s) and will be reported to the Senior Management Team on an annual basis. All login credentials must be tied to a corporately provided email address and not an individual employee's email address, to ensure on-going access in case of employee vacation, sickness or departure from the Town.

3.2. **Management and Administration - Corporate Accounts**

3.2.1. Communications & Engagement is responsible for the day-to-day management and administration of all corporate social media accounts, including:

- Ensuring that procedures and guidelines under the Social Media Policy are met and carried out consistently, and conducting pertinent reviews.
- Generating, updating, responding to and removing content/images.
- Monitoring social media accounts regularly, including evenings and weekends when required.
- Working with authorized social media content providers.
- Overseeing the Social Media Management workflow process and training of content providers.
- Developing social media strategies, messaging and graphics in support of corporate priorities.
- Responding to requests for new social media sites and/or administrative changes to existing sites.
- Maintaining a list of site domain names and social media accounts, including login and password information.
- Ensuring corporate social media sites comply with applicable policies.

3.2.2. Approved staff are responsible for the day-to-day management of approved sub accounts including:

- Ensuring that procedures and guidelines under the Social Media Policy are met and carried out consistently, and conducting pertinent reviews.
- Generating, updating, responding to and removing content/images.
- Monitoring social media accounts regularly, including evenings and weekends, when required.

- Coordinating messaging and graphics in support of corporate priorities.
- Retaining login and password information.
- Ensuring corporate social media sites comply with applicable policies.

3.2.3. **Online Trolls and Disrespectful Behaviour – Corporate Accounts**

3.2.3.1. Refer to section 2.1 for definition of online troll.

3.2.3.2. There will be zero tolerance for bullying, threatening, abusive or discriminatory language towards the Town, staff members, Members of Council or to other members of the public.

3.2.3.3. Comments, replies, or direct messages that are inflammatory in nature, discriminatory, disrespectful or use inappropriate language will not be responded to and may be deleted and/or hidden without notice. Repeat offenders may be subject to further disciplinary action such as restricting ability to comment on Town social media platforms (subject to tools provided by different social media platforms), a formal warning letter from the Town's Chief Administrative Officer (CAO), and up to being removed/blocked from all Town social media platforms.

3.2.3.4. To reduce duplicate and redundant staff work, repeat questions, comments and/or concerns from the same constituent will only be answered once. This includes if the same question, comment or concern was submitted through other channels, including other social media platforms, email, phone calls or in person.

3.2.3.5. Turning off commenting on public posts (or equivalent, subject to tools provided by different social media platforms) posted by Town social media accounts is subject to the discretion of the Supervisor of Communications & Engagement.

3.3. **Management and Administration - Council Member Accounts**

3.3.1. Regional and local councillors are responsible for the setup and day-to-day management and monitoring of constituent-facing social media accounts. Please refer to policy *Council Communications Tools & Support* for additional details.

3.3.2. Communications & Engagement staff members in collaboration with Public and Strategic Affairs staff are responsible for the day-to-day management and administration of the Mayor's constituent-facing social media accounts, subject to the permission and discretion of the Mayor.

3.3.3. It is recommended for Council Members to have separate personal and constituent-facing social media accounts/pages/profiles. Additionally, it is recommended to *not* use a personal account to post about Town matters, to distribute Town information or to comment on Town issues. If a personal account is used to convey public information, all members of the public should be capable of viewing that content. Please refer to section 3.5 of this policy for posting guidelines on personal accounts.

3.3.4. Council Member constituent-facing accounts must be visible/available to the public and this account should be used when commenting on Town matters/issues.

3.3.5. Council Members are permitted to represent areas of responsibility and comment/quote on social media messages released through the Town, however, the Town will not be held liable for any repercussions that the content may generate, and communications must adhere to the *Town of Ajax Code of Conduct for Members of Council.*

3.3.6. Council Members may tag the Town corporate accounts when "live" posting from third-party events and conferences where they are representing the Town for resharing purposes. Reshares from the corporate accounts is not guaranteed, and in cases where many members of Council are sharing from the same event, Council Member posts may be repurposed for a singular post from the corporate accounts.

3.3.7. All communications on social media conducted by Council Members must adhere to the *Town of Ajax Code of Conduct for Members of Council*.

3.3.8. **Online Trolls and Disrespectful Behaviour – Council Member Accounts**

3.3.8.1. Refer to 2.1 for definition of online troll.

3.3.8.2. Bullying, threatening, abusive or discriminatory language to Ajax Council members, Town of Ajax staff members or to other members of the public on Council members' constituent-facing social media pages is not permitted and comments, replies, or direct messages that are inflammatory in nature, discriminatory, disrespectful or use inappropriate language will not be responded to and may be deleted and/or hidden without notice.

3.3.8.3. **Moderating:** Council Members are entitled to moderate access to their constituent social media pages in response to abusive behaviour. However, members are strongly encouraged to explore the use of less restrictive moderation tools (such as muting, hiding, etc.) to curtail such behaviour while preserving the public's access to the information shared on constituent accounts.

3.3.8.4. **Blocking:** Council Members may be justified in blocking users where necessary to protect the member or other users from harassment or abuse, or to preserve the utility of the Council Member's social media page by preventing it from being overrun by spam or from disseminating abusive, hateful and inciteful communication. Members of Council are strongly advised to exercise restraint, and to seek Integrity Commissioner (IC) guidance on a case-by-case basis as may be necessary, prior to blocking users. Should a member of Council offer a public explanation for their decision to block a certain user, they must take care to communicate that information in a way that is not discourteous or disparaging to the user in question.

3.3.8.5. The decision to curtail a user's engagement with a Council Member's constituent-facing social media page must be motivated by a desire to protect the interests of residents and the Town, in addition to concern for the member's own well-being.

3.3.8.6. It is recommended that Council Members include on profiles/pages/accounts/etc. they administer a statement which broadly identifies the kinds of posts that may be moderated, up to and including removal, without notice, as well as how often the profile/page/account/etc. will be reviewed for inappropriate content. An example of a statement is included below:

This site (account/page/etc.) will be reviewed a minimum of twice per week. Bullying, threatening, abusive or discriminatory language on this site is not permitted and posts, comments, replies, or direct messages that are inflammatory in nature, discriminatory, disrespectful or use inappropriate language, or which constitute off-topic messages, commercial solicitations, or spam, will not be responded to and may be deleted an/or hidden without notice.

3.3.8.7. Section 3.3. of this policy shall not be amended without approval from Council.

3.4. Posting Guidelines – Corporate Accounts

3.4.1. Only Communications & Engagement staff and a select number of approved staff for emergency situations are authorized to post directly to the Town's corporate social media accounts.

3.4.2. Each department may appoint social media content providers to coordinate posts on behalf of the department. Approval must be granted by the appropriate Director. Communications & Engagement will coordinate social media activities for those departments with no content providers.

3.4.3. Social media guidelines and training may be provided to all authorized content providers upon request.

3.4.4. Content providers are to provide content to the Communications Coordinator for scheduling on the Corporate social media accounts by no later than Thursday, for the following week. Same day messages will be handled on a case-by-case basis by the Communications Coordinator.

3.4.5. The Town's social media management platform, Sprout, has been customized to allow authorized sub account holders to directly schedule messages on a weekly basis to Twitter, Facebook and Instagram. Messages should not be scheduled for multiple weeks for quality assurance purposes. Posts to corporate social media accounts must be conducted by Communications & Engagement.

3.4.6. Live event social media support is available *only* upon request and should be coordinated directly with the Supervisor of Communications & Engagement. Live event support outside of regular work hours are subject to approval by the Supervisor of Communications & Engagement. Live event requests should be inputted directly following confirmation of event dates and must be made a minimum of two weeks in advance.

3.4.7. Town social media, social media management or social media listening/reporting platforms, and Council Member constituent-facing accounts should be accessed through Town approved technology.

3.4.8. It will be the content provider's responsibility to ensure information is accurate and guidelines are followed:

- Content should be professional and intended to inform and engage.
- Content providers will respect confidentiality and sensitivity of information, including financial and business information, privileged information, legal advice, personal information or any information not generally available to the public.
- All hashtags, emojis, tags and graphics are appropriate for distribution.
- All links have been tested and external links have been vetted to ensure subject matter is appropriate.

3.4.9. Only Communications & Engagement staff and authorized sub account holders are permitted to tag Council Members and/or Town staff (subject matter experts) in posts (content or images). Tag features are used to enhance reach.

3.4.10. Login and password information for the Town's social media, social media management and social media listening/reporting platforms are confidential and

shall not be shared with non-authorized staff, consultants, or third-party vendors unless approved by Communications & Engagement.

3.5. **Posting Guidelines – Personal Accounts**

3.5.1. Employees and Council Members are not permitted to release, comment or share Town information via personal social media accounts prior to official release by the Town. The only exception is the Fire Chief/Ajax Fire and Emergency Services Twitter account, whom have the authority to report on active emergencies and Town-wide emergency response.

3.5.2. Employees are permitted to use their personal social media accounts and designated sharing tools to redistribute official social media messages released through Town accounts. However, it is strongly encouraged that Council Members do not use personal accounts to redistribute social media messages released through Town accounts (or through Council Members' constituent accounts), please refer to section 3.3.3. of this policy.

3.5.3. Directors and/or approved staff are permitted to represent areas of responsibility and comment/quote on social media messages released through the Town via personal accounts, however, the Town will not be held liable for any repercussions the content may generate.

3.5.4. Directors and/or approved staff are permitted to use personal social media accounts to "live" post from third-party events and conferences where they are representing the Town. All posts must tag the Town. For example, the @townofajax tag should be included on all tweets so the Town may retweet to followers. Communications & Engagement reserves the right to ask that a post be removed.

3.5.5. Generally, employees are strongly encouraged to use social media for personal matters only and refrain from identifying themselves as a Town employee by posting that you work for the Town or visual cues, including logos, employee clothing, photographs, graphics or other media on social media accounts. Please refer to the *Town's Employee Code of Conduct Policy (014*) for more information. Employees who directly identify themselves with the Town must clearly note they are representing their personal views and not the views of the Town. The following disclaimer should be used in bios/descriptions: Comments are my own and do not represent the view my employer.

3.5.6. Employees and Council Members who participate in conversations on Town social media accounts, where doing so is not part of their Town-related duties, are personally responsible for their comments, usernames and information posted. In the event of a legal action or other proceeding arising out of acts or omissions done or made by an Employee or Council Member while using social media, Employees and Council Members may be protected by the Town's *Indemnification By-law*,

provided they are acting in their capacity as a Council Member or Employee. Because the use of personal social media accounts for Town business can blur the lines between personal and professional capacities, Council Members in particular, should be aware that available protections under the Town's *Indemnification By-law* may be compromised by the use of personal social media accounts for Town business.

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Devon Jarvis
Report #:	CAO-2023-007
Subject:	Social Media Policy Update
Ward(s):	All
Date of Meeting:	May 8, 2023
Reference:	General Government Committee Meeting December 20, 2019

Recommendation:

That the proposed update to Social Media Policy 055 (ATT-1) of the addition of section 3.3. *Management and Administration – Council Member Accounts* be approved.

Background:

The Town of Ajax is committed to providing excellent customer service to all members of the public and to address service requests and complaints equitably, comprehensively and in a timely manner, while promoting a respectful, tolerant and harassment-free workplace for the public, officers and employees of the Corporation and Members of Council. Staff, Members of Council and the public have a right to an environment that is free from unacceptable behaviour, including online interactions.

Presently the Town does not have a Council-approved policy to govern expectations of public behaviour online on social media and how Council Members are to respond in these situations. Following a discussion at the December 20, 2019 General Government Committee (GCC) Meeting, on the approval of the Town's Public Conduct Policy, Council asked staff to report back with options on how to address behaviour specifically on social media. The purpose of this report is to recommend an update to the current Town Social Media Policy to include what type of behaviour is unacceptable on social media and how Council Members are to manage unacceptable behaviour.

Discussion:

To create an environment free from harassment and unacceptable behaviour, there may be justifiable reasons to restrict an individual's interactions on social media with specific Members of Council. However, in doing so Council must consider that, as a public service funded by municipal taxpayers, any restrictions placed on a member of the public should be limited, specific, and responsive to the unacceptable behaviour that occurred. It is important to strike a balance between the public and Council's right to harassment-free online public spaces and work environments, and an individual's right to access municipal services and information.

Members of Council may have multiple social media accounts to separate their communications in the capacity of an elected official from their own personal social media activities when not conducting Council work. The proposed addition of a new section, 3.3 Management and Administration - Council Member Accounts, establishes general guidelines for the management of Council Member constituent-facing social media accounts and expectations regarding public access to Members' accounts. This section also outlines expected public behaviour and a response framework to be followed when unacceptable behaviour occurs, including the ability to moderate access to constituent-facing social media accounts for specific users, and in severe cases the ability to block specific users. Advice, and a review of the wording, was provided from the Town's Integrity Commissioner (IC) regarding the step to block a user for the purposes of this policy.

The following new section is proposed to be added to Social Media Policy 055:

3.3. **Management and Administration - Council Member Accounts**

3.3.1. Regional and local councillors are responsible for the setup and day-to-day management and monitoring of constituent-facing social media accounts. Please refer to policy *Council Communications Tools & Support* for additional details.

3.3.2. Communications & Engagement staff members in collaboration with Public and Strategic Affairs staff are responsible for the day-to-day management and administration of the Mayor's constituent-facing social media accounts, subject to the permission and discretion of the Mayor.

3.3.3. It is recommended for Council Members to have separate personal and constituent-facing social media accounts/pages/profiles. Additionally, it is recommended to *not* use a personal account to post about Town matters, to distribute Town information or to comment on Town issues. If a personal account is used to convey public information, all members of the public should be capable of viewing that content. Please refer to section 3.5 of this policy for posting guidelines on personal accounts.

3.3.4. Council Member constituent-facing accounts must be visible/available to the public and this account should be used when commenting on Town matters/issues.

3.3.5. Council Members are permitted to represent areas of responsibility and comment/quote on social media messages released through the Town, however, the Town will not be held liable for any repercussions that the content may generate, and communications must adhere to the *Town of Ajax Code of Conduct for Members of Council.*

3.3.6. Council Members may tag the Town corporate accounts when "live" posting from third-party events and conferences where they are representing the Town for resharing purposes. Reshares from the corporate accounts is not guaranteed, and in cases where many members of Council are sharing from the same event, Council Member posts may be repurposed for a singular post from the corporate accounts.

3.3.7. All communications on social media conducted by Council Members must adhere to the *Town of Ajax Code of Conduct for Members of Council*.

3.3.8. **Online Trolls and Disrespectful Behaviour – Council Member Accounts**

3.3.8.1. Refer to 2.1 for definition of online troll.

3.3.8.2. Bullying, threatening, abusive or discriminatory language to Ajax Council members, Town of Ajax staff members or to other members of the public on Council members' constituent-facing social media pages is not permitted and comments, replies, or direct messages that are inflammatory in nature, discriminatory, disrespectful or use inappropriate language will not be responded to and may be deleted and/or hidden without notice.

3.3.8.3. **Moderating:** Council Members are entitled to moderate access to their constituent social media pages in response to abusive behaviour. However, members are strongly encouraged to explore the use of less restrictive moderation tools (such as muting, hiding, etc.) to curtail such behaviour while preserving the public's access to the information shared on constituent accounts.

3.3.8.4. **Blocking:** Council Members may be justified in blocking users where necessary to protect the member or other users from harassment or abuse, or to preserve the utility of the Council Member's social media page by preventing it from being overrun by spam or from disseminating abusive, hateful and inciteful communication. Members of Council are strongly advised to exercise restraint, and to seek Integrity Commissioner (IC) guidance on a case-by-case basis as may be necessary, prior to blocking users. Should a member of Council offer a public explanation for their decision to block a certain user, they must take care to communicate that information in a way that is not discourteous or disparaging to the user in question.

3.3.8.5. The decision to curtail a user's engagement with a Council Member's constituent-facing social media page must be motivated by a desire to protect the interests of residents and the Town, in addition to concern for the member's own well-being.

3.3.8.6. Section 3.3. of this policy shall not be amended without approval from Council.

Financial Implications:

There are no financial implications arising from the recommendations contained in this report.

Communication Issues:

If approved, the policy will be communicated to Members of Council and will be included in future training for new Members in future Council terms.

Relationship to the Strategic Plan:

This report aligns with the Pillar *Connecting Our Community*, priority four: Foster a safe and welcoming community.

Conclusion:

Implementing this update will help ensure that all Town online spaces remain safe, respectful, and harassment-free environments for all users to enjoy.

Attachments:

ATT-1: Social Media Policy 055

ATT-2: Town of Ajax Code of Conduct for Members of Council

ATT-3: Council Communications Tools & Supports Policy

Prepared by:

Devon Jarvis – Supervisor of Communications & Engagement

Submitted by:

Christie McLardie – Manager of Public & Strategic Affairs

Approved by:

Shane Baker – Chief Administrative Officer

Principles
Integrity

September 4, 2023

Nicole Cooper
Director, Legislative and Information Services/Clerk
Town of Ajax
65 Harwood Ave. S.,
Ajax, ON L1S 2H9

Re: Social Media Policy Amendments

Thank you for the opportunity to comment on the proposed amendments to the Town's Social Media Policy recommended in Report CAO-2023-17, which was before General Government Committee at its meeting of May 8, 2023. We are, in particular, responding to the Committee's referral:

> That amendments to the social media policy be referred to the Integrity Commissioner for their review and input respecting the application of Council's Code of Conduct and that staff report back to Council in September 2023.

We have had the opportunity to review the Report, the proposed policy changes, and the recording of the Committee's May 8th deliberations. Our comments follow.

Benefits of Adopting a Social Media Policy for Elected Officials:

It will be helpful to put the Policy into its proper context.

As the Code of Conduct itself does, the Policy provides helpful guidance to Members. It is not meant as a trap to increase exposure to complaint. On the contrary, the Policy, through its guidance, will minimize exposure for Members.

The Code of Conduct in providing its guidance speaks to the specific and general obligations that Members are expected to adhere to, including with respect to social media use (the most relevant provisions are set out below). These obligations are to be interpreted with the aid of a set of principles also embedded in the Code.

The Integrity Commissioner is available to provide protective advice regarding a Member's social media use[1], and in the event of a complaint, the Integrity Commissioner serves as an independent party to consider the validity of the complaint. Where an investigation is warranted, the complaint is investigated and findings and recommendations are potentially made to Council.

This is unchanged by the adoption of the Policy.

[1] Written advice is typically provided within two days of a request, and takes roughly 1 to 2 hours to prepare. The cost of seeking advice mentioned during the May 8th debate does not reflect current circumstances.

Because it is beneficial to provide guidance to assist members in their use of social media, we propose at the conclusion of this submission a suggestion for one additional provision.

In listening to the debate on expanding the Social Media Policy to elected officials several concerns were addressed. We respond to those themes below.

1. Exposure to Frivolous Complaints

As noted by some Members of the Committee, a concern exists that by having a policy in place that speaks to Social Media use, there will be a greater exposure to frivolous complaints about Members.

The assessment of frivolousness (or vexatiousness, or whether any complaint is in the public interest to pursue) is managed under existing processes. Complaints within these categories are disposed of with minimal cost to the municipality. Any complaint resulting in a formal investigation must have a meaningful impact on the public interest, and so the underlying circumstances must show circumstances that indicate a) that the Member was acting in their capacity as a Member of Ajax Council (as noted in the debate, as an elected official when appearing or acting in a public forum the threshold for that conclusion is easily met), b) the behaviour itself must on its face offend a standard reflected in the Code, and c) the impact of the offending behaviour must be meaningful.

In adopting the Policy Members will not become more exposed to frivolous complaints. On the contrary, the Policy will help minimize circumstances which could result in complaints of all types.

2. Exposure to Substantive Complaints

As noted, the Code of Conduct provides General and Specific Obligations for Members to follow, interpreted within a set of Principles:

> 2.1 The following principles will guide Members and assist with the interpretation of this Code of Conduct:
>
> > 2.1.1 Members shall serve and be seen to serve the public in a conscientious and diligent manner;
> >
> > 2.1.2 Members shall observe and act with the highest standard of ethical conduct and integrity;
> >
> > 2.1.3 Members shall avoid the improper use of the influence of their office as well as conflicts of interest;
> >
> > 2.1.4 Members shall perform their functions with honesty, integrity, accountability and transparency;

2.1.5 Members shall perform their duties and conduct their private affairs in a manner that promotes public confidence and will stand up to public scrutiny;

2.1.6 Members shall be aware that they are at all times representatives of the Town and of Council, recognize the importance of their duties and responsibilities, take into account the public character of their function, and maintain and promote the public trust in the Town; and

2.1.7 Members shall uphold the spirit and the letter of the laws of Ontario and Canada and the laws and policies adopted by Council.

2.2 The above statements are key principles that are intended to facilitate an understanding, application and interpretation of the Code of Conduct – the principles are not operative provisions of the Code of Conduct and are not intended to be enforced independently as such.

Relevant General and Specific Code of Conduct provisions include:

4.1 In exercising their powers and discharging their duties as a Member, each Member shall:

4.1.2 make every effort to advance the public interest honestly and in good faith, with a view to the best interests of the Town;

4.1.4 conduct themselves with integrity, courtesy and respectability at all meetings of the Council or any Committee of Council;

4.1.5 seek to serve their constituents in a conscientious and diligent manner;

4.1.10 observe and adhere to the by-laws, policies, procedures and rules enacted and/or established from time to time by Council; and

4.1.11 accurately communicate the decisions of Council and respect Council's decision- making process, even if they disagree with Council's ultimate determinations and rulings.

5.4 Members shall not:

5.4.1 publicly criticize a member of Staff or another Member of Council - should a Member have any issue with respect to any member of Staff, such issue shall be referred to the CAO who will direct the matter to the appropriate superior;

5.4.2 falsely or maliciously injure the reputation of any member of Staff or Council, whether professional, ethical, or otherwise;

6.2 Members shall not abuse, bully or intimidate any member of the public, other Members, Local Board members, or Staff. This applies to all in-person activities and to all electronic communications, including the use of Social Media.

8.0 Communications, Media Relations, & Social Media

8.1 Members shall fairly and accurately communicate the decisions of Council, even if they disagree with its decision(s). Members may publicly express disagreement with a decision of Council but shall do so in a respectful manner that does not belittle, ridicule or disrespect the decision of any Members who voted in favour of the decision.

8.2 When addressing the media, Members shall adhere to the provisions of the Town's Media Relations Protocol (COR-WI-351).

8.3 Members shall acknowledge and respect that decisions and resolutions of Council are ordinarily communicated to the community by Council as a whole with the assistance of the Town's administration, or by the Mayor by virtue of being the head of Council, unless one or more Members have been expressly authorized by Council or by the Mayor to communicate such decisions and/or resolutions on behalf of Council.

8.4 When communicating with the media, other levels of government or their representatives, public sector agencies, private individuals or businesses, or on Social Media, Members shall not indicate, implicitly or explicitly, that they speak on behalf of Council unless they have been expressly authorized to do so by Council, or authorized by the Mayor when serving as the Mayor's representative. Where it could reasonably be construed by others that a Member is speaking on behalf of Council and such authorization has not been granted, Members shall indicate that the opinions, views, or positions expressed or advocated for are the Member's alone, and not those of Council.

8.5 When communicating on Social Media, Members shall act with respect, dignity, courtesy and empathy towards others, and adhere to the same requirements described in this Code as they would for any other form of communication.

8.6 When communicating on Social Media, Members shall not publicly post or share content that is known or ought reasonably to be known to:

8.6.1 be false or with the intent to mislead or disparage other Members, Staff, Local Board Members, or the public;

8.6.2 be discriminatory to any individual based on the individual's race, colour, ancestry, citizenship, ethnic origin, place of origin, creed or religion, gender, gender identity, gender expression, sexual orientation, marital status, family status, disability, age, socioeconomic status or record of offences;

8.6.3 disclose Confidential Information;

8.6.4 compromise the safety or security of members of the public, Local Board members, other Members, or Staff;

8.6.5 endorse or solicit business for a commercial enterprise;

8.6.6 promote illegal activities;

8.6.7 be of a disparaging nature or make unfounded or speculative accusations about the motives of other Members, Local Board members, Staff, or a member of the public;

8.6.8 abuse, bully, or intimidate other Members, Local Board members, Staff, or a member of the public; and

8.6.9 belong to a third-party without first seeking the third-party's permission, unless such content is already publicly available or has no reasonable presumption of confidentiality.

8.7 Nothing in this Code prevents a Member from operating personal Social Media accounts that do not serve the purpose of representing the Member to the public in their official capacity as a Member. However, Member behavior must still conform to the Council Code of Conduct even while using unofficial or personal Social Media Accounts.

Members are indeed expected to adhere to high standards of behaviour. The above Code obligations exist regardless of the adoption of the Policy. What the Policy seeks to do is provide guidance to best enable Members to comply with their existing obligations.

Here is one example of that mechanism. In providing guidance respecting when it is justified to block a user, the Policy tempers the existing obligation to "seek to serve their constituents in a conscientious and diligent manner" [the obligation in section 4.1.5], which would be interpreted under Principle 2.1.4 - "Members shall perform their functions with honesty, integrity, accountability and transparency". Following the Policy would be fully protective against an allegation of breach of section 4.1.5 of the Code, even within the established principle of being required to 'perform functions with… transparency'.

By following Policy guidance, the primary concern that a Member might be arbitrarily blocking a constituent is removed.

3. Personal vs Official Social Media Use

The Policy provides excellent guidance for Members to have separate personal and constituent-facing social media accounts/pages/profiles, and to be diligent not to use personal accounts to conduct Town business. The separation is not mandatory, but to the extent it can be accomplished, the less problematic social media use will be for a Member.

Whether or not any particular social media activity is personal or official will be a question of fact should it become a source of complaint. Following the guidance will help ensure that such questions are resolved appropriately.

The policy does not convert personal social media pages (etc.) to official ones that become subject to Integrity Commissioner oversight. In advising against mixed use social media sites, the

Policy intends to reduce the potential for perception that a Member's behaviour on social media is official when it was intended not to be. In other words the potential for concerning behaviour to be the subject of a complaint is greater on a social media site to which the public has open access, versus an administered site where only close friends and family have access, or another public site that is entirely focused on the Member's business or professional endeavours.

4. Blocking or Otherwise Denying Access to an Open Social Media Site

Where the Policy guidance will be most useful is with respect to identifying when denying access to a constituent-facing account can be justified. The proposed Policy text (Online Trolls and Disrespectful Behaviour – Council Member Accounts) will support Members in moderating their sites so as to deny access to those who engage in behaviours that regrettably are so frequently seen in social media. Exercising restraint in doing so, as the Policy advises, will serve to minimize exposure to complaint.

5. Monitoring One's Own Site

Social media use which complies with the Code of Conduct and follows Policy guidance will not expose a Member to complaints. We suggest one additional provision to the policy, which would encourage Members to add a statement to their 'masthead' or profile, or pinned in the account, which speaks to their monitoring of a site, and their ability to remove offending posts.

Monitoring the site will assist in detecting offending posts which if left to remain could attract complaints and a possible investigation. As administrators of social media sites, Members who permit offensive posts to remain can become responsible for such posts as if they were a publisher.

To minimize this concern, it is recommended that Members include on the sites they administer a statement which broadly identifies the kinds of posts which will be removed without notice, such as those identified in section 3.3.8.2 of the proposed Policy. For ease of administration, a Member may wish to add 'spam', 'commercial' or even 'off topic' posts to the list. The statement should also indicate the frequency with which the Member obligates themselves to review the site for offending posts. As an example:

> This site (account/page/etc.) will be reviewed a minimum of twice per week. Bullying, threatening, abusive or discriminatory language on this site is not permitted and posts, comments, replies, or direct messages that are inflammatory in nature, discriminatory, disrespectful or use inappropriate language, or which constitute off-topic messages, commercial solicitations, or spam, will not be responded to and may be deleted and/or hidden without notice.

Members are encouraged to seek the guidance of the Supervisor of Communications and Engagement in respect of their own circumstances and examples.

We would be pleased to address any additional questions you or the Committee may have.

All of which is respectfully submitted.

Sincerely,



For Principles *Integrity*
Integrity Commissioner for
the Town of Ajax

Town of Ajax

Code of Conduct
For Members of Council

Last Revised: November 8, 2022

Town of Ajax
Code of Conduct for Members of Council

Table of Contents

1.0 Application and Purpose 3
2.0 Principles 4
3.0 Definitions 5
4.0 General Obligations 8
5.0 Respectful Conduct toward Officers and Employees of the Municipality 9
6.0 Discrimination and Harassment 11
7.0 Business Relations & Improper Use of Influence 12
8.0 Communications, Media Relations, & Social Media 13
9.0 Use of Municipal Property 15
10.0 Gifts, Benefits & Hospitality 16
11.0 Confidential Information 18
12.0 Reprisals and Obstruction 20
13.0 Penalties & Remedial Actions for Non-Compliance with the Code of Conduct 21
14.0 Integrity Commissioner, Complaints & Inquiries Protocol, Legal Fees 22

1.0 Application and Purpose

1.1 The purpose of this Code of Conduct is to establish a general standard to ensure that all Members share a common basis for acceptable conduct, and to which all Members are expected to adhere to and comply with. Abiding by this standard helps to promote good governance and maintain public confidence in the administration of the Town by its Members as duly elected public officials, and to ensure that they operate from a foundation of integrity, transparency, justice, truth, honesty and courtesy.

1.2 This Code of Conduct augments other laws which Members are governed by, including but not limited to:

- *Municipal Act, 2001*
- *Municipal Conflict of Interest Act*
- *Municipal Elections Act, 1996*
- *Municipal Freedom of Information and Protection of Privacy Act*
- *Human Rights Code*
- *Occupational Health and Safety Act*
- *Provincial Offences Act*
- *Criminal Code*

1.3 This Code of Conduct applies to all Members of the Council of the Town of Ajax, including the Mayor.

2.0 Principles

2.1 The following principles will guide Members and assist with the interpretation of this Code of Conduct:

2.1.1 Members shall serve and be seen to serve the public in a conscientious and diligent manner;

2.1.2 Members shall observe and act with the highest standard of ethical conduct and integrity;

2.1.3 Members shall avoid the improper use of the influence of their office as well as conflicts of interest;

2.1.4 Members shall perform their functions with honesty, integrity, accountability and transparency;

2.1.5 Members shall perform their duties and conduct their private affairs in a manner that promotes public confidence and will stand up to public scrutiny;

2.1.6 Members shall be aware that they are at all times representatives of the Town and of Council, recognize the importance of their duties and responsibilities, take into account the public character of their function, and maintain and promote the public trust in the Town; and

2.1.7 Members shall uphold the spirit and the letter of the laws of Ontario and Canada and the laws and policies adopted by Council.

2.2 The above statements are key principles that are intended to facilitate an understanding, application and interpretation of the Code of Conduct – the principles are *not* operative provisions of the Code of Conduct and are not intended to be enforced independently as such.

3.0 Definitions

3.1 The following terms shall have the following meanings in this Code of Conduct:

Term	Definition
CAO	means the Chief Administrative Officer of the Town.
Child	means a child born within or outside marriage and includes an adopted child and a person to whom a parent has demonstrated a settled intention to treat as a child of their family.
Clerk	means the Clerk of the Town.
Confidential Information	means information or records in the possession, custody or under the control of the Town that: (a) the Town is precluded from disclosing under the *Municipal Act, 2001,* or other applicable legislation, its Procedure By-law or any of its other by-laws, policies, rules or procedures; (b) the Town is prohibited from disclosing or has lawfully refused to disclose under the *Municipal Freedom of Information and Protection of Privacy Act*; and (c) has been debated or discussed at a meeting of Council closed to the public and has not been subsequently discussed in open Council, nor authorized to be released by Council or by staff under any delegated authority.
Committee of Council	means any committee of Council or similar entity, and typically refers to the General Government Committee or Community Affairs and Planning Committee.
Conflict of Interest	means a situation in which a Member has competing interests between the Member's personal or private pecuniary interests and their public interests as an elected representative, such that it might influence their decision in a particular matter.
Council	means the elected Council of the Town.
Deputy Mayor	means the Member of Council who presently holds the position of Deputy Mayor of the Town in accordance with Council's Procedure By-law.
Family Member	means a: (a) Spouse, as defined herein; (b) Child, as defined herein; (c) Parent, as defined herein; (d) sibling, grandchild, grandparent, aunt, uncle, niece or nephew of a Member;

Term	Definition
	(e) parent-in-law or sibling-in-law of a Member; (f) step-parent, step-sibling, or step-child of a Member; (g) any person who lives with the Member on a permanent basis.
Frivolous	means of little or no weight, worth, importance or any need of serious notice.
Gift	means any kind of benefit, contribution or hospitality that has any financial or monetary value and includes the forms of benefits and hospitality that are set out in Section 10.0.
Integrity Commissioner	means the person appointed by Council pursuant to section 223.3 of the *Municipal Act, 2001* to independently carry out the functions set out therein and such other functions as may be assigned by Council from time to time.
Local Board	means a local board as defined in subsection 1(1) and section 223.1 of the *Municipal Act, 2001.*
Mayor	means the head of Council for the Town.
Media	includes any radio, television, newspaper, magazine, website, blog, social media, or any other vehicles for the public dissemination of information, whether digital, electronic or print.
Meeting	means a regular, special or other meeting of Council or a committee of Council where a quorum of Members is present, and the Members discuss or otherwise deal with any matter in a way that materially advances the business or decision-making of Council.
Member	means an individual presently elected to the Council of the Town.
Non-Pecuniary Interest	means a private or personal interest that a Member may have that is non-financial in nature but that arises from a relationship with a person or entity that would be considered by a reasonable person, apprised of all the circumstances, as being likely to influence the Member's decision in any matter in which the non-pecuniary interest arises.
Parent	means a person who has demonstrated a settled intention to treat a child as a Member of their family whether or not that person is the natural parent of the child.
Pecuniary	means relating to or consisting of money or having financial or economic value.
Pecuniary Interest	means a direct or indirect interest of an economic, financial or monetary nature, including the interest of the parent or spouse or any child of the Member, if known to the Member.
Social Media	means any third-party hosted technologies that allow the creation and exchange of user-generated content to share opinions, information and

Term	Definition
	documents, and includes but is not limited to blogs, discussion boards and forums, microblogs, photo-sharing sites, social networks and video sharing services.
Spouse	means a person to whom a person is married or with whom the person is living in a conjugal relationship outside marriage.
Staff	means the CAO and all officers, directors, managers, supervisors and all staff of the Town, whether full-time, part-time, contract, seasonal or volunteer, as well as agents, consultants and volunteers acting in furtherance of the Town's business and interest.
Town	means The Corporation of the Town of Ajax.
Vexatious	means troublesome or annoying in the case of being instituted without sufficient grounds, and serving only to cause irritation and aggravation to the person being complained of.

4.0 General Obligations

4.1 In exercising their powers and discharging their duties as a Member, each Member shall:

4.1.1 adhere to the specific declarations as well as the spirit of the promises they made to abide by various duties when they swore their declaration of office under section 232 of the *Municipal Act, 2001*;

4.1.2 make every effort to advance the public interest honestly and in good faith, with a view to the best interests of the Town;

4.1.3 exercise the degree of care, diligence and skill that a reasonably prudent person would exercise in comparable circumstances;

4.1.4 conduct themselves with integrity, courtesy and respectability at all meetings of the Council or any Committee of Council;

4.1.5 seek to serve their constituents in a conscientious and diligent manner;

4.1.6 respect the individual rights, values, beliefs and personality traits of any other person, recognizing that all persons are entitled to be treated equally with dignity and respect for their personal status regarding gender, sexual orientation, gender identity, gender expression, race, creed, religion, ability and spirituality;

4.1.7 refrain from making any statement known to be false or with the intent to mislead or disparage other Members, Staff, Local Board members, or the public;

4.1.8 refrain from making any disparaging comment or unfounded or speculative accusation about the motives of other Council Members, Staff, Local Board members, or the public;

4.1.9 recognize that they are representatives of the Town and that they owe a duty of loyalty to the residents of the Town at all times;

4.1.10 observe and adhere to the by-laws, policies, procedures and rules enacted and/or established from time to time by Council; and

4.1.11 accurately communicate the decisions of Council and respect Council's decision-making process, even if they disagree with Council's ultimate determinations and rulings.

5.0 Respectful Conduct toward Officers and Employees of the Municipality

5.1 It is the role of Council as a whole to:

5.1.1 govern and provide political direction;

5.1.2 determine the needs and outcomes to be achieved for the community, and establish the vision and goals to achieve them;

5.1.3 approve budgets, policies and other governance mechanisms of the Town through its by-laws, resolutions, and other decisions; and

5.1.4 establish new corporate policy and continually evaluate existing policy.

5.2 It is the role of Staff to:

5.2.1 be responsible for the administrative and managerial operations of the organization in the performance and delivery of its day-to-day business;

5.2.2 implement Council's decisions and policies, including the provision of services and enforcement of regulatory laws and systems;

5.2.3 provide research, information, analysis and professional advice, and make objective policy recommendations to Council in accordance with their professional ethics, expertise and obligations;

5.2.4 serve the Town as a whole, and the combined interests of all Members as evidenced through the decisions of the Town; and

5.2.5 carry out their duties based on political neutrality and without undue influence from any individual Member.

5.3 Members shall acknowledge, respect, and have regard for the administration, managerial and organizational structure of the Town when requesting information or advice from Staff, and shall respect the role of Staff in the administration of the affairs of the Town as described herein.

5.4 Members shall not:

5.4.1 publicly criticize a member of Staff or another Member of Council - should a Member have any issue with respect to any member of Staff, such issue shall be referred to the CAO who will direct the matter to the appropriate superior;

5.4.2 falsely or maliciously injure the reputation of any member of Staff or Council, whether professional, ethical, or otherwise;

5.4.3 invite or pressure any member of Staff to engage in partisan political activities or be subjected to discrimination or reprisal for refusing to engage in such activities;

5.4.4 make requests, statements or take actions which may be construed as an attempt to influence the independent administration of the Town's business;

5.4.5 make requests of Staff that are outside of the employee's realm of responsibility, approved work plan, or available resources, or attempt to individually oversee or supervise the work of Staff; and

5.4.6 attempt to intimidate, threaten, or influence any staff member from carrying out that person's duties, including any duty to disclose improper activity.

6.0 Discrimination and Harassment

6.1 Members shall acknowledge that the Town is committed to providing and maintaining a working environment that is based on respect for the dignity and rights of everyone acting in conjunction with the Town and meeting its obligations under the Human Rights Code and the Occupational Health and Safety Act. It is the Town's goal to provide a healthy, safe, and respectful work environment that is free from any form of harassment or discrimination.

6.2 Members shall not abuse, bully or intimidate any member of the public, other Members, Local Board members, or Staff. This applies to all in-person activities and to all electronic communications, including the use of Social Media.

6.3 Members shall not use indecent, abusive, demeaning or insulting words, phrases or expressions toward any member of the public, another Member, Local Board members, or Staff.

6.4 Members shall not make comments or conduct themselves in any manner that is or ought reasonably to be known to be discriminatory to any individual based on the individual's race, colour, ancestry, citizenship, ethnic origin, place of origin, creed or religion, gender, gender identity, gender expression, sexual orientation, marital status, family status, disability, age, socioeconomic status or record of offences.

6.5 Members shall comply with the Town's 'Respectful Workplace; Discrimination and Harassment Policy and Prevention Program' (Policy 074).

7.0 Business Relations & Improper Use of Influence

7.1 Members shall not use the influence of their office or appointment for any purpose other than the exercise of their official duties in the public interest.

7.2 Members shall not use the status of their position to influence the decision of another person which may affect the current or future pecuniary or non-pecuniary interests of themselves or of any other person, including without limitation a parent, spouse, child, or grandchild, or for the purpose of creating a disadvantage to another person.

7.3 Members shall not act as a paid agent before Council, its committees, or any agency, board or commission of the Town, except in compliance with the terms of the *Municipal Conflict of Interest Act.*

7.4 Members shall not refer a third party to a person, partnership, or corporation in exchange for payment or other personal benefit.

7.5 Nothing in this Code prohibits Members from attending or promoting the opening of new businesses within the community as a function of their official duties, provided that doing so shall not constitute an endorsement of such business or commercial enterprise.

8.0 Communications, Media Relations, & Social Media

8.1 Members shall fairly and accurately communicate the decisions of Council, even if they disagree with its decision(s). Members may publicly express disagreement with a decision of Council but shall do so in a respectful manner that does not belittle, ridicule or disrespect the decision of any Members who voted in favour of the decision.

8.2 When addressing the media, Members shall adhere to the provisions of the Town's Media Relations Protocol (COR-WI-351).

8.3 Members shall acknowledge and respect that decisions and resolutions of Council are ordinarily communicated to the community by Council as a whole with the assistance of the Town's administration, or by the Mayor by virtue of being the head of Council, unless one or more Members have been expressly authorized by Council or by the Mayor to communicate such decisions and/or resolutions on behalf of Council.

8.4 When communicating with the media, other levels of government or their representatives, public sector agencies, private individuals or businesses, or on Social Media, Members shall not indicate, implicitly or explicitly, that they speak on behalf of Council unless they have been expressly authorized to do so by Council, or authorized by the Mayor when serving as the Mayor's representative. Where it could reasonably be construed by others that a Member is speaking on behalf of Council and such authorization has not been granted, Members shall indicate that the opinions, views, or positions expressed or advocated for are the Member's alone, and not those of Council.

8.5 When communicating on Social Media, Members shall act with respect, dignity, courtesy and empathy towards others, and adhere to the same requirements described in this Code as they would for any other form of communication.

8.6 When communicating on Social Media, Members shall not publicly post or share content that is known or ought reasonably to be known to:

8.6.1 be false or with the intent to mislead or disparage other Members, Staff, Local Board Members, or the public;

8.6.2 be discriminatory to any individual based on the individual's race, colour, ancestry, citizenship, ethnic origin, place of origin, creed or religion, gender, gender identity, gender expression, sexual orientation, marital status, family status, disability, age, socioeconomic status or record of offences;

8.6.3 disclose Confidential Information;

8.6.4 compromise the safety or security of members of the public, Local Board members, other Members, or Staff;

8.6.5 endorse or solicit business for a commercial enterprise;

8.6.6 promote illegal activities;

8.6.7 be of a disparaging nature or make unfounded or speculative accusations about the motives of other Members, Local Board members, Staff, or a member of the public;

8.6.8 abuse, bully, or intimidate other Members, Local Board members, Staff, or a member of the public; and

8.6.9 belong to a third-party without first seeking the third-party's permission, unless such content is already publicly available or has no reasonable presumption of confidentiality.

8.7 Nothing in this Code prevents a Member from operating personal Social Media accounts that do not serve the purpose of representing the Member to the public in their official capacity as a Member. However, Member behavior must still conform to the Council Code of Conduct even while using unofficial or personal Social Media Accounts.

9.0 Use of Municipal Property

9.1 Council is the custodian of the assets of the Town. The community places its trust in Council and those it appoints to make decisions for the public good in relation to these assets.

9.2 Members shall not:

9.2.1 use or permit the use of the Town's land, facilities, equipment, supplies, services, Staff or other resources for activities other than the business of the Town or their official duties as a Member, unless they are entitled to such use equally with any other user of such Town assets;

9.2.2 seek or obtain by reason of their office any personal privilege or advantage with respect to municipal services not otherwise available to the general public and not connected directly or indirectly to the performance of the Member's duties;

9.2.3 use the services of Staff or make requests for information from Staff unless such information is required for the purposes of carrying out their official duties as Members;

9.2.4 seek financial gain for themselves, or for any other person, from the use or sale of the Town's intellectual property, computer programs, web or Social Media accounts, technological innovations, or other patents, trademarks or copyright held by the Town; and

9.2.5 use information gained from the execution of their duties that is not available to the general public for any purpose other than their official duties.

9.3 Members shall comply with the 'Use of Corporate Resources for Election Purposes' policy (Policy 076) when participating in any municipal, provincial, or federal election.

10.0 Gifts, Benefits & Hospitality

10.1 Gifts to Members risk the appearance of improper influence. Gifts may appear to induce influence or create an incentive for Members to make decisions on the basis of relationships rather than in the best interests of the Town.

10.2 Except as otherwise permitted herein, Members shall not accept a fee, advance, gift, gift certificate, cash or personal benefit connected directly or indirectly with the performance of their duties.

10.3 A gift, benefit or hospitality that is connected directly or indirectly to the performance of the Member's duties provided with the Member's knowledge to a Family Member of the Member is deemed to be a gift to that Member.

10.4 Notwithstanding Sections 10.1 and 10.2, Members shall be entitled to accept any gifts or benefits in their official capacity in the following circumstances:

10.4.1 compensation authorized by law;

10.4.2 gifts or benefits that normally accompany the responsibilities of office and are received as an incident of protocol or social obligation, or are symbolic or ceremonial in nature;

10.4.3 token gifts or benefits given in recognition of services provided without compensation by Members volunteering their time for a charitable or non-profit organization or event;

10.4.4 a suitable memento at a function honouring the Member;

10.4.5 in the case of a Member seeking elected office, a campaign contribution otherwise reported by law;

10.4.6 services provided without compensation by persons volunteering their time;

10.4.7 food, lodging, transportation and entertainment lawfully provided by provincial, regional or local governments or boards or political subdivisions of them, the federal government, or a foreign government within a foreign country;

10.4.8 food, lodging, transportation and entertainment lawfully provided by a conference, seminar or event organizer where the Member is either speaking or attending in an official capacity as a representative of the Town;

10.4.9 an invitation from, and at the expense of, a private third party to attend a conference, seminar, charity fundraiser, reception, ceremony, cultural event, or other similar event where the proceeds raised are to support a not-for-profit or charity organization, provided that the Member is not lobbied at the event;

10.4.10 participating in or consuming food and beverages at banquets, receptions, sporting events or similar functions, if:

10.4.10.1 attendance serves a legitimate municipal business purpose related to the normal business of the Town;

10.4.10.2 the person extending the invitation or a representative of the organizing entity is in attendance; and

10.4.10.3 the value is reasonable and the invitations are infrequent;

10.4.11 gifts received as a door prize, raffle or similar draw at an event, conference or seminar attended by the Member;

10.4.12 gifts of nominal value (e.g. a baseball cap, t-shirt, flash drive, book);

10.4.13 a communication to the office of the Member, including a subscription to a newspaper or periodical; and

10.4.14 any gift or personal benefit, if the Integrity Commissioner is of the opinion, before the gift or personal benefit has been accepted, that it is unlikely that receipt of the gift or benefit gives rise to a reasonable presumption that the gift or benefit was given in order to influence the Member in the performance of their duties.

10.5 Members who have received or accepted a gift or benefit in accordance with the exceptions described in Sections 10.4.3, 10.4.7, 10.4.8, 10.4.9, 10.4.11, and 10.4.14, where the value exceeds $300.00 from a single source during a calendar year shall file a disclosure of the gift or benefit in accordance with the Disclosure Statement set out in Appendix “A”.

10.6 The Disclosure Statement shall indicate:

10.6.1 the nature and description of the gift or benefit received;
10.6.2 the person, body or entity from which it was received;
10.6.3 the circumstances under which it was received;
10.6.4 the date of receipt;
10.6.5 the estimated value of the gift or benefit; and
10.6.6 what the Member chose to do with the gift or benefit.

10.7 Members shall provide the Disclosure Statement to the Clerk on a quarterly basis for the preceding quarter. The Disclosure Statement shall be a matter of public record and posted to the Town’s website.

10.8 Nothing in this section precludes a Member from soliciting funds or donations in support of a charitable or philanthropic cause, organization, or charity provided that all funds or donations are provided directly by the donor(s) to the recipient organization or charity.

11.0 Confidential Information

11.1 Members receive confidential information from a number of sources as part of their work as elected officials. This includes information received in confidence by the Town that falls under the privacy provisions of the *Municipal Freedom of Information and Protection of Privacy Act* and other applicable privacy laws, and information received during closed meetings of Council, committees, or Local Boards.

11.2 Members shall not disclose, unless expressly authorized by Council or as required by law, confidential information including but not limited to:

11.2.1 matters related to ongoing litigation or negotiation, or that is the subject of solicitor-client privilege;

11.2.2 information provided in confidence, for example, the identity of a complainant where a complaint is made in confidence, personal information of an individual derived from municipal records or other information that a Member receives in confidence by virtue of their office as an elected representative;

11.2.3 price schedules in contract tenders or request for proposal submissions if so specified;

11.2.4 personal matters about an identifiable individual;

11.2.5 “personal information” as defined in the *Municipal Freedom of Information and Protection of Privacy Act*;

11.2.6 any census or assessment data that is deemed confidential; and

11.2.7 the purchase or sale of personal or real property by the Town.

11.3 Members shall not disclose the content of any confidential information, or the substance of confidential deliberations, of a closed meeting. Each Member has a duty to hold any information received at closed meetings in strict confidence for as long and as broadly as the confidence applies. Members shall not, either directly or indirectly, release, make public, or in any way divulge any such information or any confidential aspect of closed meeting deliberations to anyone, unless authorized by Council or as required by law.

11.4 Members shall not disclose, use, or release confidential information in contravention of applicable privacy laws. Members are only entitled to information in the possession of the Town that is relevant to matters before Council. Otherwise, a Member enjoys the same access rights to information as any other member of the community or resident of the Town and must follow the same processes as any private citizen to obtain such information.

11.5 Members shall not misuse confidential information in any way or manner such that it may cause detriment to the Town, Council or any other person, or for financial or other gain for themselves or others.

11.6 Members shall respect the right to confidentiality and privacy of all clients, volunteers, other Council Members, and staff, and should be aware of their responsibilities under applicable legislation, municipal policies, procedures and rules, ethical standards and, where appropriate, professional standards.

11.7 Members shall not disclose any confidential information received by virtue of their office, even if they cease to be a Member.

12.0 Reprisals and Obstruction

12.1 Members shall respect the process for complaints and inquiries made under the Code of Conduct, the *Municipal Conflict of Interest Act*, or any other process for complaints adopted by the Town or required by legislation.

12.2 Members shall not act in reprisal or threaten reprisal against a person who makes a complaint or provides information to any duly authorized investigative body, or against the Integrity Commissioner or any other appointee or representative of an investigative body.

12.3 The Integrity Commissioner is authorized to report any incidents of threats or reprisals to Council, and may recommend penalties or remedial corrective measures or actions in response to such reported incidents.

12.4 Members shall cooperate with the Integrity Commissioner at all times and with respect to any requests for information during any investigations or inquiries of a duly authorized investigative body, and shall not:

12.4.1 interfere with or obstruct an investigation;

12.4.2 destroy or damage documents or erase electronic communications; or

12.4.3 attempt to influence any other Member, Staff or member of the public with respect to the subject matter of the investigation or inquiry.

12.5 The Integrity Commissioner is authorized to investigate and to report to Council on any instances of reprisal and obstruction and to impose penalties if it is determined that a contravention has occurred.

13.0 Penalties & Remedial Actions for Non-Compliance with the Code of Conduct

13.1 Where the Integrity Commissioner reports to Council that, in its opinion, a Member has contravened this Code, the Integrity Commissioner is delegated the authority by Council to impose the following penalties:

13.1.1 reprimand the Member; and/or

13.1.2 suspend the remuneration paid to the Member in respect of their services as a Member for a period up to ninety (90) days.

13.2 In addition to the penalties described in Section 13.1, Council may, on the basis of a recommendation from the Integrity Commissioner, also take any or all of the following corrective or remedial actions, and require that the Member:

13.2.1 provide a written or verbal apology;

13.2.2 return property or make reimbursement of its value or of money spent;

13.2.3 be removed from or not be appointed to the membership on a committee of Council;

13.2.4 be removed from or not be appointed as chair of a committee of Council; and

13.2.5 comply with any other remedial or corrective action or measure deemed appropriate by the Integrity Commissioner.

14.0 Integrity Commissioner, Complaints & Inquiries Protocol, Legal Fees

14.1 The Integrity Commissioner reports directly to Council and is responsible for performing in an independent manner the following functions with respect to the behaviour of Members:

14.1.1 the application of this Code of Conduct;

14.1.2 the application of any procedures, rules, and policies of the municipality and local boards governing the ethical behaviour of Members; and

14.1.3 requests from Members for advice respecting their obligations under the Code of Conduct and procedures, rules, or policies of the municipality governing the ethical behaviour of members.

14.2 The Complaints & Inquiries Protocol is Appendix “B” to this Code of Conduct and applies to complaints and requests under this Code of Conduct and the *Municipal Conflict of Interest Act*.

14.3 The Integrity Commissioner shall provide an Annual Report to Council in February of each year detailing its activities, including advice, education, and investigations over the previous year. The Integrity Commissioner shall provide a summary of costs for the previous year, divided into categories detailing costs for complaints, advice, and training.

14.4 The Integrity Commissioner may also provide periodic reports as the Integrity Commissioner considers necessary for the purposes of discharging its obligations to the Council and the Town.

14.5 Members of Council are entitled to seek the advice of the Integrity Commissioner with respect to their own obligations under the Code of Conduct, any ethical procedure, policy or rule, and sections 5, 5.1 and 5.2 of the *Municipal Conflict of Interest Act*.

14.6 Members are solely responsible for their own legal costs if they retain a lawyer or paralegal to provide counsel, advice or representation on any matter related to this Code of Conduct, any ethical procedure, policy or rule, and sections 5, 5.1 and 5.2 of the *Municipal Conflict of Interest Act*, including, but not limited to, an investigation and penalties imposed by the Integrity Commissioner or remedial or corrective actions imposed by Council, a complaint to the Ontario Ombudsman, or a judicial review application to the courts from a decision from the Integrity Commissioner.

Gifts and Benefits Disclosure Statement

In accordance with Section 10 of the applicable Code of Conduct, Members shall file disclosure when they have received or accepted a reportable gift or benefit and the value exceeds $300 from a single source during a calendar year. Members shall provide the Disclosure Statement to the Clerk on a quarterly basis for the preceding quarter.

Gifts and Benefits Details	
Name of Member:	
Recipient of Gift or Benefit Gifts and/or benefits to a Member's spouse, child, parent or staff member must be declared	Self ☐ Another ☐ Specify:
Source of gift or benefit: (Individual/Organization/Corporation/Group)	
Date of receipt:	
Nature of gift or benefit: (Provide a description of the gift or benefit received)	
Estimated value of gift or benefit:	
Reason for gift or benefit: (Provide a description of the circumstances under which the gift or benefit was given or received)	
What do you intend to do with the gift?	
Authorization	
Signature of Member: _____	**Date:**

The personal information on this form is collected under the authority of the *Municipal Act,* 2001 and will be made public. Questions about this collection can be directed to the Integrity Commissioner, Principles *Integrity*, at 647.259.8697 or at **postoffice@principlesintegrity.org**

Town of Ajax Report

Report To:	Council
Prepared By:	Aaron Burridge, Fire Chief
Report #:	AFES-2023-06
Subject:	**Contract Award –** Repl. Aerial Fire Apparatus Unit #A42 (2006)
Ward(s):	ALL
Date of Meeting:	September 18, 2023
Reference:	23020102.5840

Recommendation:

1. **That council award the contract for the supply and delivery of an Aerial Fire Apparatus to Commercial Emergency Equipment in the amount of $2,316,500.00 (inclusive of all taxes).**
2. **That Council provide pre-budget approval in the amount of $1,576,080.00 funded from the Vehicle & Equipment Reserve.**

Background:

Aerial 42 fire apparatus has been in service since 2006. Due to the age of this fire apparatus, it is lacking many updated safety devices, sensors, and anti-roll features. This apparatus has been permanently removed from service as it would not pass the annual inspection required by the Ontario Ministry of Transportation due to corrosion in its frame rails. Given the timeline and the costs for repairs, it is not in the best interests of the town to attempt to have this apparatus repaired and this fire apparatus should be replaced.

Discussion:

The current Purchasing By-Law allows for purchases through negotiations, under certain conditions, more specifically, “where, at the discretion of the Department Head, in consultation with the Manager of Purchasing, it is deemed to be in the best interest of the municipality to negotiate with vendors.”

Upon discussions with Commercial Emergency Equipment, staff learned that a pre-production stock Aerial Fire apparatus is presently available with an expedited delivery of August 2024. Additionally, the apparatus is available for $2,316,500 inclusive of taxes. This is especially advantageous as it will ensure a more timely replacement when Aerial 41 is placed out of service for servicing, maintenance, or repairs.

The new aerial apparatus will have its frame rails coated through a process called E-Coating which is performed by Oshkosh to prevent corrosion. Electrocoating (E-Coat) involves

immersion process provides coverage of complex parts and a uniform thickness without runs or drips. E-Coat delivers a superior corrosion and chemical resistance, while maintaining a high-quality, resilient surface for paint of any color or finish. Oshkosh corrosion protection leverages expertise from Oshkosh's proven experience serving the Department of Defense. Economic and efficient corrosion protection provides durable resistance from the most severe conditions. As a result of this E-Coating the vendor can offer a 50-year warranty on the frame rails, so it is highly unlikely that we will experience similar frame rail corrosion issues with this fire apparatus.

Financial Implications:

Capital Account 23020102.5840-Aerial Fire Apparatus Unit #A42 (2006)

Approved 2023 Capital Budget	$630,000.00
2024 Capital Budget Forecast (per 2023 budget)	$1,470,000.00
Total Budget	$2,100,000.00

Contract (Net of HST rebate) – Commercial Emergency Equipment	$2,086,080.00
Replacement Equipment and Tools	$ 90,000.00
Contingency and Travel	$ 30,000.00
Total Award	$2,206,080.00
Over Budget	$**106,080.00**

Following the approval of the 2023 capital budget, costs related to the replacement of this fire apparatus have risen largely related to inflationary pressures partially attributed to supply chain issues, world events and the lower value of the Canadian Dollar versus the American Dollar. The lower value of the Canadian Dollar has a direct impact upon the cost of fire apparatus as the chassis and many components for the apparatus are built in the United States.

The contingency will be used to fund any necessary design changes that may be required to improve the functionality of the Apparatus.

The updated 2024 budget request (pre-budget approval) is $1,576,080.00 and will be funded from the Vehicle and Equipment reserve.

Communication Issues:

N/A

Relationship to the Strategic Plan:

Pillar 1: Connecting our Community - Increase a sense of safety and security for the community
Pillar 3: Modernizing our Community - Ensure an efficient and effective service delivery

Conclusion:

It is the recommendation of Staff that Commercial Emergency Equipment be awarded the contract to supply and deliver the required Aerial Fire Apparatus.

Attachments:

ATT-1 – LC020100 Fleet & Equipment Replacement Program – Fire

Prepared by:

_____

Aaron Burridge – Fire Chief, Fire & Emergency Services

Submitted by:

_____

Aaron Burridge – Fire Chief, Fire & Emergency Services

Approved by:

_____

Dianne Valentim - Director of Finance/Treasurer

Approved by:

_____

Shane Baker – Chief Administrative Officer

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Fleet & Equipment Replacement Program - Fire**
Project Number LC020100

Program Description

The Fire Fleet & Equipment Replacement program identifies vehicles and equipment at the end of their expected life cycle due for replacement in the Fire & Emergency Services department. Currently the Town maintains 10 Fire Trucks (Pumper Rescues, Pumper Tanker, Aerial Ladders and Heavy Rescue), 12 vehicles and 1 trailer used for education on fire prevention and public safety.

Vehicles and equipment at the end of their expected life cycle require replacement in order to maintain the current service levels each asset supports. Extending the life cycle of vehicles may increase maintenance and repair budgets and could result in significant service delivery interruptions caused by unplanned mechanical failures.

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Expenditures					
1032411 Pumper Apparatus Unit #P45	**1,100,000**	**-**	**-**	**-**	**1,100,000**
23020102 Aerial Fire Apparatus Unit #A42 (2006)	**630,000**	**1,470,000**	**-**	**-**	**2,100,000**
23020103 SCBA Air Pack Update	**250,000**	**-**	**-**	**-**	**250,000**
23020104 Repl. Air Monitors	**57,500**	**-**	**-**	**-**	**57,500**
23020105 Hybrid Sedan 15303 (2015)	**-**	**-**	**-**	**45,600**	**45,600**
23020106 Hybrid Sedan 17304 (2017)	**-**	**-**	**-**	**45,600**	**45,600**
23020107 Repl. Fire Hose Tester	**17,000**	**-**	**-**	**-**	**17,000**
23020108 Repl. SCBA Cylinders	**29,600**	**-**	**-**	**-**	**29,600**
24020101 Computer Aided Dispatch (CAD) System	**-**	**1,200,000**	**-**	**-**	**1,200,000**
24020102 Pumper Apparatus P410 (2007)	**-**	**450,000**	**1,000,000**	**-**	**1,450,000**
24020103 Repl. Thermal Imaging Cameras	**-**	**100,000**	**-**	**100,000**	**200,000**
24020104 Crew Cab Pickup 15948 (C48) (2015)	**-**	**-**	**-**	**90,000**	**90,000**
24020105 Repl. Tech Rope Rescue Equipment	**-**	**20,000**	**-**	**52,000**	**72,000**
24020106 Repl. SCBA Cylinders 2024-2032	**-**	**22,200**	**39,000**	**157,300**	**218,500**
25020101 Pumper Apparatus Unit P47 (2010)	**-**	**-**	**450,000**	**1,000,000**	**1,450,000**
25020102 Repl. Fire Hazard Trailer #395-1 (2002)	**-**	**-**	**160,000**	**-**	**160,000**
25020103 Repl. Communications Ergo Desk	**-**	**-**	**45,000**	**-**	**45,000**
25020104 Hybrid Sedan Unit #18301 (C413)(2018)	**-**	**-**	**-**	**40,000**	**40,000**
25020105 Repl. SCBA Test Equipment (posi check)	**-**	**-**	**21,400**	**-**	**21,400**

TOWN OF AJAX

2023 CAPITAL BUDGET / 2024-2032 LONG RANGE CAPITAL FORECAST

DETAIL SHEET

Project Name **Fleet & Equipment Replacement Program - Fire**
Project Number LC020100

EXPENDITURES / FUNDING

	2023	2024	2025	2026-2032	Total
Expenditures					
26020101 Hall Mower 680-6 (2001)	-	-	-	45,000	45,000
27020101 Repl. Hazmat Equipment	-	-	-	90,000	90,000
27020102 SUV 21341 (2021)	-	-	-	80,000	80,000
28020101 Tanker T48 (2013)	-	-	-	1,300,000	1,300,000
28020102 SUV Response 21345 (2021)	-	-	-	100,000	100,000
28020103 Passenger Van 21601 (2021)	-	-	-	60,000	60,000
28020104 Passenger Van 21602 (2021)	-	-	-	60,000	60,000
28020105 Repl. SCBA Air Compressor- Stn 2	-	-	-	40,000	40,000
29000401 Repl. Defibrillators	-	-	-	35,000	35,000
29020101 Repl. SCBA Air pack	-	-	-	1,000,000	1,000,000
29020102 SUV 22342 (2022)	-	-	-	80,000	80,000
29020103 SUV 22343 (2022)	-	-	-	80,000	80,000
29020104 Pickup Truck 201203 (2020)	-	-	-	60,000	60,000
29020105 Hybrid Sedan 22306 (2022)	-	-	-	45,600	45,600
29020106 Repl. SCBA Air Compressor- HQ	-	-	-	40,000	40,000
30020101 Repl Fire Fighter Survival Maze Training	-	-	-	80,000	80,000
30020102 Hybrid Sedan 23301 (2023)	-	-	-	45,600	45,600
30020103 Hybrid Sedan 23302 (2023)	-	-	-	45,600	45,600
30020104 Hybrid Sedan 23303 (2023)	-	-	-	45,600	45,600
30020105 Repl. Air Monitors	-	-	-	50,000	50,000
31020101 Hybrid Sedan 22306 (2022)	-	-	-	50,000	50,000
31020102 Aerial Ladder 17A41 (2016)	-	-	-	1,500,000	1,500,000
31020103 Repl. Vehicle Stabilization Equipment	-	-	-	75,000	75,000
Total Expenditures	**2,084,100**	**3,262,200**	**1,715,400**	**6,537,900**	**13,599,600**
Financing					
Vehicle/Equipment Replacement Reserve	**2,084,100**	**2,662,200**	**1,692,900**	**6,537,900**	**12,977,100**
Recoveries - Municipalities	-	**600,000**	**22,500**	-	**622,500**
Total Financing	**2,084,100**	**3,262,200**	**1,715,400**	**6,537,900**	**13,599,600**
Annual Operating Costs	-	***190,000***	-	-	***190,000***

Town of Ajax Report

Report To:	General Government Committee
Prepared By:	Charmaine Chowdhry, CPA – Senior Financial Analyst, Julie Mepham, CPA, CA, Manager, Budgets and Accounting
Report #:	FIN-2023-21
Subject:	**Utilizing Debentures for Capital Projects**
Ward(s):	All
Date of Meeting:	September 11, 2023
Reference:	June 19, 2023 GGC FIN-2023-17 Utilizing Debentures for Vehicles and Equipment July 27, 2023 Notice of Motion – Utilizing Debentures for Capital Projects

---

Recommendation:

That the report entitled “Utilizing Debentures for Capital Projects“ be received for information.

Background:

On March 23, 2023, Ajax Council adopted a resolution directing staff to investigate the feasibility of purchasing vehicles and equipment over $100,000 through the issuance of debentures to ensure fulsome leveraging of Town reserves for strategic investment over the life of the asset to meet the needs of the community, and report back to Council at its June 13th meeting.

At the June 13, 2023, meeting, Council passed the following motion directing staff to further consider debenture financing for any capital projects with a useful life of 10 years or greater.

> *That Report FIN-2023-17 be referred to staff to consider any capital projects with a useful life of 10 years or greater not currently considered for debenture. The report is to include actual returns based on the Ajax Investment Policy and report back to Council at its meeting in September.*

The Municipal Act stipulates that “a municipality may issue a debenture or other financial instrument for long-term borrowing only to provide financing for a capital work” (S408 (2.1)), and “the term of a debt of a municipality or any debenture or other financial instrument for long-term borrowing issued for it shall not extend beyond the lifetime of the capital work for which the debt was incurred and cannot exceed 40 years” (S4083)).

The Town last reviewed and updated its Debt Management Policy (part of the Town’s Financial Sustainability Plan) in December of 2020. At that time, a thorough review and analysis of the policy resulted in an expansion of eligible uses, terms, and thresholds.

Discussion:

This report provides information on the feasibility of funding capital projects with a useful life of 10 years or greater through the issuance of debentures.

Analysis of Current Capital Program Using Strategic Investment over the Life of Assets

The Town's 2023-2033 Budget and long range capital forecast currently has 415 capital projects, including vehicles and equipment, with a useful life of 10 or more years. These projects are valued at $388.2 million (in 2023 $). Assuming debentures are taken out for 100% of vehicles and large equipment purchased and 50% of the construction or acquisition costs for all other capital projects with a life of 10 years or more, the Town would issue debentures in an amount of $203 million (or approximately $20.3 million per year on average) over the next 10 years. As detailed below, the majority of the debentures would be long term financing assets with more than a 20 year lifetime (useful economic life).

Useful life (Years)	Projects (#)	Project Value ($)	Debt value (in Millions $)	Debt Value as a % of total debt
20	305	$329.3	$165.3	81%
18	81	$ 42.5	$ 21.3	11%
15	10	$ 9.6	$ 9.6	5%
12	19	$ 6.8	$ 6.8	3%
Total Projects	**415**	**$388.2**	**$203.0**	**100%**

It is important to note the following assumptions underpin the debt value and the foregoing analysis:

1. The amount of the debenture proceeds would be utilized to finance the capital project, allowing the reserve amount that would have been used to fund the capital project to be invested. However, the equivalent reserve amount cannot necessarily be invested in long term investments (equities) as annual or semi-annual principal and interest payments are required.
2. The Region of Durham issues debentures on behalf of Ajax. The Town does not have control over the timing and terms of debenture issuance.
3. Once debt is issued, the payments are fixed and known, whereas investment income is not guaranteed to cover or exceed debt payments and is difficult to predict over the life of the debentures.
4. The analysis in this report was prepared using 2023 budgeted costs. Future estimated capital costs will likely escalate due to inflationary pressures or other factors.
5. Based on the investment policy no more than 50% of the cost of capital can be funded from debt. This assumption was maintained in the analysis, other than for vehicles and equipment shown at 100% debt funding.
6. Debt for DC funded projects was amortized over the life of the project (18-20 years) rather than the current policy limit of 10 years due to the magnitude of projects included in this analysis and inability to include such levels of debt in a DC service cap calculation.
7. The average cost of debt is 4.7% (Region of Durham) and remains consistent throughout the analysis.
8. The average annual rate of return on the invested capital requirement is 4% based on the Ajax Investment policy assuming better returns than experienced in 2022.

If the Town were to debenture finance capital projects with a useful life of 10 years or greater, the $203 million in incremental cash flow could be invested at a rate of 4%, based on annual portfolio returns that are slightly better than realized in 2022. An average 4% annual rate of return appears to be achievable over a long term while maintaining some liquidity to fulfill debt payments. At that rate, the Town could earn investment income of $57.4 million on the debenture proceeds, however, the cost to borrow is more than the debenture proceeds. As such, there would be an additional expense to the Town and lost potential income on other reserves in an amount of $9.5 million. Assuming current borrowing rates of 4.7% for the debentures, the Town would pay $94.3 million in debt servicing costs for a net total loss of $46.4 million.

For the cost of debt and the investment income to break even the Town's portfolio would need to ensure it reaches minimum annual returns of 5.3% over the next 30 years to ensure sufficient coverage of annual debenture payments at a borrowing rate of 4.7%. Only if annual returns exceeded 5.3% without any volatility in market rates or capital project timing would taxpayers benefit from utilizing debt to leverage additional income. Therefore, the risks involved with not being able to meet this rate consistently year after year does not warrant undertaking this approach.

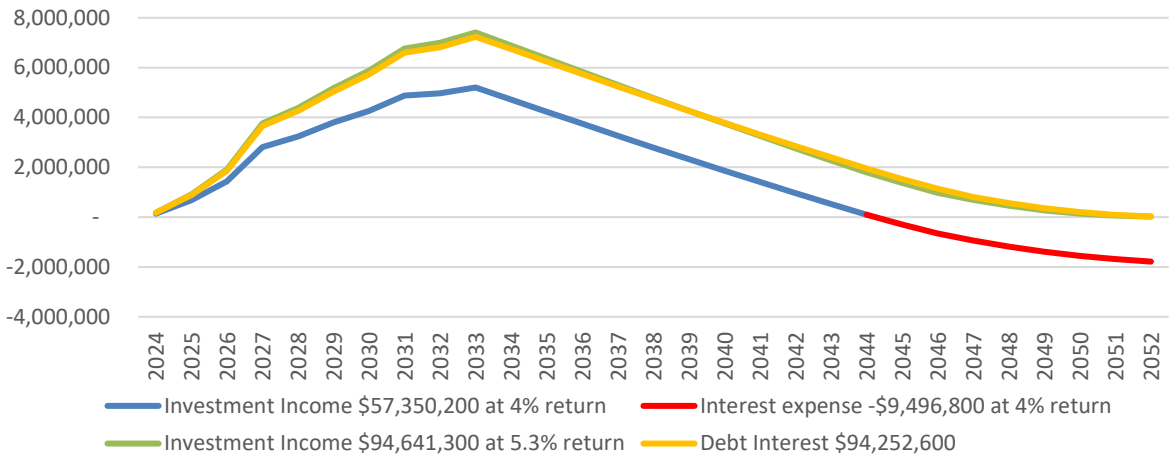
Table 1 provides a summary of investment results at 4% and 5.3% rates of return.

Table 1 – Investment results of additional reserve balance of $203M net of debenture cost

	Benefit/(Loss) with 4% rate of return	**Benefit/(Loss) with 5.3% rate of return**
Debenture - cash inflow	**$ 202,933,000**	**$ 202,933,000**
Investment income	57,350,000	94,641,000
Lost income - additional reserve draw	(9,497,000)	-
Total revenue	**47,853,000**	**94,641,000**
Debenture payments		
Interest	(94,252,000)	(94,252,000)
Principle	(202,933,000)	(202,933,000)
Total payments	**(297,185,000)**	**(297,185,000)**
Net Benefit / (Loss)	**$ (46,399,000)**	**$ 389,000**

Chart 1 shows the total investment income on the incremental $203 million debt issuance for both the 4% and the 5.3% breakeven scenarios as well as the total debt interest payable on debentures of various year life cycles as detailed in Table 1 above.

Chart 1 - Investment Income vs Debt Interest



Other Impacts/Considerations:

It is important for the Town to be mindful and cautious not to carry too much debt in the short term to ensure sufficient debt room is available for the anticipated capital projects as well as potential future opportunities.

There are known projects not currently reflected in the 2023 capital budget and 2024-2032 long-range capital forecast that are expected to be introduced into future forecasts based on recently approved master plans and/or based on the new strategic plan. These could include improvements and changes to the Mixed-Use Pickering Village Redevelopment and the St. Andrews site as currently noted in the Recreation and Culture Master Plan. Other projects may be identified in upcoming Strategic Plans or Master Plans that have not yet been contemplated by Council.

Additionally, other pressures which may require the Town to consider taking on additional debt include the financing strategy through the legislated Asset Management Plan which must be put in place by July 1, 2025 and the acceleration of infrastructure projects to support Provincially mandated housing construction.

Potential Regional Restrictions and Change to the Borrowing Program

As prescribed under the Municipal Act, 2001, 401(3) a lower-tier municipality in a regional municipality does not have the power to issue debentures. Currently the Region of Durham issues debentures on behalf of the Town and other local area municipalities based on capital requirements. The net proceeds are allocated to the respective municipalities based on their proportionate amount that the Region borrowed on their behalf. The Region has seen a substantial increase in the forecasted demand for debt from the local municipalities and has indicated that it will likely need to evolve its borrowing program in 2024 to increase its debt issuance capacity. This would involve issuing bullet or sinking fund debentures, which have less flexibility for accommodating varying maturities and terms.

The Region is currently investigating alternatives on how to efficiently support the debt requirements of the local municipalities without administering multiple debt issuances a year or increasing expenses. Each additional debenture issuance has separate fees and legal costs which may be passed on to the local level.

Sinking fund or bullet debentures are paid in full at maturity and as per the Municipal Act, there is a mandatory requirement to set aside an amount each year to ensure there are sufficient funds available to repay the debt at maturity. It is important to note these amounts are not available for Town investments as it must be paid annually to the Region to be invested in a fund that is deemed appropriate to ensure returns and funds are available to retire the debt at the end of its term. Therefore, the annual borrowing cost repayments will be drawn from a reserve, decreasing the available amount to invest, or result in a tax increase to fulfill the requirement.

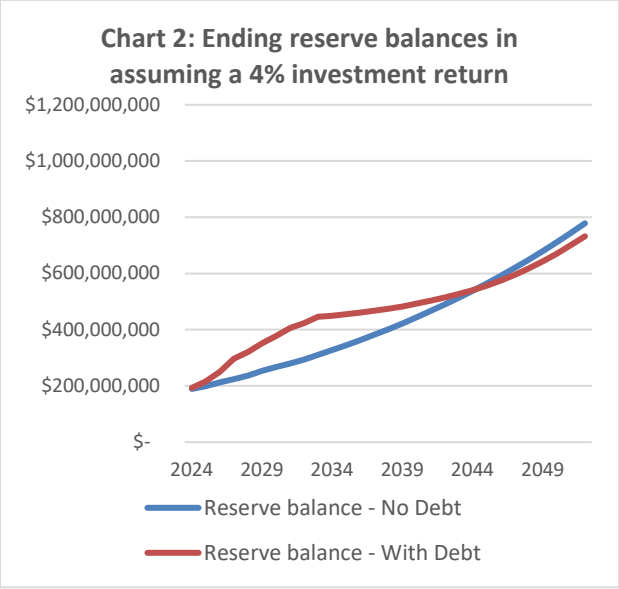
Debenture Financing – Short Term Obligations

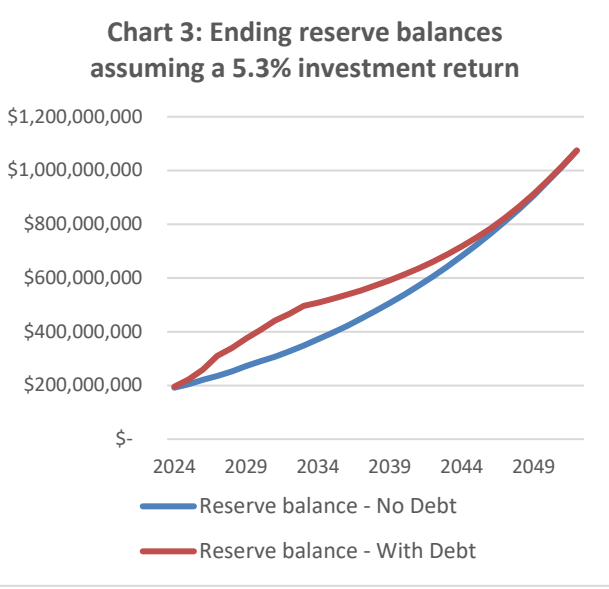
To fulfill annual debenture payments for capital projects with a useful life of 10 years or greater, the Town's investment strategy would require the ability to draw sufficient funding from invested amounts on an annual basis to meet its payment obligations. This means that although equity funds have historically provided greater long-term returns, the Town would need to explore more predictable investment vehicles, such as purchasing bonds, over the short to medium term.

Charts 2 and 3 below show the impact on total Town reserve balances over time when reserves are used to fund short-term debt obligations. Each chart shows the projected ending balances with and without using debt to fund the budgeted capital projects. Chart 2 assumes a 4% investment return while Chart 3 assumes a breakeven 5.3% investment return as detailed in the scenarios provided under Chart 1.

As shown in Chart 2, the reserve balances using debentures are higher in the first 10 years as more cash is injected into the Town, but the reserve growth slows starting in year 11 as existing debt payments are made to settle annual payment obligations. It is also to be noted that no new debt is taken on after year 10 in this scenario. In Chart 3, while the reserve balances using debentures continue to track higher than without taking on debt in the first 20 years, the ending reserve balances end up the same over time as debenture obligations are settled.

Charts 2 and 3 - Ending reserve balances assuming 4% and 5.3% investment returns





As debt requirements continue to increase beyond the 10 year timeframe and without certainty of annual investment returns, the Town's ability to respond to unanticipated events such as

emergencies, capital cost escalation, legislative changes, uncertain economic conditions, and unbudgeted major capital projects contained in strategic plans would diminish which would increase risks of defaulting on payments or requiring tax increases in future budgets.

If the Town chose not to utilize reserve balances to fund debt payments, an additional annual tax increase would be required ranging from 0.5% to 4% reaching an overall 20% increase over the 10 year period covered in this analysis (on the basis that a 1% tax increase is equal to $785,800).

Debt Limits

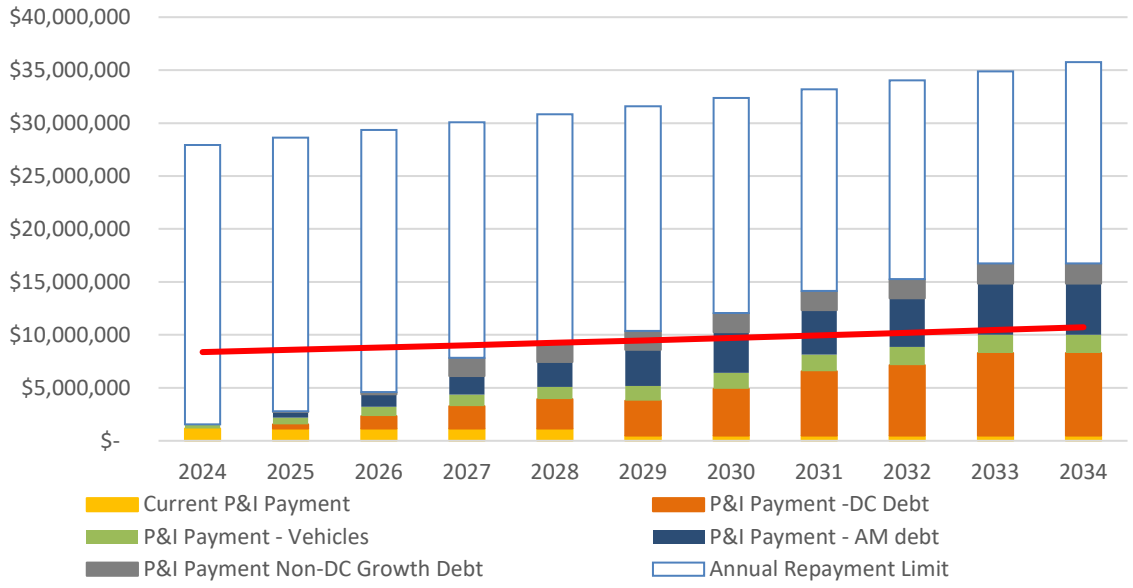
The Annual Debt Repayment Limit (ARL) established by the province mandates that a municipality's total annual debt payments (excluding internal debt) cannot exceed 25% of its updated ARL.

Per Section 3.13 of the Town's Debt Management Policy, debt servicing costs are set at a maximum of 7.5% of the Town's own source revenues for both External and Internal debt. Debt should not be issued if these costs surpass the set maximum at any point over the term of the debt. Although the Town also has $4.6 million in internal debt to be fully paid off by 2028, only the $8.7 million in external debt was included in the chart below (in yellow) for the purposes of illustrating estimated future debt obligations.

Chart 4 depicts the debt limit reached at its highest point in 2034 of just under $17 million in annual payments if $203 million in debt was taken out. Details on the breakdown of the annual principal and interest payment required by major asset categories budgeted between 2024 and 2033 are as follows: asset management including the road surfacing program backlog (in blue), development charge related (in orange), vehicles and equipment purchases (in green), and non-DC growth-related project (in grey).

Although the Town is well below the 25% limit as per the chart, the estimated debt requirements are resulting in a ratio reaching approximately half of the ARL in the latter part of the forecast, much higher than the Town's policy limit of 7.5% of maximum revenue (red line).

Chart 4 – Principal and Interest (P&I) Payments to ARL and Town Debt Limit



Training and best practice materials from the Municipal Finance Officers Association (MFOA) provide insights and best practices in the municipal sector on determining criteria and indicators for assessing whether debt is an appropriate funding option, indicating that long-term debt is not

a source of revenue, but rather an important capital financing tool which can positively affect municipalities by funding capital projects that are immediately needed and where other financing sources are not available; leveraging outside funding sources; taking advantage of low interest rates and avoiding escalating project costs; potentially spreading debt servicing costs over an increasing assessment base for growth municipalities; and promoting intergenerational equity.

While long-term debt is a valuable financial tool, it can introduce additional risks that may negatively affect the municipalities by constraining financial flexibility; compromising financial sustainability; imposing additional costs on infrastructure projects; and requiring additional financial burdens on future taxpayers.

At the end of 2022, the Town maintained $8,673,000 in outstanding external debt and $4,577,000 in internal debt. Although internal debt does not impact the Town's Annual Repayment Limit calculated by the province, it does impact the minimum financial ratio thresholds included in our debt management policy.

Financial Implications:

The recommendation in this report has no financial implications.

Communication Issues:

None

Relationship to the Strategic Plan:
Modernizing our Community, Priority 5: Demonstrate sound Financial Management

Item 5.1 – Manage financial resources and assets to address growing needs.
Item 5.2 – Anticipate and respond to risks and opportunities.

Conclusion:

While the results of this analysis do not support the issuance of debt under the terms proposed in the Council motion, this exercise was useful in developing a framework to assess the impacts of debentures and provided insight into opportunities to consider in funding long term capital assets. Once the Town completes its asset management plan including the related financing strategy for current and growth-related assets, the Town will be better positioned to determine options on where to best use debentures in funding the projects that the community relies on to ensure services are delivered as approved by Council.

Based on assumptions presented in this report, investment returns of more than 5.3% over the next 30 years would have to be achieved annually to offset debenture costs of 4.7% to provide some benefit to the Town. There is no guarantee that investment returns will exceed total borrowing costs over the long term. In addition, uncertainties exist around interest rate volatility, future capital cost escalations, timing of capital projects, impacts of legislative requirements on asset management plans, development charges, and the Provincial housing mandates, as well as potential changes in the regional borrowing program.

The Town has identified that debentures will be required for several large-scale facilities and road projects in the short to medium term. It is important to ensure that sufficient debt capacity is available to accommodate these large-scale projects and that debt is assumed in a fiscally

responsible manner to minimize the tax impact, and avoid any financial distress to the municipality.

Prepared by:

Charmaine Chowdhry CPA, CGA – Senior Financial Analyst
Julie Mepham, CPA, CA, Manager, Budgets and Accounting

Submitted by:

Dianne Valentim CPA – Director of Finance/Treasurer

Approved by:

Shane Baker – Chief Administrative Officer

Town of Ajax Report

Report To:	Council
Prepared By:	Rob Gamble
Report #:	OES-2023-20
Subject:	**Snow Removal Program for Seniors and Qualified Residents**
Ward(s):	All
Date of Meeting:	September 18, 2023
Reference:	Connecting our Community 3.3 Senior's Snow Clearing Program Update

---

Recommendations:

1. **That staff be authorized to modify the current Snow Removal Program for Seniors and Qualified Residents to include the plowing of the windrow, the driveway apron, and the municipal sidewalk.**

2. **That staff be authorized to recruit eight (8) part-time staff and procure the required equipment to enable the service modifications, to be effective December 1st, 2023, outlined in Recommendation 1, as detailed in this report.**

3. **That new staffing costs be managed through the 2023 operating budget management policy and included as new seasonal part-time staff in the 2024 operating budget.**

4. **That the fee to be charged for this service be set at $408.00 (plus HST).**

Background:

On May 8, 2023, Operations presented a report to Council proposing changes to the Snow Removal Program for Seniors and Qualified Residents. A motion to defer was approved by Council to have staff:

- Establish a revised Seniors Snow Clearing Program with service levels options and associated costing; and
- Once determined by staff, consult with the Accessibility Advisory Committee, Age Friendly Steering Committee and current program participants; and
- Consult with other municipalities to understand how they deliver snow clearing services and the subsidy level incurred by the municipality; and
- Report back to Committee in September 2023.

This report includes feedback from the Age Friendly Committee, the Accessibility Advisory Committee and current program participants through the IMO survey. It also considers other similar municipalities' approach to snow removal for senior and qualified residents.

The Town of Ajax provides a range of services within its winter control operations including a long-standing Snow Removal Program for Seniors and Qualified Residents.

Currently to qualify for this program, residents must be:

- 65 years of age or older with no able-bodied persons under the age of 65 residing at their address; or
- Unable to perform snow removal due to a physical disability as indicated by a doctor's note.

Each September, departments complete a user fee review to balance the services being delivered with the corresponding user fees. These fees, which include the Snow Removal Program for Seniors and Qualified Residents, are subsequently presented to Council for approval.

A summary of the existing Snow Removal Program for Seniors and Qualified Residents in Ajax is described in detail below:

What is the current service provided by the Town?

Residents who apply and qualify for the Snow Removal Program for Seniors and Qualified Residents are charged a fee of $190.41 (including HST) for a Service Level 1 and $35.71 (including HST) for a Service Level 2.

The service they receive is detailed as follows:

SERVICE LEVEL 1

- The removal of snow from the driveway area.
- The removal of snow from any municipal sidewalk.
- The removal of any windrow at the end of the driveway.
- The removal of snow on the path leading from the driveway to the front door.

SERVICE LEVEL 2

- The removal of snow from any municipal sidewalk.
- The removal of any windrow at the end of the driveway.

When does the service get initiated?

The service is initiated once more than 5cm (2 inches) of snow has accumulated and after the Town's plows have completed the plowing of roads. This is typically 24 hours after the snow has stopped falling.

Who delivers the service?

This service is currently administered by 6 part-time staff who form three (3) crews of two who deliver the service at any one time. Each crew is equipped with a truck, plow, snow blower and shovels. It generally takes 72 hours (three 12-hour shifts) to complete the service delivery for this program and requires each crew to visit 133 locations.

The concern is that the program in its current form is not sustainable to deliver service and meet customer expectations and will be unable to keep up with the forecasted growth of the program over the coming years.

The following is a summary of Snow Removal applicants for the past five years:

- 2018-2019: 340
- 2019-2020: 360
- 2020-2021: 331
- 2021-2022: 380
- 2022-2023: 402
- 2023-2024: 420 (Estimated)

The expected number of residents who will sign-up for this program for 2023-2024 season is estimated to be around 420, requiring each crew to visit 140 homes over a three-day span (three 12-hour shifts).

Discussion:

It is common for municipalities to deliver a snow removal program to seniors and qualified residents, and Ajax is no exception when it comes to the delivery of this service. However, the Town of Ajax's service level exceeds that of which is delivered elsewhere throughout the GTA. The chart below details the seniors snow removal service levels offered by surrounding municipalities.

Municipal Senior Snow Removal Program Comparison – (Fall 2022)

Municipality	Service	Activation	Fee
Ajax	Service 1 - Windrow, driveway, sidewalk, path to door Service 2 – Windrow, sidewalk	24 hours after 5cm of accumulation	$190.41 $35.71
Whitby	Windrow, sidewalk	Windrow – 24 hours after 10cm of accumulation Sidewalk – 36 hours after 10cm of accumulation	Free
Oshawa	Windrow, sidewalk	Windrow – at 20cm Sidewalk – at 2.5cm	Free
Clarington	Windrow, sidewalk	Windrow – at 15cm Sidewalk – at 7.5cm	$96.27
Pickering	Apron (12x12), sidewalk, windrow, path to door	24 hours after 5cm of accumulation	$72.00 - $109.00
Richmond Hill	Windrow Clearing Program (all residents)	Within 13 hours after plows have passed	Free
Vaughan	Windrow Clearing Program (all residents)	Within 4 hours after plows have passed	Free
Markham	Windrow Clearing Program (60+)	7.5cm of accumulation	Free
Whitchurch-Stouffville	Windrow Clearing Program (65+)	Within 12 hours after plows done	Free
Oakville	Windrow Clearing Program (65+)	Within 36 hours after snowfall ends	$110.18
Burlington	Windrow Clearing Program	Within 36 hours after snowfall ends	Free
Milton	Windrow Clearing Program (65+)	Within 24 hours after snowfall ends	$63.00
Halton Hills	None: Promotes Links to Care organizations		
Aurora	None: Promotes Snow Angels		
Newmarket	None: Sidewalk Clearing Program		
East Gwillimbury	None: Sidewalk Clearing Program		

As a follow-up to the discussion that took place at the previous Council meeting regarding the City of Pickering, staff contacted the City of Pickering to compare service levels and pricing structures. Pickering currently offers snow removal for the windrow, driveway apron, sidewalk, and a pathway to the front door for their seniors and qualified residents.

Their program is highly subsidized, with the City of Pickering absorbing $197,241 of the $220,226 spent on the program last year.

Unlike Ajax, the City of Pickering uses a contracted service, which partially defers insurance and liability onto the contractor for snow removal. It is also noted that the City of Pickering is privately insured and are not a member of the Durham Insurance Pool.

Risk Management

Staff have had the opportunity to follow-up with the Durham Municipal Insurance Pool (“DMIP”) as well as seek feedback from legal counsel.

There is additional risk for the municipality to clear snow on private property that is owned, maintained, and insured by the homeowners. All slips and falls on private property will not have any defences available to it and will become an additional exposure to the Town.

If the Town of Ajax continues with clearing private property, the DMIP believes that the duty for the standard of care will be the same as used by the Minimum Maintenance Standards that are in place for sidewalks.

The Town will need to ensure that per the Municipal Act, 2001 - ONTARIO REGULATION 239/02 - that the service for snow accumulation on sidewalks will be initiated once there is more than 5 cm (2 inches) of snow. The Town will need to comply with this requirement to try and build a defence for this service.

There are no statutory requirements for the Town of Ajax to remove snow from driveways and walkways. This, combined with the added exposure for the Town by continuing with the removal of snow and ice on private property creates a significant increased liability position for the Town of Ajax.

Town of Ajax – Current Program Delivery

The program is currently delivered by six (6) part time staff (3 crews of two), and each snow event takes three days to complete based on the 402 residents that registered this past season. This program is not sustainable as currently constructed, as the number of registered residents, combined with service level expectations, continue to increase.

To retain the current service level and complete the required work within a 24-hour period once the service has been initiated, additional resources will be required. At a minimum, an additional twelve part-time staff (giving us a total of nine crews of two) with six additional plow trucks and blowers would be required to deliver the service in a single twelve-hour shift. This does not address the increasing demand of registered residents that is forecast to rise by an additional 20 houses per year at a minimum. The cost to deliver this service would be an additional annual cost of approximately $184,000 ($96,000 in staff costs and $85,000 for vehicle depreciation over a seven-year period). To recover these costs, the program fee would need to be increased from $190.41 to $555.00.

In My Opinion Survey Results

The following is an overview of the comments received from the IMO Survey, which was available on the Town's website until July 23rd, 2023 (se Appendix 'A' for details):

- 599 Visitors to the survey page.
- 363 Contributions to the survey.

General Overview

65.3% of residents unhappy with the current program.
74.9% are not satisfied with the current service delivery time.
77.3% believe 24hrs to be a reasonable time frame to deliver the service.

From a service delivery perspective, it was interesting to note the responses regarding the program delivery. While 43.5% supported the program as currently delivered, 41.3% would support a modified service (see page 10 of survey).

From a fee-for-service perspective, 77.9% of people believe the program should be subsidized, and should not be based on full cost recovery. Further, 55.2% of people would support some form of tiered pricing structure based on household income.

Email responses sent by existing program participants during the IMO process stressed the need to add resources, maintain quality control, increase the communication of response times, and maintain a subsidized service even if the price was required to increase.

Accessibility Advisory Committee Feedback

On June 8, 2023, Town staff met with members of the Accessibility Advisory Committee to present, discuss, and gather feedback regarding potential modification to the snow removal program for seniors and qualified residents. Through this process several concerns were raised by members of the committee (see Appendix 'B').

The first concern was access to the home for medical care, personal support workers and emergency crews should the full driveway service not be offered. It was noted that moving away from full driveway service may restrict the services that residents could receive in their home due to the snow remaining in the driveway.

The second concern was the cost implications for residents as enhancing the service delivery timelines would require additional staff and equipment, which would ultimately be passed onto those enrolled in the program. It is noted that should an increase in cost be required to improve service delivery, subsidizing the program enrollment fee would be a huge relief to those who rely on the service over the winter months.

Age Friendly Ajax Steering Committee Feedback

On June 15, 2023, Town staff also met with members of the Age Friendly Ajax Steering Committee to present, discuss, and gather feedback regarding potential modification to the snow removal program for seniors and qualified residents. Similar concerns to those raised by the Accessibility Advisory Committee came forward, including access to the home for medical services and cost implications of increased service delivery times (see Appendix 'C').

Follow-up correspondence from the Age Friendly Ajax Steering Committee detailed the concept of an opt-out reimbursement program, should the service be modified to only include windrow or driveway apron snow clearing. In this case it was discussed that residents could opt-out of the program and would be reimbursed financially, with proof of having hired a private contractor to perform the snow removal at their home.

Proposed Service Delivery Options

In consideration of feedback collected from the IMO Survey, the Accessibility Advisory Committee and the Age Friendly Ajax Steering Committee staff have considered two (2) different service delivery models and associated costing as follows:

	Service Level Options	Delivery Time After Road Plowing Completed	Estimated New Staff Required	Estimated Added Yearly Cost Staff & Equipment	Resident Pays	Driveways Per Crew
1	Windrow, Driveway Apron Municipal Sidewalk	24 Hours	8	$121,600($64,500 staff and $57,100 vehicle depreciation)	$408	60
2	Windrow Municipal Sidewalk Driveway Apron Path to front door	24 Hours	12	$184,000 ($96,000 staff and $85,000 vehicle depreciation)	$550	47

Staff are recommending option 1, which includes the cleaning of the windrow, the municipal portion of the driveway apron, and the municipal sidewalk. To complete the modified service within a 12hr shift and ensure the needs of the Ajax Seniors & qualified residents are being met within 24 hours of the completion of road clearing operations the proposed program would then look as follows:

To qualify, residents must be:

- 65 and older with no able-bodied persons under the age of 65 residing at their address; or
- Unable to perform snow removal due to a physical disability as indicated by a doctor's note.

The service delivery would include:

- The removal of snow from the windrow.
- The removal of snow from the municipal portion of the driveway apron.
- The removal of snow from any municipal sidewalk.

The service would be initiated once more than 5cm (2 inches) of snow has accumulated and after the Town's plows have completed the plowing of roads. This is typically 24 hours after the snow has stopped falling.

Communication Issues:

A detailed Communication Plan will be developed to respond to any changes that may come about with respect to the Snow Removal Program for Seniors and Qualified Residents.

Financial Implications:

To move the Snow Removal Program for Seniors and Qualified Residents to a service level delivery of windrows, and municipal sidewalks, the following implications would apply.

Part Time Staffing
Approximately $64,500.00 for eight (8) part-time staff, gaining an additional four crews.

Vehicles and Equipment
Approximately $400,000.00 for vehicles (4 trucks with plow)
Approximately $4,800 for blowers (4 Single Stage blowers)

Relationship to the Strategic Plan:

Connecting our Community
3.3 Senior's Snow Clearing Program Update

Conclusion:

As the Operations & Environmental Service Department delivers snow removal services to over 400 seniors or qualified residents, it has become clear that the program in its current form is not sustainable to deliver service levels that meet expectations and will be unable to keep up with the forecasted growth of the program over the coming years.

Therefore, it is the staff's recommendation that this service be modified to include cleaning of the windrow, the municipal portion of the driveway apron, and the municipal sidewalk for residents aged over 65 and qualified residents. Based on 420 homes, four additional crews are required to be added (60 homes per crew) to complete the modified service level to within a 24-hour period (one twelve-hour shift).

Attachments:

ATT-1: IMO Survey Results

ATT-2: Accessibility Advisory Draft Minutes

ATT-3: Age Friendly Correspondence

Prepared by:

Robert Gamble – Supervisor Special Events & Senior Snow
Tim Field – Manager of Environmental Services

Submitted by:

Dave Meredith – Director of Operations & Environmental Services

Approved by:

Shane Baker – Chief Administrative Officer

Project Report

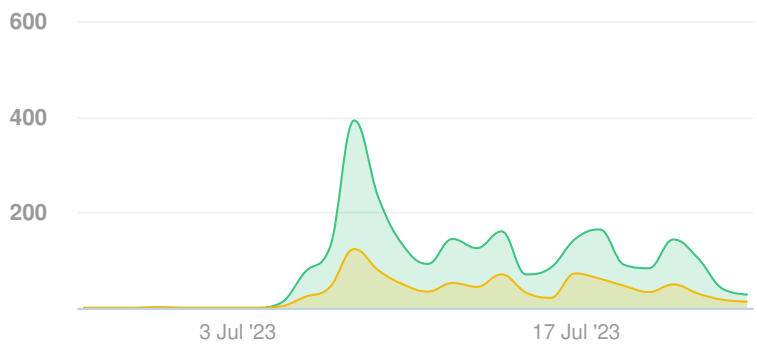
08 January 2019 - 23 July 2023

In My Opinion

Town of Ajax Snow Removal Program for Qualified Residents

BANG THE TABLE engagementHQ

Visitors Summary



Highlights

TOTAL VISITS	MAX VISITORS PER DAY
969	122

NEW REGISTRATIONS
0

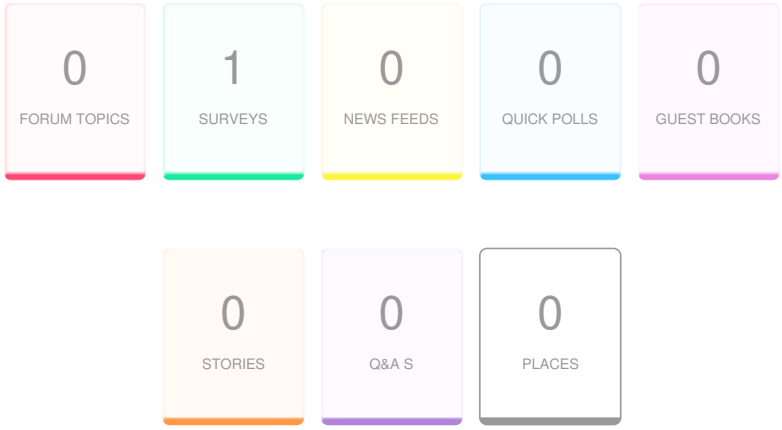
ENGAGED VISITORS	INFORMED VISITORS	AWARE VISITORS
352	554	822

Aware Participants	822
Aware Actions Performed	Participants
Visited a Project or Tool Page	822

Informed Participants	554
Informed Actions Performed	Participants
Viewed a video	0
Viewed a photo	0
Downloaded a document	47
Visited the Key Dates page	0
Visited an FAQ list Page	0
Visited Instagram Page	0
Visited Multiple Project Pages	190
Contributed to a tool (engaged)	352

Engaged Participants	352		
Engaged Actions Performed	Registered	Unverified	Anonymous
Contributed on Forums	0	0	0
Participated in Surveys	0	1	351
Contributed to Newsfeeds	0	0	0
Participated in Quick Polls	0	0	0
Posted on Guestbooks	0	0	0
Contributed to Stories	0	0	0
Asked Questions	0	0	0
Placed Pins on Places	0	0	0
Contributed to Ideas	0	0	0

ENGAGEMENT TOOLS SUMMARY



Tool Type	Engagement Tool Name	Tool Status	Visitors	Contributors		
				Registered	Unverified	Anonymous
Survey Tool	Town of Ajax Snow Removal Program for Qualified Residents	Draft	599	0	1	351

INFORMATION WIDGET SUMMARY

2	0	0	0	0
DOCUMENTS	PHOTOS	VIDEOS	FAQS	KEY DATES

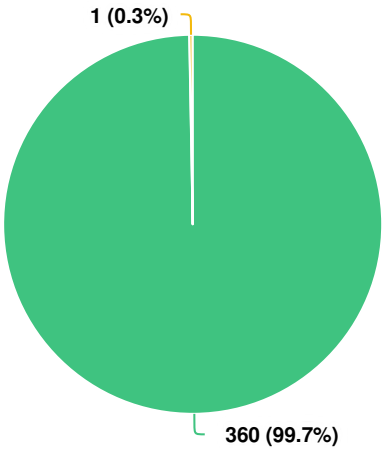
Widget Type	Engagement Tool Name	Visitors	Views/Downloads
Document	May 8th, GGC Report - Town of Ajax Snow Removal Program.pdf	37	38
Document	Summary of Council Decisions for May 2023.pdf	24	26

ENGAGEMENT TOOL: SURVEY TOOL

Town of Ajax Snow Removal Program for Qualified Residents

Visitors 599	Contributors 352	CONTRIBUTIONS 363

Are you an Ajax resident?



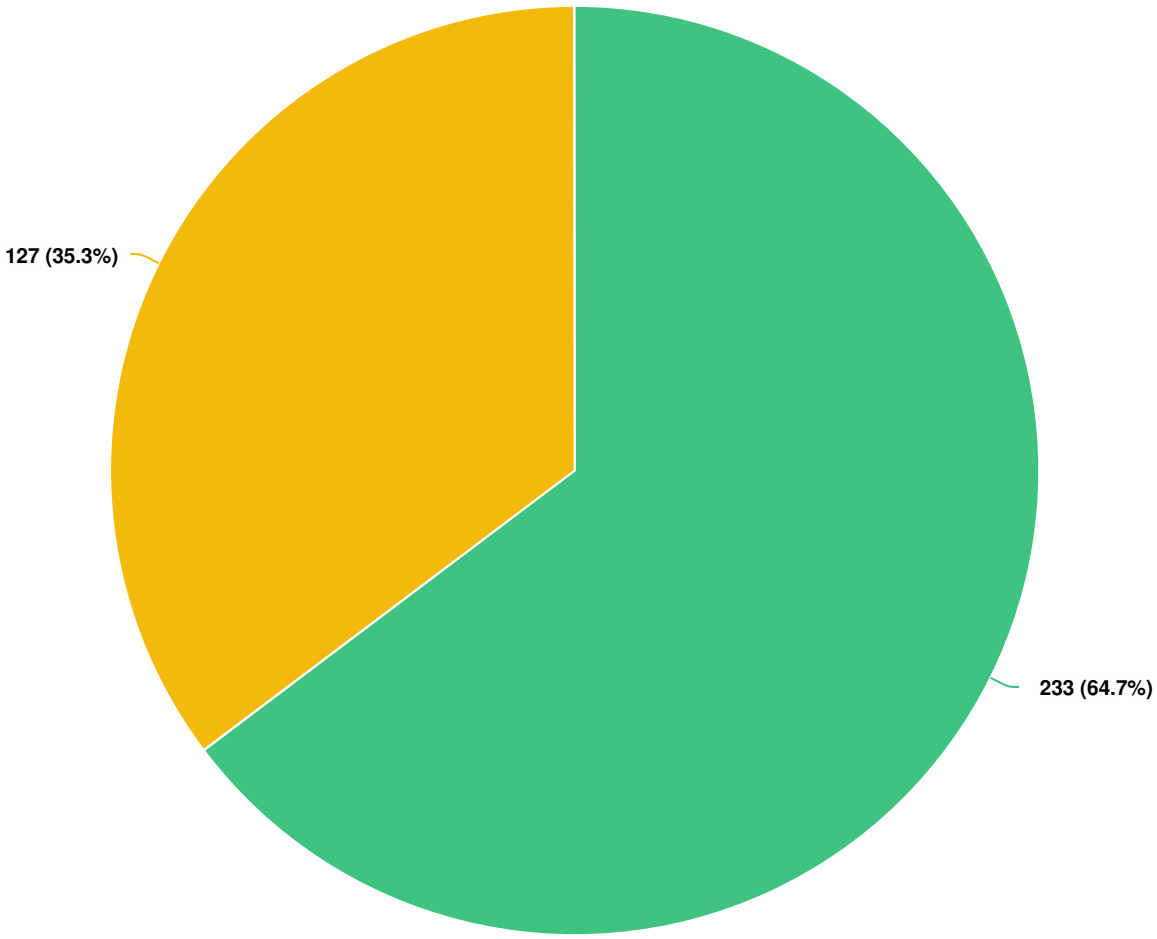
Question options

Yes No

Optional question (361 response(s), 2 skipped)

Question type: Radio Button Question

Are you over the age of 65?



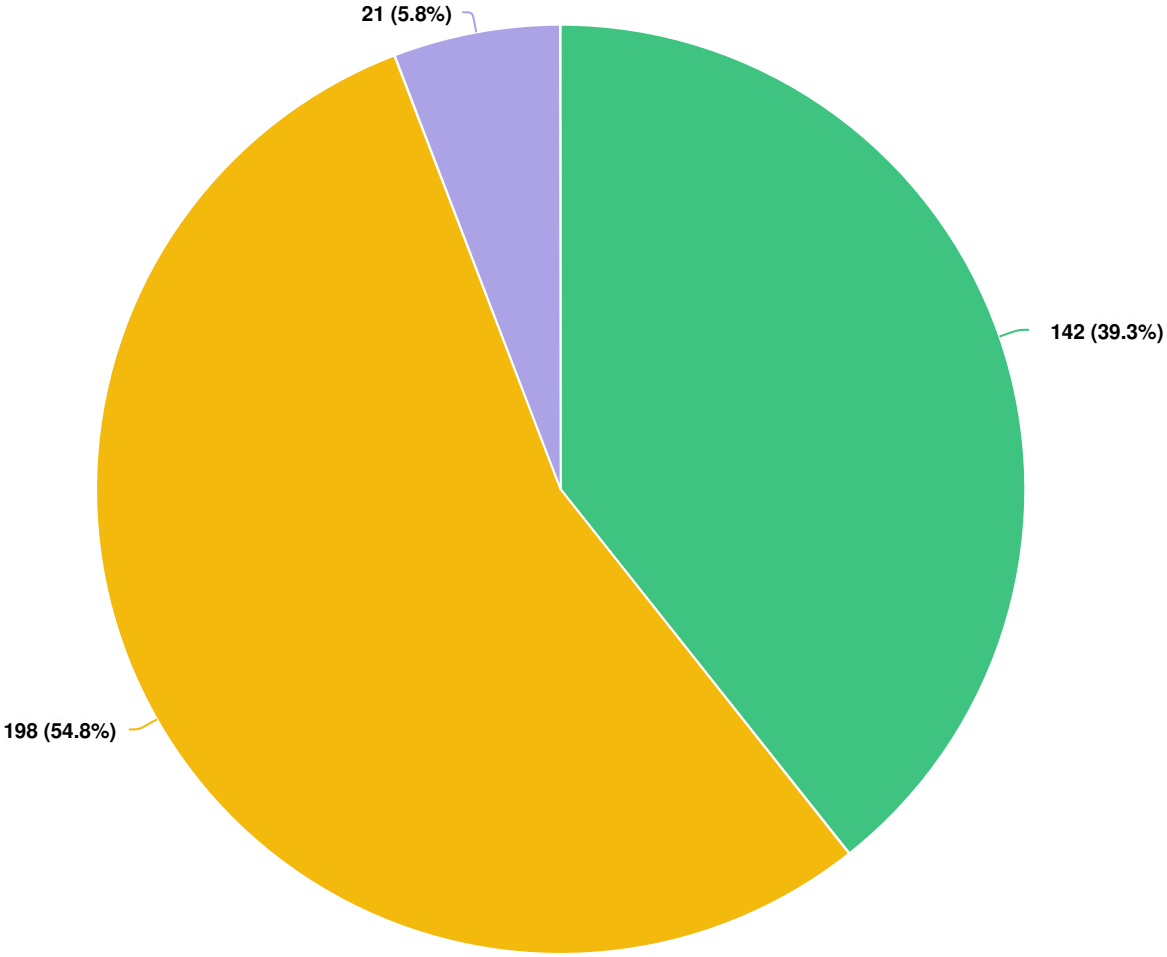
Question options

Yes No

Optional question (360 response(s), 3 skipped)

Question type: Radio Button Question

Are you currently enrolled in the program?



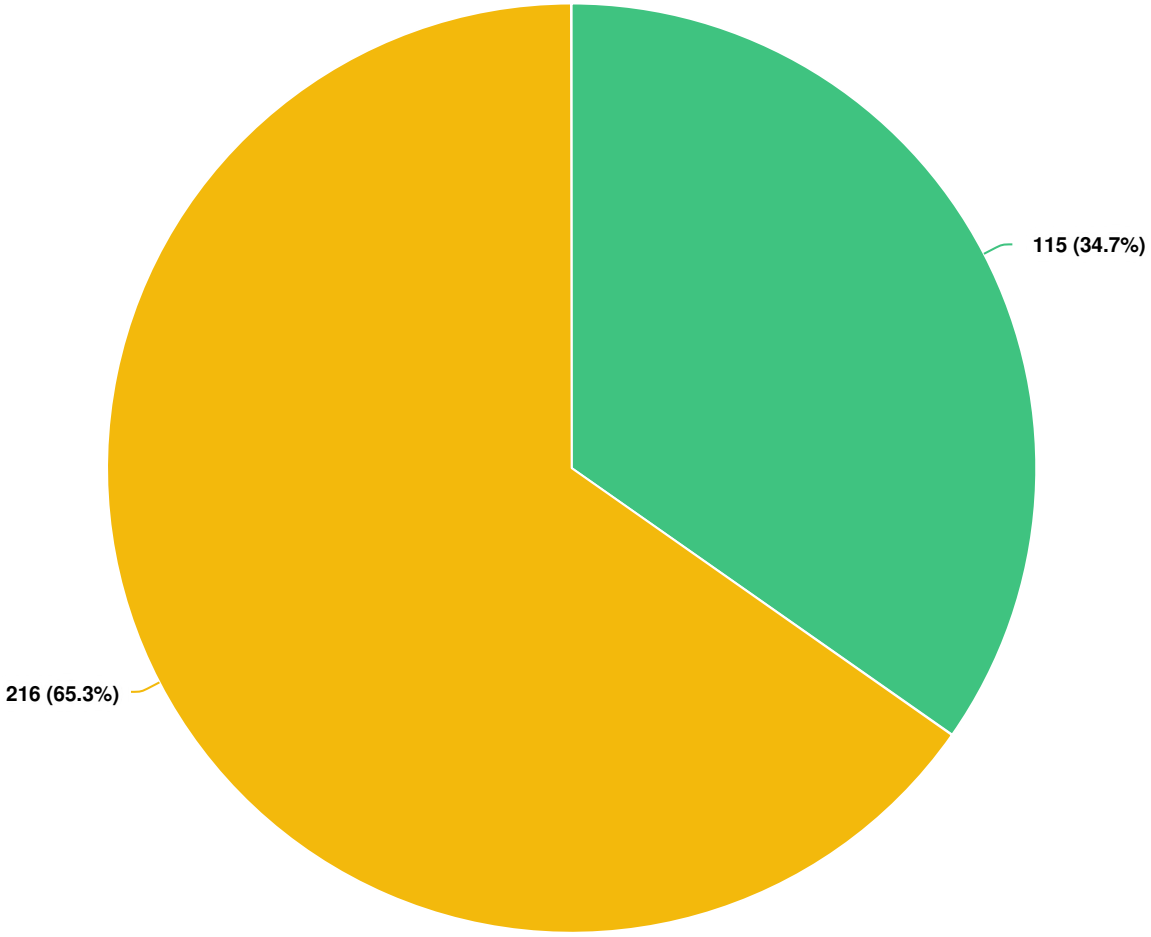
Question options

Yes No Past participant

Optional question (361 response(s), 2 skipped)

Question type: Radio Button Question

Are you currently satisfied with the current program?



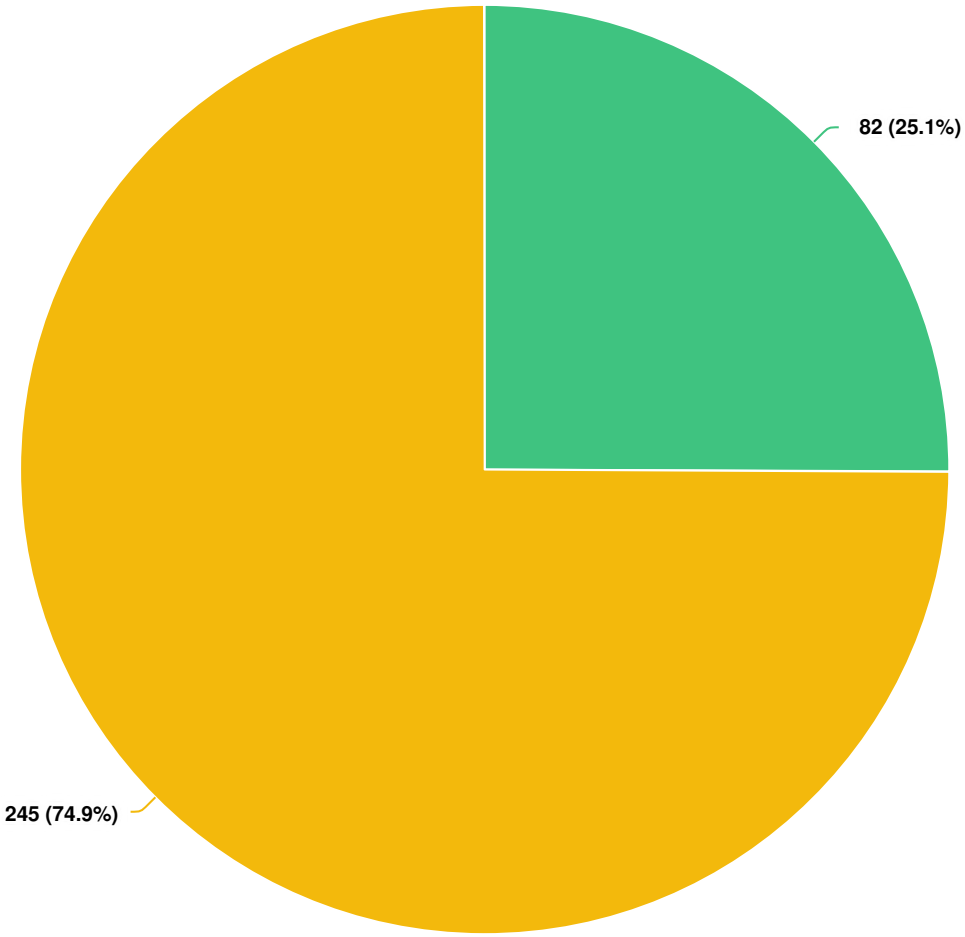
Question options

Yes No

Optional question (331 response(s), 32 skipped)

Question type: Radio Button Question

Are you satisfied with the length of time it takes to receive the service after a snow event?



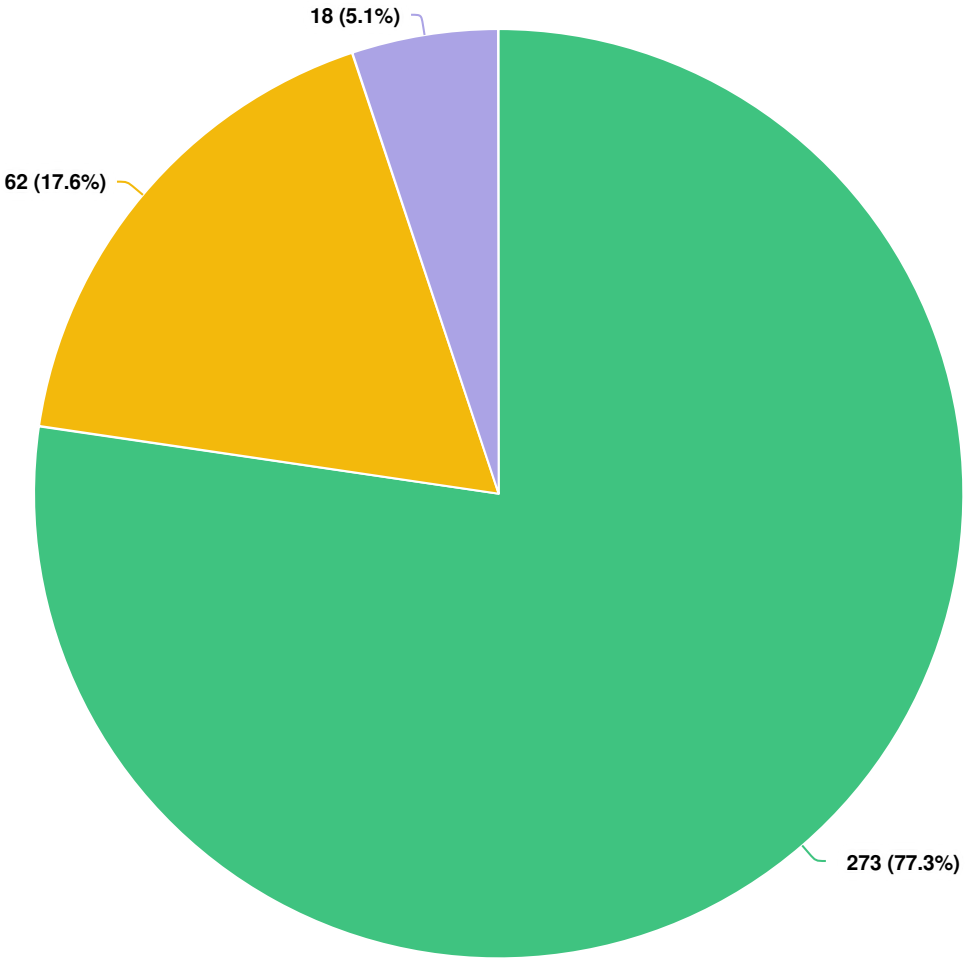
Question options

Yes No

Optional question (327 response(s), 36 skipped)

Question type: Radio Button Question

What do you feel is a reasonable time frame to deliver the service?



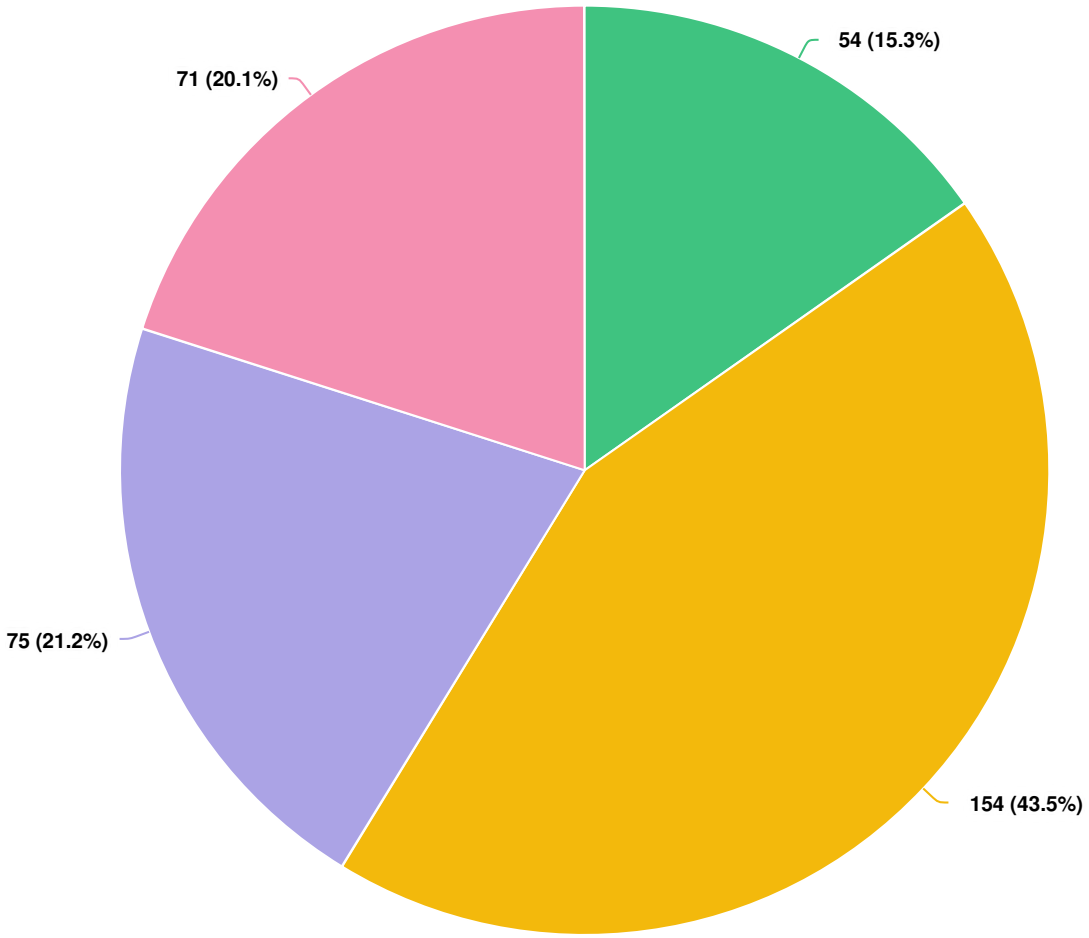
Question options

24 hours 36 hours 48 hours

Optional question (353 response(s), 10 skipped)

Question type: Radio Button Question

What type of service would you be happy to receive in 24 hours from when the snow has stopped falling?



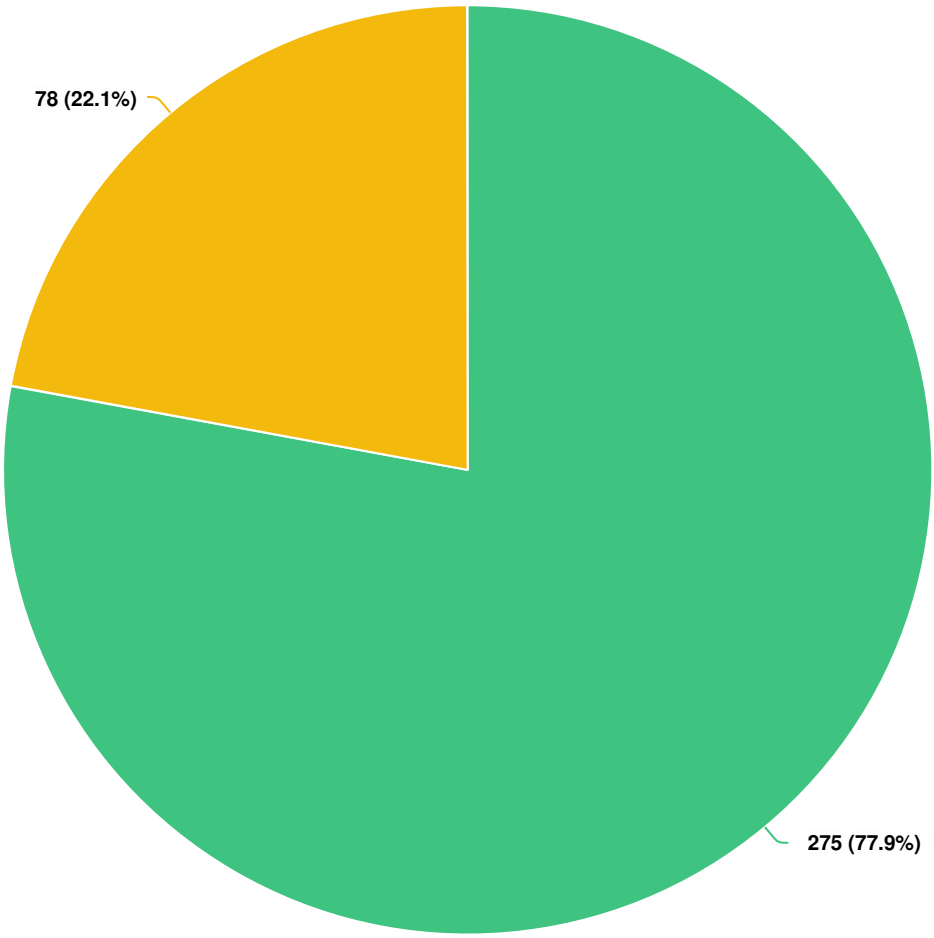
Question options

- Driveway for single car, sidewalk, windrow
- Driveway for single car, sidewalk, windrow, single pathway to door
- Sidewalk, windrow, and driveway apron (approx. 10" at end of driveway)
- Sidewalk, windrow

Optional question (354 response(s), 9 skipped)

Question type: Radio Button Question

Should this program be subsidized, or based on full cost recovery?



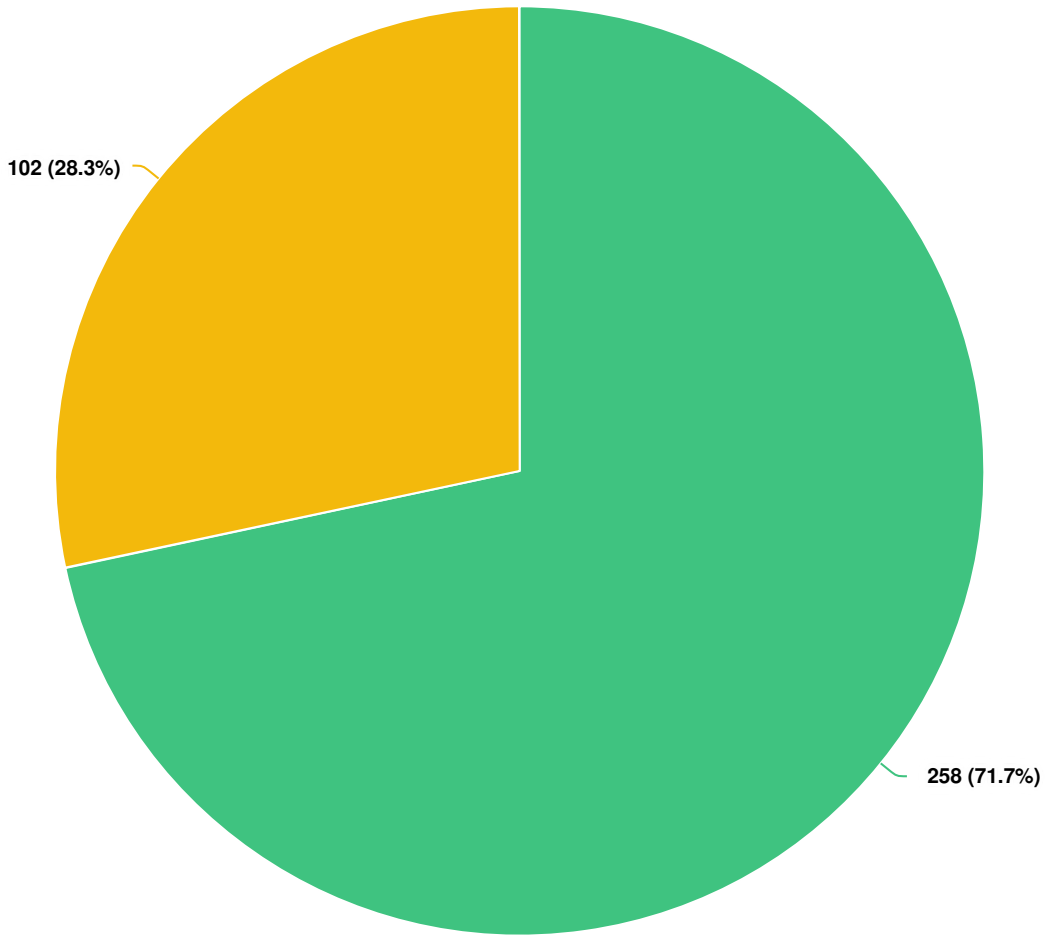
Question options

Subsidized
Full-cost recovery

Optional question (353 response(s), 10 skipped)

Question type: Radio Button Question

As an alternative to the existing program, if the program was free for qualified residents and service delivery included windrow, sidewalk, and driveway apron (bottom of driveway), would you support this change in service?



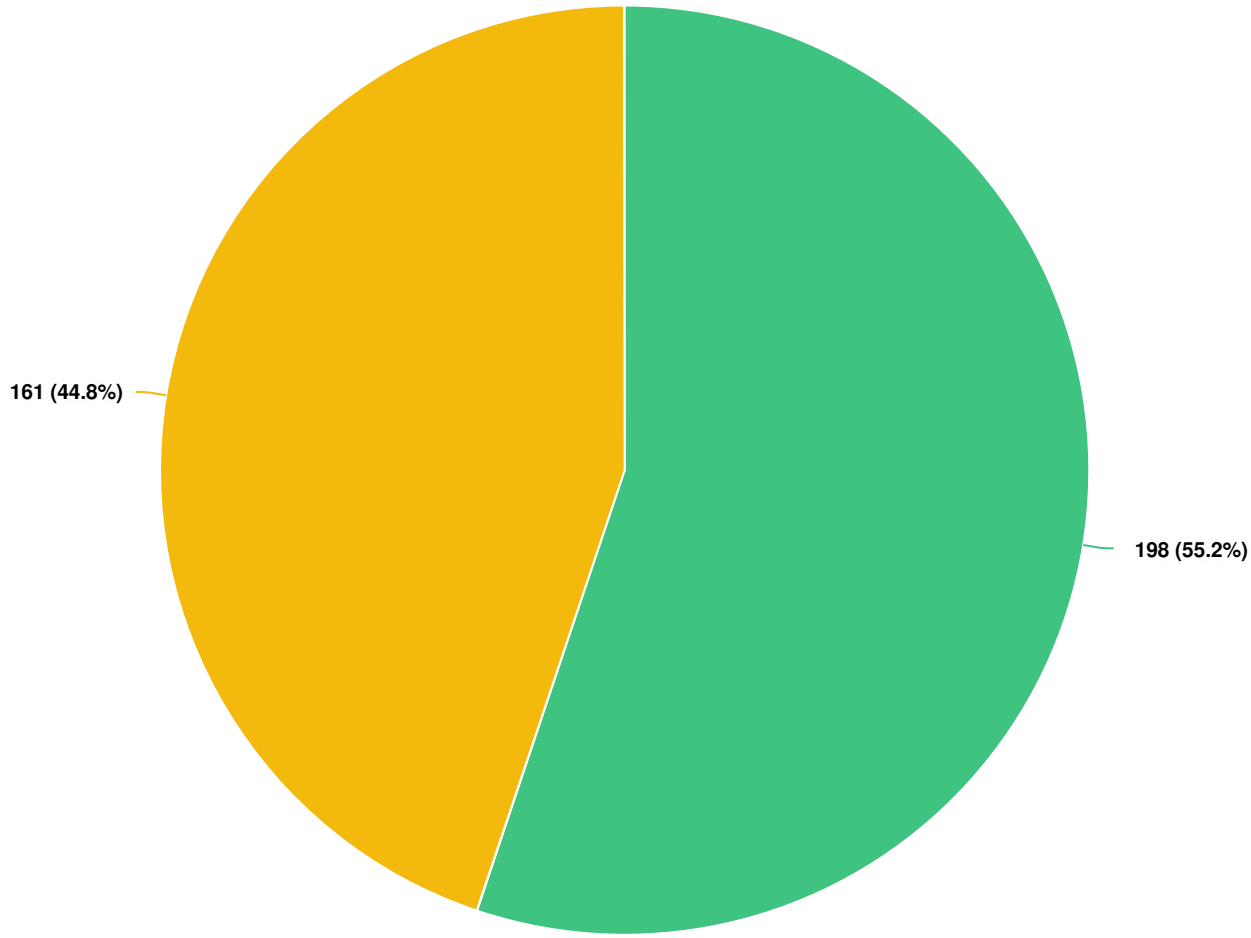
Question options

Yes No

Optional question (360 response(s), 3 skipped)

Question type: Radio Button Question

Would you support a tiered pricing structure for Seniors and Qualified residents based on household income levels?



Question options

Yes No

Optional question (359 response(s), 4 skipped)

Question type: Radio Button Question

DRAFT MINUTES
Accessibility Advisory Committee
June 21, 2023

River Plate Room, Town Hall
65 Harwood Ave. South
Hybrid Meeting No. 3

Alternative formats available upon request by contacting
sarah.moore@ajax.ca or 905-619-2529 ext. 3347

Committee Members:	Councillor Nancy Henry Sepelene Deonarine, Chair (online) Ray Smith (online) Kailey Danks (online) Adrian Lambert Kenneth Kwong Kathreen Smith
Staff:	Sarah Moore, Legislative Specialist
Regrets:	Tarak Ahmed Harneak Burmi
Guests:	Tim Field, Manager of Environmental Services Robert Gamble, Temporary Weekend Supervisor of Special Events and Senior Snow

1. Call to Order & Land Acknowledgement

Chair Deonarine called the Meeting to order at 6:05 p.m. and read the Town's Land Acknowledgement.

2. Disclosure of Conflict of Interest

None

3. Approval of Minutes

Moved By: R. Smith
Seconded By: A. Lambert

That the May 15, 2023, Meeting Minutes of the Accessibility Advisory Committee be approved.

CARRIED

4. Presentation/Discussion

4.1 Senior Snow Program

Tim Field, Manager of Environmental Services and Robert Gamble, Temporary Weekend Supervisor of Special Events and Senior Snow delivered a presentation regarding proposed changes to the Town's Snow Removal Program for Seniors and Qualified Residents. They discussed municipal service comparisons, the Town's current service levels, recommendations proposed at the June 12 General Government Committee Meeting, the proposed service model, as well as Council's referral motion to seek input from the Age Friendly Steering Committee, Ajax Accessibility Committee, and reach out to participants currently in the program.

Members asked questions relating to insurance, contracted services, frequency of payment, cost, eligibility qualifications, slips and falls and waivers. T. Field and R. Gamble responded to questions. Members expressed concerns for the potential high cost increase and suggested a financial subsidy for the service or for individuals to contract their own service. Concerns were identified that some essential personal support/meal delivery/medical support services may not be authorized to access the property if the driveway was not fully cleared.

T. Field noted that an IMO project page will be launched in July with a public survey to solicit additional feedback and consultation. A staff report will be brough to the September General Government Committee Meeting for review. S. Moore will circulate the survey link once available.

4.2 Comprehensive Review of Multi-Year Accessibility Plan

S. Moore discussed the Town's comprehensive review of the Multi-Year Accessibility Plan due this year. She delivered a presentation regarding consultation elements of the review and the Town's participation in Leading Equitable Accessible Design program with the Abilities Centre. She reviewed the opportunity and time requirements for 1-2 Committee Members to participate in the staff assessment team. Those interested were asked to reply by email. She noted proposed timelines for the review, and that details of pop-up consultation opportunities for Members to take part in will be shared.

Members discussed feedback on the draft accessibility survey. S. Moore agreed to circulate by email for additional feedback.

4.3 National AccessAbility Week 2023 Debrief

S. Moore presented a summary of the 2020 National AccessABILITY Week recognition events which included a flag raising, #RedShirtDay, the Power Up, Ajax! Mobility device charging station launch, film screening and colouring contest. She shared the Ajax Public Library's support for the week through social media and branch displays. Members acknowledged the success of the week.

5. Correspondence

5.1 Regional Accessibility Award Nominations

Chair Deonarine summarized the annual exercise of the Committee's role in submitting a

nomination for the Regional Accessibility Award. She sought suggestions from the Committee on potential nominees. S. Moore noted that coordination of a nomination would need to occur over email, in time to bring forward a nomination for the committee to approve at the September Meeting.

6. External Committee Updates

6.1 Age-Friendly Steering Committee

R. Smith provided a brief update on recent business, noting that the Committee had received the Snow Removal Program presentation and feedback discussion. He also noted the positive feedback received for hosting the Seniors BBQ at the Audley Recreation Centre Banquet Hall. The Committee will be recruiting new membership in the fall and R. Smith suggested that L. Rae be invited to a future meeting to discuss the Committee's recruitment.

7. Update from Council

Councillor Henry shared information on the June 22, 2023 Senior Appreciation Luncheon hosted by MPP Patrice Barnes. She noted that the Honorable Raymond Cho, Minster for Seniors and Accessibility will be in attendance. S. Moore noted she would circulate the event flyer shared by Councillor Henry.

8. New/Other Business

- **Driver Awareness Campaign for Pedestrians with Disabilities**
  S. Moore reminded Members about the application period to participate in the Driver Awareness Campaign for Pedestrians with Disabilities.

- **Trailfest Participation**
  S. Moore sought Member participation for the information station at the June 25 Trailfest event. K. Kwong volunteered to stop by.

- **New Member Welcome**
  S. Moore noted that Council had recently appointed Rosanne Purnwasie and Heather Azzarello to the Committee. They will be participating in orientation during the coming weeks and will attend their first meeting in September.

- **Accessible Parking**
  S. Moore shared a proposed design from a recent development application for a large retail plaza seeking to paint horizontal lines across the accessible parking spaces. Members and staff discussed concerns with the proposed design which will cause confusion for pedestrians and drivers. The Committee strongly encouraged staff to not support the proposed design.

- **CNIB Mobile Hub**

DRAFT

R. Smith shared a summary of the recent visit from the CNIB Mobile Hub to the Ajax Public Library. He noted that the Mobile Hub will be visiting again in the fall. It was suggested that the Ajax Public Library attend a future meeting to present and discuss accessibility initiatives.

9. Adjournment

Moved By: K. Smith
Seconded By: K. Kwong

That the June 21, 2023, Meeting of the Accessibility Advisory Committee be adjourned. (8:33 p.m.).

CARRIED

DRAFT

DATE: July 17, 2023

TO: Tim Field. Town of Ajax
Robert Gamble, Town of Ajax

FROM: Joyce Starkman, Ajax Resident, Age-Friendly Ajax Steering Committee Member
Harvey Brodhecker, Ajax Resident, Age-Friendly Ajax Steering Committee Member

RE: Proposed amendments to Town of Ajax Snow Removal for Seniors & Qualified Residents

CC: Shaun Collier, Mayor Town of Ajax
Lisa Bower, Councillor Ward 3 Town of Ajax
Joanne Dies, Durham Regional Ward 3 Councillor
Town of Ajax, Accessibility Advisory Committee
Town of Ajax, Age-Friendly Ajax Steering Committee

On June 15, 2023, the Age-Friendly Ajax Steering Committee received a presentation entitled ***Snow Removal for Seniors & Qualified Residents***. The presentation delivered by Tim Field outlined proposed changes to the existing service model as follows:

- Discontinuation of Service Level 1 (full driveway, windrow, sidewalk, and path to door)
- Retain Service Level 2 (windrow and sidewalk) with the addition of the driveway apron and path to the door.

It is our understanding that the proposed service model changes are in response to the following constraints:

1. Service delivery constraints: current program is not being delivered within service timeline targets.
2. Financial constraints: delivering the current program within service targets requires the addition of both personnel and equipment resulting in a significant increase in service cost for residents.
3. Liability constraints: current program poses significant risk for the Town of Ajax operating on private property.

An age-friendly community is one which supports aging in place. This means having the services and supports needed to live safely, independently, and comfortably in one's home for as long as one wishes regardless of age, income, or ability. According to the 2021 National Home Modifications Survey, 78 per cent of Canadians wish to age in their current homes. Aging in place offers many benefits:

- More cost-effective than living in a retirement home.
- Provides a healthier and safer living environment than congregate living facilities.
- Supports key social networks with family, friends and neighbours.
- Maintains dignity and independence.

In Canada, snow removal services are crucial for ensuring seniors and persons with disabilities have the option to age in place. It is our opinion that a decrease in service is not in alignment with aging in place or building an age-friendly community.

As an alternative, considering the constraints mentioned above, we are requesting the Town of Ajax consider a tiered subsidy-based program model to replace Service Level 1 (full driveway, windrow, sidewalk and path to door). Qualified seniors and residents with disabilities would hire an independent contractor to perform snow removal services on their property. These qualified residents would then receive a tiered reimbursement from the Town of Ajax. To qualify for reimbursement, a means test would be used to determine the level of subsidy provided and could be modelled after the existing financial assistance program administered through the Recreation and Culture Department. In consideration of this model, it is our opinion that residents who receive ODSP and/or GIS should automatically receive the maximum subsidy amount.

A potential administrative procedure could consist of the following: qualified residents present their receipt for snow removal from the independent contractor along with their current Statement of Income from Revenue Canada to the Town of Ajax to receive an appropriate reimbursement.

Service Level 2 (windrow and sidewalk) would be retained as currently provided.

This model would not only address the financial and liability constraints described by Tim Field but would maintain and potentially improve service levels to vulnerable residents who qualify for the revised program.

Sincerely,

Harvey Brodhecker
49 Kipling Cres., Ajax
hbrodhecker@yahoo.ca
(416) 894-5778

Joyce Starkman
14 Follett Court, Ajax
jdstarkman@icloud.com
(416) 200-8649

Town of Ajax Report

Report To:	Council
Prepared By:	Marilyn Crawford – Regional Councillor – Ward 1
Report #:	N/A
Subject:	**Regional Councillor's Update – M. Crawford – September 18, 2023**
Ward(s):	N/A
Date of Meeting:	September 18, 2023
Reference:	N/A

Recommendation:

That the report titled "Regional Councillor's Update – M. Crawford – September 18, 2023" be received for information.

Background:

Not applicable.

Discussion:

AMO Conference 2023

- A record-breaking 2400 participants attended the AMO Conference in London. A variety of topics on common municipal challenges were presented including municipal finance, housing, climate change and infrastructure-funding.
    - The final day of AMO was focused exclusively on homelessness.
- Durham Region had 5 AMO delegations and met with the Ministry of Health (MOH), the Ministry of Children Community and Social Services (MCCSS), the Ministry of Economic Development and Job Creation and Trade(MEDJCT), the Ministry of Municipal Affairs and Housing (MMAH) and the Ministry of Infrastructure (MOI).
    - Key delegation topics included Durham's clean energy sector investment potential, the need for health system supports including timely delivery of Lakeridge's hospital planning grant, opportunities for partnership on affordable and supportive housing, and support in addressing homelessness and related challenges.
    - The Ministers of MOH and MCCSS were provided with the Durham Region Policy Paper: Addressing Homelessness and Related Challenges.
- The Premier, Minister Jones and Minister Clark all delivered key announcements at AMO including:
    - The province announced an expansion of strong mayors powers and housing targets to 21 additional municipalities;

  - The province announced the Building Faster Fund providing $400 million/year for 3 years to incent local municipalities who meet provincial housing targets;
  - Minister Clark noted the government's intention to update the definition of "affordable," as part of upcoming changes to the Development Charges Act and that this definition will consider income;
  - Province announced an increase in funding to municipalities for health services including a return to the 75 per cent provincial 25 per cent municipal cost sharing ratio for public health.
- Town of Ajax - separately TOA had 4 delegations, Minister of Transportation (MOT), Attorney General (MAG), Minister of Environment, Conservation and Parks (MECP) and Minister of Municipal Affairs and Housing (MMAH).
  - Topics covered included secure bike lockers at the Ajax GO Station, upgrading sound walls along the Highway 401 corridor, unlocking sewer capacity along Hunt Street, protection of Lake Ontario through the optimization of the Duffin Creek Water Pollution Control Plant, keeping pace with innovative municipal by-law enforcement, clarifications on the announcement of Building Faster Fund, how and when the province will "make municipalities whole" on lost development charges, and updates on the Town's outstanding 4 Community Infrastructure and Housing Accelerator requests.
- The AMO 2024 Conference will take place in Ottawa from August 18 to August 21, 2024.

Transit

- A fire occurred at Durham Region Transit's Raleigh bus depot in Oshawa on August 16, 2023, resulting in the loss of 19 busses. The Toronto Transit Commission is generously supporting DRT by loaning 10 TTC buses, to ensure service levels are upheld.
- To improve the management of customer waste at DRT bus stops, DRT has awarded a contract to Creative Outdoor Advertising to supply, install and maintain waste and recycling at DRT bus stops across the Region.
- In collaboration with Durham's Social Services Department, DRT is funding two outreach workers from the Social Services Outreach program as part of a pilot to support unsheltered and vulnerable individuals interacting with, or accessing, transit.
- Metrolinx recently announced GO Train schedule changes that will impact DRT users, taking effect on September 2, 2023, 3 days after notice was given. DRT requires 2 months' notice to change schedules and is unable to make schedule adjustments until the next service change in December. Staff will evaluate temporary adjustments that may be available through the fall.
- Effective August 8, Metrolinx reduced the cost of their PRESTO card to $4, from the previous price of $6. The price change covers card manufacturing and distribution costs.

Financial Implications:

Not applicable.

Communication Issues:

Not applicable.

Relationship to the Strategic Plan:

Not applicable.

Conclusion:

Not applicable.

Attachments: N/A

Prepared by:

Marilyn Crawford – Regional Councillor – Ward 1

The Corporation of the Town of Ajax
September 18, 2023

Motion

Utilizing Crime Prevention through Environmental Design at the Harwood Plaza

Moved by: **Councillor Bower**
Seconded by: **Regional Councillor Dies**

WHEREAS Crime Prevention Through Environmental Design (CPTED) uses urban and architectural design and the management of built and natural environments to reduce crime and minimize fear of crime;

AND WHEREAS the Durham Regional Police Service (DRPS) recently completed a CPTED scan of the Harwood Plaza;

AND WHEREAS DRPS made the following recommendations:

- Remove the low sidewalk-adjacent shrubs, which could be used to conceal or hide items;
- Trim tree limbs on mature trees to 2.1 metres (7 feet) from ground level to improve sight lines and prevent easy climbing;
- Regularly maintain all landscaping;

AND WHEREAS the Town of Ajax is responsible for the maintenance of the Harwood plaza parking lot and sidewalks up to the building;

AND WHERAS Town Operations and Environmental Services performs daily morning maintenance to ensure that the area is clear of debris and a welcoming environment to users;

NOW THEREFORE BE IT RESOLVED THAT:

1. Operations and Environmental Services be directed to immediately remove shrubs along the sidewalk at Harwood Plaza; and

2. By the end of Fall 2023, Operations and Environmental Services be directed to prep and fill the shrub with mulch, and where necessary trim the limbs of trees along the sidewalk; and

3. Operations and Environmental Services staff offer recommendations on beautification for the beds where shrubs have been removed by Spring 2024; and

4. Mayor Shaun Collier, on behalf of Council, send a letter to DRPS asking for an annual CPTED review of the Harwood Plaza.

The Corporation of the Town of Ajax
September 18, 2023

Motion

Provincial Sharing of HST

Moved by: **Regional Councillor Lee**
Seconded by: **Councillor Bower**

WHEREAS municipalities across Ontario are facing increasing fiscal challenges given inflationary pressures, population growth, higher interest rates, strained household/taxpayer affordability, reduced property taxes available from the non-residential sector, and social issues such as homelessness, new immigrants and refugee claimants;

AND WHEREAS municipalities are facing further pressure as a result of increasing servicing costs and community infrastructure needs directly related to the province's call on municipalities to build more homes and play a significant role in addressing the current housing crisis;

AND WHEREAS there is a need for sustainable funding models, beyond existing mechanisms, like the Canada Community-Building Fund;

AND WHEREAS trusted municipal voices such as the Association of Municipalities of Ontario (AMO) and Ontario's Big City Mayors have advocated to the two higher orders of government to work with municipalities to address the need for increased funding and supports;

AND WHEREAS the Regional Municipality of Durham Finance and Administration Committee received a staff recommendation at their September 12, 2023 meeting that the Province of Ontario be requested to provide municipalities with a share of the provincial portion of the HST;

AND WHEREAS the Province of Ontario's total sales tax, collected and remitted by the Canada Revenue Agency has grown 51 per cent since 2016 to $35.4 billion;

NOW THEREFOR BE IT RESOLVED THAT:

1. Ajax Council request that the Province of Ontario provide a share of the provincial portion of the HST to Ontario municipalities;

2. A copy of this motion be sent to the Honourable Doug Ford, Premier of Ontario, the Honourable Peter Bethlenfalvy, Minister of Finance, Patrice Barnes, MPP for Ajax, John Henry, Durham Regional Chair, Ontario's Big City Mayors, the Association of Municipalities of Ontario.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 47-2023

A By-law to amend By-law 45-2020, being a By-law to regulate traffic on highways in the Town of Ajax.

WHEREAS the Council of The Corporation of the Town of Ajax may pass By-laws pursuant to the Highway Traffic Act, R.S.O.1990 and amendments thereto:

NOW THEREFORE, the Council of the Corporation of the Town of Ajax enacts as follows:

That By-law Number 45-2020 as amended be further amended as follows:

SCHEDULE XXI

FIRE ROUTES

ADD:

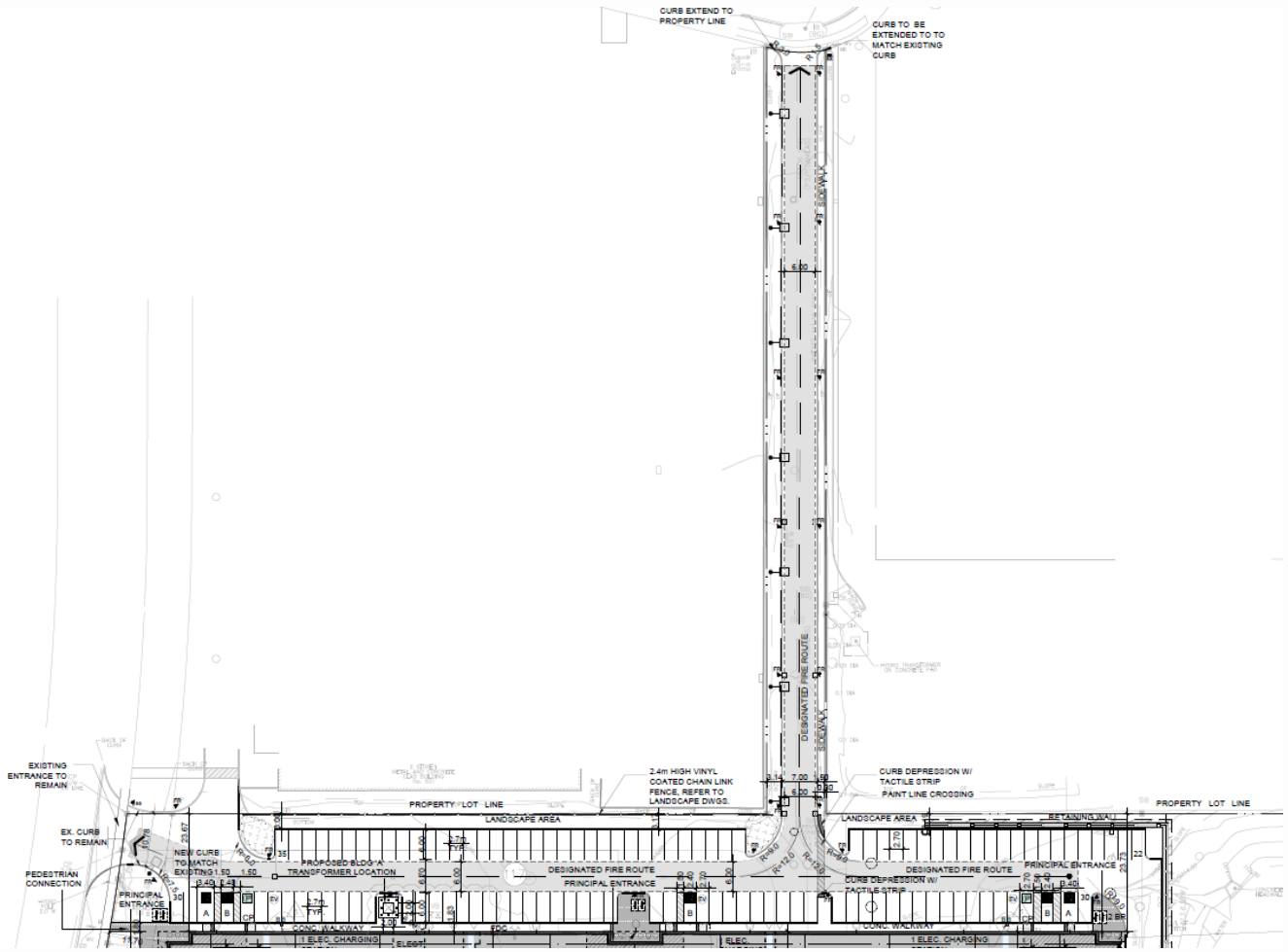
Municipal Address	Name of Property	Approval Date
575 Harwood Ave N	Warehouse	September 18, 2023

READ a first and second time this Eighteenth day of September, 2023.

READ a third time and passed this Eighteenth day of September, 2023.

_____
Mayor

_____
Deputy Clerk



NOT TO SCALE

LEGEND

APPROXIMATE LOCATION OF PROPERTY LINE

FIRE ROUTE SHOWN AS

FIRE ROUTE SIGN ON STREET LIGHT POLE

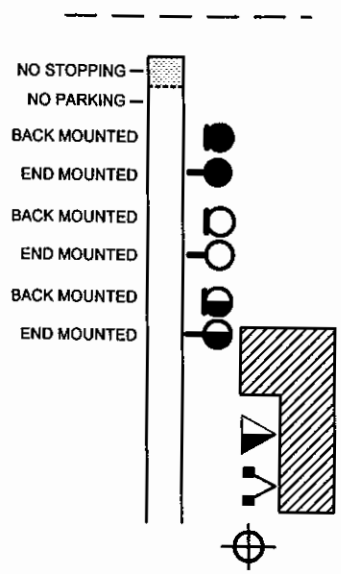
FIRE ROUTE SIGN ON SIGN POST

FIRE ROUTE SIGN ON BUILDING OR STRUCTURE

ENTRANCE TO BUILDING

FIRE (SIAMESE) CONNECTION

FIRE HYDRANT



LOCATION / DESCRIPTION

DESIGNATED FIRE ROUTE

TYPE	QTY.

DATE:

SCHEDULE NUMBER

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 48-2023

A By-law Under the Building Code Act Respecting Construction, Demolition, Change of Use Permits and Inspections.

WHEREAS Section 7 of the Building Code Act, 1992, S.O. 1992, c.23, as amended, authorizes municipal council to pass by-laws respecting construction, demolition and change of use permits, inspections and other related matters;

AND WHEREAS the Council of the Corporation of the Town of Ajax desires to repeal By-law 39-2021 and to enact a new building by-law for the issuance of permits and related matters, including the establishment of a fee schedule;

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWN OF AJAX ENACTS AS FOLLOWS:

1. SHORT TITLE

1.1. This By-law may be cited as the “Building By-law”

2. DEFINITIONS

2.1. In this By-law:

“*Act*” means the *Building Code Act*, 1992, S.O. 1992, c.23, as amended;

“*applicant*” means the *owner* of a *building* or property on which the proposed construction or demolition is to take place, or the authorized agent of the *owner*, who applies for a *permit*, or any person or corporation empowered by statute to cause the construction or demolition of a *building* or *building*s and anyone acting under the authority of such person or corporation. For the purposes of this By-law the *applicant* is the registered user of the *electronic submission*;

“*building*” means a building as defined in Subsection 1(1) of the *Act*;

“*building code*” means the regulation made under Section 34 of the *Act*;

“business day” means any weekday other than a *holiday*;

“*Chief Building Official*” means the Chief Building Official appointed by by-law of the *Corporation* for the purpose of enforcement of the *Act*, the *building code* and this By-law;

“*complete application*” means an application that meets the requirements set out in Division C, Article 1.3.1.3. of the *building code* where the *Chief Building Official* is required to make a decision within a prescribed time period, and further that meets the requirements set out in, Part 5 and Schedule B of this By-law;

“*conditional permit*” means a *permit* issued under Subsection 8(3) of the *Act*;

“*construct*” means construct as defined in Subsection 1(1) of the *Act*;

“construction value” means a value representative of the total costs for all work, services and material associated with the construction for which a *permit* is applied;

“*Corporation*” means The Corporation of the Town of Ajax;

“*demolish*” means demolish as defined in Subsection 1(1) of the *Act*;

“electronic submission” means the filing of an application under the *Act* or this By-law, including all required forms, documents and drawings, submitted through an online application procedure approved by the C*hief Building Official*;

“holiday” means any day in which the Town hall offices of the *Corporation* is not open for the transaction of business with the public;

“major permit” includes *building permit* applications for work of a major technical nature, such as new *building*s of assembly, commercial, industrial, institutional and residential occupancies containing more than three dwelling units; including additions and alterations;

“*minor permit*” includes *building permit* applications for work of a minor technical nature, such as demolitions, plumbing, decks, accessory *building*s, etc.;

“moderate permit” includes *building permit* applications for work of a moderate technical nature, such as new residential low rise *building*s (i.e. detached and semi-detached dwelling units, townhouses), including additions, alterations, and accessory dwelling units;

“Municipal Price Index” is a measure of inflation, determined annually by the Treasurer, based on the costs to the *Corporation* related to goods and services for developing and maintaining municipal infrastructure, public safety, and regulatory and legislative requirements (i.e. labour, utilities, asphalt, salt, fuel, insurance, etc);

“*owner*” means, in respect of the property on which the construction is to take place, the registered owner of the land and, except for *conditional permits*, may include a lessee, mortgagee in possession and the person acting as the *owner*’s authorized agent;

“*partial occupancy permit”* means an occupancy *permit* for the partial occupancy of a building prior to its completion as set out in Division C, Subsection 1.3.3. of the *building code*;

“*partial permit*” means a *permit* issued by the *Chief Building Official* to *construct* part of a *building*;

“*permit*” means permission or authorization given in writing by the *Chief Building Official* to perform work, to change the use of a building or part thereof, or to occupy a building or part thereof, as regulated by the *Act* and *building code*;

“*permit holder*” means the *owner* to whom the *permit* was issued or where a *permit* has been transferred, the new *owner* to whom the *permit* has been transferred;

“*pre-application review*” means the review of forms, documents and drawings which precedes the acceptance of a *permit* application to determine if it qualifies for an *electronic submission* for a *permit*;

“*Registered Code Agency*” means a registered code agency as defined in Subsection 1(1) of the *Act*;

“*revised submission”* means additional information filed with the *Chief Building Official* which depicts one or more changes to the approved design of a *building* or part of a *building* for which a *permit* has already been issued and for which approval by the *Chief Building Official* is required;

“retrofit accessory apartment” means an accessory apartment existing prior to July 14, 1994, which has been inspected for compliance with Section 9.8 of the Ontario Fire Code, and a Notice of Violation issued indicating the remedial construction required;

"Site Inspection Clearance Certificate" means a certificate issued by an Ontario Licensed Exterminator that the entire exterior site for a Site Servicing *Permit* or the entire interior/exterior site for a Demolition *Permit* has been inspected and is free of any infestation of any rodents and other vermin that may cause negative impacts to the surrounding community.

2.2 Terms not defined in this By-law shall have the meaning ascribed to them in the *Act* or the *building code*.

3. CODE OF CONDUCT

3.1. The *Chief Building Official* and inspectors appointed under Section 3 of the *Act* shall be governed by the Code of Conduct as set out in Schedule "C" to this By-law, with respect to exercising powers and performing duties under the *Act*.

4. CLASSES OF *PERMITS*

4.1. Classes of *permit*s and the permit fees therefore, shall be set out in Schedule "A" to this By-law.

5. REQUIREMENTS FOR *PERMIT* APPLICATIONS

5.1. General Requirements

5.1.1. Every *permit* application, and application for an alternative solution must meet the requirements of this Section and Part 7 and shall:

5.1.1.1. be made by an *applicant;*

5.1.1.2. be made to the *Chief Building Official* on forms prescribed by the Province of Ontario or when no form is prescribed, on a form prescribed by the *Chief Building Official*;

5.1.1.3. be accompanied by the required fees calculated in accordance with Schedule "A", and

5.1.1.4. unless otherwise determined by the *Chief Building Official*, be in the form of an *electronic submission* filed by the *applicant*;

5.1.2. To be considered a *complete application*, every *permit* application shall be accompanied by the approval documents issued by the agencies responsible for the applicable laws listed in the *building code*, where those agencies issued approval documents and the law applies to the construction or demolition being proposed.

5.1.3. An application for a *permit* may be refused by the *Chief Building Official* where it is not a *complete application*.

5.1.4. The *Chief Building Official* may, as they deem appropriate, provide prescribed forms in an electronic format, and may allow for the *electronic submission* of completed *permit* application forms.

5.1.5. Notwithstanding Subsection 5.1.4, completed forms generated electronically shall be accepted subject to the endorsement by the *applicant*.

5.1.6. When filing an application, the *owner* and the *applicant* shall provide an electronic address(es) for the purpose of receiving communications from the *Chief Building Official* regarding the work or proposal associated with a *permit* application or issued *permit*. The *owner* or authorized agent of the *owner* shall inform the *Chief Building Official* immediately in writing when the electronic address(es) provided changes or becomes nonfunctional.

5.2. **Applications for *Permits* to *Construct***

Every application for a *permit* to *construct* a *building* shall:

5.2.1. identify and describe in detail the work to be done and the existing, proposed use, and occupancy of the *building*, or part thereof, for which the *building permit* application is made;

5.2.2. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law; and

5.2.3. be accompanied by acceptable proof of corporate identity and property ownership unless such proof is determined by the *Chief Building Official* to be unnecessary.

5.3. **Applications for *Permits* to *Demolish***

Every application for a *permit* to *demolish* a *building* shall:

5.3.1. identify and describe in detail the work to be done and the existing use and occupancy of the *building*, or part thereof, for which the application for a *permit* to *demolish* is made, and the proposed use and occupancy of that part of the *building*, if any, that will remain upon completion of the demolition;

5.3.2. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law; and,

5.3.3. be accompanied by proof satisfactory to the *Chief Building Official* that arrangements have been made with the proper authorities for the termination and capping of all the water, sewer, gas, electric, telephone or other utilities and services.

5.4. **Applications for *Permits* for a Stage of Construction (*Partial Permit*)**

In addition to the requirements of Section 5.2, every application for a *partial permit* shall:

5.4.1. require a *permit* application for the entire project; and,

5.4.2. be accompanied by plans, specifications, documents, forms, and other information covering that part of the work for which application for a *partial permit* is made, together with such information pertaining to the remainder of the work as may be required by the *Chief Building Official*.

5.4.3. The *Chief Building Official* may issue a *partial permit* when it is determined appropriate to expedite substantial construction before a *permit* for the entire *building* is available and where the relevant provisions of this By-law and the *Act* are met.

5.4.3.1. When determining whether to issue a *partial permit*, the *Chief Building Official* shall have regard for the likelihood of subsequent approvals being available in a timely fashion such that a project is not interrupted and exposed to potential damage from the elements while awaiting subsequent approvals.

5.4.4. The *Chief Building Official* shall not, by reason of the issuance of a *partial permit* pursuant to this By-law, be under any obligation to grant any additional *permits*.

5.5. **Applications for *Conditional Permits***

5.5.1. An application for a *conditional permit* cannot be filed until the plans review for the scope of work for which the *conditional permit* is being requested is complete. In addition to the requirements of Section 5.2, every application for a *conditional permit* shall be accompanied by,

5.5.1.1. a written statement from the *applicant* explaining the reasons why the *applicant* believes that unreasonable delays in construction would occur if a *conditional permit* is not granted;

5.5.1.2. a written acknowledgement from the *applicant* of the necessary approvals which must be obtained in respect of the proposed *building* in order for the *permit* to be issued and the time in which such approvals will be obtained, and

5.5.1.3. a written agreement, in the form provided by the *Chief Building Official*, executed by the *applicant*, the *owner* and/or such other necessary persons the *Chief Building Official* determines for the purposes set out in Clause 8(3)(c) of the *Act*.

5.5.2. Pursuant to Clause 8(3.1) of the *Act*, the *Chief Building Official* is delegated the power to enter into conditional building *permit* agreements and to execute the conditional building *permit* agreement referred to in Article 5.5.1.3. on behalf of the *Corporation.* The *Chief Building Official* may, at their discretion, issue a *conditional permit* where unreasonable delays are anticipated in obtaining all necessary approvals and where the relevant provisions of this By-law and the *Act* are met.

5.6. **Applications for *Permits* for Change of Use**

Every application for a *permit* for a change of use shall;

5.6.1. identify and describe in detail the existing and proposed use and occupancy of the *building*, or part thereof, for which the application for a *permit* is made; and

5.6.2. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law.

5.7. **Application for *Permits* for Site Servicing**

Every application for a *permit* for site servicing shall;

5.7.1. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law.

5.8. **Application for *Permits* for Signs**

Every application for a *permit* for signs shall;

5.8.1. be accompanied by the plans, specifications, documents, forms, and other information prescribed in Part 6 and Schedule “B” of this By-law.

5.9. **Abandoned *Electronic Submissions* and *Permit* Applications**

5.9.1. Where an *electronic submission* has not been completed within 20 *business day*s of creation, the *electronic submission* may be deemed by the *Chief Building Official* to have been abandoned.

5.9.2. Where an application for a *permit* was accepted and the estimated *permit* fees are unpaid for three months after the *applicant* was advised in writing of the estimated *permit* fees, that application may be deemed by the *Chief Building Official* to have been abandoned and written notice of the cancellation thereof shall be given to the *applicant.*

5.9.3. Where an application for a *permit* remains incomplete and inactive for six months after the *applicant* has been advised in writing of all the reasons for refusal, the application may be deemed by the *Chief Building Official* to have been abandoned and written notice of the cancellation thereof shall be given to the *applicant.*

5.10. **Incomplete *Permit* Applications**

5.10.1. An application shall be deemed not to be a complete according to the *building code* where any of the applicable requirements of Part 5 to this By-law have not been complied with.

5.10.2. Except as provided in Section 8.3., an application deemed to be incomplete shall not be accepted by the *Chief Building Official*.

5.10.3. The *Chief Building Official* may accept an incomplete application where the *applicant* acknowledges, in writing, that the application is incomplete and waives the time period prescribed in the *building code* within which a *permit* must be issued or refused.

5.10.4. Where an *applicant* declares that an application is complete in all respects, but the application is determined by the *Chief Building Official* to be incomplete or does not comply with the Act, the *building code*, this By-law or applicable law, an additional fee as prescribed in Schedule "A" may be applied to the re-examination of documents required to be submitted by the *applicant.*

6. REQUIREMENTS FOR PLANS AND SPECIFICATIONS

6.1. As part of the application for a *permit* and in addition to the requirements of Part 5 of this By-law, every *applicant* shall submit to the *Chief Building Official* the following:

6.1.1. Sufficient plans, specifications, documents, forms, and such other information as may be deemed necessary by the *Chief Building Official* to determine whether the proposed construction, demolition, or change of use conforms to the *Act*, the *building code*, and any other applicable law.

6.1.2. Where a site plan is required to satisfy Subsection 6.1.1, the site plan should reference a current plan of survey certified by a registered Ontario Land Surveyor and shall include:

6.1.2.1. lot size and dimensions of the property;

6.1.2.2. setbacks from existing and proposed *building*s to property boundaries and to each other;

6.1.2.3. existing and finished ground levels or grades;

6.1.2.4. existing rights of way, easements, and municipal services; and

6.1.2.5. a copy of a current plan of survey unless the *Chief Building Official* waives this requirement.

6.1.3. Plans, specifications, and other documents submitted by an *applicant* shall:

6.1.3.1. be fully coordinated among design disciplines and intended for construction, demolition or change of use;

6.1.3.2. be fully dimensioned and drawn to a suitable scale that clearly depicts the proposed construction, demolition or change of use;

6.1.3.3. be in the form of an *electronic submission*; and

6.1.3.4. contain information and text that is clear and legible.

6.2. Upon issuance of the building *permit*, the *owner* or authorized agent of the *owner* shall ensure that a hard copy of the *permit* card and approved *permit* plans are available on site at all times. Hard copies of the approved plans are required to be printed in colour, to the appropriate drawing scale, and be legible.

6.3. On the completion of the foundation for a detached, semi-detached, triplex, or townhouse dwelling, the *Chief Building Official* may require submission of a survey prepared by an Ontario Land Surveyor indicating the location of the *building* to all property lines, and elevations of the bottom and top of the foundation wall, including the garage cut, prior to a framing inspection being undertaken.

6.4. On completion of the construction of a *building*, the *Chief Building Official* may require the *applicant* to submit a set of as constructed plans, including a plan of survey showing the location of the *building*.

6.5. Plans and specifications submitted in accordance with this By-law or otherwise required by the *Act* become the property of the *Corporation* and will be disposed of or retained in accordance with relevant legislation or by-law.

7. AUTHORIZATION OF ALTERNATIVE SOLUTIONS

7.1. Where approval for an alternative solution under the *building code* is proposed in either the application for a *permit*, or in a material change to a plan, specification, document or other information on the basis of which a *permit* was issued, the *applicant* shall submit:

7.1.1. an application on a form prescribed by the *Chief Building Official*;

7.1.2. supporting documentation demonstrating that the proposed alternative solution will provide the level of performance required by the *building code*; and

7.1.3. payment of the required fee prescribed by Schedule “A”

7.2. The *Chief Building Official* or *Registered Code Agency* may accept or reject any proposed alternative solutions and/or may impose conditions or limitations on their use.

7.3. Alternative solutions which are accepted under this part shall be applicable only to the location as described in the application and are not transferable to any other building *permit*.

8. FEES AND REFUNDS

8.1. General

8.1.1. The *Chief Building Official* or their designate shall determine the required application fees in accordance with Schedule “A” to this By-law. All fees shall be paid in full at the time of acceptance of the *permit* application.

8.1.2. The *Chief Building Official* shall not issue a *permit* until the fees required by this By-law have been paid in full by the *applicant*.

8.1.3. Where the amount of a fee to be paid, as part of a *permit* application, is to be based upon the type of *building permit*, floor area and/or value of the proposed construction, the *Chief Building Official*, or their designate, shall determine the amount of the fee and that determination shall be final.

8.1.4. In the case of withdrawal or abandonment of an application, or refusal or revocation of a *permit*, and upon written request by the *applicant*, the *Chief Building Official* may refund any unearned fees which shall be calculated in accordance with Schedule “A” to this By-law.

8.1.5. Fees shall be increased each year effective on the first day of January of each year by the percentage equal to the *Municipal Price Index*. Flat rate fees shall be rounded to the nearest dollar amount, increments of half dollar and greater shall be rounded up. All other fees shall be rounded to the nearest cent.

8.2. Re-Examination Fee and Alternative Solution Fee

8.2.1. In addition to the fees paid at the time of *building permit* application, where an *applicant* makes a *revised submission* for a proposed *building* design after examination of a previous submission has already been undertaken, a re-examination fee may apply as set out in Schedule “A” to this By-law.

8.2.2. Where an *applicant* makes a *revised submission* for one or more changes to the as-constructed design of a *building* or part of a *building* for which a *permit* has already been issued, a re-examination fee may apply as set out in Schedule “A” to this By-law.

8.2.3. Where an *applicant* submits an alternative solution to a material, system or design, an examination fee shall apply as set out in Schedule “A” to this By-law.

8.3. **Additional Inspection Fee**

An additional inspection fee as set out in Schedule “A” to this By-law shall apply and shall be paid prior to each subsequent inspection being undertaken on any *building*, where,

8.3.1. Any of the prescribed notice requirements under the *building code* or the additional notices required under this By-law have not been complied with by a *permit holder*;

8.3.2. More than two inspections for the same stage of construction are required due to the construction being incomplete or not in compliance with the *building code*;

8.3.3. Where an inspector determines that work for which an inspection has been requested is not sufficiently complete to allow proper inspection, or drawings in accordance with Section 6.3 of this By-law have not been provided.

8.3.4. A *building* is occupied prior to the notice under Section 11 of the *Act* was given to the *Chief Building Official*.

8.4. **Partial Occupancy Fee**

Partial Occupancy of unfinished *building*s issued under Division C, Part 1, Subsection 1.3.3 of the *building code* will be charged a fee as set out in Schedule “A” to this By-law, and,

8.4.1. The *Chief Building Official* may impose conditions on a *partial occupancy permit*;

8.4.2. The *Chief Building Official* may revoke a *partial occupancy permit* if the *permit holder* fails to comply with the conditions imposed by the *Chief Building Official*;

8.4.3. The *Chief Building Official* may revoke a *partial occupancy permit* if the *owner* fails to comply with any *permit* relating to the *building*.

8.5. ***Permit* Surcharge**

8.5.1. A *permit* surcharge, in addition to the regular calculated fee, shall be charged in accordance with Schedule “A” to this By-law, to offset additional investigative and administrative costs, where any person has commenced construction, demolition or changes to the use of a *building* prior to having submitted an application for a *permit*, or before having received a *permit*, in addition to any other penalty under the *Act*, *building code*, or this By-law.

8.5.2. Payment of these fees does not relieve any person or corporation from complying with the *Act*, the *building code,* or any applicable law.

8.6. **Order on Title**

Where an Order issued under the *Act* is registered on the title to the property, an additional fee as set out in Schedule “A” to this By-law shall apply for the registration of the Order on title, and for the discharge of an Order from title.

9. REVISIONS TO *PERMITS*

9.1. After the issuance of a *permit* under the *Act*, the *applicant* shall give notice to the *Chief Building Official* in writing of any change to a plan, specification, document, or other information upon which a *permit* was issued, together with the details of such change. The change shall not be made without the prior written authorization of the *Chief Building Official*.

9.2. Application for authorization of any substantial change shall constitute a *revised submission*.

10. TRANSFER OF *PERMITS*

10.1. Upon change in ownership, *permit* applications and *permit*s must be transferred to the new *owner* (the “transferee”) with the approval of the *Chief Building Official*.

10.2. Every application for the transfer of a *permit* shall,

10.2.0. include a written statement from the current *permit holder* authorizing the transfer of the *permit* to the transferee;

10.2.1. include proof of ownership of the land by the transferee satisfactory to the *Chief Building Official*;

10.2.2. confirm that the work to be done, and the existing and proposed use and occupancy of the *building* or part thereof, for which the application for the transfer of the *permit* is made, is the same as that identified and described on the application of the *permit*;

10.2.3. state the name, address, and telephone number of the proposed transferee;

10.2.4. state the name, address, and telephone number of the proposed designer, architect and/or professional engineer, and their *building code* qualifications, where they are different from those identified in the application for the *permit*, and a written confirmation from those individuals, that they have been retained to undertake general review of the construction or demolition where required under the *building code*;

10.2.5. include, where the proposed transferee is a builder as defined in the Ontario New Home Warranties Plan Act, the proposed transferee’s registration number under that Act;

10.2.6. be accompanied by the appropriate fee in accordance with Schedule “A”; and,

10.2.7. be signed by the proposed transferee who shall certify as to the truth of the contents of the application.

10.3. Upon the issuance of transfer of a *permit* to the transferee, the transferee shall be deemed to be the *permit holder* and the original *permit holder* shall have no further rights or obligations under the *permit*, save and except for any obligations set out in any agreements entered into for the purposes of Clause 8.(3)(c) of the *Act*.

11. REVOCATION

11.1. Prior to revoking a *permit*, the *Chief Building Official* shall give written notice of intention to revoke the *permit* to the *permit holder* to the *permit holder*’s address shown on the application or to such other address as that individual has provided to the *Corporation* for that purpose.

11.2. Following the issuance of the notice described in Section 11.1, the *permit* may be revoked immediately or after a period prescribed by the *Chief Building Official*, and all submitted plans, specifications, documents and other information may be disposed of or, upon written request, returned to the *permit holder*.

11.3. The notice described in Section 11.1 shall be given either personally, by e-mail or by registered mail, and where notice is by registered mail, it shall be deemed to have been given on the fifth day after the day of mailing.

12. NOTICES FOR INSPECTIONS

12.1. Inspection notices required by the *building code* and this By-law shall be made using the *Corporation*’s online *permit* inspection request system or by telephone.

12.2. Inspection notices are required a minimum of two *business days* prior to the stages of construction specified therein and shall be given in accordance with the requirements of Subsection 1.3.5 of Division C of the *building code*.

12.3. The person to whom the *permit* has been issued shall notify the *Chief Building Official* or *Registered Code Agency* where one is appointed, of each stage of construction for which a notice is prescribed by the *building code*.

12.4. Notwithstanding Section 13 of this By-law, the person to whom the *permit* has been issued shall notify the *Chief Building Official* of the date of completion of the *building* or demolition work no more than two days after that date.

12.5. In addition to the notices prescribed in Article 1.3.5.1 of Division C of the *building code*, the person to whom a *permit* has been issued shall give the *Chief Building Official* notice of the readiness for inspection for the following stages of construction, where applicable:

12.5.0. commencement of construction of the *building*

12.5.1. commencement of construction of:

12.5.1.1. masonry fireplaces and masonry chimneys,

12.5.1.2. factory-built fireplaces and allied chimneys, or

12.5.1.3. stoves, ranges, space heaters and add-on furnaces using solid fuels and allied chimneys,

12.5.2. substantial completion of interior finishes, and

12.5.3. substantial completion of exterior cladding.

13. REGISTERED CODE AGENCIES

13.1. The *Chief Building Official* is authorized to enter into and sign contracts for service agreements with *Registered Code Agencies* and appoint them to perform specified functions from time to time in order to maintain the time periods prescribed in Article 1.3.1.3. of Division C of the *building code*.

13.2. A *Registered Code Agency* may be appointed to perform one or more of the specified functions described in Section 15.15 of the *Act*.

14. SPATIAL SEPARATION AGREEMENTS

14.1. The *Chief Building Official* is delegated the power to enter into spatial separation agreements, as set out in Division B, Sentences 9.10.15.2.(4) and (5), and Sentences 3.2.3.1.(8) and (9) of the *building code* with the *owner*s of the properties on which the limiting distance is measured, and execute such agreements on behalf of the *Corporation*.

14.2. An additional fee as set out in Schedule “A” to this By-law shall apply for the review and approval of spatial separation agreements, in addition to the associated legal costs to the *Corporation* for the preparation and registration of the agreement on the title of the properties.

15. FENCING OF CONSTRUCTION AND DEMOLITION SITES

15.1. Where, in the opinion of the *Chief Building Official*, a construction or demolition site presents a hazard to the public, the *Chief Building Official* may require the *permit holder* to erect such fencing to the standards and specifications that the *Chief Building Official* or inspector deems to be appropriate to the circumstances.

15.2. When determining the hazard presented by the construction or demolition site, the necessity for fences, and the height and characteristics of such fences, the *Chief Building Official* or inspector shall have regard for,

15.2.1. the proximity of the site to occupied dwellings;

15.2.2. the proximity of the site to lands accessible to the public, including but not limited to streets, parks, and commercial and institutional activities;

15.2.3. the hazards presented by the construction or demolition activities and materials;

15.2.4. the feasibility and effectiveness of site fencing; and

15.2.5. the duration of the hazard.

15.3. When the *Chief Building Official* is of the opinion that fencing is required, the *permit holder* shall, prior to the commencement of any construction or demolition, erect or cause to be erected fencing to the following standards:

15.3.1. be erected so as to fully enclose all areas of the site which presents a hazard;

15.3.2. create a continuous barrier and be sufficient to deter unauthorized entry;

15.3.3. have a height not less than 1.8 metres above the grade at any point, unless the *Chief Building Official* or inspector determines that a greater minimum height is necessary;

15.3.4. the fence shall be constructed of materials that provide a measure of performance and safety satisfactory to the *Chief Building Official*;

15.3.5. be maintained in a vertical plane and in good repair; and

15.3.6. be located entirely within the subject property lines unless otherwise authorized.

15.4. For the purposes of this Section, a construction or demolition site shall include the area of the proposed construction or demolition and any area where materials or equipment are stored or operated.

16. OFFENCES AND PENALTIES

16.1. Any person who contravenes any provision of this By-law is guilty of an offence and is liable upon conviction to a fine as provided for in the *Act*.

17. SEVERABILITY

17.1. Should any part, section, subsection, clause, or provision of this By-law be declared by a court of competent jurisdiction to be invalid, the same shall not affect the validity of this By-law as a whole or any part thereof, other than the part so declared to be invalid.

18. MISCELLANEOUS

18.1. All schedules shall be and form part of this By-law.

18.2. A reference to the singular or to the masculine shall be deemed to refer to the plural or feminine as the context may require.

19. REPEAL AND TRANSITION

19.1. By-law Number 39-2021 is hereby repealed upon the date that this By-law comes into force.

19.2. Notwithstanding Sections 19.1 and 20.1 of this By-law, for any *complete application* received prior to the effective date of this By-law, the provisions of By-law Number 39-2021 shall remain in force and effect for the purpose of that application.

19.3. Applications that are not *complete application*s as defined in this By-law, shall be subject to the within By-law irrespective of the date the initial application was made.

20. EFFECTIVE DATE

20.1. This By-law shall come into force on the 1st day of October 2023.

READ a first and second time this
Eighteenth day of September, 2023.

READ a third time and passed this
Eighteenth day of September, 2023.

_____
Mayor

_____
Deputy Clerk

SCHEDULE “A” TO BY-LAW NUMBER ##-2023

CLASSES OF *PERMITS*, FEES AND REFUNDS

October 1, 2023

1. ADMINISTRATIVE FEES

1.1. The fee for the *pre-application review* of applications shall be $40. This fee is non-refundable and a credit for this fee will be applied to the total building *permit* fee.

1.2. Once a *permit* application has been accepted, the non-refundable fee to transfer the application to a new *permit applicant* or *permit holder* or to change the project address is $40.

1.3. Where a *permit* is issued and remains incomplete 24 months after the date of *permit* issuance, a non-refundable *permit* maintenance fee equal to the minimum fee in accordance with Section 2 of this Schedule, will be charged yearly.

2. MINIMUM FEE

2.1. Except where a flat fee applies, the minimum *permit* fee for any *minor permit* application in Sections A, and B of Table 2 shall be $134.

2.2. Except where a flat fee applies, the minimum *permit* fee for any *moderate permit* application in Sections A, and B of Table 2 shall be $300.

2.3. Except where a flat fee applies, the minimum *permit* fee for any *major permit* application in Sections A, and B of Table 2 shall be $500.

3. CALCULATION OF *PERMIT* FEES

3.1. *Permit* fees shall be calculated on the basis of:

3.1.1. the flat rate where indicated in the Tables of this Schedule;

3.1.2. the product of the applicable fee multiplier in Column 3 of Table 2 of this Schedule and the related floor area or other measure specified in Column 2, or

3.1.3. where a fee is not listed in Table 2, the *permit* fee shall be calculated on the basis of 1.5% of the estimated *construction value*, or as determined by the *Chief Building Official* or their designate.

3.2. Except for classes of *permit*s subject to flat rates, fees shall be based on the appropriate measure of the floor area of the project.

3.3. For any *permit* application for a class of *permit* described under Section B of Table 2, floor area used for the calculation of fees shall be the lesser of:

3.3.1. the area contained within a single rectangle encompassing all of the proposed work, or

3.3.2. the actual area of the tenant space.

3.4. When calculating fees based on floor areas, floor area is measured to the outer face of exterior walls and to the centerline of party walls or demising walls, except when calculating interior partition work. When measuring floor areas for interior partitioning, corridors, lobbies, washrooms, lounges, and other similar facilities are to be included and classified according to the major occupancy classification for the floor area with which they are associated. Where these areas are constructed in a shell-only *building*, fees shall be calculated at the applicable partitioned rate in Table 2.

3.5. When measuring floor area, no deduction shall be allowed for floor openings required for facilities such as stairs, elevators, escalators, shafts and ducts. Interconnected floor spaces and atriums above their lowest level may be deducted from measured floor area.

3.6. Where incorporated with an application for a class of dwelling described in Item A4 of Table 2, no additional fee is required for decks less than 4.5m^2, fireplaces, unfinished basements, attached garages, heating or plumbing systems.

3.7. Where incorporated with an application for a class of *permit* described under Section A and B of Table 2, no additional fee shall be levied for mechanical, fire protection or green technology systems that form part of the work proposed under the application.

3.8. The occupancy classifications used in this By-law are based on the *building code* major occupancy classifications. For mixed occupancy classifications, the total payable fee shall be calculated by applying the fee multiplier for each occupancy prescribed in Table 2 to the floor area measured for each individual occupancy and taking the sum of the fees calculated for each occupancy.

3.9. As deemed necessary by the *Chief Building Official*, where an independent third party is engaged to provide review of a document or drawing submitted with a *permit* application, alternative solution proposal, perform an inspection, or *partial occupancy permit*, the *Corporation* may require that all or part of the associated costs be fully paid by the *applicant.*

3.10. Notwithstanding anything to the contrary in this By-law, construction or alteration of all *buildings* and structures on lands owned by the *Corporation*, and is funded, in part or in whole, by the *Corporation* shall not be subject to *permit* fees.

4. CALCULATION OF REFUNDS

4.1. Pursuant to Subsection 8.1.4 of this By-law, refunds shall be calculated as follows:

Refund = [total *permit* fees payable x % functions undertaken]

4.2. The *permit* fee refund payable shall be proportionate to the functions undertaken by the *Corporation* in accordance with the following:

4.2.1. 80% if administrative functions only have been performed;

4.2.2. 70% if administrative functions and internal department review (ie. zoning, site plan control, grading, etc.) have been performed;

4.2.3. 50% if administrative functions, internal department review (ie. zoning, site plan control, grading, etc.), and all or part of the *building code* review have been performed; and,

4.2.4. 40% if all administrative functions and reviews have been completed and the *building permit* has been issued or is available to be issued.

4.3. Notwithstanding the foregoing, no refund is available:

4.3.1. where a flat fee is charged;

4.3.2. where the amount calculated in accordance with Schedule “A” to this By-law is the minimum fee, or less than the minimum fee;

4.3.3. where a *permit* is revoked, except where a *permit* is issued in error, or the *applicant* requests revocation no more than twelve months after the *permit* is issued, or;

4.3.4. applications or *permit*s where construction or demolition has commenced.

4.4. Any refund shall be paid to the *permit holder*, unless that person directs the *Chief Building Official*, in writing, and prior to the release of the refund, that it be refunded to another person.

4.5. Pursuant to Part 13 of this By-law, 20% of the applicable *permit* fee paid shall be refunded where an application was made using a *Registered Code Agency* appointed under a service agreement with the *Chief Building Official*, those services are fully paid for by the *applicant* and have been completed in accordance with the *building code*, and the final certificate as defined by the *Act* has been submitted to the *Chief Building Official*.

Table 1 – Fees Payable for Applications and *Permit*s

Forming Part of Schedule "A"

October 1, 2023

Classes of *Permit*s and *Permit* Fees			
Item	Class of *Permit*	By-law Reference	Fee Payable
1.	*Building Permit*	5.2 Schedule A - Part 2.	See Schedule "A" - Table 2 Minimum fee payable: *Minor Permits* - $134 *Moderate Permits* - $300 *Major Permits* - $500
2.	Demolition *Permit*	5.3	$0.23 per square metre of floor area
3.	*Permit* for a Stage of Construction (Partial *Building Permit)*	5.4	An amount equal to 10% of the *building permit* fee for each phase of construction. Minimum fee in accordance with Item 1 of this table Maximum fee is $500 *Partial permit* fees are non-refundable.
4.	Conditional *Building Permit*	5.5	An amount equal to 10% of the *building permit* fee. Minimum fee in accordance with Item 1 of this table Maximum fee is $1000 *Conditional permit* fees are non-refundable.
5.	Change of Use *Permit* (No construction proposed)	5.6	$300 flat fee
6.	Site Servicing *Permit*	5.7	An amount equal to 1.60% of the estimated *construction value* of the servicing
7.	Signs *Permit* (regulated by the *building code*)	5.8	$250 per sign
8.	Occupancy *Permit* for an Unfinished *Building*	8.4	$500 flat fee
Administrative and other *Permit* Fees			
Item	Fee Type	By-law Reference	Fee Payable
9.	Resubmission of application previously found to be incomplete.	5.10	25% of *permit* fee
10.	Revision to application or *permit*	8.2	$150 per hour The minimum fee for the review shall be the minimum fee in accordance with Item 1 of this table
11.	Alternative Solution Examination Fee	8.2	$150 per hour (minimum 1 hour for houses, and 4 hours for other buildings). Alternative Solution fees are nonrefundable.
12.	Inspection Fee - Additional	8.3	$150 per inspection
13.	*Permit* Surcharge	8.5	The greater of: a) Surcharge of 25% of the *permit* fee when construction has begun and a *permit* application has been received; b) Surcharge of 50% of *permit* fee when construction has begun and no *permit* application has been received, or c) Minimum fee in accordance with Item 1 of this table
14.	Registration and/or Discharge of an Order on/from Title	8.6	$300 flat fee (each)
15.	Transfer of *Permit*	10	$134 flat fee
16.	Spatial Separation Agreements	14	$300 flat fee

Table 2 – *Permit* Types and *Permit* Fees

Forming Part of Schedule "A"

October 1, 2023

Item	Occupancy Classification and Work Description		Multiplier	Flat Fee
	Section A: CONSTRUCTION of new *buildings*, additions to existing *buildings*, including mezzanines			
A1	Group A - Assembly	Shell Only(1)	$8.22	
A2	Group A	Complete *Building* (partitioned, finished, mezzanine)	$16.47	
A3	Group B – Institutional	All Types	$14.95	
A4	Group C – Residential	Detached, Semi-Detached, Duplex, Triplex, Townhouse	$12.96	
A5		Multiple Unit *Building*s (<5 Storeys)	$10.38	
A6		Multiple Unit *Building*s (≥ 5 Storeys)	$7.80	
		Motel, Hotel	$12.96	
A7	Group D – Business and Personal Services	Shell Only(1)	$8.22	
A8		Complete *Building* (partitioned, finished, mezzanine)	$14.00	
A9	Group E – Mercantile	Shell Only(1)	$8.22	
A10		Complete *Building* (partitioned, finished, mezzanine)	$13.00	
A11	Group F – Industrial	Shell Only(1)	$5.66	
A12		Complete *Building* (partitioned, finished, mezzanine)	$7.52	
A13		Unserviced Storage *Building*	$4.40	
A14		Parking Garage	$3.50	
A15		Farm *Building*	$3.50	
A16	All Occupancies	Service Floors	$4.00	
	Section B: ALTERATION, REPAIR and OTHER STRUCTURES			
B1	Group A – Assembly		$8.00	
B2	Group B – Institutional		$6.30	
B3	Group C – Residential	Accessory Dwelling Unit	$8.81	
B4		*Retrofit Accessory Apartment*		$134
B5		All other Residential Occupancies	$6.52	
B6	Group D – Business and Personal Services		$7.10	
B7	Group E – Mercantile		$5.14	
B8	Group F – Industrial		$4.16	
B9		Accessory Utility *Building* (garden shed, gazebo)		$134
B10		Below Grade Entrance		$300
B11		Detached or Semi-detached Carport/Garage(2)		$200
B12		Deck/Platform/Porch (unenclosed)		$134
B13		Foundation/Unfinished Basement	$4.00	
B14		Permanent Tent/Air Supported Structure	$4.00	
B15		Retaining Wall (per metre of length or part thereof)	$11.00 $800 min.	
B16		Single, Detached Portable Classroom		$500
B17		Temporary *Building* or Tent(3)		$500
B18		Temporary Sales Structure		$500
	Section C: MISCELLANEOUS			
C1	Residential Service Connections	Service Connection (per lot)		$134
C2	Solar Panels	Serving Individual Dwellings		$134
C3		Serving all other *Buildings*		$434
C4		Balcony Guard Replacement/Repair (per metre of length)	$1.50	
C5		Electromagnetic Locking Device (each)		$200/ea. $800 max.
C6		Fireplace/Woodstove		$134
C7		Parking Structure Repair	$1.00	
	Column 1	2	3	4

Notes:

1. A shell *building* is defined as consisting of the foundation, structural framing system, exterior envelope, and roughed-in building services such as heating, ventilation, and air conditioning (HVAC) system, fire protection system, plumbing facilities, etc.
2. Applies to *building*s equal to or greater than 20m^2 in *building* area.
3. Except for temporary *buildings* on construction sites for office or sales purposes, fees for temporary *buildings*, including tents, apply to *buildings* erected for 30 days or less.

SCHEDULE "B" TO BY-LAW NUMBER ##-2023

DOCUMENTS & DRAWINGS REQUIRED FOR A *COMPLETE APPLICATION*

Row	Class of *Permit*	Documents and Drawings Required
1	**All *Permit*s**	**Documents** a. Building Permit Application Form* (not required for *electronic submission*s) b. Applicable Law Checklist* c. Permit Applicant Authorization Form*
2	***Permit* to *Construct Housing*** New *Building*s; Detached Houses; Semi-Detached Houses; Duplex/Triplex, Townhouses • New *Building*s • Additions • Alterations • Accessory *Building*s or Structures	**Documents** a. Approval documents required by an applicable law b. TARION 'Declaration of *Applicant* for *Building* Permit' c. Heat loss/heat gain/duct calculations (per dwelling unit) d. Residential Mechanical Ventilation Summary* **Drawings** a. Site Plan b. Site Grading Plan c. Architectural Drawings (including block floor plans for each floor, block roof plans and block elevations for townhouse blocks) d. Structural Drawings (including pre-engineered beam shop drawings) e. Roof truss / Pre-engineered floor system shop drawings (including block plans for townhouse blocks) f. HVAC Drawings (per dwelling unit) g. On-site Sewage System approval (where required)
3	***Permit* to *Construct*** • Additions/Alterations • Accessory *Building*s **Residential as in Row 1(a)**	**Documents** a. Approval documents required by an applicable law b. Heat loss/heat gain/duct calculations c. Residential Mechanical Ventilation Summary* **Drawings** a. Site Plan b. Site Grading Plan c. Architectural Drawings d. Structural Drawings (including pre-engineered beam shop drawings) e. Roof truss / Pre-engineered floor system shop drawings f. HVAC Drawings g. On-site Sewage System approval (where required)
2(a)	***Permit* to *Construct*** • New *Building*s • Additions **Non-residential *building*s** **Residential apartment *building*s** **Mixed use *building*s** **Other residential *building*s not described in Row 1(a)**	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* c. Subsurface investigation report d. Heat loss/heat gain/duct calculations e. Energy Efficiency Certification Form* **Drawings** a. Site Plan b. Site Servicing / Site Grading Plan c. Architectural Drawings d. Structural Drawings e. HVAC Drawings

		f. Plumbing Drawings g. Electrical Drawings h. Fire Protection System Drawings i. On-site Sewage System approval (where required)
2(b)	***Permit* to *Construct*** • Alterations • Tenant Improvements **Non-residential *building*s and other residential *building*s not described in Row 1(a)**	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* c. Heat loss/heat gain/duct calculations **Drawings** a. Site Plan b. Key Plan c. Architectural Drawings d. Structural Drawings e. HVAC Drawings f. Plumbing Drawings g. Electrical Drawings h. Fire Protection System Drawings i. On-site Sewage System approval (where required)
3	***Permit* to *Construct*** • Tents/Air Supported Structures • Mechanical Only *Permits* • Plumbing Only *Permits* • Designated Structures • Farm *Building*s • Green Energy Projects • Signs • Site Servicing • Other than rows 1, 2 and 4	**Documents** a. Approval documents required by an applicable law b. Documents from rows 1(a) to 2(b) or other documents which are applicable to the scope of work proposed and required by the *Chief Building Official* to determine compliance with the *building code* and other applicable law. c. *Site Inspection Clearance Certificate* (Site Servicing only) **Drawings** a. Drawings from rows 1(a) to 2(b) which are applicable to the scope of work proposed and required by the *Chief Building Official* to determine compliance with the *building code* and other applicable law.
4	***Permit* for Change of Use**	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* **Drawings** a. Site Plan b. Key Plan c. Architectural Drawings d. HVAC Drawings
5	***Permit* to *Demolish***	**Documents** a. Approval documents required by an applicable law b. Commitment to General Reviews by Architects and Engineers* c. *Site Inspection Clearance Certificate* **Drawings** a. Site Plan b. Demolition Plan (where required)

Notes:

1. Documents marked with an asterisk (*) are available from the *Chief Building Official*.
2. The *Chief Building Official* may waive the requirement for any specified documents or drawings where the scope of work, applicable law or *building code* does not, in the opinion of the *Chief Building Official*, necessitate its submission.

SCHEDULE "C" TO BY-LAW NUMBER ##-2023

CODE OF CONDUCT FOR THE *CHIEF BUILDING OFFICIAL* AND INSPECTORS

1. PURPOSE OF THE CODE OF CONDUCT

1.1. To promote appropriate standards of behaviour and enforcement actions by the *Chief Building Official* and inspectors in the exercise of a power or the performance of a duty under the *Act* or the *building code*.

1.2. To prevent practices which may constitute an abuse of power, including unethical or illegal practices, by the *Chief Building Official* and inspectors in the exercise of a power or the performance of a duty under the *Act* or the *building code*.

1.3. To promote appropriate standards of honesty and integrity in the exercise of a power or the performance of a duty under the *Act* or the *building code* by the *Chief Building Official* and inspectors.

2. CODE OF CONDUCT

2.1. In exercising powers and performing duties under the *Act*, the *Chief Building Official* and inspectors, at all times, shall:

2.1.1. Promote the safety of *building*s with reference to public health, fire protection, structural sufficiency, conservation and environmental integrity, and barrier-free accessibility;

2.1.2. Apply the *Act* and the *building code*, and all applicable laws, regulations and standards in an impartial, consistent and fair manner, independent of the influence of interested parties or members of Council, and without regard to personal interests;

2.1.3. Maintain confidentiality in accordance with laws governing the freedom of information and the protection of privacy;

2.1.4. Obtain the counsel of persons with expertise where the *Chief Building Official* or inspector does not possess sufficient knowledge to make an informed judgment;

2.1.5. Act honestly, reasonably and professionally in the performance of their duties;

2.1.6. Act within the area of qualification obtained under the *Act* and maintain required legislated qualification;

2.1.7. Keep up to date on current *building* practices through continuous education; and

2.1.8. Comply with the provisions set out within the *Corporation* Employee Code of Conduct.

3. ENFORCEMENT GUIDELINES

3.1. The *Act* prescribes that the conduct of the *Chief Building Official* and the inspectors will be measured against this Code of Conduct. Any appointed *Chief Building Official* or inspector who fails to act in accordance with the provisions of this code may be subject to disciplinary action appropriate to the seriousness of the breach. All allegations concerning a breach of this code shall be made in writing.

3.2. In response to any allegation of a breach of this code, the *Chief Building Official*, in consultation with the Manager of HR Services shall direct an investigation and where appropriate, recommend disciplinary action against any inspector who fails to comply with this code. Where allegations of a breach of this code is against the *Chief Building Official*, the matter shall be brought to the attention of the Director of Planning and Development Services. Where allegations of a breach of this code is against a member of the Fire Service, the matter shall be brought to the attention of the Fire Chief.

3.3. Any *Chief Building Official*, Director of Planning and Development Services or Fire Chief who receives a written complaint alleging a breach of this code shall investigate the matter, and where appropriate shall commence disciplinary action in accordance with the *Corporation* policies, procedures or applicable collective agreements. All communications received by a *Chief Building Official*, Director of Planning and Development Services or Fire Chief concerning a breach of this code shall be held in

confidence. The *Chief Building Official*, Director of Planning and Development Services or Fire Chief shall advise the Office of the Chief Administrative Officer in writing about the particulars of the alleged breach, its investigation and the final disposition of the matter upon its conclusion.

4. PUBLIC NOTICE OF THE CODE OF CONDUCT

4.1. The *Act* states that the code must be brought to the attention of the public.

4.1.1. Building Approvals will advertise the Code of Conduct on an ongoing basis via the *Corporation* website and post in a conspicuous location.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 49–2023

Being a By-law to authorize the permanent closing of a portion of Porte Road, south of Lord Drive and north of Danks Ridge Drive, described as Part 1 of 40R-32221, Town of Ajax.

WHEREAS the *Municipal Act, 2001*, as amended, provides that municipalities may pass by-laws for permanently closing a highway; and,

WHEREAS it is deemed expedient and in the interest of the Corporation of the Town of Ajax that the road allowance representing a portion of Porte Road, between the intersection of Lord Drive and Danks Ridge Drive, be permanently closed; and,

WHEREAS, in accordance with the provisions of the Town of Ajax Public Notice Policy, notice of the By-law has been published two weeks in advance in the News Advertiser, a newspaper published in the Town of Ajax;

NOW THEREFORE the Council of The Corporation of the Town of Ajax enacts as follows:

1. That the road allowance representing a portion of Porte Road, south of the intersection of Lord Drive and north of the intersection of Danks Ridge Drive, identified as follows, be permanently closed:

   i) Part 1 of 40R-32221, Town of Ajax.

2. That the Mayor and Clerk are hereby authorized to execute all documentation necessary to give effect to the By-law.

3. That this By-law shall come into force and take effect upon the registration of this By-law in the local Registry Office.

READ a first and second time this Eighteenth day of September, 2023.

READ a third time and passed this Eighteenth day of September, 2023.

_____
Mayor

_____
D - Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 50-2023

Being a by-law to govern the proceedings of Council and Standing Committees of Council

WHEREAS Section 238 (2) of the Municipal Act, 2001 as amended requires Council to pass a procedure by-law governing the calling, place and proceedings of meetings;

NOW THEREFORE the Council of the Corporation of the Town of Ajax hereby enacts as follows:

1. That “Appendix A” to this By-law be approved as the rules and procedures governing the proceedings of Council & Standing Committees.

2. That, for the purposes of compliance with Section 270 of the Municipal Act, 2001, the Town of Ajax Public Notice Policy (P138) within the Town’s Quality Management System shall constitute the Town’s policy for the circumstances in which the municipality shall provide notice to the public and, if notice is to be provided, the form, manner and times notice shall be given.

3. The short title of this By-Law is the "Procedural By-Law," "Procedure By-law" or the "Rules of Procedure".

4. That By-law #34-2022 is hereby repealed.

5. That this By-law shall come into force and take effect immediately upon final passing.

READ a first and second time this Eighteenth day of September 2023.

READ a third time and passed this Eighteenth day of September 2023.

_____
Mayor

_____
D-Clerk

Appendix 'A' – Rules & Procedures Governing Council & Standing Committee Meetings

Table of Contents

1. Definitions....4
2. Application / Suspending the Rules....6
3. Principles of the Procedure By-law....6
4. Duties....7
   - Council....7
   - Mayor/Standing Committee Chair....7
   - Clerk....8
   - Chief Administrative Officer (CAO)....8
   - Department Heads....8
   - Meeting Attendees....8
5. General Rules....9
   - Appointment of Deputy Mayor....9
   - Quorum....9
   - Remote Participation at Meetings....9
   - Recording and Broadcasting Meetings....10
   - Appointment of Alternate Member to Upper Tier Council....10
   - Closed Session Meetings / Openness and Transparency....10
   - Disclosures of Pecuniary Interest....11
   - Minutes....12
   - Delegations at Council & Standing Committees....12
   - Presentations....13
   - Conduct of Delegates & Presenters....13
   - Petitions....13
   - Administrative Corrections to Official Records....14
   - Location of Meetings....14
6. Council....14
   - Inaugural Meeting of Council....14
   - Regular Schedule of Meetings....14
   - Order of Business at Regular Meetings....14
   - Call to Order & Acknowledgement of Traditional Treaty Lands....15
   - Disclosure of Pecuniary Interest....15
   - Adoption of Minutes....15
   - Question Period....15
   - Delegations, Presentations, and Public Meetings....15
   - Correspondence....15
   - Reports....15
   - Regional Councillors' Reports....16
   - Business Arising from Notice of Motion....16
   - By-laws....16
   - Notice of Motion....16
   - New Business/Announcements....17
   - Confirming By-law....17

Adjournment....17
7. Standing Committees....17
8. Community Affairs and Planning Committee (CAP)....17
Mandate....17
Chair....18
Regular Schedule of Meetings....18
Order of Business at Regular Meetings....18
Call to Order & Acknowledgement of Traditional Treaty Lands....18
Disclosure of Pecuniary Interest....18
Adoption of Minutes....18
Public Meetings....18
Presentations/Reports....19
Adjournment....19
9. General Government Committee (GGC)....19
Mandate....19
Chair....19
Regular Schedule of Meetings....19
Order of Business at Regular Meetings....19
Call to Order & Acknowledgement of Traditional Treaty Lands....19
Disclosure of Pecuniary Interest....20
Adoption of Minutes....20
Consent Agenda....20
Discussion & Presentations....20
Closed Session....20
Adjournment....20
Budget Meetings....20
10. Scheduling and Notice of Meetings....20
Agendas....20
Statutory Notice Requirements....21
Notice - Regular Meetings....21
Special Meetings....21
Emergency Meetings....21
Rescheduling of Meetings....22
Cancellation of Meetings....22
11. Rules of Debate....22
General Rules of Debate....22
Points of Order....22
Points of Privilege....23
12. Motions....23
Motions without Notice....23
Motions to Amend....24
Motions to Reconsider....24
Single Motion....24
13. Voting....24
Recorded Vote....25
Tied Vote....25

Dividing a Question 25
One Third Vote 25
14. Vetoes 26

1. Definitions

In this Procedure By-law,

1.1. “The Act” means the Municipal Act, 2001 S.O. 2001 c.25 as amended;

1.2. “Advisory Committee” means an ongoing Committee implemented by Council by way of by-law and comprised of residents, experts, Councillors and/or Staff;

1.3. “Alternate Member” means a Member appointed by Council to temporarily serve on the Upper Tier Council as set out in Section 5.18 of this by-law;

1.4. “Chief Administrative Officer” or “CAO” means the Chief Administrative Officer of the Town of Ajax, or their designate;

1.5. “Clerk” means the Clerk of the Town of Ajax, or their designate;

1.6. “Committee” means any subcommittee of Council or similar entity; typically refers to General Government Committee or Community Affairs and Planning Committee;

1.7. “Committee Report” means a report of all actions taken by a Committee with respect to a particular agenda;

1.8. “Council” means the Council of the Town of Ajax;

1.9. “Chair” means the Chair of a Committee or Council who presides over a meeting;

1.10. “Closed Session” means a meeting, or portion thereof, closed to the public, and has the same meaning as “in-camera”;

1.11. “Community Affairs and Planning Committee” or “CAP” means a Standing Committee of Council comprised of all members of Council;

1.12. “Confirming by-law” means a by-law passed for the purpose of giving general effect to a previous decision or proceeding of Council;

1.13. “Consent Agenda” means the portion of an agenda that may be approved by a single motion, without debate;

1.14. “Day” includes any day in a calendar year, including weekends and holidays;

1.15. “Department Head” means a Town employee who is the head of a department of the Town;

1.16. “Deputy Mayor” means the member appointed to act from time to time in place and stead of the Mayor;

1.17. “Friendly Amendment” means the motion under debate is amended with the consent of the mover and seconder, and without the requirement for an amending motion to be made;

1.18. “General Government Committee” or “GGC” means a Standing Committee of Council comprised of all members of Council;

1.19. “In-Camera” means a meeting, or portion thereof, closed to the public, and has the same meaning as “closed session”;

1.20. “Integrity Commissioner” means the individual appointed by the municipality who reports to Council and who is responsible for performing in an independent manner the functions assigned by the municipality with respect to the Codes of Conduct, the *Municipal Conflict of Interest Act,* and the application of any procedures, rules and policies of the municipality and local boards governing the ethical behaviour of members of council and of local boards;

1.21. “Main Motion” means any motion which brings business before Council and/or Committee. Main motions yield to all secondary motions;

1.22. “Majority” means more than half, or;
If 7 members present: 4
If 6 members present: 4
If 5 members present: 3
If 4 members present: 3

1.23. “Mayor” means the head of Council, as defined in the *Municipal Act*;

1.24. “Majority vote” means an affirmative vote by the majority of members present and voting at a Meeting;

1.25. “Member” means a member of Council or a Standing Committee;

1.26. “Meeting” means any regular, special, or other meeting of Council or a Standing Committee where a quorum of members is present and members discuss or otherwise deal with any matter in a way that materially advances the business or decision-making of the Council or Standing Committee;

1.27. "One Third Vote” means a vote conducted in accordance with Section 284.11.1 of the Act requiring a total of 3 votes cast in favour.

1.28. “Pecuniary Interest” has the same meaning as the term has in the *Municipal Conflict of Interest Act*, R.S.O. 1990 c. M. 50 (the “MCIA”), as amended or replaced from time to time;

1.29. “Petition” means a formal written request that appeals to Council with respect to a particular issue as set out in Sections 5.52 to 5.55 of this by-law;

1.30. “Point of Order” means drawing attention to a question or an infraction of this Procedure By-law;

1.31. “Provincial Priority” means the priorities prescribed by Ontario Regulation 580/22 for the purposes of Sections 284.10, 284.11 and 284.11.1 of the Act.

1.32. “Quorum” means the number of Members required for the legal conduct of the business of Council or a Committee;

1.33. “Recorded Vote” means the taking of a written record of the name and the vote of each member who votes on a question;

1.34. “Rules of Procedure” means the rules and regulations governing the calling, place, proceedings of a Meeting as provided for in this by-law. The Rules of Procedure may also be referred to as the “Procedural By-law”;

1.35. “Secondary Motion” means any privileged, incidental, or subsidiary motion concerning the manner or time of consideration of any matter before Council/Committee as opposed to the substance thereof;

1.36. “Standing Committee” means any subcommittee of Council or similar entity; typically refers to General Government Committee or Community Affairs and Planning Committee;

1.37. “Substantive Reports” means a report, either verbal or written, whereby Staff are required to gather data/information and perform an analysis of such data/information in order to draw a conclusion and possible action based on the analysis;

1.38. “To Adjourn” means to end a meeting;

1.39. “To Amend” means to alter a motion in a germane manner;

1.40. “To Call the Vote” means to stop debate and immediately proceed to vote on the motion;

1.41. “To Defer” means to postpone all discussion on a matter until a future date or time, one which is established as part of the motion;

1.42. “To Receive” means to acknowledge the receipt of a matter before Council or a Standing Committee, with no expectation of any future action being taken;

1.43. “To Recess” means to suspend a Meeting for a specified length of time;

1.44. “To Refer” means to direct a matter under discussion by Council or a Standing Committee to Staff or another Committee for further consideration or review;

1.45. “To Table” means to postpone a matter without setting a definite date for future discussion of a matter;

1.46. “Town” or “Municipality” means The Corporation of the Town of Ajax;

1.47. “Two Thirds of the Members Present” means two-thirds of the Members in attendance at a Meeting, and not disqualified from voting on a particular matter. Calculation of two thirds is accomplished by dividing the number of Members present by three and multiplying by two. Two thirds…

in respect of seven Members shall be five;
in respect of six Members shall be four;
in respect of five Members shall be four; and
in respect of four Members shall be three.

1.48. “Upper Tier Council” means the Council of the Regional Municipality of Durham.

1.49. “Veto” means the use of powers granted to the head of Council under Section 284.11 or 284.16 of the Act.

1.50. “Veto Override” means a vote of two-thirds of the members of Council conducted in accordance with Section 284.11 paragraph (g) or Section 284.16 paragraph (5) of the Act, requiring a total of 5 votes cast in favour.

2. Application / Suspending the Rules

2.1. The Rules of Procedure contained in this by-law shall be observed in all proceedings of Council and Standing Committees, and shall be the rules and regulations for the order and dispatch of business.

2.2. The rules and regulations herein may be suspended by a two-thirds majority vote of the Members present unless otherwise provided for in any Act, and with the following exceptions:

2.2.1. Provisions for quorum;
2.2.2. Provisions for unanimous consent from Members in order to add an unscheduled item to a Special meeting agenda, and restriction from adding items to an Emergency Meeting agenda; and
2.2.3. Provisions for Open Meetings.

2.3. In any case for which provision is not made herein, the procedure to be followed shall be determined by the Chair of the meeting.

3. Principles of the Procedure By-law

3.1. The principles of openness, transparency, and accountability to the public guide the Town’s decision making process. In the context of Council and other Committee proceedings, this is accomplished by:

3.1.1. Ensuring the decision-making process is understood by the public and other stakeholders;
3.1.2. Providing access to information and opportunities for input by the public and other stakeholders consistent with the requirements of this by-law and other statutory requirements; and
3.1.3. Exercising and respecting individual and collective roles and responsibilities provided for in this Procedure By-law and other statutory requirements.

3.2. The following principles govern Council and Committee meetings:

3.2.1. The majority of Members have the right to decide;
3.2.2. The minority of Members have the right to be heard;
3.2.3. All Members have the right to information to help make decisions, unless otherwise prevented by law;
3.2.4. All Members have a right to an efficient meeting;
3.2.5. All Members have the right to be treated with respect and courtesy, and;
3.2.6. All Members have equal rights, privileges and obligations.

4. Duties

Council

4.1. The primary objective of Council shall be to practice and demonstrate excellence in local governance. All business addressed at Council shall be acted upon by the Members as to how that business addresses or corresponds to the public interest.

4.2. Members shall come prepared to every Meeting by having read all the material supplied, including agendas and Staff reports, to facilitate discussion and determination of any necessary actions.

4.3. Members shall:

4.3.1. Vote on all motions put to a vote;
4.3.2. Respect the Rules of Procedure in this by-law and comply with the Chair's rulings;
4.3.3. Comply with the Ajax Council Code of Conduct; and
4.3.4. Respect the confidentiality of matters discussed in Closed Session meetings and not disclose the subject or substance of these discussions unless authorized to do so.

Mayor/Standing Committee Chair

4.4. The Mayor/Chair shall serve as the presiding officer for the Meeting, call the meeting to order, address the business before Council/Committee, and rule on procedural matters.

4.5. If the Mayor/Chair does not attend a meeting within five minutes of the scheduled starting time of the meeting, the Deputy Mayor/Vice-Chair shall call the meeting to order and preside over the meeting until the arrival of the Mayor/Chair.

4.6. The Mayor/Chair or Deputy Mayor/Vice-Chair may, during a meeting, appoint another Member to preside over a meeting if required. While presiding over a meeting, the Member has and may exercise all the rights, powers, and authority of the Mayor/Chair under this by-law.

4.7. The Mayor/Chair shall recognize Members who wish to speak, and determine the order in which they are allowed to speak.

4.8. The Mayor/Chair shall receive and submit, in the proper manner, all motions presented by the Members and to put to a vote all questions, which are duly moved, and to announce the results of all such votes.

4.9. The Mayor/Chair may permit questions to be asked through the Mayor/Chair of any staff members, delegates or presenters at a Meeting, in order to provide Members with information to assist in any deliberations, and may afford delegates and presenters the opportunity to respond to answers provided by staff, provided that doing so does not interfere with the conduct of the meeting and delegates do not enter into debate with staff or Members of Council.

4.10. The Chair may, with the general consent of Members present, perform any of the following actions with respect to a meeting:

4.10.1. Recess a Meeting for a period of time defined by the Chair;
4.10.2. Advance or delay an item in the order of business on any Council or Standing Committee agenda;

4.11. The Mayor/Chair may speak and/or vote on any question.

4.12. The Mayor/Chair shall enforce, as necessary, the observance of order and decorum among Members, delegates, and visitors, and shall have the right to expel any person for improper conduct or disruption of the Meeting.

Clerk

4.13. The Clerk shall attend or cause a designate to attend all Meetings of Council and Standing Committees to take minutes and/or keep a record of all proceedings.

4.14. The Clerk shall ensure that Standing Committee Reports are put forward in such a way that the decisions contained therein can be considered by Council.

4.15. The Clerk shall be responsible for the management and coordination of Meeting agendas and related resolutions, by-laws, correspondence and records, and allow for public access to the same in accordance with the *Act*, the *Municipal Freedom of Information and Protection of Privacy Act R.S.O. 1990 c. M. 56*, and other pertinent legislation.

4.16. The Clerk, when requested, shall provide advice on matters of procedure.

4.17. Subject to the rights afforded to others under this by-law or any statute, the Clerk shall be responsible for assembling meeting agendas, providing advice internally to ensure that recommendations made to Council or Standing Committee are within Council's jurisdiction to enact and that statutory and procedural requirements have been met prior to the addition of an item to an agenda.

Chief Administrative Officer (CAO)

4.18. The CAO shall assist Council in discharging its responsibilities and, in an objective manner, aid Members in such a way that they are able to carry out their duties.

4.19. The CAO shall review, or cause to be reviewed, all Substantive Reports and recommendations prior to their submission to Council or Standing Committee, to ensure that they accurately reflect the goals and objectives of the Town.

4.20. The CAO shall attend all Council Meetings, and when invited or when deemed necessary to do so, shall attend or cause a designate to attend Standing Committee Meetings and shall be responsible for recommending reports for submission to Council or Standing Committees.

Department Heads

4.21. Department Heads shall assist the CAO in the discharge of their duties and in the development of strategies for the implementation of the policies of Council.

4.22. Department Heads shall review all reports and recommendations originating from their departments to ensure accuracy and propriety.

4.23. Department Heads shall attend or cause a designate to attend all Council Meetings, and when invited or when deemed necessary to do so, shall attend or cause a designate to attend Standing Committee Meetings.

4.24. Department Heads shall be encouraged to provide Council/Standing Committee their professional opinion with respect to the effectiveness of particular Council policies or programs and to identify any possible improvements thereto, but shall avoid becoming involved in Council's policymaking role.

Meeting Attendees

4.25. No persons, other than Council Members and Town Staff, are permitted to approach the area where Council and Staff are seated unless invited by the Mayor/Chair to do so.

4.26. Attendees shall submit all materials for Council or Standing Committees through the Clerk.

4.27. Attendees shall maintain order and not heckle or engage in conversations, display placards or props, or engage in any behavior that may be considered disruptive.

4.28. Attendees shall ensure that all personal digital devices are turned off or set to a silent mode during a Meeting.

4.29. Attendees participating remotely shall not be permitted to activate their camera or microphone unless invited by the Mayor/Chair to do so.

5. General Rules

Appointment of Deputy Mayor

5.1. Council shall, by way of by-law or resolution, appoint a Member of the Council to act from time to time in the place of the Mayor when the Mayor is absent from the municipality or absent through illness, and while so acting, such Member has and may exercise all the rights, powers, and authority of the Mayor. For greater certainty, the rights, powers and authority provided to the Deputy Mayor in the absence of the Mayor do not include powers assigned to the head of Council pursuant to Part VI.1 of the Act.

5.2. Council may, by way of resolution or by-law and with the consent of the Mayor, appoint a Member to act in the place of the Mayor on any board, commission, or other body of which the Mayor is a member by virtue of office.

5.3. Notwithstanding Sections 5.1 and 5.2, Council may delegate to the Mayor the authority to appoint another Member as Deputy Mayor.

Quorum

5.4. A quorum of Council or a Standing Committee shall be more than 50% of the Members of Council/the Committee.

5.5. If a quorum is not present within fifteen minutes after the time appointed for a Meeting, the Clerk or designate shall record the names of the Members present and the Meeting shall stand adjourned until the date of the next regular Meeting or other Meeting called in accordance with the provisions of this by-law.

5.6. Where there is an insufficient number of voting Members to constitute a quorum due to a provision of the *Municipal Conflict of Interest Act*, the remaining Members of Council constitute quorum provided that such number is not less than two (2).

5.7. Members are encouraged to notify the Clerk in advance of the Meeting when the Member is aware that he/she will be absent from any Meeting of Council or a Standing Committee.

Remote Participation at Meetings

5.8. Council Members, staff, and members of the public are permitted to participate in meetings remotely via electronic means (e.g. video or audio teleconference).

5.9. Council Members participating remotely shall have all the same rights and responsibilities as if they were in physical attendance. A Council Member who is remotely participating in a meeting shall be counted in determining whether or not a quorum of members is present at any point in time, and may participate electronically in any portion of a meeting that is closed to the public. Where **a** Member of Council encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting or any action taken at the meeting, provided that quorum is not lost during the meeting.

5.10. Where a member of the public requests to participate remotely in a meeting, the Clerk shall take such steps as are necessary to enable the individual to participate remotely in the meeting. Where a member of the public encounters technical difficulties or is otherwise unable to participate remotely in a meeting, such circumstances shall not affect the validity of the meeting, or any action taken at the

meeting. For greater clarity, remote participation is a convenience offered to the public and statutory rights under applicable legislation are best preserved by participating in meetings in person.

5.11. Members of the public participating remotely are expected to follow all rules of decorum as described Section 5.49 in these procedures.

5.12. A meeting of Council or any of its Standing Committees may be held in a fully electronic/remote format if deemed necessary by the Mayor in consultation with the Clerk. Where a decision to hold a meeting in a fully electronic/remote format is made, the Clerk or their designate shall notify all participants and the public as soon as possible in advance of the meeting.

5.13. Members of the public wishing to participate remotely shall register with the Clerk as follows:

5.13.1. For meetings scheduled to start at 7:00 p.m. or later, registration requests shall be received on or before 12:00 p.m. on the day of the meeting;
5.13.2. For all other meetings, registration requests shall be received at least 24 hours prior to the scheduled start of the meeting; and,
5.13.3. The date and timestamp of the email as displayed by the Town's email system shall determine whether these requirements have been met.

Recording and Broadcasting Meetings

5.14. All meetings of Council and its Standing Committees may be audio and/or video recorded and may be broadcast publicly by the Town. Closed Session portions of all meetings shall not be recorded or broadcast.

5.15. Where the Town records and/or broadcasts all or a portion of a meeting of Council or its Standing Committees, the recording and/or broadcast of the meeting shall be considered a record created for the purposes of being available to the general public.

5.16. Members of the public in attendance at a meeting may record or broadcast meetings from their personal devices, provided that doing so is not disruptive to the Meeting or to other attendees. Attendees invited to participate in a Closed Session portion of a meeting shall not record or broadcast any portion of a meeting held in Closed Session.

5.17. Where a meeting is broadcast publicly by the Town, failure of the broadcast for any reason shall not invalidate the meeting, or any action taken at the meeting.

Appointment of Alternate Member to Upper Tier Council

5.18. Council may appoint one of its Members as an Alternate Member of the Upper Tier Council to act in place of any Regional Councillor when they are unable to attend a meeting of the Upper Tier Council for any reason, subject to the following limitations:

5.18.1. No more than one Alternate Member may be appointed during the term of Council;
5.18.2. Notwithstanding Section 5.18.1, if the seat of the appointed Alternate Member becomes vacant, Council may appoint another of its members as an Alternate Member for the remainder of the term of Council;
5.18.3. Council may not appoint an alternate for the Alternate Member; and
5.18.4. When acting in their capacity as an Alternate Member on the Upper Tier Council, the Alternate Member shall adhere to all policies, procedures, practices, and codes of conduct established by the Upper Tier Council.

Closed Session Meetings / Openness and Transparency

5.19. All proceedings of Council and Standing Committees shall be open to the public, except where a matter meets one or more of the criteria listed in Section 239(2) and 239(3.1) of the *Act*. In such a case, Council or the Standing Committee may choose to consider the matter in a Closed Session meeting, but is not required to do so.

5.20. A Meeting shall be closed if the subject matter being considered is a request under the *Municipal Freedom of Information and Protection of Privacy Act* if Council is the head of the institution for the purposes of that Act, or if the Meeting is regarding an ongoing Ombudsman investigation respecting the municipality, a local board or a municipally-controlled corporation.

5.21. Before holding a Meeting or part of a Meeting that is to be closed to the public, Council or the Standing Committee must state by resolution the fact of the holding of a Closed Session, the general nature of the matter to be considered at the Closed Session, and the Municipal Act provision that permits the item to be considered in Closed Session.

5.22. The Clerk shall advise the Chair if, in their opinion, the issue (or portion thereof) being discussed at a Closed Session is not appropriate in accordance with the terms of the Act and in accordance with the provisions of this by-law.

5.23. Voting shall not be permitted in a Closed Session except when the vote is for a procedural matter or for giving directions or instructions to officers, employees or agents of the municipality or persons retained under contract with the municipality.

5.24. Where appropriate and where it does not conflict with the best interests of the municipality, Council/Committee shall rise and report any decisions made in a Closed Session under Section 5.23, immediately upon reconvening in Open Session.

5.25. When appropriate, Staff shall be encouraged to prepare an “open” report to supplement the Closed Session report, which shall contain non-confidential information on the matter that is to be discussed in the Closed Session.

Disclosures of Pecuniary Interest

5.26. All Members shall govern themselves at any Meeting in accordance with the *MCIA* respecting any disclosure of pecuniary interest. It is the responsibility of the Member to identify and disclose any pecuniary interest.

5.27. Prior to any consideration of a matter in which a member has a pecuniary interest, the Member shall disclose the pecuniary interest including the general nature thereof, and shall not take part in the discussion of or vote on any question in respect to the matter, and shall not attempt in any way, whether before, during or after the Meeting, to influence the voting on any such question.

5.28. Where the Meeting is not open to the public, in addition to declaring the conflict, the Member shall immediately leave the Meeting or the part of the Meeting during which the matter is under consideration.

5.29. Where a Member is absent from a Meeting which includes a matter on which they have a pecuniary interest, the Member shall disclose this interest at the next Meeting they attend.

5.30. The disclosure of pecuniary interest shall be recorded in the minutes of the Meeting, and where the Meeting was open to the public, the general nature of such disclosure.

5.31. At a meeting at which a member discloses a pecuniary interest or as soon as possible afterwards, the Member shall file a written statement of the interest and its general nature with the Town Clerk.

5.32. The Town Clerk shall establish and maintain a registry in which shall be kept a copy of each statement of pecuniary interest filed and a copy of each declaration recorded in the minutes of a meeting, and the registry shall be made available for public inspection.

5.33. Should the Mayor encounter a direct, or indirect, pecuniary interest in any matter associated with the exercise of any power under Part VI.1 of the Act, they shall:

5.33.1. Disclose the interest and its general nature in writing with the Town Clerk;
5.33.2. Refrain from exercising any power or duty with respect to the matter; and,

5.33.3. Shall not influence any decision or recommendation of the municipality that results from consideration of the matter.

5.34. Should the Mayor encounter a direct, or indirect, pecuniary interest in any budgetary matter under Subsection 284.16(2) of the Act:

5.34.1. Council may pass a resolution to amend the proposed budget with respect to the matter; and,
5.34.2. The Mayor may not Veto the resolution.

Minutes

5.35. The Clerk shall cause minutes to be taken of all meetings of Council and its Standing Committees, which shall include:

5.35.1. The place, date and time of the meeting;
5.35.2. The names of the presiding officer or officers and the record of attendance of the Members; should a Member enter after the commencement of a Meeting or leave prior to adjournment, the time shall be noted; and
5.35.3. All other proceedings without note or comment.

Delegations at Council & Standing Committees

5.36. Persons desiring to verbally present information on matters of fact or to make a request to Council shall give notice, including the subject of their address, to the Clerk no later than noon ten days prior to the Meeting.

5.37. The Clerk may decline to grant a request for delegation if the subject matter pertains to personnel matters, labour relations, ongoing legal proceedings, solicitation of business, political parties, or if it is otherwise apparent that the subject matter of the delegation is not suitable for discussion at a meeting of Council. Individuals wishing to appear as a delegation may be encouraged by a Member or a Staff person to consider resolving an issue or concern with Staff in lieu of, or prior to, submitting a request for delegation.

5.38. Notwithstanding Section 5.36, a person wishing to make a delegation in-person with respect to a matter before the Community Affairs and Planning Committee for which the public has been invited to make comment, or has been given notice of the Meeting under the *Planning Act* R.S.O. 1990 c. P. 13 (the “Planning Act”) or any other legislation or regulation, as required, is not required to give written notice nor be listed on the agenda.

5.38.1. Notwithstanding Section 5.38, a person wishing to make a delegation remotely via electronic means with respect to a matter before the Community Affairs and Planning Committee for which the public has been invited to make comment, or has been given notice of the Meeting under the *Planning Act* R.S.O. 1990 c. P. 13 (the “Planning Act”) or any other legislation or regulation, as required, is required to give written notice to the Clerk as described in Section 5.13.

5.39. Notwithstanding Section 5.36, no person shall be permitted to speak to Council requesting consideration of a matter that is before the Community Affairs and Planning Committee for a zoning by-law amendment, official plan amendment or any other matter requiring a public meeting under the *Planning Act*, or any other legislation or regulation prior to the date of the scheduled statutory public meeting. Also, no person shall be permitted to speak to Council on a matter that has been the subject of a public meeting at a Standing Committee and where Council has not yet decided the matter.

5.40. Notwithstanding Section 5.36, delegations shall not be permitted at General Government Committee and requesters shall be directed to the appropriate meeting of Council to make their delegation. Persons wishing to speak to a matter that is scheduled for consideration at GGC may request that the rules of procedure be suspended to hear an unscheduled delegation, in accordance with Section 2.2 of these procedures. Delegates at GGC are expected to follow all rules of conduct for delegates specified in Sections 5.49 to 5.51 of these procedures.

5.41. Delegations shall be permitted to speak on a matter only once and be limited to speak for no more than five minutes for individual delegations, or ten minutes for group delegations. Where there are numerous delegates taking the same position on a matter, they are encouraged to select a spokesperson to present their views. Delegations are encouraged not to repeat information presented by an earlier delegation.

5.42. Members shall be permitted to ask questions of delegates but shall not enter into debate with such persons.

5.43. Delegations will typically be heard prior to presentations.

5.44. Notwithstanding Section 5.36, delegations respecting a matter appearing on a regular Council agenda shall be permitted to register following agenda publication, provided the request is received by the Clerk no later than noon on the Friday prior to the meeting.

Presentations

5.45. From time to time, Town Staff and certain persons from partner organizations, other government bodies, and dignitaries, may be granted presentation status from the Clerk in order to inform Members of matters of considerable significance to the Town.

5.46. Persons must request and be granted presentation status from the Clerk by noon ten days prior to the Council or Committee Meeting.

5.47. Presenters will typically be granted ten minutes for their presentation, and may be granted additional time at the discretion of Council or the Committee.

5.48. Where possible, presentations from outside individuals or groups will be heard prior to presentations from Town Staff.

Conduct of Delegates & Presenters

5.49. Persons delegating or presenting to Council or a Standing Committee shall not:

5.49.1. Speak disrespectfully of any person;
5.49.2. Use offensive words;
5.49.3. Speak on any subject other than the subject for which they have received approval to address Council/Committee;
5.49.4. Disobey the decision of the Mayor/Chair or Council/Committee;
5.49.5. Enter into cross-debate with other delegates/presenters, Town Staff, Members, or the Chair.

5.50. The Mayor/Chair, with the assistance of the Clerk, shall determine a logical and fair speaking order for the presenter(s). The decision of the Mayor/Chair under this section is final.

5.51. Delegates/presenters will not be permitted to assume any unused time allocated to another delegation or presentation.

Petitions

5.52. Petitions submitted to Council must contain a concise, clearly worded and respectful request that Council take, or refrain from taking, some action in response to an alleged grievance, issue, or matter of Town policy. Petitions without such a request (i.e. documents consisting solely of statements of opinion or statements of grievance) cannot be accepted as petitions. The action sought must fall within Council's jurisdiction and cannot pertain to the jurisdiction of the Upper Tier Council or the provincial or federal government.

5.53. All petitions shall include at minimum the full name and physical address of all signatories. When a petition consists of more than one page, each succeeding page is to contain a statement of the subject matter of the petition to ensure that signatories are fully aware of the nature of the petition.

5.54. The Clerk shall determine whether a petition submitted to Council is valid. A petition shall be deemed to be valid if it substantially complies with Sections 5.52 and 5.53 of this by-law, and if in the opinion of the Clerk any deficiencies noted do not substantially detract from the integrity of the petition. A petition not deemed valid by the Clerk shall be referred back to the submitter with an explanation as to why the petition is not valid. Petitioners may re-submit petitions in a valid form if they so choose.

5.55. When a submitted petition is deemed valid, the Town Clerk shall circulate the petition in its entirety to Council, the Chief Administrative Officer, and relevant Department Head(s). As soon as practicable, valid petitions shall be included on the Council Agenda as an item of Correspondence with a recommendation either to receive for information or a referral back to staff for further review and recommendations. The Clerk shall notify the petitioner(s) when the petition will be included on a Council Meeting agenda. Staff may submit accompanying correspondence to Council regarding the petition and the recommendation as needed.

Administrative Corrections to Official Records

5.56. The Clerk is authorized to make administrative corrections to official records of Council business, including agendas, minutes, and by-laws, and in such cases the Clerk shall document any corrections made to ensure their conformity with the direction provided by Council and any relevant governing legislation, as the case may be.

Location of Meetings

5.57. Regular Meetings of Council and its Standing Committees shall be held at the location specified in this procedure by-law. Special and Emergency Meetings may be held at an alternate location within the municipality or in an adjacent municipality as determined by the Mayor in consultation with the Clerk when appropriate.

6. Council

Inaugural Meeting of Council

6.1. Following a regular municipal election, the Inaugural Meeting shall be held no later than 31 days after the new term of office commences, on such a date, at such time and place as coordinated by the Clerk.

Regular Schedule of Meetings

6.2. All regular Meetings of Council shall be held at Town Hall, 65 Harwood Avenue S, in the Council Chambers, on the third Monday of each month, starting at 7:00 p.m. in the evening unless such a day is a public or civic holiday in which case the Council shall meet at the same hour on the following day. No regular meetings of Council will be scheduled for the months of July and August.

Order of Business at Regular Meetings

6.3. The Clerk shall prepare and cause to be circulated for the use of Members at Meetings of Council, an agenda listing the Order of Business, which shall contain the following general headings:

Call to Order & Acknowledgement of Traditional Treaty Lands
Disclosure of Pecuniary Interest
Adoption of Minutes
Question Period
Delegations, Presentations, and Public Meetings
Correspondence
Reports
Regional Councillors' Reports
Business Arising from Notice of Motion
By-laws
Notice of Motion
New Business/Announcements

Confirming Bylaw
Adjournment

6.4. All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by the Mayor/Chair, with the general consent of the Members present.

Call to Order & Acknowledgement of Traditional Treaty Lands

6.5. As soon after the hour fixed for holding the Meeting of the Council as a quorum is present, the Mayor shall take the Chair, call the Members to order, and read the acknowledgement of traditional treaty lands.

Disclosure of Pecuniary Interest

6.6. Members shall disclose any pecuniary interests with respect to matters on the meeting's agenda in accordance with Sections 5.26 to 5.34 of these procedures.

Adoption of Minutes

6.7. Draft minutes of the last regular Meeting of Council and of Special Council Meetings held subsequent to the last regular Meeting shall be included in the agenda where such minutes are ready for adoption and may be adopted by Council without having been read aloud at the Meeting at which the question of their adoption is considered.

Question Period

6.8. An opportunity will be provided for any member of the public to ask the Mayor a question pertaining to any matter appearing on the Council agenda. All questions will be answered by the Mayor, unless in the Mayor's opinion the answer could be better provided by another Member of Council or a member of Town staff. In the interest of expediency, the Mayor/Chair may impose time limitations on the questions asked by members of Council and the public.

Delegations, Presentations, and Public Meetings

6.9. Persons desiring to verbally present information or make a request to Council may do so as per Sections 5.36 to 5.44 of this by-law.

Correspondence

6.10. Every written communication intended for presentation to Council must be legibly written, typed, or printed, and delivered to the Clerk not later than noon ten days prior to the regular Meeting of Council.

6.11. Items of correspondence included in the agenda may include recommendations from Staff related to the matter.

6.12. Certain items of correspondence not requesting or requiring any action by Council may be circulated by the Clerk to Members of Council, the CAO, and applicable Staff for their information, and will form a part of the Clerk's records.

6.13. If in the opinion of the Clerk, the correspondence contains obscene or improper content or language, is anonymous, addresses a matter that has already been decided by Council, is related to personnel matters, labour relations, ongoing legal proceedings, political parties, or solicitation of business, or does not bear sufficient relevance to local governance or matters affecting or of interest to the Town, the Clerk may exclude the item from the agenda.

6.14. A Motion with respect to any item of correspondence shall be in order provided it is moved and seconded, with the exception that a Motion to endorse an item of correspondence shall be out of order if the correspondence was sent by a Member to an external party.

Reports

6.15. The following reports to Council will be listed on the agenda:

6.15.1. Community Affairs and Planning Committee
6.15.2. General Government Committee
6.15.3. Summary of Advisory Committee Activities
6.15.4. Departmental Reports

6.16. Committee Reports may be dealt with by a single resolution for each report listed in the agenda; or, any Member may request that one or more recommendations contained in the report be separated and dealt with individually.

6.17. The Chairs of CAP and GGC Meetings for which reports are being presented may deliver a brief verbal report to Council and the public on the respective Meeting that took place that month, and any notable recommendations contained within the report being put forward to Council for approval.

6.18. The 'Departmental Reports' portion of the agenda shall include any Staff report that due to timing, urgency, expediency, or public importance, must be considered by Council without first being presented to one of the Standing Committees. From time to time, it may also include a report from the Ajax Library. Department Reports may be dealt with by a single resolution to adopt the recommendations within all reports.

Regional Councillors' Reports

6.19. The Regional Councillors may report to Council, either in writing or verbally, on any business at Regional Council or its committees. These reports, if in writing and received by the Clerk in time for publication, shall be circulated with the agenda.

Business Arising from Notice of Motion

6.20. A Notice of Motion properly presented as per Sections 6.26 to 6.29, shall be listed and circulated in the agenda, and shall be dealt with at this time.

By-laws

6.21. By-laws shall be introduced upon motion by a Member, and any number of by-laws may be introduced together in one motion. Council shall, at the request of a Member, deal separately with any by-law.

6.22. By-laws which have been passed by the Council shall be numbered, dated and sealed with the seal of the Town and signed by the Mayor and Clerk or their designates, and shall be retained under the control of the Clerk.

6.23. By-laws imposed by order of the Ontario Land Tribunal, the Minister of Municipal Affairs and Housing, or any other applicable person or body having jurisdiction, shall be numbered, added to an agenda for transparency and recordkeeping purposes, and shall be retained under the control of the Clerk.

6.24. By-laws shall come into force and effect on the later of:

6.24.1. The date on which it was adopted by Council;
6.24.2. The date on which the Mayor gives approval of the by-law;
6.24.3. The date on which the notice period established by Subsection 284.11(3) of the Act expires; or,
6.24.4. The date on which Council passes a Veto Override.

6.25. The Clerk is authorized to amend by-laws to identify the date on which by-laws come into effect, as described in Section 6.24 above.

Notice of Motion

6.26. Motions introducing new matters, except for motions listed under Sections 12.8, 12.9 and 12.10, shall be given in writing by the mover:

6.26.1. at a Meeting of Council, but shall not be debated until the next regular Meeting of Council; or

6.26.2. delivered to the Clerk and distributed to Council not later than noon ten days prior to the date of the Meeting at which time the motion is to be introduced and debated.

6.27. Where notice of motion has been given, the motion shall be printed in the agenda, under “Business Arising from Notice of Motion” for the next regular Meeting of Council and for each succeeding Meeting until the motion is considered or otherwise disposed of.

6.28. When a Member’s notice of motion has been called from the Chair at two successive Meetings and not proceeded with, it shall be removed from the agenda unless Council decides otherwise.

6.29. Notwithstanding anything contained in this section, a motion introducing new matters may be introduced without notice by suspension of the rules.

New Business/Announcements

6.30. A period will be allowed for Members to bring matters of public interest before Council for information. Each member shall be limited to five minutes, and statements shall not be intentionally controversial in nature.

Confirming By-law

6.31. A by-law to confirm the proceedings and resolutions of Council at the meeting shall be included for adoption at the meeting.

Adjournment

6.32. If all matters in the order of business have concluded on the meeting’s agenda, the Mayor/Chair may adjourn the meeting.

6.33. Notwithstanding Section 6.32 members may vote to adjourn a meeting at any time**,** except when considering a by-law described in Section 13.

7. Standing Committees

7.1. There shall be two Standing Committees of Council, being the Community Affairs and Planning Committee and the General Government Committee.

7.2. All members of Council shall be appointed to all Standing Committees.

7.3. Standing Committees shall report to Council on all matters connected with their mandate or referred to them by Council, and shall recommend to Council such actions as they deem necessary.

7.4. The record of the proceedings of the Standing Committees, as presented to Council, shall be in the form of a report to Council which shall contain:
7.4.1. The commencement time of the Meeting;
7.4.2. The names of the Members present; should a Member enter after the commencement of a Meeting or leave prior to adjournment, the time shall be noted;
7.4.3. Any disclosure of pecuniary interest by any Member;
7.4.4. A record of each item before the Committee for consideration; and
7.4.5. All substantive resolutions recommended to Council based on the items before the Committee for consideration.

8. Community Affairs and Planning Committee (CAP)

Mandate

8.1. The Community Affairs and Planning Committee is mandated with holding statutory public meetings required under the *Planning Act* or other legislation or regulations, any other matter deemed to require public consultation, and such other matters as may be referred to the Committee.

Chair

8.2. CAP shall be chaired by both Local and Regional Councillors on a rotating basis, in order of ascending ward number. The Vice-Chair shall be the Local or Regional Councillor representing the same ward as the Chair, and shall also be listed on each agenda to act in the absence of the Chair. Local and Regional Councillors shall alternate roles between Chair and Vice-Chair every three months. The rotation of Chairs shall be established annually during the approval of the schedule of meetings for the subsequent year. In the absence of both the designated Chair and Vice-Chair, the Members present shall appoint a Member who shall preside over the Meeting, or until the arrival of the Chair or Vice-Chair.

Regular Schedule of Meetings

8.3. CAP shall meet in the Council Chambers on the first Monday of each month starting at 7:00 p.m. unless such a day is a public or civic holiday in which case the Committee shall meet at the same hour on the next following day which is not a holiday. No regular Meetings will be scheduled for the months of July or August.

Order of Business at Regular Meetings

8.4. The Clerk or their designate shall be the secretary of the Committee, and shall prepare and circulate an agenda for each Meeting listing the Order of Business, which shall contain the following matters:

Call to Order & Acknowledgement of Traditional Treaty Lands
Disclosure of Pecuniary Interest
Adoption of Minutes
Public Meetings
Presentations/Reports
Adjournment

8.5. All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by the Chair, with the general consent of the Members present.

Call to Order & Acknowledgement of Traditional Treaty Lands

8.6. As soon after the hour fixed for holding the CAP meeting as a quorum is present, the Chair shall call the Members to order and read the acknowledgement of traditional treaty lands.

Disclosure of Pecuniary Interest

8.7. Members shall disclose any pecuniary interests with respect to matters on the meeting's agenda in accordance with Sections 5.26 to 5.34 of these procedures.

Adoption of Minutes

8.8. Minutes of the last regular CAP meeting and of all Special CAP meetings held subsequent to the last regular meeting shall be included in the agenda and may be adopted by the Committee without having been read aloud at the meeting at which the question of their adoption is considered.

Public Meetings

8.9. Public Meetings required under the *Planning Act* or any other legislation or regulation shall be held to obtain public comment on an application or other matter during this portion of the meeting. Other matters for which Council, the Standing Committee or Staff have deemed it expedient to invite public comment may also be addressed at this time.

8.10. Delegations received during a Public Meeting shall be heard first from any member of the public attending the meeting in-person, followed by any members of the public registered to participate remotely via electronic means. The Chair, in consultation with the Clerk, may accommodate a different order of speakers where deemed possible and appropriate.

Presentations/Reports

8.11. Other presentations and reports pertaining to the mandate of the Community Affairs and Planning Committee which do not require a public meeting may be considered during this portion of the meeting.

Adjournment

8.12. If all matters in the order of business have concluded on the meeting's agenda, the Chair may adjourn the meeting.

8.13. Notwithstanding Section 8.12, members may vote to adjourn a meeting at any time.

9. General Government Committee (GGC)

Mandate

9.1. The General Government Committee makes recommendations to Council on levels of service, corporate and operational policies, personnel matters, budgetary matters, and such other matters that may be referred to the Committee.

Chair

9.2. GGC shall be chaired by both Local and Regional Councillors on a rotating basis, in order of ascending ward number. The Vice-Chair shall be the Local or Regional Councillor representing the same ward as the Chair, and shall also be listed on each agenda to act in the absence of the Chair. Local and Regional Councillors shall alternate roles between Chair and Vice-Chair every three months. The rotation of Chairs shall be established annually during the approval of the schedule of meetings for the subsequent year. In the absence of both the designated Chair and Vice-Chair, the Members present shall appoint a Member who shall preside over the Meeting, or until the arrival of the Chair or Vice-Chair.

Regular Schedule of Meetings

9.3. The GGC shall regularly meet in the Council Chambers in Town Hall on the second Monday of each month starting at 1:00 p.m. unless such a day is a public or civic holiday in which case the Committee shall meet at the same hour on the next following day, which is not a holiday. A scheduled Closed Session of the GGC may follow after the open meeting.

Order of Business at Regular Meetings

9.4. The Clerk or an employee of the Town designated by the Clerk shall be secretary of the GGC and they shall prepare and cause to be circulated for the use of the Members at the regular Meetings of the GGC, an agenda listing the Order of Business, which shall contain the following matters:

Call to Order & Acknowledgement of Traditional Treaty Lands
Disclosure of Pecuniary Interest
Adoption of Minutes
Consent Agenda
Discussion & Presentations
Closed Session
Adjournment

9.5. All business shall be taken up in the order in which it appears on the agenda unless otherwise decided by the Chair, with the general consent of the Members present.

Call to Order & Acknowledgement of Traditional Treaty Lands

9.6. As soon after the hour fixed for holding the GGC meeting as a quorum is present, the Chair shall call the Members to order and read the acknowledgement of traditional treaty lands.

Disclosure of Pecuniary Interest

9.7. Members shall disclose any pecuniary interests with respect to matters on the meeting's agenda in accordance with Sections 5.26 to 5.34 of these procedures.

Adoption of Minutes

9.8. Minutes of the last regular GGC meeting and of all Special GGC meetings held subsequent to the last regular meeting shall be included in the agenda and may be adopted by the Committee without having been read aloud at the meeting at which the question of their adoption is considered.

Consent Agenda

9.9. Consent Agenda items are considered to be routine, and all items on the Consent Agenda may be approved by one motion. Any item on the Consent Agenda may be separated upon request of any Member and addressed by the Committee. Members are encouraged to provide notice to the Clerk or their designate of items intended to be separated for discussion by 10:00 a.m. on the day of the meeting, such that the necessary staff can be made available.

Discussion & Presentations

9.10. Discussion & Presentation items include all matters that, in the opinion of staff, require a formal presentation or discussion of a matter in detail. Discussion & Presentation items may include a formal report and recommendations from staff, or may be verbal only.

Closed Session

9.11. If necessary, a Closed Session of GGC may be scheduled to be held following the conclusion of all other matters on the meeting agenda, and shall be conducted in accordance with Sections 5.19 to 5.25 of these procedures.

9.12. Notwithstanding Section 9.11, the Committee may convene into a Closed Session at any time in accordance with Sections 5.19 to 5.25 of these procedures.

Adjournment

9.13. If all matters in the order of business have concluded on the meeting's agenda, the Chair may adjourn the meeting.

9.14. Notwithstanding Section 9.13, members may vote to adjourn a meeting at any time.

Budget Meetings

9.15. All meetings pertaining to the consideration of annual capital and operating budgets shall be conducted as General Government Committee meetings.

9.16. Notwithstanding Section 9.2 of these procedures, GGC budget meetings shall be chaired by the Mayor.

9.17. The Order of Business for GGC budget meetings may be determined by the Clerk in consultation with the Director of Finance / Treasurer.

10. Scheduling and Notice of Meetings

Agendas

10.1. Meeting agendas shall be published on the Town website a minimum of six days in advance of the Meeting.

10.2. Late/separate circulations and addendum/revised agendas are to be avoided wherever possible. However, where necessary, addendum or revised agenda items will be circulated to Members electronically and posted on the Town website as soon as possible.

10.3. Lack of sufficient notice or late agenda distribution shall not affect the validity of holding a Meeting or any action taken thereat.

Statutory Notice Requirements

10.4. Notice of Public Meetings shall be provided in accordance with the Town's Public Notice Policy and the requirements of the Act, or any other statute that establishes requirements to provide public notice of a meeting or an item to be considered.

Notice - Regular Meetings

10.5. The Clerk shall give notice of a Regular Meeting of Council or a Standing Committee by:

10.5.1. Publishing an agenda on the Town website six days in advance of the scheduled Meeting;
10.5.2. If required, sending a Closed Session agenda to Members six days in advance of the scheduled Meeting;
10.5.3. When possible, including a list of upcoming Council & Standing Committee Meetings in a local newspaper.

Special Meetings

10.6. In addition to regular meetings, the Mayor may at any time call a special Meeting of Council or one of its Standing Committees by giving direction to the Clerk stating the date, time, and purpose of the special meeting.

10.7. Upon receipt of the petition of two thirds of the Members, the Clerk shall summon a special meeting of Council or one of its Standing Committees for the purpose and at the date and time identified in the petition.

10.8. Notice of special meetings shall be given in accordance with Section 10 of this by-law.

10.9. No business other than that indicated on the written notice shall be considered at the special meeting except with the unanimous consent of all Members present and voting at such Meeting.

10.10. Special meetings of Council or its Standing Committees are not required to follow the Order of Business for such meetings described in these procedures, and the business of a special meeting may be organized in a manner deemed appropriate by the Clerk.

10.11. The Clerk shall give notice of a special Meeting of Council or a Standing Committee as follows:

10.11.1. The Clerk shall give all Members notice of a special Meeting of Council/Committee at least twenty-four hours before the time appointed for such Meeting, by electronic mail, and publish an agenda as soon as possible.
10.11.2. Notice of the Meeting shall be provided to the public on the Town website as soon as practicable, and may be posted at the main entrance of Town Hall.
10.11.3. All special Meeting notices shall indicate the nature of the business to be considered at the special Meeting, and the date, time, and place of the Meeting.

Emergency Meetings

10.12. Notwithstanding any other provision of this by-law, the Mayor may at any time call an emergency Meeting of Council, without written notice, to deal with an emergency or extraordinary situation, provided that an attempt has been made by the Clerk or designate to notify the Members about the Meeting as soon as possible and in the most expedient manner available.

10.13. No business except business dealing directly with the emergency or extraordinary situation shall be transacted at the emergency Meeting.

10.14. In the event of an emergency Council Meeting, notice is not required; however, the Clerk will attempt to notify Members and the public about the Meeting and publish the agenda as soon as possible and in the most expedient manner available.

Rescheduling of Meetings

10.15. Where the Mayor considers it necessary to change the date and/or time of a regularly scheduled Meeting of Council or Standing Committee, the Mayor shall direct the Clerk to ascertain the views of the Members concerning the proposed change.

10.16. Where the Clerk ascertains that a majority of the Members have no objection to the proposed change, the Clerk shall confirm the scheduling change and give notice on the Town's website, and may give notice through the Town's local newspaper where practicable. Notice of the scheduling change may also be posted at Town Hall.

Cancellation of Meetings

10.17. A regular, special, or emergency Meeting of Council or a Standing Committee may be cancelled in any of the following circumstances:

10.17.1. If the Clerk determines in advance that quorum will not be achieved;
10.17.2. If the Meeting is cancelled by Council or Committee resolution;
10.17.3. Where the Meeting is not required as determined by the Mayor or Clerk.

10.18. The Clerk shall give notice of any Meeting cancellation on the Town website, and may give notice through the Town's local newspaper where practicable. Notice of cancellation may also be posted at Town Hall.

11. Rules of Debate

General Rules of Debate

11.1. The Mayor/Chair shall preserve order and decorum and decide questions of order.

11.2. When two or more Members desire to speak, the Mayor/Chair shall designate the Member who has the floor.

11.3. No Member shall be deemed to have precedence or seniority over any other Member.

11.4. Before speaking to a question or motion, a Member shall be acknowledged by the Mayor/Chair.

11.5. When a Member is speaking, no other Member shall interrupt that Member except to raise a point of order.

11.6. No Member shall speak more than twice to the same question, but a reply may be made by the Member who has presented the motion.

11.7. No Member shall speak to the same question for longer than five minutes.

11.8. A Member may ask a question for the purpose of obtaining information related to the matter under discussion.

Points of Order

11.9. A Member may call attention to a violation of the Rules of Procedure by stating the point of order to the Mayor/Chair succinctly, and the Mayor/Chair shall then decide upon the point of order and advise the Members of the decision.

11.10. A Member may immediately appeal the Mayor/Chair's decision to the Council/Committee. The Council/Committee shall hear the reason for the appeal

from the appellant and the reason for the decision from the Mayor/Chair, and shall decide the question without debate. The decision of the Council/Committee is final.

Points of Privilege

11.11. Where the Member considers that their integrity, or the integrity of Council as a whole, has been impugned, he or she may draw attention to the matter.

11.12. A point of privilege shall take precedence over other matters, but the Members shall not be permitted to enter into any argument or introduce any motion related to the point of privilege.

11.13. When the Mayor/Chair considers that the integrity of the CAO or a member of Town Staff has been impugned or questioned, the Mayor/Chair may permit the CAO to make a statement to Council or the Committee.

11.14. A Member may immediately appeal the Mayor/Chair's decision on a point of privilege to the Council/Committee. The Council/Committee shall hear the reason for the appeal from the appellant and the reason for the decision from the Mayor/Chair, and shall decide the question without debate. The decision of the Council/Committee is final.

12. Motions

12.1. Except as otherwise provided in this by-law, all motions must be duly moved and seconded before the Mayor/Chair can put the question or motion on the floor for consideration, and should be in writing to ensure that all Members are fully aware of the motion to be voted on.

12.2. Notwithstanding Section 12.1, a motion presented in General Government Committee need not be in writing nor require a seconder.

12.3. When a motion is presented orally, it shall be stated by the Mayor/Chair before debate.

12.4. A motion which is printed in the agenda as either a separate item or as part of a report, need not be read in its entirety unless requested to do so by a Member but shall be deemed as read for the purposes of introducing the motion.

12.5. After a motion is read or stated by the Mayor/Chair it shall be deemed to be in possession of Council/Committee, but may be withdrawn by the mover at any time before decision or amendment.

12.6. A motion in respect of a matter which is beyond the jurisdiction of Council shall not be in order.

12.7. A motion properly before Council/Committee for decision must receive disposition before any other substantive motion can be received.

Motions without Notice

12.8. The following matters and motions may be introduced orally without written notice and are to be decided without debate:

12.8.1. a point of order;
12.8.2. a point of privilege;
12.8.3. a motion to adjourn;
12.8.4. a motion to refer without direction or instructions;
12.8.5. a motion to defer;
12.8.6. a motion to suspend the Rules of Procedure;
12.8.7. a motion to table the question without direction or instructions;
12.8.8. a motion to call the vote on a question; and
12.8.9. a motion to recess.

12.9. The following motions may be introduced without notice, but shall be put forward in writing, unless otherwise stated in this by-law, and may be debated by Members before being decided:

12.9.1. a motion to amend; and
12.9.2. a motion to refer with direction or instructions.

12.10. Notwithstanding the requirements of this by-law, a motion introduced by the Mayor, pursuant to Section 284.10 of the Act which, in the opinion of the Mayor, may advance a Provincial Priority, shall be permitted at any time and shall be considered by Council. To assist Council in the decision-making process, it is recommended, but not required, that the motion be submitted in writing.

Motions to Amend

12.11. Only one motion to amend the main motion shall be allowed at one time.

12.11.1. Only one motion to amend a motion to amend the main motion shall be allowed at one time.

12.11.2. The amendment to the amendment, if any, shall be voted on first, then if no other amendment is presented, the amendment shall be voted on next, then if no other amendment is introduced, the main motion, or if any amendment has carried, the main motion as amended, shall be put to a vote.

Motions to Reconsider

12.12. A motion to reconsider may be considered in respect of a resolution that was adopted at Council or at a Standing Committee during the current term of office for Council.

12.13. A motion to reconsider shall require a two-thirds majority vote to be adopted.

12.14. The Chair may require a motion to reconsider if, in the opinion of the Chair in consultation with the Clerk, a resolution moved by a Member is substantially the same as a resolution that has already been adopted during the current term of Council, or contradicts, alters, or overrides a resolution previously adopted during the current term of Council.

12.15. A motion to reconsider is debatable, and debate on a motion to reconsider shall be confined to reasons for or against the motion to reconsider. Debate on the resolution that is the subject of the motion to reconsider shall be out of order unless and until the motion to reconsider is adopted.

12.16. If a motion to reconsider is decided in the affirmative at a Meeting, then consideration of the original resolution shall become the next order of business.

12.17. If a motion to reconsider is decided in the affirmative at a Meeting, the previously adopted resolution of Council remains in force unless and until Council adopts a new resolution.

12.18. Motions to reconsider shall only be in order if they pertain to a final resolution adopted by Council. Secondary Motions and amendments cannot be the subject of a motion to reconsider, and any motion so put shall be out of order.

Single Motion

12.19. One or more items on an agenda may be adopted in a single motion.

13. Voting

13.1. Every Member present at a Meeting, when a question is put, shall vote thereon unless disqualified to vote on the question.

13.2. If a Member does not vote when a question is put, he or she shall be deemed to have voted in the negative, except where the Member is disqualified from voting.

13.3. A Member not in their seat when the question is called by the Mayor/Chair is not entitled to vote on that question.

13.4. Immediately preceding the taking of the vote, the Mayor/Chair shall state the question in the form introduced.

13.5. The Mayor/Chair shall announce the result of every vote.

13.6. If a Member disagrees with the announcement of the Mayor/Chair that a motion is carried or lost, he/she may immediately after the declaration by the Mayor/Chair, state their objection to the declaration and request that a recorded vote be taken on the question.

13.7. Every vote shall be conducted using the electronic voting system. Should Council meet in a location where there is no electronic voting system, or should the electronic voting system be inoperable, the vote may be conducted by show of hands.

Recorded Vote

13.8. Recorded votes shall be permitted at any Meeting of Council or Standing Committee of Council.

13.9. When a recorded vote is requested by a Member or is otherwise required, the Clerk shall record the name and vote of every Member on the question.

13.10. The Clerk shall conduct the recorded vote using the electronic voting system by enabling a 30-second time period for all Members to cast their vote on the question. At the conclusion of the allotted time period or once all Members have voted, the Clerk shall cause the result of the vote to be displayed and the manner in which each Member voted to all participants at the meeting, and the Mayor/Chair shall declare the result of the vote.

13.11. Where a meeting space does not support the technical ability to hold a recorded vote in accordance with the requirements of Section 13.10 of these procedures, the Clerk shall conduct the recorded vote by roll call of all Members present, commencing with the Member who made the request and then all other Members, alphabetically, until all Members have voted. The Mayor/Chair shall vote last, even if they are the requester of the recorded vote. Once all Members have voted, the Mayor/Chair shall declare the result of the vote.

Tied Vote

13.12. Any question on which there is an equality of votes shall be deemed to have been decided in the negative.

Dividing a Question

13.13. A Member may request that any substantive motion containing multiple proposals be divided, such that one or more proposals within the motion are voted on separately. Where such a request from a Member is received at a meeting, all proposals within the motion shall be voted on in accordance with the request to divide the question, and the Mayor/Chair shall conduct the votes accordingly.

One Third Vote

13.14. Notwithstanding the requirements of this by-law, in accordance with Subsection 284.11.1 of the Act, where, in the opinion of the Mayor, a by-law will advance a Provincial Priority, the Mayor may submit and require Council to consider and vote on the by-law, which may be subject to a One Third Vote.

13.15. Where a by-law is required to be considered and voted on by Council, the following motions are not permitted:
13.15.1. A motion to adjourn;
13.15.2. A motion to refer without direction or instructions;
13.15.3. A motion to defer;
13.15.4. A motion to suspend the Rules of Procedure;
13.15.5. A motion to table the question without direction or instructions; and,

13.15.6. A motion to amend.

14. Vetoes

14.1. Notwithstanding the requirements of this by-law, the Mayor may Veto a by-law in accordance with Subsection 284.11 of the Act.

14.2. If the Mayor believes that a by-law may potentially interfere with a Provincial Priority, he may consider Vetoing the by-law by providing notice to Council of his intent to Veto the by-law within two days of Council voting in favour of the by-law, or the expiry of any prescribed deadline.

14.3. After giving notice of his decision to consider Vetoing a by-law, the Mayor shall deliver to the Clerk, within 14 days of Council voting in favour of the by-law, written notice of the Veto and the reasons.

14.4. Within one business day of receiving written notice of the Veto, the Clerk shall forward the notice and reasons to all members of Council and make a copy of the Veto and reasons available to the public.

14.5. Within 21 days of receiving notice of the Veto, or any other prescribed period, Council may override (Veto Override) the Veto if two-thirds of the members of Council vote to override the Veto.

14.6. The Mayor shall not Veto any by-law where previous written approval of the by-law has been given, or after any prescribed period established by the Act.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 51-2023

A By-law to establish the duties of the Deputy Mayor for the Town of Ajax

WHEREAS Section 226 the Municipal Act, 2001, S.O. 2001, c. 25, as amended ("the Act", establishes that a municipality may, with the consent of the head of council, appoint a member of council to act in the place of the head of council on any body;

AND WHEREAS Section 242 of the Act provides that a municipality may, by by-law or resolution, appoint a member of the council to act in the place of the head of council or other member of council designated to preside at meetings in the municipality's procedure by-law when the head of council or designated member is absent or refuses to act or the office is vacant, and while so acting such member has all the powers and duties of the head of council or designated member, as the case may be, with respect to the role of presiding at meetings;

AND WHEREAS it is acknowledged that the role and duties of the Deputy Mayor in Ajax, and the time requirement to fulfill them, have expanded over the course of time and are not defined in specific terms within the Act, nor the Town of Ajax Procedure By-law;

AND WHEREAS in May 2023, Ajax Council directed that the Clerk take the necessary steps to ensure that the Deputy Mayor role in Ajax is properly defined within the relevant Town by-laws and/or policies, and report back to Council for related approvals as necessary.

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. The role and duties of the Deputy Mayor of Ajax are as follows:

    a. Presiding over meetings of Council and any other body, as permitted and/or required, in the absence of the Mayor;
    b. Representing the Town at events, speaking engagements, intergovernmental functions, and any other meetings as the role requires (can include bringing remarks or greetings, presenting certificates on behalf of Mayor/Council, etc.)
    c. Acting as a signing officer for the Town for by-laws, legal agreements, cheques, and any other documents as may be required;
    d. Advocating for corporate positions through intergovernmental affairs (can include authoring letters of support, official statements, and formal delegations to MPs, MPPs and other government officials).

2. Where the Deputy Mayor is not available to perform the above duties on behalf of the Mayor, they may, with the permission of the Mayor, request that another Regional Councillor perform the duties.

3. Nothing in this by-law authorizes a Deputy Mayor, while acting in place of the Mayor, to exercise any of the powers outlined in Part VI.1 of the Act (the "Strong Mayor Powers").

4. Remuneration for the Deputy Mayor role shall be set in accordance with the Town's Council Remuneration By-law.

READ a first and second time this Eighteenth day of September, 2023

READ a third time and passed this Eighteenth day of September, 2023.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 52-2023

A by-law to establish a system of administrative monetary penalties in the Town of Ajax

WHEREAS pursuant to section 102.1 (1) of the *Municipal Act, 2001,* S.O. 2001, c. 25, as amended (the *"Municipal Act, 2001")* a municipality may require a person to pay an administrative penalty for failing to comply with any by-laws respecting the parking, standing or stopping of vehicles;

AND WHEREAS any by-law that establishes a system of administrative penalties with respect to parking, standing or stopping of vehicles must comply with the requirements set out in 0. Reg. 333/07, as amended, made pursuant to the *Municipal Act, 2001;*

AND WHEREAS pursuant to 0. Reg. 333/07 and Sections 391 of the *Municipal Act, 2001,* the Town may also impose fees or charges in connection with the administration of a system of administrative penalties;

AND WHEREAS the Council of the Town considers it desirable and necessary to provide for a system of administrative penalties and administrative fees for certain by-laws, or portions thereof.

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWN OF AJAX ENACTS AS FOLLOWS:

1. SHORT TITLE

1.1 This by-law shall be known and cited as the "Administrative Penalty By-law."

2. DEFINITIONS

2.1 In this by-law:

(a) “administrative fee" means any fee specified in The Town’s Fees and Charges by-law;

(b) "administrative penalty" means an administrative penalty established by this by-law for a contravention of a designated by-law;

(c) "AMPS" means administrative monetary penalty system;

(d) "Clerk" means the Clerk for the Town of Ajax or their designate;

(e) "Council" means the Council of the Town of Ajax;

(f) "day" means any calendar day;

(g) "designated by-law" means a by-law, or a part or provision of a by-law, that is designated for the purposes of this by-law;

(h) “Fees and Charges by-law" means the by-law enacted by the Town that authorizes fees and charges, as amended or superseded.

(i) “final notice fee” means an administrative fee, established by Council from time to time in respect of a person's failure to pay an administrative penalty within the time prescribed by this by-law and listed in the Town’s Fees and Charges by-law

(j) "hearing non-appearance fee" means an administrative fee established by Council from time to time in respect of a person's failure to appear at the time and place scheduled for a review before a Hearing Officer and listed in the Town’s Fees and Charges by-law;

(k) "hearing decision" means a notice that contains a decision made by a Hearing Officer;

(l) "Hearing Officer" means a person who performs the functions of a Hearing Officer in accordance with this by-law, and pursuant to the Town's policies and procedures;

(m) "holiday" means a Saturday, Sunday, any statutory holiday in the province of Ontario or any day the offices for the Town are officially closed for business;

(n) "late payment fee" means an administrative fee, established by Council from time to time in respect of a person's failure to pay an administrative penalty within the time prescribed by this by-law and listed in the Town's Fees and Charges by-law;

(o) "Ministry" means the Ontario Ministry of Transportation and any successor ministry;

(p) "mitigating or extenuating circumstances" means situations that do not provide an excuse or justify the infraction, but which in fairness and mercy may be considered as reducing the degree of responsibility.

(q) "Municipal Act, 2001" means the Municipal Act, 2001, S.O. 2001, c. 25, as amended;

(r) "non-negotiable cheque fee" means an administrative fee established by Council from time to time in respect of payment by negotiable instrument received by the Town from a person for payment of any administrative penalty or administrative fee, for which there are insufficient funds available in the account on which the instrument was drawn, as listed in the Town's Fees and Charges by-law;

(s) "Officer" means

(i) a Municipal Law Enforcement Officer employed by the Town of Ajax and appointed by Council or their delegate; or

(ii) a police officer in the Town of Ontario, or

(iii) a Municipal Law Enforcement Officer appointed to enforce specific sections of the Town's Traffic By-law and appointed by Council or their delegate;

(t) "penalty due date" means a date which is the fifteenth (15th) day following the penalty notice date;

(u) "penalty notice" means a notice served to a person pursuant to Section 4 of this by-law;

(v) "penalty notice date" means the date of the contravention specified on the penalty notice;

(w) "penalty notice number" means the reference number specified on the penalty notice that is unique to that penalty notice;

(x) "person" includes an individual or a business name, sole proprietorship, corporation, partnership, or limited partnership, or an authorized representative thereof;

(y) "plate denial fee" means the administrative fee established by Council from time to time in respect of the process of registering with the Ministry an administrative penalty and/or administrative fees that the person has failed to pay within the time prescribed by this by-law and listed in the Town's Fees and Charges by-law;

(z) "Regulation" means Ontario Regulation 333/07, as amended, made pursuant to the *Municipal Act, 2001;*

(aa) "request for review by Hearing Officer" means the request which may be made in for the review of a screening decision;

(bb) "request for review by Screening Officer" means the request made for the review of a penalty notice;

(cc) "review by Hearing Officer" and "hearing" means the review of a screening decision;

(dd) "review by Screening Officer" and "screening review " means a review of an administrative penalty;

(ee) "screening decision" means a notice which contains the decision of a Screening Officer;

(ff) "screening non-appearance fee" means an administrative fee established by Council from time to time and set out in the Town's Fees and Charges by-law in respect of a person's failure to appear at the time and place scheduled for a screening review;

(gg) "Screening Officer " means a person who has been appointed by Council or their designate to perform the functions of a Screening Officer;

(hh) "Town" means the Corporation of the Town of Ajax.

3. APPLICATION OF THIS BY-LAW

3.1 The by-laws, or portions of by-laws, listed in the attached Schedule "A" shall be designated by-laws.

3.2 The attached Schedule "A" sets out the administrative penalty, including the short form wording to be used on penalty notices, for contraventions of designated by-laws.

3.3 The Fees and Charges by-law shall set out the administrative fees imposed for the purposes of this by-law.

4. PENALTY NOTICE

4.1 An Officer who has reason to believe that a person has contravened any designated by-law may issue a penalty notice as soon as reasonably practicable.

4.2 Every person in contravention of a designated by-law shall, upon issuance of a penalty notice, be liable to pay to the Town an administrative penalty in the amount specified in the Fees and Charges by-law, as applicable.

4.3 A penalty notice shall include the following information:

(a) if applicable, the vehicle licence plate number or vehicle identification number;

(b) the penalty notice date;

(c) a penalty notice number;

(d) the penalty due date;

(e) the identification number and signature of the Officer;

(f) the short form wording describing the contravention as listed in Schedule "A" of this by-law or other particulars reasonably sufficient to indicate the contravention;

(g) the amount of the administrative penalty;

(h) information respecting the process by which the person may exercise the right to request a screening review of the administrative penalty; and

(i) a statement advising that an unpaid administrative penalty, including any applicable administrative fee(s), will constitute a debt of the person to the Town unless cancelled pursuant to screening review or hearing process.

4.4 A penalty notice in respect to a contravention of the designated by-law, is deemed to have been served;

(a) immediately when an Officer affixes it to the vehicle in a conspicuous place, at the time of the contravention; or

(b) immediately when an Officer delivers it personally to the person having care and control of the vehicle, at the time of the contravention; or

(c) 5 days after an Officer employed by the Town, sends the penalty notice by registered mail to the person's last known address according to the records of the Ministry.

4.5 A person who is served a penalty notice by registered mail shall also pay the Town a registered mail fee.

4.6 No Officer may accept payment of an administrative penalty or administrative fee.

4.7 A person who is served with a penalty notice and who does not pay the amount of the administrative penalty on or before the date on which the administrative penalty is due and payable, as set out on the penalty notice, shall also pay the Town a late payment fee.

4.8 A person that who is served with a notice of an outstanding administrative penalty and administrative penalty and who does not pay the amount on or before the due date as set out in the notice, shall also pay a final notice fee.

5. REVIEW BY SCREENING OFFICER

5.1 A person who is served with a penalty notice may request that the administrative penalty be reviewed by a Screening Officer and shall do so on or before the penalty due date, and in accordance with the process set out in this by-law.

5.2 If a person has not requested a screening review on or before the penalty due date, the person may request that the Screening Officer extend the time to request a Screening Review to a date that is no later than 30 days after the penalty notice date, in accordance with the process set out in Section 5.4.

5.3 A person's right to request an extension of time for a Screening Review expires, if it has not been exercised, on or before 30 days after the penalty notice date, at which time:

(a) the person shall be deemed to have waived the right to request a screening review or request an extension of time for a screening review;

(b) the administrative penalty shall be deemed to be confirmed on the sixteenth (16th) day following the penalty notice date; and

(c) the administrative penalty shall not be subject to any further review, including a review by any Court.

5.4 A person's request for review by a Screening Officer or a request for an extension of time to request a screening review are exercised by:

(a) completing and submitting the online electronic form to request a screening review or request an extension of time to request a screening review; or

(b) calling the telephone number listed on the penalty notice to book an appointment for a review by the Screening Officer or a request for an extension of time to request a screening review.

5.5 A request for review by the Screening Officer or a request for an extension of time to request a screening review shall include all required information, including but not limited to; the penalty notice number, the person's contact information, etc.

5.6 A screening review shall only occur, or be scheduled, and an extension of time to request a screening review shall only be granted, by the Screening Officer if the person makes the request within the time limits set out in this By- law.

5.7 On a request for an extension of time to request a screening review, the Screening Officer may only extend the time to request a screening review where the person demonstrates, on a balance of probabilities, the existence of mitigating or extenuating circumstances that warrant the extension of time.

5.8 Where an extension of time to request a screening review is not granted by the Screening Officer, the administrative penalty and any applicable administrative fee(s) are deemed to be confirmed.

5.9 Where a notice of the scheduling of a time and place for a screening review has been served in accordance with Section 8 and a person fails to attend at the time and place set out in such notice:

(a) the person shall be deemed to have abandoned the request for review by the Screening Officer;

(b) the administrative penalty as set out in the penalty notice shall be deemed to be confirmed on the sixteenth (16th) day following the penalty notice date;

(c) the administrative penalty shall not be subject to any further review, including a review by any Court; and,

(d) the person shall pay to the Town a screening non-appearance fee, and any other applicable administrative fees.

5.10 On review of an administrative penalty, the Screening Officer may decide to: affirm the administrative penalty; or

(a) cancel, reduce or extend the time for payment of the administrative penalty, including any administrative fee(s), on the following grounds if established by the person on the balance of probabilities:

(i) the person did not contravene the designated by-law(s) as described in the penalty notice;

(ii) the existence of mitigating or extenuating circumstances; or

(iii) the cancellation, reduction or extension of time for payment of the administrative penalty, including any administrative fee(s), is necessary to relieve any financial hardship.

5.11 After a screening review by the Screening Officer, the Screening Officer shall deliver a screening decision to the person, in accordance with Section 8 of this by-law.

5.12 A Screening Officer has no authority to consider questions relating to the validity of a statute, regulation or by-law or the constitutional applicability or operability of any statute, regulation or by-law.

6. REVIEW BY HEARING OFFICER

6.1 A person may make a request for review by a Hearing Officer during the screening review.

6.2 If a person has not made a request for a review by a Hearing Officer at the time of the screening review, the person may make a request for a review by a Hearing Officer, or a request for an extension of time to request a review by a Hearing Office before the penalty due date as set out in the penalty notice, or, if the Screening Officer extended the time for payment, on the screening decision.

6.3 A person's right to a request for a review by a Hearing Officer expires if it has not been exercised on or before the due and payable date for the administrative penalty and any administrative fees listed on the screening decision, at which time:

(a) the person shall be deemed to have waived the right to a request for review by a Hearing Officer;

(b) the screening decision and the administrative penalty and any administrative fee(s), if applicable, as modified in the screening decision, shall be deemed to be confirmed; and

(c) the screening decision and the administrative penalty shall not be subject to any further review, including review by any Court.

6.4 A person's request for review by a Hearing Officer is exercised by:

(a) completing and submitting the online electronic form to request a review by a Hearing Officer or a request for an extension of time to request a hearing; or

(b) calling the telephone number listed on the screening decision to request a review by a Hearing Officer or a request for an extension of time to request a hearing;

6.5 A request for review by a Hearing Officer shall only be scheduled if the person makes the request within the time limits set out in this by-law.

6.6 Where a notice of the scheduling of a time and place for a hearing has been served in accordance with Section 8 of this by-law and a person fails to attend at the time and place set out in such notice:

(a) the person shall be deemed to have abandoned the request for review by a Hearing Officer and any administrative fee(s) shall be deemed to be confirmed;

(b) the administrative penalty and any administrative fee(s) shall not be subject to any further review, including a review by any Court; and,

(c) the person shall pay to the Town a hearing non-appearance fee, and any other applicable administrative fee(s).

6.7 On review of a screening decision, the Hearing Officer may:

(a) confirm the screening decision; or

(b) cancel, reduce or extend the time for payment of the administrative penalty, including any administrative fee(s), on the following grounds:

(i) where the person establishes on the balance of probabilities that a contravention of the designated by-law(s) as described in the penalty notice did not occur; or

(ii) the existence of mitigating or extenuating circumstances; or

(iii) where the person establishes on the balance of probabilities that the cancellation, reduction or extension of time for payment of the administrative penalty, including any administrative fee(s), is necessary to relieve any financial hardship.

6.8 A Hearing Officer shall not make any decision respecting a review of a screening decision unless the Hearing Officer has given the person and a representative of the Town an opportunity to be heard at the time and place schedule for the hearing.

6.9 All hearings by a Hearing Officer shall be conducted in accordance with the *Statutory Powers and Procedures Act,* R.S.O. 1990, c. S.22, as amended.

6.10 A Hearing Officer has no authority to consider questions relating to the validity of a statute, regulation or by-law or the constitutional applicability or operability of any statute, regulation or by-law.

6.11 After a hearing is complete, the hearing decision shall be delivered to the person in accordance with Part 8.

6.12 The decision of the Hearing Officer is final.

7. PROHIBITED COMMUNICATION AND UNDUE INFLUENCE

7.1 No person shall attempt to directly or indirectly, communicate with or influence a Screening Officer or a Hearing Officer respecting the determination of an issue in a proceeding that is or will be pending before the Screening Officer or Hearing Officer, except the person who is entitled to be heard in the proceeding or the person's lawyer or licensed representative and only by the person or the person's lawyer or licensed representative during the hearing of the proceeding in which the issue arises.

7.2 Nothing in Section 7.1 prevents a Screening Officer or Hearing Officer from seeking or receiving legal advice.

8. SERVICE OF DOCUMENTS

8.1 The service of any document, notice or decision, pursuant to this by-law, when served in any of the following ways, is deemed effective:

(a) immediately, when a copy is delivered to the person to whom it is addressed;

(b) on the fifth day following the date it is sent by regular mail to the person's last known address; or

(c) immediately upon sending a copy by electronic mail (i.e. email) to the person's last known electronic mail address.

8.2 For the purposes of administration of this this by-law or any designated by-law, a person's last known address, or electronic email address includes an address, or electronic mail address provided by the person to the Town as may be required by a form or in communication with the Town relation to this by-law and includes the person’s address within the records of the Ministry.

9. ADMINISTRATION

9.1 The Clerk shall administer this by-law and establish any additional practices and procedures necessary to implement this by-law and may amend such practices and procedures from time to time as deemed necessary, without amendment to this by-law provided that such practices and procedures are not in conflict, or inconsistent with this by-law.

9.2 The Clerk~~,~~ shall prescribe all forms and notices, including the penalty notice, necessary to implement this by-law and may amend such forms and notices from time to time as deemed necessary, without amendment to this by-law, provided that the contents of such forms and notices are not in conflict, or inconsistent with this by-law.

9.3 An administrative penalty, including any administrative fee(s), that is confirmed or reduced, or in respect of which the time for payment has been extended, remaining unpaid after the date when it is due and payable, constitutes a debt to the Town owed by the person.

9.4 Where an administrative penalty is not paid by the date on which the administrative penalty is due and payable, the person shall pay to the Town any and all applicable administrative fee(s) in addition to the administrative penalty.

9.5 Where an administrative penalty for contravention of the designated by-law and any applicable administrative fee, are not paid within fifteen (15) days after becoming due and payable, the Town may notify the Ministry of the default and the Ministry shall not validate the permit of the person named in the notice of default nor issue a new permit to the person until the administrative penalty, any applicable administrative fee(s) and the Ministry's fees are paid.

9.6 Where the Town notifies the Ministry of a default under this by-law, the person shall pay a plate denial fee and any applicable administrative fee(s) imposed by the Ministry

9.7 Where a person makes payments to the Town of any administrative penalty, administrative fee(s) by negotiable instrument, for which there are insufficient funds available in the account on which the instrument is drawn, the person shall pay to the Town the non-negotiable cheque fee set out in the Fees and Charges by-law.

9.8 Where an administrative penalty is cancelled by a Screening Officer or Hearing Officer, any administrative fee(s) are also cancelled.

9.9 Any time limit that would otherwise expire on a holiday is extended to the next day that is not a holiday.

9.10 A person claiming financial hardship under this by-law shall provide documented proof of the financial hardship to the Screening Officer or the Hearing Officer, as applicable.

9.11 Any schedule attached to this by-law forms part of this by-law.

10. SEVERABILITY

10.1 Should any provision, or any part of a provision, of this by-law to be declared invalid, or to be of no force and effect, by a court of competent jurisdiction, it is the intent of the Council that a such provision, or any part of a provision, shall be severed from this by-law, and every other provision of this by-law shall be applied and enforced in accordance with its terms to the extent possible according to law.

11. INTERPRETATION

11.1 The provisions in Part VI of the Legislation Act, 2006, S.O. 2006, c.21, Sched. F, shall apply to this by-law.

12. EFFECTIVE DATE

12.1 This by-law shall come into force and effect on January 15th, 2024.

READ a first and second time this
Eighteenth day of September, 2023.

READ a third time and passed this
Eighteenth day of September, 2023.

_____

Mayor

_____

D-Clerk

SCHEDULE "A" ADMINISTRATIVE PENALTY BY-LAW

1. The headings of the following tables identify the by-laws that contain designated provisions for the purposes of this by-law.

2. For the purposes of this by-law, Column 3 in the following tables list the applicable provisions in each by-law that are designated.

3. Column 2 in the following table sets out the short form wording to be used in a penalty notice for the contravention of the designated provisions listed in Column 3.

4. Column 4 in the following tables set out the administrative penalty amount that is payable for contraventions of the designated provisions listed in Column 3.

Table 1 – Town of Ajax Traffic By-law, as amended

Column 1 Item	Column 2 Short Form Wording	Column 3 Designated Provisions	Column 4 Administrative Penalty Amount
1	Park on municipal property without Permit within dates and times identified	8.6(f)	$60.00
2	Park on highway without Permit within the dates and times identified	10.4	$60.00
3	Park on highway without registering as local resident in area and within the dates and times identified	10.5	$60.00
4	Stopped tow truck within 200m of scene of accident	4.11(a)	$60.00
5	Stopped tow truck within 200m of vehicle involved in an accident	4.11(b)	$60.00
6	Parked/Stopped in designated parking space no permit	5.1	$500.00
7	Parked/Stopped in designated space improper display permit	5.2	$100.00
8	Parked left wheels to curb	6.1(a)	$45.00
9	Parked right wheels over 15cm from curb	6.1(a)	$45.00
10	Parked right wheels not near right hand limit of highway	6.1(b)	$45.00
11	Parked left wheels to right hand limit of highway	6.1(b)	$45.00
12	Parked left wheels over 15cm from curb one-way street	6.2(a)	$45.00
13	Parked right wheels to curb one-way street	6.2(a)	$45.00
14	Parked left wheels not near left hand limit of highway one-way street	6.2(b)	$45.00
15	Stopped refreshment vehicle for more than 10 minutes	6.3	$60.00
16	Parked not wholly within parking space	6.8(a)	$45.00
17	Parked occupy more than one space	6.8(b)	$45.00
18	Parked prevent utilization of other parking spaces	6.8(c)	$45.00

Column 1 Item	Column 2 Short Form Wording	Column 3 Designated Provisions	Column 4 Administrative Penalty Amount
19	Parked obstruct flow of traffic	6.8(c)	$45.00
20	Stopped on/over sidewalk/footpath	7.1(a)	$60.00
21	Stopped within intersection/pedestrian crossing/roundabout	7.1(b)	$45.00
22	Stopped interfere with traffic	7.1(c)	$45.00
23	Stopped interfere with snow removal	7.1(d)	$60.00
24	Stopped while inclement weather road clearing occurring	7.1(e)	$60.00
25	Stopped on roadway alongside of parked/stopped vehicle	7.1(f)	$60.00
26	Stopped on any bridge/elevated structure or within any tunnel/underpass	7.1(g)	$60.00
27	Stopped on/adjacent to side/end median strip	7.1(h)	$60.00
28	Stopped alongside/across excavation/obstruction	7.1(i)	$60.00
29	Parked in front/or within 1.25m of driveway/private roadway	8.1(a)	$45.00
30	Parked within 3m of fire hydrant	8.1(b)	$45.00
31	Parked within 15m of intersecting roadway	8.1(c)	$45.00
32	Parked displaying vehicle for sale	8.1(d)	$45.00
33	Parked to wash/grease/repair vehicle	8.1(e)	$45.00
34	Parked within 4m of railway tracks	8.1(f)	$45.00
35	Parked within 15 m of railway crossing	8.1(g)	$45.00
36	Parked preventing removal of another vehicle	8.1(h)	$45.00
37	Parked in excess of 3 hours no permit	8.1(i)	$45.00
38	Parked on/over boulevard	8.1(j)	$45.00
39	Parked on/over boulevard outside of apron	8.1(k)	$45.00
40	Parked between 1:00am and 5:00am no permit	8.1(l)	$45.00
41	Parked on apron on/over travelled roadway	8.1(m)	$45.00
42	Parked inoperable vehicle	8.1(n)	$45.00
43	Parked within 3m of community mailbox	8.1(o)	$45.00
44	Parked within 1m of depressed curb access to sidewalk	8.1(p)	$45.00
45	Parked and leak fluid	8.1(q)	$45.00
46	Parked within/blocking emergency access route	8.1(r)	$45.00
47	Parked at bus stop, other than bus	8.1(s)	$45.00

Column 1 Item	Column 2 Short Form Wording	Column 3 Designated Provisions	Column 4 Administrative Penalty Amount
48	Parked on private property without consent	8.4(a)	$45.00
49	Parked on private property on/over footpath	8.4(b)	$45.00
50	Parked on private property in drive aisle	8.4(c)	$45.00
51	Parked on private property not in parking space	8.4(d)	$45.00
52	Parked on private property in more than one space	8.4(e)	$45.00
53	Parked on Municipal property without consent	8.6(a)	$45.00
54	Parked on Municipal property on/over footpath	8.6(b)	$45.00
55	Parked on Municipal property in drive aisle	8.6(c)	$45.00
56	Parked on Municipal property not in parking space	8.6(d)	$45.00
57	Parked on Municipal property in more than one space	8.6(e)	$45.00
58	Parked in electric space on Municipal property without charging	8.8	$45.00
59	Parked on fire route	8.9	$100.00
60	Stopped in prohibited area	9.1	$60.00
61	Stopped contrary to day/time limits	9.2	$45.00
62	Stopped in temporary no stopping area	9.2	$45.00
63	Parked in prohibited area	10.1	$60.00
64	Parked contrary to day/time limits	10.2	$45.00
65	Parked in temporary prohibited area	10.2	$45.00
66	Parked in excess of time permitted limits	10.3	$45.00
67	Parked heavy vehicle in prohibited area	19.1	$75.00
68	Parked commercial vehicle in prohibited area	19.4	$75.00

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 53-2023

A By-law to amend By-law 45-2020, being a By-law to regulate vehicular traffic on highways, private and municipal property, and to prohibit the injuring or fouling of highways and bridges, and the obstruction of ditches and culver to regulate traffic on Highways in the Town of Ajax.

WHEREAS the Council of The Corporation of the Town of Ajax may pass By-laws pursuant to the Municipal Act, 2001, S.O. 2001 and the Highway Traffic Act, R.S.O. 1990 and amendments thereto:

WHEREAS pursuant to section 102.1 (1) of the *Municipal Act, 2001,* S.O. 2001, c. 25, as amended (the *"Municipal Act, 2001")* a municipality may require a person to pay an administrative penalty for failing to comply with any by-laws respecting the parking, standing or stopping of vehicles;

AND WHEREAS any by-law that establishes a system of administrative penalties with respect to parking, standing or stopping of vehicles must comply with the requirements set out in 0. Reg. 333/07, as amended, made pursuant to the *Municipal Act, 2001;*

AND WHEREAS pursuant to 0. Reg. 333/07 and Sections 391 of the *Municipal Act, 2001,* the Town may also impose fees or charges in connection with the administration of a system of administrative penalties;

AND WHEREAS the Council of the Town considers it desirable and necessary to provide for a system of administrative penalties and administrative fees for certain by- laws, or portions thereof.

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. That By-law 45-2020, as amended, be amended by adding the following to Section 1. DEFINITIONS;

   1.53. "administrative penalty" means an administrative penalty established by the Town's Administrative Penalty By-law for a contravention of a designated by-law;

   1.54. "penalty notice" means a notice served to a person pursuant to Town's Administrative Penalty By-law;

2. That By-law 45-2020, as amended, be further amended by adding Sections;

   21.6. An Officer, upon discovery of any motor vehicle parked or left in contravention of Sections 4.11, 5.1., 5.2., 6.1., 6.2., 6.3., 6.8., 7.1., 8.1., 8.4., 8.6., 8.8., 8.9., 9.1., 9.2., 10.1. to 10.5., 19.1., and 19.4., may issue a penalty notice, served in accordance with the Town's Administrative Penalty By-law. The Provincial Offences Act, R.S.O. 1990, c.P33, as amended, shall not apply to any of these contraventions.

   21.7. Every person who contravenes any of the provisions of this By-law, except the Sections listed in Section 21.6. is guilty of an offence and upon conviction, is liable to a fine for each offence, exclusive of costs, as prescribed by the Provincial Offences Act R.S.O. 1990, c. P.33.

   21.8. Upon issuance of a penalty notice, the owner of the vehicle shall be liable to pay to the Town the administrative penalty in the amount specified in Schedule "A" of the Town's Administrative Penalty By-law.

   21.9. A person who is served with a penalty notice may request a review of the administrative penalty by a Screening Officer in accordance with the timelines and process set out in the Town's Administrative Penalty by-law. A person may further request a review by a Hearing Officer of the decision of the

Screening Officer in accordance with the timelines and process set out in the Town's Administrative Penalty By-law.

21.10. If an administrative penalty is not paid in accordance with the Town's Administrative Penalty By-law and it becomes due and payable to the Town, the Town may enforce payment of the amount in default in accordance with, and as set out in, O.Reg. 333/07.

23.3. Sections 21.1. and 21.2. shall only apply to enforcement proceedings with an offence date prior to January 15th, 2024, and then only until such enforcement proceedings have been concluded. Except for these circumstances, Sections 21.1 and 21.2. will no longer apply.

3. This By-law shall come into force and effect on January 15th, 2024.

READ a first and second time this Eighteenth day of September, 2023.

READ a third time and passed this Eighteenth day of September, 2023.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 54-2023

Being a By-Law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting of September 18, 2023.

WHEREAS Section 5 (3) of the *Municipal Act, 2001*, as amended, provides that municipal powers shall be exercised by By-law, unless the municipality is specifically authorized to do otherwise;

AND WHEREAS it is deemed expedient and desirable that the proceedings of the Council of the Corporation of the Town of Ajax at this meeting be confirmed and adopted by By-law.

NOW THEREFORE, BE IT ENACTED AND IT IS HEREBY ENACTED as a By-law of the Corporation of the Town of Ajax by the Council thereof as follows:

1. That the actions of the Council at its regular meeting held on the 18th day of September, 2023 and in respect of each motion, resolution and other action passed and taken by the Council at its said meeting, is, except where the prior approval of the Ontario Land Tribunal or other body is required, hereby adopted, ratified and confirmed as if all such proceedings were expressly embodied in this By-law.

2. That the Head of the Council and proper officers of the Corporation of the Town of Ajax are hereby authorized and directed to do all things necessary to give effect to the said action or to obtain appropriate approvals where required, except where otherwise provided, and to affix the Corporate Seal of the Corporation of the Town of Ajax to all such documents.

READ a first and second time this Eighteenth day of September, 2023.

READ a third time and passed this Eighteenth day of September, 2023.

_____
Mayor

_____
D-Clerk